

FIGURE TRUST 2025-HE5,
as Issuer,
THE BANK OF NEW YORK MELLON,
as Indenture Trustee, Paying Agent, REMIC Administrator and Registrar, and
FIGURE LENDING LLC,
as Sponsor

INDENTURE
Dated August 28, 2025

MORTGAGE-BACKED NOTES, SERIES 2025-HE5

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This indenture, dated August 28, 2025 (this “Indenture”), is entered into among FIGRE TRUST 2025-HE5, a Delaware statutory trust, as issuer (the “Issuer”), THE BANK OF NEW YORK MELLON, as indenture trustee (the “Indenture Trustee”), as paying agent (the “Paying Agent”), as REMIC Administrator (the “REMIC Administrator”) and as registrar (the “Registrar”), and FIGURE LENDING LLC, as sponsor (the “Sponsor”).

PRELIMINARY STATEMENT

The Issuer has duly authorized the execution and delivery of this Indenture to provide for the issuance of the FIGRE Trust 2025-HE5 Mortgage-Backed Notes, Series 2025-HE5, Class A Notes (the “Class A Notes”), Mortgage-Backed Notes, Series 2025-HE5, Class B Notes (the “Class B Notes”), Mortgage-Backed Notes, Series 2025-HE5, Class C Notes (the “Class C Notes”), Mortgage-Backed Notes, Series 2025-HE5, Class D Notes (the “Class D Notes”), Mortgage-Backed Notes, Series 2025-HE5, Class E Notes (the “Class E Notes”), Mortgage-Backed Notes, Series 2025-HE5, Class F Notes (the “Class F Notes”) and Mortgage-Backed Notes, Series 2025-HE5, Class G Notes (the “Class G Notes”) and Mortgage-Backed Notes, Series 2025-HE5, Class XS Notes (the “Class XS Notes”, and collectively with the Class A Notes, the Class B Notes, the Class C Notes, the Class D Notes, the Class E Notes, the Class F Notes and the Class G Notes, the “Notes”) to be issued pursuant to this Indenture.

All things necessary to make the Notes, when the Notes are executed by the Issuer and authenticated and delivered by the Registrar hereunder and duly issued by the Issuer, the valid and legally binding obligations of the Issuer enforceable in accordance with their terms, and to make this Indenture a valid and legally binding agreement of the Issuer enforceable in accordance with its terms, have been done.

Each party agrees as follows for the benefit of the other parties and the equal and ratable benefit of the Noteholders.

GRANTING CLAUSE

The Issuer hereby grants to the Indenture Trustee, not in its individual capacity, but solely in its capacity as Indenture Trustee for the benefit of the Holders of the Notes, at the Closing Date, all of the Issuer’s right, title and interest in and to, whether now existing or hereafter created, (a) the Mortgage Assets and related Mortgage Files, including the Loan Agreement and REO Property Files, the Mortgages, and the right to all payments due as of the Cut-Off Date but received on or after the Cut-Off Date and all payments of principal and interest received on or with respect to the Mortgage Loans after the Cut-Off Date, (b) all amounts from time to time credited to and the proceeds of the Payment Account, the Servicer Collection Account, the Escrow Account, the Reserve Account, the Net WAC Shortfall Reserve Account, and all funds on deposit from time to time in the Payment Account, the Servicer Collection Account, the Escrow Account, the Reserve Account, and the Net WAC Shortfall Reserve Account but excluding any investment income from such accounts, (c) the Issuer’s rights and remedies, but none of its responsibilities, duties or obligations under the Transaction Documents to which it is a party and all other assets of the Issuer from time to time, (d) all of the Issuer’s rights under any insurance policies related to the Mortgage Loans, (e) the Issuer’s security interest in any collateral pledged to secure the Mortgage Loans, including the Mortgaged Properties and (f) all present and future claims, demands, causes and

chooses in action in respect of any or all of the foregoing and all payments on or under, and all proceeds of every kind and nature whatsoever in respect of, any or all of the foregoing and all payments on or under, and all proceeds of every kind and nature whatsoever in the conversion thereof, voluntary or involuntary, into cash or other liquid property, all cash proceeds, accounts, accounts receivable, notes, drafts, acceptances, checks, deposit accounts, rights to payment of any and every kind, and other forms of obligations and receivables, instruments and other property which at any time constitute all or part of or are included in the proceeds of any of the foregoing (collectively, the “Collateral” or the “Trust Estate”).

The foregoing Grant is made in trust to secure the payment of principal of and interest on, and any other amounts owing in respect of, the Notes, subject to the priority set forth herein, and to secure compliance with the provisions of this Indenture, all as provided in this Indenture.

The Indenture Trustee, not in its individual capacity but solely in its capacity as Indenture Trustee on behalf of the Holders of the Notes, acknowledges such Grant and accepts the Trust Estate under this Indenture in accordance with the provisions hereof. The Indenture Trustee agrees to perform its duties as Indenture Trustee as required herein. The Paying Agent agrees to perform its duties as paying agent as required herein. The Registrar agrees to perform its duties as registrar as required herein. Any Mortgage Asset sold by the Issuer will be deemed to be automatically released from the lien of this Indenture without any action being taken by the Issuer or the Indenture Trustee.

ARTICLE I

DEFINITIONS

Section 1.01. Definitions. For all purposes of this Indenture, except as otherwise expressly provided herein or unless the context otherwise requires, capitalized terms not otherwise defined herein shall have the meanings set forth below in this Section 1.01. All other capitalized terms used herein shall have the meanings specified herein.

“17g-5 Information Provider”: The Sponsor or any designee or successor in interest.

“Accepted Servicing Practices”: As defined in the Servicing Agreement.

“Accrual Period”: For any Payment Date and each Class of Notes, the calendar month immediately preceding such Payment Date. Current Interest will be calculated on a 30/360 basis.

“Additional Servicing Fee Amount”: The amount, if any, by which the aggregate servicing fee due to the Servicer for a Payment Date exceeds the Servicing Fee for that Payment Date.

“Administration Agreement”: The Administration Agreement, dated as of the date hereof, between the Issuer and the Administrator, as may be amended, supplemented or restated from time to time.

“Administrator”: Figure Lending LLC.

“Administrator Fee”: The Administrator shall be entitled to receive a fee equal to 1/12th of (x) the Administrator Fee Rate, multiplied by (y) the aggregate Principal Balance of the Mortgage Loans and any REO Properties as of the first day of the related Collection Period, beginning on the Initial Payment Date.

“Administrator Fee Rate”: 0.02% per annum.

“Adverse REMIC Event”: As defined in the Trust Agreement.

“Affiliate”: With respect to any Person, any other Person controlling, controlled by or under common control with such Person. For purposes of this definition, “control” means the power to direct the management and policies of a Person, directly or indirectly, whether through ownership of voting securities, by contract or otherwise and “controlling” and “controlled” shall have meanings correlative to the foregoing.

“Annual Cap”: With respect to the Extraordinary Trust Expenses of the Indenture Trustee, the Paying Agent, the REMIC Administrator, the Registrar, the Trust Registrar, the Loan Data Agent, the Owner Trustee, the Back-Up Servicer, the Custodian, the EU/UK Risk Retention Reporting Agent the Administrator and the Controlling Holder, \$400,000 in any calendar year; *provided, however*, that (a) \$200,000 of the Annual Cap will be allocated to the Extraordinary Trust Expenses of the Indenture Trustee, the REMIC Administrator, the Paying Agent, the Registrar and the Trust Registrar, (b) \$125,000 of the Annual Cap will be allocated to the Extraordinary Trust Expenses of the Custodian and the Owner Trustee, (c) \$25,000 of the Annual Cap will be allocated to the Extraordinary Trust Expenses of the Loan Data Agent, (d) \$25,000 of the Annual Cap will be allocated to the Extraordinary Trust Expenses of the Controlling Holder, the EU/UK Risk Retention Reporting Agent and the Administrator, (e) \$25,000 of the Annual Cap will be allocated to the Extraordinary Trust Expenses of the Back-Up Servicer and (f) on the Payment Date occurring in September of such calendar year, each such party will have the right to reimbursement of Extraordinary Trust Expenses from any unused portion of the Annual Cap allocated to another party to the extent that the Extraordinary Trust Expenses of such party exceed the related capped amount at the end of such calendar year; and *provided, further*, that (i) any such Extraordinary Trust Expenses in excess of the Annual Cap may be paid, to the extent funds are available, in the subsequent year or years (subject to the Annual Cap for such subsequent year or years) until paid in full; and (ii) the Annual Cap will not apply to any Extraordinary Trust Expenses incurred following an Event of Default, to any funds distributed from the aggregate purchase price of any Loan Sale, or upon an Optional Termination, an Optional Redemption or any final payment on the Notes and the Class FR Certificates or any Extraordinary Trust Expenses relating to a servicing transfer or any amounts reimbursable as a result of any confidential binding arbitration proceeding related to any Optional Loan Review or enforcement of any repurchase obligation and no person’s then existing Annual Cap shall be reduced by payments of any amounts described in this clause (ii). To the extent the reimbursement of Extraordinary Trust Expenses is limited by the Annual Cap, such amounts may be paid on a pro rata basis from Available Funds, to the extent available, based on the amount of such expenses pursuant to Section 3.03. The Annual Cap will not apply following an Event of Default or upon an Optional Termination, an Optional Redemption or other final payment on the Notes.

“Applicable Anti-Money Laundering Law”: The Uniting and Strengthening America by Providing Appropriate Tools Required to Intercept and Obstruct Terrorism Act of 2001, Title III of Pub. L. 107 56 (signed into law October 26, 2001) and its implementing regulations (collectively, USA PATRIOT Act), the Financial Crimes Enforcement Network’s (FinCEN) Customer Due Diligence Requirements and such other laws, rules, regulations and executive orders in effect from time to time applicable to banking institutions.

“Applied Realized Loss Amounts”: For any Payment Date, the *excess*, if any, after giving effect to the allocation of the Available Funds on such Payment Date, of the sum of the aggregate Note Amount of the WAC Cap Notes and the Class G Notes and the Certificate Balance of the Class FR Certificates over the aggregate Principal Balance of the Mortgage Loans and any REO Properties as of the last day of the related Collection Period.

“Asset Sale Proceeds”: The sales price for the sale of an Eligible NPL pursuant to a Loan Sale as deposited either into the Payment Account or the Servicer Collection Account, net of any expense incurred by the Servicer in connection with such a sale.

“Assignment of Security Instrument”: An individual assignment in blank of the security instrument, notice of transfer or equivalent instrument in recordable form, sufficient under the laws of the jurisdiction wherein the related Mortgaged Property is located to reflect the assignment of the security instrument.

“Authorized Officer”: With respect to the Issuer, any officer of the Depositor, the Owner Trustee, the Administrator or the Majority Interest Holder who is identified on the list of Authorized Officers delivered by the Issuer to the Indenture Trustee on the Closing Date (as such list may be modified or supplemented from time to time thereafter).

“Available Funds”: With respect to any Payment Date, an amount equal to the sum of the Interest Remittance Amount and the Principal Remittance Amount for such Payment Date.

“Back-Up Servicer”: Northpointe Bank, a Michigan state-chartered bank.

“Back-Up Servicing Agreement”: The back-up servicing agreement dated the Closing Date among the Servicer, the Issuer, the Indenture Trustee and the Back-Up Servicer.

“Back-Up Servicing Fee”: A monthly fee equal to 1/12th of (x) 0.01% multiplied by (y) the aggregate Principal Balance of the Mortgage Loans as of the first day of the related Collection Period, beginning on the Initial Payment Date.

“Balance”: The Principal Balance or Notional Amount of the related Note or Certificate, as applicable.

“Beneficial Owner”: With respect to any Book-Entry Note, the Person who is the beneficial owner of such Note as reflected on the books of the Depository or on the books of a Person maintaining an account with such Depository (directly as a Depository Participant or indirectly through a Depository Participant, in accordance with the rules of such Depository).

“Benefit Plan Investor”: Any “employee benefit plan” as defined in Section 3(3) of ERISA that is subject to Title I of ERISA, a “plan” as defined in and subject to Section 4975 of the Code or an entity or account that is deemed to hold plan assets of the foregoing by virtue of such employee benefit plan’s or plan’s investment in the entity or account.

“BNY”: The Bank of New York Mellon, a banking organization under the laws of the State of New York.

“Book-Entry Notes”: Notes, ownership and transfers of beneficial interests in which shall be made through book entries by the Depository as described in Section 4.06 hereof.

“Business Day”: Any day other than (i) a Saturday or a Sunday, or (ii) a day on which the New York Stock Exchange or Federal Reserve is closed, a day on which banking institutions in the State of New York, the State of Delaware, the State of California or any state in which the Corporate Trust Office of the Indenture Trustee, the Paying Agent or the Registrar is located, are authorized or obligated by law or executive order to be closed.

“Certificate”: As defined in the Trust Agreement.

“Certificate Balance”: With respect to each Payment Date and the Class FR Certificate, an amount equal to the aggregate amount of Net Draws on the Mortgage Loans on or prior to the last day of the related Collection Period for which the Servicer is reimbursed from amounts funded by the Holder of the Class FR Certificate, less the sum of (i) all amounts previously paid in respect of the Certificate Balance (other than amounts paid in respect of interest on such balance) prior to such Payment Date and (ii) any Applied Realized Loss Amounts previously allocated thereto plus any Write-up Amounts allocated to the Certificate Balance on prior Payment Dates.

“Certificateholder” or “Holder”: With respect to any Certificate, as defined in the Trust Agreement.

“Charged-Off Loans”: Any Mortgage Loan that becomes 180 days delinquent under the MBA Method if a determination is made by the Servicer (or the Subservicer) that no significant recovery is possible through foreclosure proceedings or other liquidation of the related Mortgaged Property.

“Class”: Any of the Class A, Class B, Class C, Class D, Class E, Class F, Class G or Class XS.

“Class A Notes”: As defined in the Preliminary Statement.

“Class B Notes”: As defined in the Preliminary Statement.

“Class C Notes”: As defined in the Preliminary Statement.

“Class D Notes”: As defined in the Preliminary Statement.

“Class E Notes”: As defined in the Preliminary Statement.

“Class F Notes”: As defined in the Preliminary Statement.

“Class FR Certificate”: The Class FR Certificate issued by the Issuer pursuant to the Trust Agreement, which represents the Class FR Interest.

“Class FR Certificates Writedown Amount”: For each Payment Date will be an amount equal to the product of (i) the excess, if any, of the sum of the aggregate Note Amount of the Notes and the Certificate Balance of the Class FR Certificates (after giving effect to payments of principal and allocations of Realized Losses on such Payment Date) over the aggregate Principal Balance of the Mortgage Loans and any REO Properties as of the last day of the related Collection Period and (ii) a fraction, expressed as a percentage, (a) the numerator of which is equal to the Certificate Balance of the Class FR Certificates immediately prior to such Payment Date, and (b) the denominator of which is equal to the sum of the aggregate Note Amount of the Notes and the Certificate Balance of the Class FR Certificates immediately prior to such Payment Date.

“Class FR Interest”: The sole class of “residual interest” in REMIC I for purposes of the REMIC Provisions under U.S. federal income tax law.

“Class G Notes”: Non-interest bearing Notes as further defined in the Preliminary Statement.

“Class R Certificate”: The Class R Certificate issued by the Issuer pursuant to the Trust Agreement, which represents the Class R Interest.

“Class R Interest”: The sole class of “residual interest” in REMIC II for purposes of the REMIC Provisions under U.S. federal income tax law.

“Class XS Notes”: Interest-only Notes as further defined in the Preliminary Statement.

“Class XS Note Rate”: For the applicable Accrual Period, a per annum rate equal to the greater of (i) zero and (ii) the Net WAC Rate minus (A) the Administrator Fee Rate and (B) the product of (1) a fraction, (i) the numerator of which is 360 and (ii) the denominator of which is 30 and (2) the percentage equivalent of a fraction, the numerator of which is equal to the aggregate amount of interest accrued (or notionally accrued) on the Class A, Class B, Class C, Class D, Class E and Class F Notes and the Class FR Certificates at their respective Interest Rates (or, in the case of the Class FR Certificates, at their notional interest rate) for the related Payment Date, and the denominator of which is equal to the aggregate Principal Balance of the Mortgage Loans and any REO Properties as of the first day of the related Collection Period.

“Closing Date”: August 28, 2025.

“Code”: The Internal Revenue Code of 1986, as amended.

“Collateral”: The meaning specified in the Granting Clause.

“Collection Period”: With respect to any Payment Date, the calendar month immediately preceding such Payment Date.

“Commission”: The Securities and Exchange Commission.

“Conditional Prepayment Rate” or “CPR”: The result of the formula reading: $CPR = 1 - (1 - SMM)^{12}$.

“Controlling Holder”: The Holder or Holders of more than a 50% percentage interest of the Class XS Notes.

“Corporate Trust Office”: With respect to the Indenture Trustee, the Paying Agent, the Registrar or the Trust Registrar, the corporate trust office of the Indenture Trustee, the Paying Agent, the Registrar or the Trust Registrar, as applicable, is (i) solely for purpose of the transfer, surrender, exchange or presentation of Notes for final payment, 500 Ross Street, Suite 625, Pittsburg, PA 15262, Attention: Transfer Unit - FIGRE Trust 2025-HE5 and (ii) for all other purposes, 240 Greenwich Street, 7 East, New York, NY 10286, Attention: Corporate Trust Administration - FIGRE Trust 2025-HE5, and, or at such other address as the Indenture Trustee, Paying Agent, the Registrar or the Trust Registrar may designate from time to time by notice to the Noteholders and the Issuer. With respect to the Owner Trustee or the Issuer, initially the office of the Owner Trustee at 500 Delaware Avenue, 11th Floor, Wilmington, Delaware 19801, Attention: Corporate Trust Administration – FIGRE Trust 2025-HE5, Email: dareverdito@wsfsbank.com, structuredfinance@wsfsbank.com, or at such other office in Delaware as the Owner Trustee or the Depositor may designate from time to time.

“Credit Event”: The occurrence and continuation of a Cumulative Loss Trigger Event or a Delinquency Trigger Event, and will continue until such Cumulative Loss Trigger Event or Delinquency Trigger Event is no longer occurring.

“Cumulative Loss Trigger Event”: The occurrence on a Payment Date of the percentage equivalent of the aggregate Realized Losses since the Cut-Off Date divided by the aggregate Principal Balance of the Mortgage Loans as of the Cut-Off Date exceeding 7.00%.

“Current Interest”: For any Class of WAC Cap Notes and any Payment Date, an amount equal to (a) the product of (1) (A) 30, with respect to any Payment Date other than the Initial Payment Date or (B) the number of days, based on a 30/360 day count, beginning on, but excluding, the Cut-Off Date and ending on the final day of the related Collection Period, with respect to the Initial Payment Date, (2) the applicable Interest Rate and (3) the Note Amount of such Class of Notes immediately prior to such Payment Date, divided by (b) 360. For the Class XS Notes and any Payment Date, an amount equal to (a) the product of (1) 30, (2) the Class XS Note Rate and (3) the applicable Notional Amount, divided by (b) 360.

“Custodial Agreement”: The custodial agreement, dated the Closing Date, between the Issuer and the Custodian, as may be amended, supplemented or restated from time to time.

“Custodial Fee”: With respect to each Payment Date, an amount equal to \$1,000, beginning on the Initial Payment Date.

“Custodian”: WSFS, and its successors and assigns, as custodian under the Custodial Agreement.

“Cut-Off Date”: The close of business on July 31, 2025.

“DART”: As defined in the Servicing Agreement.

“DART System”: As defined in the Servicing Agreement.

“DBRS”: DBRS, Inc.

“Debt Service Reduction”: The modification of the terms of a Mortgage Loan in a bankruptcy proceeding, including the reduction of the amount of the monthly payment on the related Mortgage Loan.

“Deferred Amount”: With respect to any Mortgage Loan, any amount owed by the related Mortgagor that is or has been deferred by the Servicer or a prior servicer until the earliest of the maturity date for the Mortgage Loan, sale of the related Mortgaged Property or payoff of the Mortgage Loan by the related Mortgagor, at which time such amount will be due from the related Mortgagor.

“Deficient Valuation”: With respect to any Mortgage Loan, the occurrence of a bankruptcy court establishing the value of a Mortgaged Property at an amount less than the then-outstanding Principal Balance of the Mortgage Loan secured by such Mortgaged Property or reducing the then-outstanding Principal Balance of a Mortgage Loan.

“Definitive Note”: A physical, definitive Note issued in fully-registered form.

“Delinquency Trigger Event”: The occurrence on any Payment Date on or following the Payment Date occurring in August 2026 if the monthly percentage equivalent of (a) the aggregate Principal Balance of the Mortgage Loans that are 60 days or more delinquent pursuant to the MBA Method of measuring delinquency (including Mortgage Loans in foreclosure, REO Property or bankruptcy status, but excluding Charged-Off Loans) and all Mortgage Loans subject to a servicing modification (including those relating to forbearances or payment deferrals that reduce a Mortgage Loan’s mortgage interest rate, reduce or defer a portion of its Principal Balance or forgive interest owed by the borrower) within the six (6) months prior to such Payment Date (in each case without duplication and averaged over the three (3) calendar months preceding each applicable Payment Date), divided by (b) the aggregate Principal Balance of the Mortgage Loans as of the last day of each related Collection Period (averaged over the three (3) calendar months preceding each applicable Payment Date), exceeds the applicable Delinquency Trigger Event Threshold.

“Delinquency Trigger Event Threshold”: For any date of determination shall equal the percentage set forth opposite such applicable monthly period on Exhibit E hereto.

“Denomination”: With respect to any Note, the amount specified on the face of such Note representing the principal portion of the Initial Note Amount evidenced by such Note.

“Depositor”: Figure HELOC Master Depositor Trust, a Delaware statutory trust.

“Depositor Mortgage Loan Sale Agreement”: The depositor mortgage loan sale agreement, dated the Closing Date, between the Depositor, as seller and depositor and the Issuer, as purchaser.

“Depositor Trust Agreement”: The amended and restated trust agreement, dated as of April 14, 2023, among Figure Lending LLC, as settlor and administrator, the Depositor Trustee and WSFS, as certificate registrar.

“Depositor Trustee”: WSFS, not in its individual capacity but solely as owner trustee under the Depositor Trust Agreement and its successors and assigns or any successor owner trustee appointed pursuant to the terms of the Depositor Trust Agreement.

“Depository”: The Depository Trust Company, the nominee of which is Cede & Co., or any successor thereto.

“Depository Participant”: A Person for whom, from time to time, the Depository effects book-entry transfers and pledges of securities deposited with the Depository.

“Draw”: With respect to any Mortgage Loan, an additional borrowing by the related Mortgagor subsequent to the Closing Date in accordance with the related Loan Agreement.

“Electronic Means”: The following communications methods: S.W.I.F.T., e-mail, secure electronic transmission containing applicable authorization codes, passwords and/or authentication keys issued by the Indenture Trustee, or another method or system specified by the Indenture Trustee as available for use in connection with its services hereunder.

“Eligible Account”: Either (i) a segregated account or accounts maintained with an institution whose deposits are insured by the Federal Deposit Insurance Corporation, the unsecured and uncollateralized long-term debt obligations of which institution shall be rated at least “BBB” by each Rating Agency, and which is (A) a federal savings and loan association duly organized, validly existing and in good standing under the federal banking laws, (B) an institution duly organized, validly existing and in good standing under the applicable banking laws of any state, (C) a national banking association duly organized, validly existing and in good standing under the federal banking laws or (D) a subsidiary of a bank holding company, and as to which each Rating Agency has indicated that the use of such account shall not cause the withdrawal of its rating on any Notes, or (ii) a segregated trust account or similar account maintained at the corporate trust department of the Indenture Trustee, acting in a fiduciary capacity, and the account is governed by Title 12 section 9.10(b) of the U.S. Code of Federal Regulations (Title 12 Regulations) or a similar U.S. state law, and which is maintained with the trust department of a federal or state chartered depository institution, having capital and surplus of not less than \$100,000,000, acting in its fiduciary capacity, and acceptable to the Rating Agencies; *provided*, that, in the case of each of clauses (i) and (ii), following a downgrade, withdrawal or suspension of any such institution’s rating below the applicable minimum rating (or such lower rating acceptable to each Rating Agency), such account shall promptly (and in any case within not more than thirty (30) calendar days) be moved to an Eligible Account.

“Eligible NPL”: Any Mortgage Loan that is 120 days or more delinquent under the MBA Method or REO Property.

“ERISA”: The Employee Retirement Income Security Act of 1974, as amended.

“Escrow Account”: As defined in the Servicing Agreement.

“Escrow Amount”: All amounts constituting taxes, assessments, water charges, sewer rents, insurance premiums, fire and hazard insurance premiums and other payments as may be required to be escrowed by the Mortgagor pursuant to the terms of any Loan Agreement or Mortgage, to the extent required by the related Loan Agreement and not violative of current law.

“EU Risk Retention Letter”: The risk retention letter, dated as of the Closing Date, among the Issuer, the Sponsor and the Indenture Trustee.

“EU/UK Risk Retention Reporting Agent”: EuroABS Limited.

“EU/UK Risk Retention Reporting Agent Fee”: The EU/UK Risk Retention Reporting Agent shall be entitled to an annual fee equal to \$13,230 payable on the Closing Date and then paid on each September Payment Date thereafter, starting in September 2026.

“Event of Default”: The occurrence of any one of the following: (i) the failure by the Issuer to pay in full all interest and principal due in respect of the Notes by the Stated Final Maturity Date, without regard to available funds, (ii) a default by the Issuer in the observance of any negative covenant herein or any representation or warranty made by the Issuer herein or in the Notes or other writing delivered pursuant thereto having been incorrect as of the time made, which default or breach has a material adverse effect on the Noteholders, and the continuation of any such default for a period of thirty (30) days after written notice to the Issuer by the Indenture Trustee or by the Holders of at least 25% Percentage Interest of each Class of Notes (other than the Class XS Notes), voting separately, as applicable, (iii) there occurs the filing of a decree or order for relief by a court having jurisdiction in the premises in respect of the Issuer or any substantial part of the Trust Estate in an involuntary case under any applicable federal or state bankruptcy, insolvency or other similar law now or hereafter in effect, or appointing a receiver, liquidator, assignee, custodian, trustee, sequestrator or similar official of the Issuer or for any substantial part of the Trust Estate, or ordering the winding-up or liquidation of the Issuer’s affairs, and such decree or order shall remain unstayed and in effect for a period of sixty (60) consecutive days, or (iv) there occurs the commencement by the Issuer of a voluntary case under any applicable federal or state bankruptcy, insolvency or other similar law now or hereafter in effect, or the consent by the Issuer to the entry of an order for relief in an involuntary case under any such law, or the consent by the Issuer to the appointment or taking possession by a receiver, liquidator, assignee, custodian, trustee, sequestrator or similar official of the Issuer or for any substantial part of the assets of the Trust Estate, or the making by the Issuer of any general assignment for the benefit of creditors, or the failure by the Issuer generally to pay its debts as such debts become due, or the taking of any action by the Issuer in furtherance of any of the foregoing.

“Exchange Act”: The Securities Exchange Act of 1934, as amended, and the rules and regulations promulgated thereunder.

“Exchange Date”: The fortieth (40th) day after the later of (i) commencement of the offering of the Offered Notes and (ii) the Closing Date.

“Extraordinary Trust Expense”: The sum of all fees (other than the Servicing Fees, Owner Trustee Fee, the Loan Data Agent Fee, the Back-Up Servicing Fee, the REMIC Administrator Fee, the Administrator Fee, the Custodial Fee, the EU/UK Risk Retention Reporting Agent Fee, the Indenture Trustee and the Paying Agent Fee and any amounts required to be paid by the Servicer, the Back-Up Servicer, the Indenture Trustee, the Loan Data Agent, the Owner Trustee, the EU/UK Risk Retention Reporting Agent and Custodian from such fees, any costs and expenses of the Indenture Trustee in connection with an arbitration proceeding and any costs associated with any third party diligence firms utilized by the Controlling Holder in connection with a review of Mortgage Loans for a breach of representation or warranty), charges and other costs and expenses of any kind or nature, including without limitation servicing transfer costs, legal fees and expenses, indemnification amounts, costs of enforcement in connection with any such indemnification and amounts payable or reimbursable to the Indenture Trustee, the Registrar, the Trust Registrar, the Paying Agent, the REMIC Administrator or the Controlling Holder from the Issuer under the Indenture, to the Owner Trustee under the Trust Agreement, to the Back-Up Servicer under the Back-Up Servicing Agreement, to the Custodian under the Custodial Agreement, to the Administrator under the Administration Agreement, to the Loan Data Agent under the Loan Data Agent Agreement and to the EU/UK Risk Retention Reporting Agent.

“FCA”: As defined in Section 7.06(a).

“FSMA”: As defined in Section 7.06(a).

“FDIC”: The Federal Deposit Insurance Corporation or any successor thereto.

“Final Private Placement Memorandum”: The private placement memorandum dated August 21, 2025 relating to the Notes.

“Financial Asset”: As specified in Section 8-102(a)(9) of the UCC.

“Fixed Interest Rate”: With respect to any Payment Date and each Accrual Period, (i) with respect to the Class A Notes, 5.285% per annum, (ii) with respect to the Class B Notes, 5.485% per annum, (iii) with respect to the Class C Notes, 5.686% per annum, (iv) with respect to the Class D Notes, 6.362% per annum, (v) with respect to the Class E Notes, 7.093% per annum and (vi) with respect to the Class F Notes, 8.172% per annum.

“Global Note”: A Rule 144A Global Note, a Temporary Regulation S Global Note and/or a Permanent Regulation S Global Note.

“Grant”: Pledge, bargain, sell, warrant, alienate, remise, release, convey, assign, transfer, create, and grant a lien upon and a security interest in and right of set-off against, deposit, set over and confirm pursuant to this Indenture. A Grant of the Collateral or of any other agreement or instrument shall include all rights, powers and options (but none of the obligations) of the granting party thereunder, including the immediate and continuing right to claim for, collect, receive and give receipt for principal and interest payments in respect of such collateral or other agreement or instrument and all other monies payable thereunder, to give and receive notices and other communications, to make waivers or other agreements, to exercise all rights and options, to bring proceedings in the name of the granting party or otherwise, and generally to do and receive

anything that the granting party is or may be entitled to do or receive thereunder or with respect thereto.

“Grantor Trust”: The grantor trust referenced in Section 4.09 hereof and Section 2.15 of the Trust Agreement.

“Hague Securities Convention”: The Hague Convention on the Law Applicable to Certain Rights in Respect of Securities held with a Securities Intermediary (concluded July 5, 2006).

“Indenture”: This indenture, dated the Closing Date, among the Issuer, the Indenture Trustee, the Registrar, the REMIC Administrator, the Paying Agent and the Sponsor, relating to the FIGRE Trust 2025-HE5, Mortgage-Backed Notes, Series 2025-HE5, as may be amended, supplemented or restated from time to time.

“Indenture Trustee”: BNY, not in its individual capacity but solely in its capacity as indenture trustee under this Indenture, and its successors and assigns or any successor indenture trustee appointed pursuant to the terms of this Indenture.

“Indenture Trustee and Paying Agent Fee”: With respect to each Payment Date, a combined annual fee equal to \$20,500, due to the Indenture Trustee and the Paying Agent (including its role as Registrar), due in equal monthly installments, commencing on the Initial Payment Date.

“Independent”: When used with respect to any specified Person, the Person (i) is in fact independent of the Issuer, any other obligor on the Notes, the Sponsor, the Servicer and any Affiliate of any of the foregoing Persons, (ii) does not have any direct financial interest or any material indirect financial interest in the Issuer, any such other obligor, the Servicer, the Sponsor or any Affiliate of any of the foregoing Persons and (iii) is not connected with the Issuer, any such other obligor, the Sponsor, the Servicer or any Affiliate of any of the foregoing Persons as an officer, employee, promoter, underwriter, trustee, partner, director or person performing similar functions.

“Initial Note Amount”: With respect to the Class A Notes, \$322,660,000. With respect to the Class B Notes, \$34,545,000. With respect to the Class C Notes, \$53,257,000. With respect to the Class D Notes, \$26,149,000. With respect to the Class E Notes, \$20,871,000. With respect to the Class F Notes, \$13,674,000. With respect to the Class G Notes, \$8,636,904. With respect to the Class XS Notes, \$479,792,904.

“Initial Payment Date”: As defined in the definition of “Payment Date”.

“Initial Purchasers”: Each of J.P. Morgan Securities LLC, Barclays Capital Inc., Goldman Sachs & Co. LLC, Jefferies LLC, Cantor Fitzgerald & Co., Deutsche Bank Securities Inc. and Raymond James & Associates, Inc.

“Instructions”: As defined in Section 6.02(cc).

“Interest Accrued”: With respect to any Collection Period and any Mortgage Loan, an amount equal to (a) the product of (i) the Principal Balance of such Mortgage Loan as of the

beginning of the related Collection Period and (ii) the Mortgage Rate for such Mortgage Loan, *divided by (b) 365, multiplied by (c) the actual number of days in such Collection Period.*

“Interest Carryforward Amount”: With respect to each Class of Notes other than the Class G Notes will be an amount equal to (i) for the Initial Payment Date, zero, and (ii) for any Payment Date after the Initial Payment Date, the amount, if any, by which (a) the Current Interest for such Class of Notes for the immediately preceding Payment Date exceeds (b) the aggregate amount actually paid on such Class in respect of interest on such preceding Payment Date, plus the Interest Carryforward Amount, if any, for such Class of Notes for prior Payment Dates plus interest on the amount of interest due but not paid on such Class of Notes on such prior Payment Dates, to the extent permitted by law, at the Interest Rate for such Class of Notes for the related Accrual Period.

“Interest Rate”: With respect to each Class of WAC Cap Notes and any Payment Date, a per annum rate equal to the lesser of (i) the Fixed Interest Rate and (ii) the Net WAC Rate, as described herein, for such Payment Date. The WAC Cap Notes are also entitled to payments in respect of Net WAC Shortfalls.

“Interest Remittance Amount”: An amount equal to (a) the sum, without duplication, of (i) all payments of interest received by the Servicer during the related Collection Period, including any interest payments received on the Mortgage Loans during the related Collection Period in connection with prepayments and payaheads, (ii) the interest portion of any net Liquidation Proceeds applied during the related Collection Period, (iii) the interest portion of any Repurchase Price paid by the Sponsor or the Depositor during the related Collection Period, (iv) the interest portion of any Subsequent Recoveries applied during the related Collection Period, (v) the interest portion of the amount received in connection with an Optional Termination or an Optional Redemption, (vi) the interest portion of any investor incentive payments collected by the Subservicer during the related Collection Period and (vii) on and after (x) the Payment Date on which an Optional Termination or an Optional Redemption is exercised or (y) any Payment Date occurring on or after the Reserve Account Termination Date, any amounts remaining on deposit in the Reserve Account (if any, and after reimbursement to the Servicer for all unreimbursed Net Draws and payment of the Notes in full as specifically directed in writing by the Servicer), less (b) without duplication, and to the extent owing or payable with respect to such Payment Date and withdrawn by the Paying Agent prior to payments on the Notes, any unreimbursed Servicing Advances or any unreimbursed Additional Servicing Fee Amounts.

“IRS”: The Internal Revenue Service.

“Issuer”: FIGRE Trust 2025-HE5, a Delaware statutory trust.

“Issuer Request”: A written order or request signed in the name of the Issuer by any one of its Authorized Officers and delivered to the Indenture Trustee.

“Letter of Representations”: The blanket letter of representations from the Issuer to DTC.

“Liquidated Loan”: Any defaulted Mortgage Loan that was liquidated or sold, in whole or in part, whether through trustee’s sale, foreclosure sale, condemnation, acquisition by governmental authority, and as to which the Servicer has determined that all amounts which it expects to recover from or on account of such Mortgage Loan have been recovered.

“Liquidation Proceeds”: All proceeds of any insurance policies with respect to a Mortgage Loan, to the extent such proceeds are not applied to the restoration of the related Mortgaged Property or REO Property, required to be deposited in the related Escrow Account or released to the Mortgagor in accordance with the normal servicing procedures of the Servicer, condemnation proceeds and all other cash amounts received and retained in connection with the liquidation of defaulted Mortgage Loans, by foreclosure, deed-in-lieu of foreclosure, sale or otherwise. For the avoidance of doubt, Asset Sale Proceeds shall constitute Liquidation Proceeds.

“Loan Agreement”: The loan agreement, credit line agreement or other evidence of the indebtedness of an obligor pursuant to which the related obligor agrees to pay the indebtedness evidenced thereby and secured by the related Mortgage, together with all riders thereto and amendments thereof, as the same may have been modified in accordance with any modification.

“Loan Data Agent”: DV01, Inc., a Delaware corporation.

“Loan Data Agent Agreement”: The Loan Data Agent Agreement, dated the Closing Date, among the Sponsor, the Issuer, the Indenture Trustee, the Paying Agent, the Servicer and DV01, Inc.

“Loan Data Agent Fee”: A monthly fee to be paid on each Payment Date beginning on the Initial Payment Date equal to the greater of (A) $1/12^{\text{th}}$ of (i) 0.02%, multiplied by (ii) the aggregate Principal Balance of the Mortgage Loans as of the first day of the related Collection Period and (B) \$2,500.

“Loan Sale”: As defined in Section 2.05 of the Servicing Agreement.

“Majority Interest Holder”: As defined in Section 1.1 of the Trust Agreement.

“Materially Delays”: Either (i) a delay in the Servicer’s ability to commence foreclosure proceedings on a Mortgaged Property within six (6) months from the date on which the related Mortgagor became 180 days or more delinquent (calculated using the MBA Method) or (ii) if the foreclosure proceeding on a Mortgage Loan has been commenced by the Servicer and there is a delay in the continuance of the proceeding that lasts for more than six (6) months from the date of commencement.

“MBA Method”: The methodology used by the Mortgage Bankers Association to measure delinquency of a Mortgage Loan.

“Missing Document Loans”: As defined in Section 8.06(f) hereof.

“Monthly Excess Cashflow”: As defined in Section 3.03(c) hereof.

“Mortgage”: The mortgage, deed of trust or other instrument creating a first or junior lien on a Mortgaged Property securing the related Mortgage Loan.

“Mortgage Asset Schedule”: With respect to any date, the schedule of Mortgage Assets held by the Custodian on such date. The schedule of Mortgage Assets as of the Cut-Off Date is the schedule set forth in Exhibit B to the Servicing Agreement.

“Mortgage Assets”: Collectively, the Mortgage Loans and the REO Properties.

“Mortgage File”: With respect to each Mortgage Loan, the items listed on Annex 8 of the Custodial Agreement pertaining to a particular Mortgage Loan and any additional documents required to be added to such documents pursuant to this Indenture, the Servicing Agreement or the Custodial Agreement.

“Mortgage Interest Rate”: With respect to each Mortgage Loan, the annual rate at which interest accrues on such Mortgage Loan from time to time in accordance with the provisions of the related Loan Agreement.

“Mortgage Loan”: Each mortgage loan identified in the Mortgage Asset Schedule.

“Mortgage Loan Documents”: As defined in the Custodial Agreement.

“Mortgaged Property”: The underlying property securing a Mortgage Loan.

“Mortgagor”: The obligor on a Loan Agreement, the owner of the Mortgaged Property and the grantor or mortgagor named in the related Mortgage.

“Net Draw”: As defined in Section 3.01(b)(ii) hereof.

“Net WAC Rate”: With respect to any Payment Date will be equal to the product of (1) 12, (2) a fraction, (a) the numerator of which is equal to 30 and (b) the denominator of which is equal to the number of days in the related Accrual Period and (3) the percentage equivalent of a fraction, (x) the numerator of which is equal to (A) the aggregate Interest Accrued on all Mortgage Loans during the related Collection Period, minus (B) the sum of any Extraordinary Trust Expenses (subject to the Annual Cap, as applicable), the Servicing Fee, any Additional Servicing Fee Amounts, the Indenture Trustee and Paying Agent Fee, the Custodial Fee, the EU/UK Risk Retention Reporting Agent Fee, the Loan Data Agent Fee, the REMIC Administrator Fee, the Back-Up Servicing Fee and the Owner Trustee Fee and (y) the denominator of which is equal to the aggregate Principal Balance of the Mortgage Loans and any REO Properties as of the opening of business on the first day of the related Collection Period. For the avoidance of doubt, with respect to each Mortgage Loan, the amount calculated in clause (A), above, will be the amount actually due under the Mortgage Loan (taking account of the actual payment terms and counting conventions in the Mortgage Loan).

“Net WAC Shortfall”: For any Payment Date and the WAC Cap Notes, an amount equal to the sum of (a) the excess, if any, of (i) Current Interest for such Class and such Payment Date computed at the related Fixed Interest Rate over (ii) Current Interest for such Class and such Payment Date computed at the Net WAC Rate and (b) the unpaid portion of any such Net WAC Shortfall from prior Payment Dates, together with interest accrued thereon at the related Fixed Interest Rate.

“Net WAC Shortfall Reserve Account”: The trust account or accounts created and maintained pursuant to Section 3.01(b) hereof, which shall be denominated “Figure 2025-HE5 NW Shortfall Res Acct”.

“Non-DART Mortgage Loan”: As defined in Section 8.06(f) hereof.

“Non-U.S. Person”: Any person other than a “United States person” within the meaning of Section 7701(a)(30) of the Code.

“Note Amount”: With respect to each Payment Date and the Class A, Class B, Class C, Class D, Class E, Class F or Class G Notes, as applicable, will equal the Initial Note Amount of such Class of Notes, less the sum of (i) all amounts previously paid to such Class of Notes in respect of principal prior to such Payment Date and (ii) any Applied Realized Loss Amounts previously allocated thereto plus any Write-up Amounts allocated to such Class on prior Payment Dates; *provided, however*, that on any Payment Date on which a Subsequent Recovery is included in Available Funds, such Note Amount shall be increased by an amount equal to the lesser of (A) any Applied Realized Loss Amount previously allocated to that Note to the extent not previously recovered and (B) any Write-up Amount allocable to such Class of Notes after application (for this purpose) to more senior Classes of Notes.

“Note Owner”: The Beneficial Owner of a Note.

“Note Purchase Agreement (A/B/C/D/E/F)”: The note purchase agreement, dated as of August 21, 2025, by and among the Initial Purchasers, the Depositor and the Sponsor.

“Note Purchase Agreement (G/XS)”: The note purchase agreement, dated as of August 21, 2025, by and among the J.P. Morgan Securities LLC, as initial purchaser, the Depositor and the Sponsor.

“Noteholder” or “Holder”: With respect to any Note, the Person in whose name a Note is registered in the Register. A pledgee of a Note that has been pledged in good faith may be regarded as a Holder if the pledgee establishes to the satisfaction of the Indenture Trustee the pledgee’s right so to act with respect to such Note.

“Notes”: The Class A Notes, the Class B Notes, the Class C Notes, the Class D Notes, the Class E Notes, the Class F Notes, the Class G Notes and the Class XS Notes, collectively.

“Notional Amount”: With respect to each Payment Date and the Class XS Notes will equal the aggregate Principal Balance of the Mortgage Loans and any REO Properties as of the first day of the related Collection Period (or, with respect to the Initial Payment Date, the aggregate Principal Balance of the Mortgage Loans as of the Cut-Off Date).

“Notional Principal Arrangement”: The arrangements under which (i) the WAC Cap Notes are entitled to receive Net WAC Shortfall amounts from the Net WAC Shortfall Reserve Account and (ii) the Class XS Notes have the deemed obligation to pay Net WAC Shortfall amounts to the Net WAC Shortfall Reserve Account.

“NRSRO”: Any nationally recognized statistical rating organization for purposes of Rule 17g-5 of the Securities Exchange Act of 1934, as amended.

“NRSRO Certification”: A letter, in a form acceptable to the Issuer and the 17g-5 Information Provider, executed by an NRSRO and addressed to the Issuer and the 17g-5

Information Provider, with a copy to the Issuer, attaching a copy of a certification satisfying the requirements of paragraph (a)(3)(iii)(B) of Rule 17g-5 upon which the 17g-5 Information Provider may conclusively rely for purposes of granting such NRSRO access to the 17g-5 Information Website.

“Offered Notes”: The Class A Notes, the Class B Notes, the Class C Notes, the Class D Notes, the Class E Notes, the Class F Notes, the Class G Notes and the Class XS Notes, collectively.

“Officer’s Certificate”: With respect to the Servicer, a certificate signed by the President, Chief Executive Officer, Chief Operating Officer, Treasurer, Chief Financial Officer, a Director, or an Authorized Signatory of the Servicer and delivered to the Indenture Trustee. With respect to the Issuer, a certificate signed by the Depositor on behalf of the Issuer and delivered to the Indenture Trustee. Unless otherwise specified, any reference herein to an Officer’s Certificate shall be to an Officer’s Certificate of the Issuer.

“Opinion of Counsel”: A written opinion of counsel, who may be counsel for the Issuer, the Paying Agent, the REMIC Administrator, the Registrar or the Indenture Trustee. Any such Opinion of Counsel shall not be at the expense of the Indenture Trustee, the Owner Trustee, the Paying Agent, the REMIC Administrator or the Registrar.

“Optional Purchase”: As defined in Section 8.07 hereof.

“Optional Redemption”: As defined in Section 8.05(c) hereof.

“Optional Redemption Date”: As defined in Section 8.05(c) hereof.

“Optional Redemption Price”: As defined in Section 8.05(c) hereof.

“Optional Review Loan”: As defined in Section 8.06(b) hereof.

“Optional Termination”: As defined in Section 8.05(a) hereof.

“Optional Termination Date”: As defined in Section 8.05(a) hereof.

“Optional Termination Price”: As defined in Section 8.05(a) hereof.

“Originator”: Each of (i) Figure Lending LLC, (ii) Cross Country Mortgage, (iii) West Capital Lending, (iv) Figure Wholesale and (v) one or more additional originators, or any successor thereto.

“Outstanding”: With respect to the Notes, as of the date of determination, all Notes theretofore executed, authenticated and delivered under this Indenture except:

(i) Notes theretofore cancelled by the Registrar or delivered to the Indenture Trustee for cancellation;

(ii) Notes or portions thereof the payment for which money in the necessary amount has been theretofore deposited with the Indenture Trustee or any Paying Agent in trust for the Noteholders; *provided, however*, that if such Notes are to be redeemed, notice of such redemption must have been duly given pursuant to this Indenture; and

(iii) Notes in exchange for or in lieu of which other Notes have been executed, authenticated and delivered pursuant to this Indenture unless proof satisfactory to the Indenture Trustee is presented that any such Notes are held by a holder in due course.

“Owner Trustee”: WSFS, not in its individual capacity but solely as owner trustee under the Trust Agreement and its successors and assigns or any successor owner trustee appointed pursuant to the terms of the Trust Agreement.

“Owner Trustee Fee”: An annual fee equal to \$12,000, which shall initially be paid on the Closing Date and then paid on each September Payment Date thereafter, starting in September 2026.

“Ownership Interest”: As to any Note, any ownership or security interest in such Note as the Holder thereof, Note Owner thereof and any other interest therein, whether direct or indirect, legal or beneficial, as owner or as pledgee.

“Paying Agent”: The Indenture Trustee, or any successor registrar appointed by the Issuer under this Indenture.

“Paying Agent’s Website”: As defined in Section 7.04 hereof.

“Payment Account”: The trust account or accounts created and maintained pursuant to Section 3.01 hereof, which shall be denominated “Figure 2025-HE5 Payment Acct”. The Payment Account shall be an Eligible Account.

“Payment Date”: The 25th day of each month, or if such day is not a Business Day, then the next Business Day, commencing in September 2025 (such date of commencement, the “Initial Payment Date”).

“Payment Report”: As defined in the Servicing Agreement.

“Percentage Interest”: With respect to (i) any Note, the percentage obtained by dividing the amount, if any, specified on the face of such Note representing the portion of the Initial Note Amount of such Class evidenced by such Note by the Initial Note Amount for such Class and (ii) the Notes of more than one Class of Notes for purposes of voting rights, the percentage obtained by dividing the aggregate Note Amount of such Notes by the aggregate Note Amount of such Classes; *provided*, that the WAC Cap Notes in the aggregate shall be allocated 99% of the voting rights and the Class XS Notes shall be allocated 1% of the voting rights. With respect to the Trust Certificates, the proportion of the undivided beneficial interests in the Trust Estate, represented by all issued and outstanding Trust Certificates held by any Certificateholder or (if applicable) any group of Certificateholders, to all of the undivided beneficial interests in the Trust Estate, represented by all issued and outstanding Trust Certificates, held by all Certificateholders, which amount is listed for each Certificateholder in the Trust Register. Notwithstanding the forgoing,

with respect to any matters in which the Holders of the Notes are permitted to vote that relate to the Notional Principal Arrangements that are intended to be a grantor trust for federal income tax purposes (as described in section 4.09 of this Indenture) solely as identified to the Indenture Trustee in writing, no vote will be allowed to any holder that does not disclose to the Issuer whether it is a U.S. or non-U.S. person for federal income tax purposes and the Percentage Interest of Notes held by non-U.S. persons shall be reduced so that all non-U.S. Holders do not have more than 45% of the voting power of the Notes entitled to vote solely as also identified to the Indenture Trustee in writing.

“Permanent Regulation S Global Note”: As defined in Section 2.01(c) of this Indenture.

“Person”: Any individual, corporation, partnership, limited liability company, joint venture, association, joint-stock company, trust, unincorporated organization or government or any agency or political subdivision thereof.

“Plan”: Any “employee benefit plan” as defined in Section 3(3) of ERISA whether or not subject to Title I of ERISA, a “plan” as defined in Section 4975 of the Code, or an entity or account deemed to hold plan assets of the foregoing by virtue of such employee benefit plan’s or plan’s investment in the entity or account.

“PRA”: As defined in Section 7.06(a).

“PRASR”: As defined in Section 7.06(a).

“Principal Balance”: With respect to any Mortgage Loan at any date of determination, the total dollar amount of the principal balance of such Mortgage Loan outstanding as of such date, after giving effect to all Draws made with respect thereto; provided, that for any Mortgage Loan that is converted to an REO Property through foreclosure or grant of a deed-in-lieu of foreclosure after the Cut-Off Date, the Principal Balance of such REO Property will be the Principal Balance of the related Mortgage Loan as of the date it became an REO Property. For the avoidance of doubt, the Principal Balance of a Mortgage Loan or REO Property will (i) include all related capitalized advance amounts, (ii) exclude all amounts that were forgiven or charged off and other principal amounts that were released and (iii) exclude all reductions in such dollar amount of principal from a bankruptcy court in connection with a bankruptcy proceeding. The Principal Balance of a Mortgage Loan that is a Charged-Off Loan shall be equal to zero.

“Principal Remittance Amount”: Will be an amount equal to (a) the sum, without duplication, of (i) all payments of principal received by the Servicer during the related Collection Period, including any principal payments received on the Mortgage Loans during the related Collection Period in connection with prepayments and payaheads, (ii) the principal portion of any net Liquidation Proceeds applied during the related Collection Period, (iii) the principal portion of any Repurchase Price paid by the Sponsor or the Depositor during the related Collection Period, (iv) the principal portion of any Subsequent Recoveries applied during the related Collection Period, (v) the principal portion of the amount received in connection with an Optional Termination or an Optional Redemption and (vi) the principal portion of any investor incentive payments collected by the Subservicer during the related Collection Period, less (b) without duplication, and to the extent owing or payable with respect to such Payment Date and withdrawn

by the Paying Agent prior to payments on the Notes, any unreimbursed Servicing Advances, any unreimbursed Additional Servicing Fee Amounts, amounts used to reimburse the Servicer for draws on the Mortgage Loans funded during the related Collection Period, or unreimbursed Net Draws from prior Collection Periods.

“Proceeding”: Any suit in equity, action at law or other judicial or administrative proceeding.

“QIB”: A “qualified institutional buyer” as defined in Rule 144A.

“Rating Agency”: Each of DBRS, S&P or their respective successors. If such agency or its successors are no longer in existence, “Rating Agency” shall be such nationally recognized statistical rating agencies, or other comparable person, agreed upon and designated by the Depositor.

“Rating Agency Condition”: With respect to any action, ten (10) days’ prior written notice is delivered electronically to each Rating Agency and each Rating Agency then rating the applicable Notes either (i) provides written confirmation that such action will not result in a reduction or withdrawal of any rating, if any, provided by such Rating Agency on any outstanding Notes or (ii) does not indicate that such action may result in a reduction or withdrawal of any rating, if any, provided by such Rating Agency on any outstanding Notes within ten (10) days of receipt of such notice.

“Rating Agency Information”: The notices, information, reports, certifications and oral and written statements required to be provided to the Rating Agencies pursuant to this Indenture or Rule 17g-5 of the Securities Exchange Act of 1934, as amended.

“Realized Loss”: The sum of the following, without duplication:

(i) with respect to any Liquidated Loan or Eligible NPL that has been liquidated or sold, an amount equal to (a) the Principal Balance of such Mortgage Loan as of the date of liquidation or sale, minus (b) liquidation or sale proceeds or Asset Sale Proceeds, as applicable, received in respect of such Mortgage Loan, to the extent allocable to principal, net of amounts that are reimbursable therefrom to the Servicer (including unreimbursed Servicing Advances and expenses of liquidation or sale), which will be realized at the time of such liquidation or sale;

(ii) as to any Mortgage Loan, any amount of principal that the Mortgagor is no longer legally required to pay as a result of a bankruptcy proceeding (except for the extinguishment of debt that results from the exercise of remedies due to default by the Mortgagor) including a Deficient Valuation or a Debt Service Reduction; and

(iii) as to any Mortgage Loan modified by the Servicer with a principal reduction or forgiveness, the portion of principal reduced or forgiven.

“Record Date”: With respect to each Payment Date (other than the Initial Payment Date) and each Class of Offered Notes will be the close of business on the last Business Day of the calendar month preceding such Payment Date. The Record Date for the Initial Payment Date is the Closing Date.

“Register”: The register maintained by the Registrar in which the Registrar shall provide for the registration of Notes and of transfers and exchanges of Notes.

“Registrar”: The Indenture Trustee, or any successor registrar appointed by the Issuer under this Indenture.

“Regular Interest”: A “regular interest” in a REMIC within the meaning of Section 860G(a)(1) of the Code.

“Regulation S”: Regulation S promulgated under the Securities Act or any successor provision thereto, in each case as the same may be amended from time to time.

“REMIC”: A “real estate mortgage investment conduit” within the meaning of Section 860D of the Code.

“REMIC Administrator”: The Indenture Trustee in its capacity as REMIC Administrator under this Indenture and the Trust Agreement, or any successor in interest, or any successor REMIC administrator appointed as provided in this Indenture.

“REMIC Administrator Fee”: With respect to each Payment Date, an amount equal to \$533.33, commencing on the Initial Payment Date.

“REMIC I”: As defined in the Trust Agreement.

“REMIC I Interests”: The REMIC I Regular Interests and the Class FR Interest.

“REMIC I Net WAC Rate”: With respect to any Payment Date will be equal to the product of (1) 12, (2) a fraction, (a) the numerator of which is equal to 30 and (b) the denominator of which is equal to the number of days in the related Accrual Period and (3) the percentage equivalent of a fraction, (x) the numerator of which is equal to (A) the aggregate interest accrued during the related Collection Period on the Principal Balances of the Mortgage Loans at their respective Mortgage Interest Rates and any REO Properties, minus (B) the sum of any Extraordinary Trust Expenses (subject to the Annual Cap, as applicable), the Servicing Fee, any Additional Servicing Fee Amounts, the Indenture Trustee and Paying Agent Fee, the Custodial Fee, the EU/UK Risk Retention Reporting Agent Fee, the Loan Data Agent Fee, the REMIC Administrator Fee, the Back-Up Servicing Fee and the Owner Trustee Fee and (y) the denominator of which is equal to the aggregate Principal Balance of the Mortgage Loans and any REO Properties as of the opening of business on the first day of the related Collection Period. For the avoidance of doubt, with respect to each Mortgage Loan, the amount calculated in clause (A), above, will be the amount actually due under the Mortgage Loan (taking account of the actual payment terms and counting conventions in the Mortgage Loan).

“REMIC I Regular Interest”: Any of the separate, issued uncertificated REMIC interests in REMIC I designated as a “regular interest” in REMIC I. The designations for the respective Classes of REMIC I Regular Interests are set forth in this Indenture and the Trust Agreement.

“REMIC I Regular Interest LT-A”: A “regular interest” in REMIC I and containing such designations and other terms as are set forth in the Trust Agreement and this Indenture.

“REMIC I Regular Interest LT-B”: A “regular interest” in REMIC I and containing such designations and other terms as are set forth in the Trust Agreement and this Indenture.

“REMIC I Regular Interest LT-C”: A “regular interest” in REMIC I and containing such designations and other terms as are set forth in the Trust Agreement and this Indenture.

“REMIC I Regular Interest LT-D”: A “regular interest” in REMIC I and containing such designations and other terms as are set forth in the Trust Agreement and this Indenture.

“REMIC I Regular Interest LT-E”: A “regular interest” in REMIC I and containing such designations and other terms as are set forth in the Trust Agreement and this Indenture.

“REMIC I Regular Interest LT-F”: A “regular interest” in REMIC I and containing such designations and other terms as are set forth in the Trust Agreement and this Indenture.

“REMIC I Regular Interest LT-G”: A “regular interest” in REMIC I and containing such designations and other terms as are set forth in the Trust Agreement and this Indenture.

“REMIC II”: As defined in the Trust Agreement.

“REMIC II Note Rate”: With respect to any Payment Date and each of REMIC II Regular Interest UT-A, REMIC II Regular Interest UT-B, REMIC II Regular Interest UT-C, REMIC II Regular Interest UT-D, REMIC II Regular Interest UT-E and REMIC II Regular Interest UT-F, a per annum rate equal to the lesser of (i) the Fixed Interest Rate applicable to the related Class of Notes corresponding to such REMIC II Regular Interest and (ii) the UT WAC Rate. The REMIC II Note Rate for the Class XS Notes shall be the rate shown as the Uncertificated REMIC II Note Rate in footnote 9 of the table set out in section 2.15(b) of the Trust Agreement.

“REMIC II Regular Interest”: Any “regular interest” issued by REMIC II the ownership of which is evidenced by the Class A Notes, the Class B Notes, the Class C Notes, the Class D Notes, the Class E Notes, the Class F Notes, the Class G Notes or the Class XS Notes as the case may be. Each REMIC II Regular Interest (other than the REMIC II Regular Interest UT-G) shall be entitled to interest at the related REMIC II Note Rate in effect from time to time and related distributions, subject to the terms and conditions hereof and in the Trust Agreement. The designations for the respective classes of REMIC II Regular Interests are set forth in this Indenture and the Trust Agreement.

“REMIC II Regular Interest UT-A”: A “regular interest” in REMIC II, ownership of which is evidenced by the Class A Notes, and containing such designations and other terms as are set forth in the Trust Agreement and this Indenture.

“REMIC II Regular Interest UT-A Balance”: For any date of determination, the Note Amount of the Class A Notes.

“REMIC II Regular Interest UT-B”: A “regular interest” in REMIC II, ownership of which is evidenced by the Class B Notes, and containing such designations and other terms as are set forth in the Trust Agreement and this Indenture.

“REMIC II Regular Interest UT-B Balance”: For any date of determination, the Note Amount of the Class B Notes.

“REMIC II Regular Interest UT-C”: A “regular interest” in REMIC II, ownership of which is evidenced by the Class C Notes, and containing such designations and other terms as are set forth in the Trust Agreement and this Indenture.

“REMIC II Regular Interest UT-C Balance”: For any date of determination, the Note Amount of the Class C Notes.

“REMIC II Regular Interest UT-D”: A “regular interest” in REMIC II, ownership of which is evidenced by the Class D Notes, and containing such designations and other terms as are set forth in the Trust Agreement and this Indenture.

“REMIC II Regular Interest UT-D Balance”: For any date of determination, the Note Amount of the Class D Notes.

“REMIC II Regular Interest UT-E”: A “regular interest” in REMIC II, ownership of which is evidenced by the Class E Notes, and containing such designations and other terms as are set forth in the Trust Agreement and this Indenture.

“REMIC II Regular Interest UT-E Balance”: For any date of determination, the Note Amount of the Class E Notes.

“REMIC II Regular Interest UT-F”: A “regular interest” in REMIC II, ownership of which is evidenced by the Class F Notes, and containing such designations and other terms as are set forth in the Trust Agreement and this Indenture.

“REMIC II Regular Interest UT-F Balance”: For any date of determination, the Note Amount of the Class F Notes.

“REMIC II Regular Interest UT-G”: A “regular interest” in REMIC II, ownership of which is evidenced by the Class G Notes, and containing such designations and other terms as are set forth in the Trust Agreement and this Indenture.

“REMIC II Regular Interest UT-G Balance”: For any date of determination, the Note Amount of the Class G Notes.

“REMIC II Regular Interest UT-XS”: A “regular interest” in REMIC II, ownership of which is evidenced by the Class XS Notes, and containing such designations and other terms as are set forth in the Trust Agreement and this Indenture.

“REMIC Provisions”: Provisions of the federal income tax law relating to real estate mortgage investment conduits, which appear at Sections 860A through 860G of Subchapter M of Chapter 1 of the Code, and related provisions, and temporary and final regulations (or, to the extent not inconsistent with such temporary or final regulations, proposed regulations) and published rulings, notices and announcements promulgated thereunder, as the foregoing may be in effect from time to time.

“REMIC Regular Interests”: The REMIC I Regular Interests and REMIC II Regular Interests.

“REO Property”: Any underlying real property acquired through foreclosure or grant of a deed in lieu of foreclosure or other comparable conversion of the ownership of a mortgage loan held by the Issuer.

“REO Property File”: As defined in the Custodial Agreement.

“Repurchase Price”: With respect to any Mortgage Asset to be repurchased by the Sponsor or an Affiliate thereof, an amount equal to the sum of (i) (a) with respect to any Charged-Off Loan, the Principal Balance of such Mortgage Loan immediately prior to such Mortgage Loan becoming a Charged-Off Loan and (b) with respect to any other Mortgage Loan, the Principal Balance of such Mortgage Loan as of the date of repurchase, (ii) any accrued and unpaid interest thereon up to but not including the last day of the month in which such repurchase occurs, (iii) any amounts representing unreimbursed Servicing Advances for such Mortgage Loan and (iv) expenses reasonably incurred or, if known at the time of repurchase, to be incurred by the Servicer, the Issuer, the Controlling Holder, the Owner Trustee, the Loan Data Agent, the Paying Agent, the REMIC Administrator, the Registrar, the Trust Registrar or the Indenture Trustee in respect of the breach or defect giving rise to the repurchase obligation. The Repurchase Price shall be remitted by the Sponsor to the Servicer for deposit in the Servicer Collection Account.

“Reserve Account”: The trust account or accounts created and maintained pursuant to Section 3.01(b) hereof, which shall be denominated “Figure 2025-HE5 Reserve Acct”. The Reserve Account shall be an Eligible Account.

“Reserve Account Required Amount”: On or prior to each Payment Date occurring prior to the Reserve Account Termination Date when the aggregate Note Amount of the Notes is greater than zero, the Reserve Account Required Amount shall equal \$1,679,275.17.

“Reserve Account Termination Date”: As defined in Section 3.01(b) hereof.

“Residual Interest”: The sole class of “residual interests” in a REMIC within the meaning of Section 860G(a)(2) of the Code.

“Responsible Officer”: With respect to the Indenture Trustee, the Registrar, the Trust Registrar or the Paying Agent, any vice president, any assistant vice president, any trust officer or any other officer of the Indenture Trustee, the Trust Registrar, the Registrar or the Paying Agent, customarily performing functions similar to those performed by any of the above-designated officers assigned to the Indenture Trustee’s Corporate Trust Division (or any successor thereto) and also, with respect to a particular matter, any other officer to whom such matter is referred because of such officer’s knowledge of and familiarity with the particular subject, in each case having direct responsibility for the administration of this Indenture.

“Rule 144A”: Rule 144A promulgated under the Securities Act.

“Rule 144A Definitive Note”: A Definitive Note issued pursuant to this Indenture for a sale or transfer of Notes made pursuant to Rule 144A.

“Rule 144A Global Note”: As defined in Section 2.01(b) hereof.

“Rule 144A Notes”: The Rule 144A Definitive Notes and the Rule 144A Global Notes.

“Rule 17g-5 Website”: The website maintained by the 17g-5 Information Provider pursuant to Section 7.05 hereof, which as of the Closing Date is located at <https://17g5.com/datarooms/figre2025HE5/189195>.

“S&P”: S&P Global Ratings.

“SECN”: As defined in Section 7.06(a).

“Securities Account”: An account to which a Financial Asset is or may be credited in accordance with an agreement under which the Person maintaining the account undertakes to treat the Person for whom the account is maintained as entitled to exercise the rights that comprise the Financial Asset.

“Securities Act”: The Securities Act of 1933, as amended, and the rules and regulations promulgated thereunder.

“Securities Intermediary”: As specified in Section 8-102(a)(14) of the UCC.

“Securitisation Rules”: Each of the UK Securitisation Framework and the EU Securitisation Rules.

“Seller Mortgage Loan Sale Agreement”: The mortgage loan sale agreement, dated the Closing Date, between Figure Lending LLC, as seller and sponsor, and the Depositor, as purchaser.

“Servicer”: Figure Lending LLC and any replacement or successor servicer, as applicable, and each such party’s successors and assigns.

“Servicer Collection Account”: The Collection Account defined in the Servicing Agreement. The Servicer Collection Account shall be an Eligible Account.

“Servicing Advances”: As defined in the Servicing Agreement.

“Servicing Agreement”: The servicing agreement, dated the Closing Date, among the Servicer, the Issuer, the Indenture Trustee and the Paying Agent, and any servicing agreement, with any replacement or successor servicer, as applicable.

“Servicing Fee”: The Servicing Fee payable to the Servicer under the Servicing Agreement.

“Similar Law”: Any law that is substantially similar to Title I of ERISA or Section 4975 of the Code.

“Single Month Mortality Rate” or “SMM”: Is calculated by taking the difference between the total unscheduled payments made across all Draws and the new Draws initiated during the

period, then dividing this difference by the total unpaid principal balance (UPB) at the beginning of the period across all active draws minus the scheduled principal payments for the period.

“Sponsor”: Figure Lending LLC, and its successors and assigns.

“SR 2024”: As defined in Section 7.06(a).

“Stated Final Maturity Date”: The Payment Date occurring in August 2055.

“Subsequent Recovery”: With respect to any Mortgage Loan as to which a Realized Loss has been incurred (including any REO Property acquired in respect thereof), any amount received on a Mortgage Loan subsequent to such Mortgage Loan being determined to be a Liquidated Loan and certain other amounts as provided in this Indenture. The amount of Subsequent Recoveries received during any Collection Period will be applied as principal on the related Payment Date and the most senior Class of Notes or the Class FR Certificates to which a Realized Loss has been applied will be written up by the amount of such Subsequent Recoveries.

“Subservicer”: As defined in the Servicing Agreement.

“Temporary Regulation S Global Note”: As defined in Section 2.01(c) of this Indenture.

“Transaction Documents”: This Indenture, the Seller Mortgage Loan Sale Agreement, the Depositor Mortgage Loan Sale Agreement, the Servicing Agreement, the Back-Up Servicing Agreement, the Custodial Agreement, the Administration Agreement, the Note Purchase Agreement (A/B/C/D/E/F), the Note Purchase Agreement (G/XS), the Trust Agreement, the Letter of Representations, the Loan Data Agent Agreement, the Warranty Agreement, the EU Risk Retention Letter and the other documents and certificates delivered in connection with any of the above.

“Treasury Regulations”: Regulations, including proposed or temporary Regulations, promulgated under the Code. References herein to specific provisions of proposed or temporary regulations shall include analogous provisions of final Treasury Regulations or other successor Treasury Regulations.

“Trust Agreement”: The amended and restated trust agreement, dated the Closing Date, among the Depositor, the Administrator, the Paying Agent, the Trust Registrar, the REMIC Administrator and the Owner Trustee.

“Trust Certificates”: Collectively, the Class FR Certificates and the Class R Certificates issued under the Trust Agreement.

“Trust Estate”: The meaning specified in the Granting Clause of this Indenture.

“Trust Registrar”: The Indenture Trustee, acting in its capacity as Certificate Registrar under the Trust Agreement, and any successors or assigns.

“Trust REMIC”: Each REMIC established under the Trust Agreement.

“UCC”: The Uniform Commercial Code, as amended from time to time, as in effect in any specified jurisdiction.

“UK”: As defined in Section 7.06(a).

“UK Securitization Framework”: As defined in Section 7.06(a).

“UT WAC Rate”: The meaning specified in the Trust Agreement.

“U.S. Risk Retention Rules”: Collectively, Section 15G of the Exchange Act as added by Section 941 of the Dodd-Frank Wall Street Reform and Consumer Protection Act and related implementing regulations.

“WAC Cap Notes”: The Class A Notes, Class B Notes, Class C Notes, Class D Notes, Class E Notes and Class F Notes.

“Warranty Agreement”: The Warranty Agreement, dated the Closing Date, among the Sponsor, the Indenture Trustee and the Issuer.

“Write-up Amount”: With respect to each Payment Date, after giving effect to the allocation of Available Funds, means an amount equal to the excess, if any, of (i) the aggregate Principal Balance of the Mortgage Loans and any REO Properties as of the last day of the related Collection Period over (ii) the sum of the aggregate Note Amount of the Notes and the Certificate Balance of the Class FR Certificates.

“WSFS”: Wilmington Savings Fund Society, FSB, a federal savings bank.

Section 1.02. Rules of Construction. Unless the context otherwise requires:

(i) the terms defined in this Indenture have the meanings assigned to them in this Indenture and include the plural as well as the singular, and the use of any gender herein shall be deemed to include the other gender;

(ii) accounting terms not otherwise defined herein have the meanings assigned to them in accordance with generally accepted accounting principles;

(iii) references herein to “Articles,” “Sections,” “Paragraphs,” and other Subdivisions without reference to a document are to designated Articles, Sections, Paragraphs and other subdivisions of this Indenture;

(iv) reference to a Section without further reference to a Section is a reference to such Section as contained in the same Section in which the reference appears, and this rule shall also apply to Paragraphs and other subdivisions;

(v) the words “herein,” “hereof,” “hereunder” and other words of similar import refer to this Indenture as a whole and not to any particular provision;

(vi) the term “include” or “including” shall mean without limitation by reason of enumeration;

(vii) “or” is not exclusive; and

(viii) any agreement, instrument or statute defined or referred to herein or in any instrument or certificate delivered in connection herewith means such agreement, instrument or statute as from time to time amended, modified or supplemented and includes (in the case of agreements or instruments) references to all attachments thereto and instruments incorporated therein; references to a Person are also to its permitted successors and assigns.

Section 1.03. Paying Agent and Registrar. The Issuer hereby appoints the Indenture Trustee to perform the duties of Paying Agent and Registrar hereunder.

ARTICLE II

ORIGINAL ISSUANCE OF NOTES

Section 2.01. Forms; Denominations.

(a) The initial Notes shall be designated as the “FIGRE Trust 2025-HE5, Mortgage-Backed Notes, Series 2025-HE5.” Such Notes shall be in substantially the respective forms attached as exhibits hereto. Except as otherwise expressly provided herein, the Notes will be issued in fully registered form only and shall be numbered serially for identification.

The Notes shall be typewritten, printed, lithographed or engraved or produced by any combination of these methods (with or without steel engraved borders).

The terms of the Notes set forth in Exhibit A-1 through Exhibit A-8 to this Indenture are part of the terms of this Indenture.

(b) The Notes offered and sold to Persons that are (i) QIBs in reliance on Rule 144A under the Securities Act and/or (ii) the Sponsor or an Affiliate thereof shall in each case be issued in the form of one or more permanent global notes in fully registered form, substantially in the form of Exhibit A-1A, Exhibit A-2A, Exhibit A-3A, Exhibit A-4A, Exhibit A-5A, Exhibit A-6A, Exhibit A-7A or Exhibit A-8A (each such global note, a “Rule 144A Global Note”), as applicable. The Rule 144A Global Notes shall be deposited with the Paying Agent as custodian for the Depository and registered in the name of a nominee of the Depository.

(c) The Notes initially offered and sold in offshore transactions in reliance on Regulation S under the Securities Act shall be issued in the form of temporary global notes in fully registered form, substantially in the form attached hereto as Exhibit A-1B, Exhibit A-2B, Exhibit A-3B, Exhibit A-4B, Exhibit A-5B, Exhibit A-6B, Exhibit A-7B or Exhibit A-8B, as applicable (each, a “Temporary Regulation S Global Note”), which shall be deposited with the Paying Agent as custodian for the Depository and registered in the name of a nominee of the Depository for the account of designated agents holding on behalf of Euroclear or Clearstream. Beneficial interests in each Temporary Regulation S Global Note may be held only through Euroclear or Clearstream;

provided, however, that such interests may be exchanged for interests in the applicable Class of Rule 144A Global Note, as applicable, in accordance with the certification requirements described in Section 4.02. After the Exchange Date, a beneficial interest in a Temporary Regulation S Global Note may be exchanged for a beneficial interest in the corresponding permanent global note, substantially in the form attached hereto as Exhibit A-1C, Exhibit A-2C, Exhibit A-3C, Exhibit A-4C, Exhibit A-5C, Exhibit A-6C, Exhibit A-7C or Exhibit A-8C, as applicable (a “Permanent Regulation S Global Note”), in accordance with the procedures set forth in Section 4.02. Each Permanent Regulation S Global Note shall be deposited with the Paying Agent as custodian for the Depository and registered in the name of a nominee of the Depository.

Section 2.02. Execution, Authentication and Delivery. The Notes shall be executed by manual or facsimile signature of an Authorized Officer of the Issuer. Notes bearing the manual or facsimile signatures of individuals who were at any time authorized to sign on behalf of the Issuer shall be entitled to all benefits under this Indenture, subject to the following sentence, notwithstanding that such individuals or any of them have ceased to hold such offices prior to the authentication and delivery of such Notes or did not hold such offices at the date of such Notes. No Note shall be entitled to any benefit under this Indenture, or be valid for any purpose, however, unless there appears on such Note a certificate of authentication substantially in the form provided for herein executed at the direction of the Issuer by the Registrar by manual signature, and such certificate of authentication upon any Note shall be conclusive evidence, and the only evidence, that such Note has been duly authenticated and delivered hereunder. All Notes shall be dated the date of their authentication.

The Registrar shall upon Issuer Request authenticate and deliver the Notes for original issue in an aggregate initial principal amount equal to the aggregate Initial Note Amount.

Each of the Notes shall be dated the date of its authentication. The Notes shall be issued in minimum Denominations of \$150,000 and in each case in integral multiples of \$1 in excess thereof; *provided*, that the Class XS Notes will be issued in minimum denominations of \$1,000,000 and integral multiples of \$1 in excess thereof.

ARTICLE III

COVENANTS

Section 3.01. Accounts; Collections.

(a) Payment Account; Collection of Payments With Respect to the Mortgage Assets.

(i) On or prior to the Closing Date, the Issuer shall cause the Paying Agent to establish and maintain, in the name of the Indenture Trustee, for the benefit of the Noteholders, the Payment Account. The Paying Agent shall notify the Issuer prior to any change in the location of the Payment Account following the Closing Date. The Payment Account shall be a Securities Account. Any amounts on deposit in the Payment Account shall remain uninvested. The Paying Agent shall (i) act as Securities Intermediary with respect to the Payment Account, (ii) treat all items credited to the Payment Account as Financial Assets and (iii) treat the Indenture Trustee as sole entitlement holder. Except as

set forth in Section 5.04 hereof, the only permitted withdrawal from or application of funds on deposit in, or otherwise standing to the credit of, the Payment Account shall be to make payments in accordance with Section 3.03 hereof. The Paying Agent agrees to give the Issuer prompt notice if the Payment Account or any funds on deposit therein, or otherwise standing to the credit of the Payment Account, shall become subject to any writ, order, judgment, warrant of attachment, execution or similar process. The Issuer shall not have any legal, equitable or beneficial interest in the Payment Account other than in accordance with Section 3.03 hereof.

(ii) The Paying Agent shall, subject to the terms of this paragraph, deposit in the Payment Account, on the same day as it is received from the Servicer, all collections with respect to the Mortgage Loans. On each Payment Date, the Paying Agent shall pay all amounts on deposit in the Payment Account in the order of priority set forth in Section 3.03 hereof (except as otherwise provided in Section 5.04(b)).

(iii) All monies deposited from time to time in the Payment Account pursuant to the Servicing Agreement and the deposits therein pursuant to this Indenture are for the benefit of the Noteholders.

(iv) In the event that the Payment Account shall fail to be an Eligible Account, the Paying Agent shall, within sixty (60) calendar days of such Person gaining actual knowledge of such failure, move the Payment Account to a depository institution that would allow the Payment Account to be an Eligible Account upon the effectiveness of such transfer.

(b) Reserve Account; Net WAC Shortfall Reserve Account.

(i) On or before the Closing Date, the Paying Agent will establish and maintain in the name of the Indenture Trustee, for the benefit of the Certificateholders and the Noteholders, the Reserve Account and the Net WAC Shortfall Reserve Account. Prior to the Payment Date occurring in September 2030 (the “Reserve Account Termination Date”), the Certificateholders and the Noteholders will have the benefit of the Reserve Account to pay amounts owing to the Notes. On the Closing Date, the Sponsor caused or will cause an amount equal to \$1,679,275.17 to be remitted to the Reserve Account out of proceeds from the sale of the Notes. The Reserve Account shall be an Eligible Account. Any amounts on deposit in either the Reserve Account or the Net WAC Shortfall Reserve Account shall remain uninvested. The Net WAC Shortfall Reserve Account shall bear a designation clearly indicating that the funds deposited therein (without regard to any income or gain resulting from the investment thereof, if any) are held for the benefit of the Holders of the WAC Cap Notes. The Reserve Account and amounts deposited or held therein shall be treated as a “qualified reserve fund” within the meaning of Section 860G(a)(7)(B) of the Code and shall be managed in a manner that maintains that status. As described in Section 3.03(c)(viii) hereof, the portion of the Reserve Account that is attributable to amounts otherwise distributable to the Class R Certificateholders shall be treated as owned by REMIC II and the remaining portion of the Reserve Account shall be treated as owned by REMIC I. For U.S. federal income tax or information return reporting purposes, for as long as Noteholder or Certificateholder beneficially owns, on a

proportionate basis, both the rights and obligations under a Notional Principal Arrangement, such Notional Principal Arrangement shall not be treated as outstanding. For U.S. federal income tax purposes, to the extent a Noteholder or Certificateholder beneficially owns, on a disproportionate basis, both the rights and obligations under a Notional Principal Arrangement, such Notional Principal Arrangement shall be treated as outstanding for U.S. federal income tax purposes only to the extent of the disproportion.

(ii) The Net WAC Shortfall Reserve Account shall be an Eligible Account and funds on deposit therein shall be held separate and apart from, and shall not be commingled with, any other moneys, including, without limitation, other moneys held by the Indenture Trustee pursuant to this Indenture. Amounts held in the Net WAC Shortfall Reserve Account may be distributed from the account in order to make payments on the Notes as provided herein or to protect the funds from in the account from losses in the event of a downgrade in the credit rating of the institution where the Eligible Account is maintained or otherwise but shall not be distributed or moved for the purpose of increasing the return, if any, on the funds in the account. For purposes of the REMIC Provisions, the Net WAC Shortfall Reserve Account (i) shall be treated as an outside reserve fund within the meaning of Treasury regulation section 1.860G-2(h), and (ii) shall be treated as owned by the beneficial owner(s) of the Class XS Notes for U.S. federal income tax purposes. For U.S. federal income tax purposes, the amounts deposited into the Net WAC Shortfall Reserve Account shall be deemed to be paid to the holders of the Class XS Notes and then paid by the Holders of such Class XS Notes to the Net WAC Shortfall Reserve Account, which such amounts will then be available for payment in accordance with Section 3.03 hereof. The Paying Agent shall make withdrawals from the Net WAC Shortfall Reserve Account to make payments in respect of Net WAC Shortfalls to the extent required hereunder. For U.S. federal income tax purposes, the Paying Agent shall not treat any payment made in respect of the Notional Principal Arrangement as made in respect of a REMIC Regular Interest, but shall treat such payment as a payment in respect of a notional principal contract in the nature of an interest rate floor contract for U.S. federal income tax purposes, and shall treat and report such arrangement as held by a fixed investment trust under Treasury Regulation 301.7701-4(c), all the income of which is taxable to the trust's beneficial owners under Section 671 of the Code and reported to the beneficial owners under the rules applicable to widely held fixed investment trusts. Each Holder and beneficial owner thereof of the Offered Notes, by acceptance of such Notes, agrees to such treatment and agrees to treat such Notes in the manner described for all U.S. federal income tax purposes. Thus, for U.S. federal income tax purposes, the WAC Cap Notes and the Class XS Notes shall be treated as representing not only ownership of a Regular Interest in the related Trust REMIC, but also an interest in a notional principal contract. By accepting a Class XS Note, each Holder of a Class XS Note hereby agrees to direct the Paying Agent, and the Paying Agent is hereby directed, to deposit an amount equal to any outstanding Net WAC Shortfalls for the WAC Cap Notes that would otherwise be payable, in the aggregate, to it as the holder of the Class XS Notes (in respect of REMIC II Regular Interest UT-XS), into the Net WAC Shortfall Reserve Account rather than paying such amounts to the Class XS Notes. By accepting a Class XS Note, each Holder of a Class XS Note further agrees that such direction is given for good and valuable consideration, the receipt and sufficiency of which is acknowledged by such acceptance. No such amount paid or deemed paid in respect of the Notional Principal Arrangement shall be paid in respect of a REMIC Regular

Interest. The parties hereto agree that for U.S. federal tax or information return reporting purposes, the right of the holders of the WAC Cap Notes to receive payments in respect of Net WAC Shortfall shall be assigned a de minimis value as of the Closing Date.

(iii) To the extent the Servicer funds a Draw on a Mortgage Loan after the Closing Date, the Servicer shall be entitled to reimburse itself for the amount of such Draw, prior to payments on the Notes, and the Class FR Certificates, from principal collections received in respect of the Mortgage Loans; *provided, that* to the extent such principal collections are insufficient to fully reimburse the Servicer for any such draws (any such draws for which principal collections are insufficient to fully reimburse the Servicer, a “Net Draw”), the Servicer shall be entitled to reimbursement from amounts on deposit in the Reserve Account (including amounts deposited into the Reserve Account on behalf of the Holder of the Class FR Certificate after the Closing Date) from the Paying Agent (in accordance with the terms of the Transaction Documents, including the priority of payments set forth in Section 3.03 herein).

(iv) On each Payment Date, after giving effect to the application of funds to items *first* through *fifteenth* on such Payment Date described in Section 3.03(a) herein and/or items *first* through *seventh* on such Payment Date described in Section 3.03(b)(i) or (ii) herein, the Paying Agent will, based solely on the Payment Report, withdraw from the Reserve Account, to the extent of amounts on deposit therein, an amount equal to the aggregate Net Draws for which the Servicer has not yet been reimbursed, to reimburse the Servicer for such Net Draws. In the event amounts on deposit in the Reserve Account are insufficient to reimburse the Servicer for a Net Draw, and all or part of any Reserve Account Required Amount is not remitted on behalf of the Holder of the Class FR Certificate on any Payment Date to facilitate such reimbursement, the Paying Agent shall reimburse the Servicer for the unreimbursed portion of Net Draws on future Payment Dates from amounts in the Reserve Account, subject to funds on deposit therein. In addition, in the event amounts on deposit in the Reserve Account are insufficient to reimburse the Servicer for a Net Draw, the Servicer will be permitted to (i) use principal collections on the Mortgage Loans in subsequent Collection Periods to reimburse itself for such unreimbursed Net Draws and (ii) solely in accordance with the priorities set forth in Section 3.03(a) herein, use interest collections on the Mortgage Loans in subsequent Collection Periods to reimburse itself for such unreimbursed Net Draws (in each case of clauses (i) and (ii) directly above, the Certificate Balance of the Class FR Certificates will not be increased by the amount of such Net Draws).

(v) The Certificate Balance of the Class FR Certificates will be increased on each Payment Date by the amount of any Net Draws funded by amounts funded by the Holder of the Class FR Certificate. Any amounts withdrawn from the Reserve Account shall be considered to be withdrawn on a ‘first-in, first-out’ (FIFO) basis.

(vi) On (a) the Payment Date on which an Optional Termination or an Optional Redemption is exercised or (b) the final Payment Date for the Notes, the Paying Agent will withdraw any amounts remaining on deposit in the Reserve Account (if any, and after reimbursement to the Servicer for all unreimbursed Net Draws and payment of the Notes

in full as specifically directed in writing by the Servicer) and distribute such amounts as a component of the Interest Remittance Amount on the related Payment Date.

(vii) In the event that either the Reserve Account or the Net WAC Shortfall Reserve Account shall fail to be an Eligible Account, the Paying Agent shall, within sixty (60) calendar days of such Person gaining actual knowledge of such failure, move the Reserve Account and/or the Net WAC Shortfall Reserve Account, as applicable, to a depository institution that would allow each of the Reserve Account and the Net WAC Shortfall Reserve Account to be an Eligible Account upon the effectiveness of such transfer.

(c) Additional Servicing Fee Amounts. The Servicer shall be entitled to any Additional Servicing Fee Amount for the related Collection Period, and Available Funds for that Payment Date shall be reduced by such Additional Servicing Fee Amount.

Section 3.02. Existence. The Issuer will keep in full effect its existence, rights and franchises as a statutory trust under the laws of the State of Delaware (unless it becomes, or any successor Issuer hereunder is or becomes, organized under the laws of any other state or of the United States of America, in which case the Issuer will keep in full effect its existence, rights and franchises under the laws of such other jurisdiction) and will obtain and preserve its qualification to do business in each jurisdiction in which such qualification is or shall be necessary to protect the validity and enforceability of this Indenture, the Notes, the Trust Certificates, the Mortgage Assets, the Transaction Documents and each other instrument or agreement included in the Trust Estate.

Section 3.03. Priority of Payments.

(a) Distribution of Interest Remittance Amount. On each Payment Date, including, without limitation, a Payment Date on which an Optional Termination or an Optional Redemption is exercised, the Paying Agent shall distribute the Interest Remittance Amount for such Payment Date, to the extent available, in the following order of priority:

(i) *first, pro rata*, to the applicable party for any Extraordinary Trust Expenses, in an amount not to exceed the Annual Cap for the applicable yearly period;

(ii) *second*, to pay BNY the Indenture Trustee and Paying Agent Fee for the prior month;

(iii) *third*, on each September Payment Date, beginning in September 2026, to pay the Owner Trustee the Owner Trustee Fee for the applicable yearly period;

(iv) *fourth*, on each September Payment Date, beginning in September 2026, to pay the EU/UK Risk Retention Reporting Agent, the EU/UK Risk Retention Reporting Agent Fee for the applicable yearly period;

(v) *fifth*, to pay the Loan Data Agent the Loan Data Agent Fee for the prior month;

- (vi) *sixth*, to pay the Custodian the Custodial Fee for the prior month;
- (vii) *seventh*, to pay the REMIC Administrator the REMIC Administrator Fee for the prior month;
- (viii) *eighth*, to reimburse the Servicer for any unpaid Servicing Fees;
- (ix) *ninth*, to pay the Back-Up Servicer the Back-Up Servicing Fee for the prior month;
- (x) *tenth*, to the Class A Notes, any Current Interest and any Interest Carryforward Amount thereon;
- (xi) *eleventh*, to the Class B Notes, any Current Interest and any Interest Carryforward Amount thereon;
- (xii) *twelfth*, to the Class C Notes, any Current Interest and any Interest Carryforward Amount thereon;
- (xiii) *thirteenth*, to the Class D Notes, any Current Interest and any Interest Carryforward Amount thereon;
- (xiv) *fourteenth*, to the Class E Notes, any Current Interest and any Interest Carryforward Amount thereon;
- (xv) *fifteenth*, to the Class F Notes, any Current Interest and any Interest Carryforward Amount thereon;
- (xvi) *sixteenth*, to reimburse the Servicer for any unreimbursed Net Draws funded prior to such Payment Date;
- (xvii) *seventeenth*, to the Class FR Certificateholder, any accrued and unpaid amounts due to it;
- (xviii) *eighteenth*, to reimburse the Class FR Certificateholder for any unreimbursed Net Draws;
- (xix) *nineteenth*, to the Reserve Account if the amount on deposit therein is less than the Reserve Account Required Amount, up to the Reserve Account Required Amount; and
- (xx) *twentieth*, any remaining Interest Remittance Amount for such Payment Date as part of Monthly Excess Cashflow.

(b) Distribution of the Principal Remittance Amount.

- (i) On each Payment Date, including, without limitation, a Payment Date on which an Optional Termination or an Optional Redemption is exercised, that a Credit Event

is not in effect, the Paying Agent shall distribute the Principal Remittance Amount for such Payment Date, to the extent available, in the following order of priority:

- a. *first, pro rata*, solely to the extent not paid pursuant to the distribution of the Interest Remittance Amount, to the applicable party for any Extraordinary Trust Expenses, in an amount not to exceed the Annual Cap for the applicable yearly period;
- b. *second*, solely to the extent not paid pursuant to the distribution of the Interest Remittance Amount, to pay BNY the Indenture Trustee and Paying Agent Fee for the prior month;
- c. *third*, on each September Payment Date, beginning in September 2026, solely to the extent not paid pursuant to the distribution of the Interest Remittance Amount, to pay the Owner Trustee the Owner Trustee Fee for the applicable yearly period;
- d. *fourth*, on each September Payment Date, beginning in September 2026, solely to the extent not paid pursuant to the distribution of the Interest Remittance Amount, to pay the EU/UK Risk Retention Reporting Agent, the EU/UK Risk Retention Reporting Agent Fee for the applicable yearly period;
- e. *fifth*, solely to the extent not paid pursuant to the distribution of the Interest Remittance Amount, to pay the Loan Data Agent the Loan Data Agent Fee for the prior month;
- f. *sixth*, solely to the extent not paid pursuant to the distribution of the Interest Remittance Amount, to pay the Custodian the Custodial Fee for the prior month;
- g. *seventh*, solely to the extent not paid pursuant to the distribution of the Interest Remittance Amount, to pay the REMIC Administrator the REMIC Administrator Fee for the prior month;
- h. *eighth*, solely to the extent not paid pursuant to the distribution of the Interest Remittance Amount, to reimburse the Servicer for any unpaid Servicing Fees or unreimbursed Net Draws funded prior to such Payment Date;
- i. *ninth*, solely to the extent not paid pursuant to the distribution of the Interest Remittance Amount, to pay the Back-Up Servicer the Back-Up Servicing Fee for the prior month;
- j. *tenth*, to reimburse the Class FR Certificateholder for any unreimbursed Net Draws;
- k. *eleventh*, to the Class A Notes, any unpaid Current Interest and any Interest Carryforward Amount thereon;
- l. *twelfth*, if the Note Amount of the Class A Notes has been reduced to zero, to the Class B Notes, any unpaid Current Interest and any Interest Carryforward Amount thereon;

- m. *thirteenth*, if the Note Amount of each of the Class A and Class B Notes has been reduced to zero, to the Class C Notes, any unpaid Current Interest and any Interest Carryforward Amount thereon;
- n. *fourteenth*, to the Reserve Account if the amount on deposit therein is less than the Reserve Account Required Amount, up to the Reserve Account Required Amount;
- o. *fifteenth*, concurrently, to the Class A, Class B and Class C Notes, pro rata, based on the respective Note Amount of each such class of Notes, until their respective Note Amount is reduced to zero;
- p. *sixteenth*, to the Class D Notes, any unpaid Current Interest and any Interest Carryforward Amount thereon;
- q. *seventeenth*, to the Class D Notes, until the Note Amount thereof is reduced to zero;
- r. *eighteenth*, to the Class E Notes, any unpaid Current Interest and any Interest Carryforward Amount thereon;
- s. *nineteenth*, to the Class E Notes, until the Note Amount thereof is reduced to zero;
- t. *twentieth*, to the Class F Notes, any unpaid Current Interest and any Interest Carryforward Amount thereon;
- u. *twenty-first*, to the Class F Notes, until the Note Amount thereof is reduced to zero;
- v. *twenty-second*, to the Class G Notes, until the Note Amount thereof is reduced to zero; and
- w. *twenty-third*, any remaining Principal Remittance Amount as part of Monthly Excess Cashflow.

(ii) On each Payment Date, including, without limitation, a Payment Date on which an Optional Termination or an Optional Redemption is exercised, that a Credit Event is in effect, the Paying Agent shall distribute the Principal Remittance Amount for such Payment Date, to the extent of available, in the following order of priority:

- a. *first, pro rata*, solely to the extent not paid pursuant to the distribution of the Interest Remittance Amount, to the applicable party for any Extraordinary Trust Expenses, in an amount not to exceed the Annual Cap for the applicable yearly period;
- b. *second*, solely to the extent not paid pursuant to the distribution of the Interest Remittance Amount, to pay BNY the Indenture Trustee and Paying Agent Fee for the prior month;

- c. *third*, on each September Payment Date, beginning in September 2026, solely to the extent not paid pursuant to the distribution of the Interest Remittance Amount, to pay the Owner Trustee the Owner Trustee Fee for the applicable yearly period;
- d. *fourth*, on each September Payment Date, beginning in September 2026, solely to the extent not paid pursuant to the distribution of the Interest Remittance Amount, to pay the EU/UK Risk Retention Reporting Agent, the EU/UK Risk Retention Reporting Agent Fee for the applicable yearly period;
- e. *fifth*, solely to the extent not paid pursuant to the distribution of the Interest Remittance Amount, to pay the Loan Data Agent the Loan Data Agent Fee for the prior month;
- f. *sixth*, solely to the extent not paid pursuant to the distribution of the Interest Remittance Amount, to pay the Custodian the Custodial Fee for the prior month;
- g. *seventh*, solely to the extent not paid pursuant to the distribution of the Interest Remittance Amount, to pay the REMIC Administrator the REMIC Administrator Fee for the prior month;
- h. *eighth*, solely to the extent not paid pursuant to the distribution of the Interest Remittance Amount, to reimburse the Servicer for any unpaid Servicing Fees or unreimbursed Net Draws funded prior to such Payment Date;
- i. *ninth*, solely to the extent not paid pursuant to the distribution of the Interest Remittance Amount, to pay the Back-Up Servicer the Back-Up Servicing Fee for the prior month;
- j. *tenth*, to reimburse the Class FR Certificateholder for any unreimbursed Net Draws;
- k. *eleventh*, to the Class A Notes, any unpaid Current Interest and any Interest Carryforward Amount thereon;
- l. *twelfth*, to the Reserve Account if the amount on deposit therein is less than the Reserve Account Required Amount, up to the Reserve Account Required Amount;
- m. *thirteenth*, to the Class A Notes, until the Note Amount thereof is reduced to zero;
- n. *fourteenth*, to the Class B Notes, any unpaid Current Interest and any Interest Carryforward Amount thereon;
- o. *fifteenth*, to the Class B Notes, until the Note Amount thereof is reduced to zero;
- p. *sixteenth*, to the Class C Notes, any unpaid Current Interest and any Interest Carryforward Amount thereon;
- q. *seventeenth*, to the Class C Notes, until the Note Amount thereof is reduced to zero;

- r. *eighteenth*, to the Class D Notes, any unpaid Current Interest and any Interest Carryforward Amount thereon;
- s. *nineteenth*, to the Class D Notes, until the Note Amount thereof is reduced to zero;
- t. *twentieth*, to the Class E Notes, any unpaid Current Interest and any Interest Carryforward Amount thereon;
- u. *twenty-first*, to the Class E Notes, until the Note Amount thereof is reduced to zero;
- v. *twenty-second*, to the Class F Notes, any unpaid Current Interest and any Interest Carryforward Amount thereon;
- w. *twenty-third*, to the Class F Notes, until the Note Amount thereof is reduced to zero;
- x. *twenty-fourth*, to the Class G Notes, until the Note Amount thereof is reduced to zero; and
- y. *twenty-fifth*, any remaining Principal Remittance Amount as part of Monthly Excess Cashflow.

(c) Distribution of Monthly Excess Cashflow. On each Payment Date, including, without limitation, a Payment Date on which an Optional Termination or an Optional Redemption is exercised, the sum of (i) the remaining Interest Remittance Amount after making payments pursuant to clauses first through *nineteenth* under Section 3.03(a) above and (ii) the remaining Principal Remittance Amount after making payments pursuant to clauses first through twenty-second under Section 3.03(b)(i) above if no Credit Event is in effect and clauses first through twenty-fourth under Section 3.03(b)(ii) above if a Credit Event is in effect, the Paying Agent shall distribute the foregoing amounts (the “Monthly Excess Cashflow”) received in the following order of priority (in each case, to the extent available):

- (i) *first*, sequentially, (i) to pay the Administrator the Administrator Fee for the Collection Period immediately preceding the Payment Date, and then (ii) to pay the Administrator any unpaid Administrator Fee for any prior Collection Periods;
- (ii) *second*, to reimburse the Class FR Certificateholder for any unreimbursed Net Draws;
- (iii) *third*, up to the amount of any Realized Losses for such Payment Date, sequentially, to the Class A, Class B, Class C, Class D, Class E, Class F and Class G Notes and Class FR Certificates, in that order, in reduction of the Note Amount thereof, until the Note Amount or Certificate Balance of each class of Notes or Certificates is reduced to zero;
- (iv) *fourth*, up to the amount of any Applied Realized Loss Amounts for such Payment Date, sequentially, as follows:

- a. Sequentially, to the Class A, Class B, Class C, Class D, Class E, Class F and Class G Notes and Class FR Certificates, in that order, in reduction of the Note Amount or Certificate Balance thereof, until the Note Amount or Certificate Balance of each Class of Notes or Certificates, as applicable, is reduced to zero;
 - b. Sequentially, to the Class A, Class B, Class C, Class D, Class E, Class F and Class G Notes and Class FR Certificates, in that order, to reimburse each such class of Notes or Certificates for Applied Realized Loss Amounts previously allocated to such class of Notes or Certificates (to the extent the applicable Note Amount or Certificate Balance for such class of Notes or Certificates has not been increased by prior applications of note reimbursement amounts, if any, and to the extent not previously reimbursed);
- (v) *fifth*, from the Monthly Excess Cashflow otherwise distributable to the Class XS Notes, (i) to the Net WAC Shortfall Reserve Account, up to the aggregate Net WAC Shortfall for the Class A, Class B, Class C, Class D, Class E and Class F Notes for such Payment Date and then (ii) sequentially, from amounts on deposit in the Net WAC Shortfall Reserve Account, to the holders of the Class A, Class B, Class C, Class D, Class E and Class F Notes, in that order, any unpaid Net WAC Shortfall amounts thereon;
- (vi) *sixth*, on a pro rata basis based on the entitlement of each such party, to the Indenture Trustee, the Paying Agent, the Trust Registrar, the Registrar, the Owner Trustee, the Administrator, the REMIC Administrator, the Back-Up Servicer, the Loan Data Agent, the Custodian, the Controlling Holder and the EU/UK Risk Retention Reporting Agent for the reimbursement of any unpaid Extraordinary Trust Expenses owed to any such party, to the extent not paid due to the application of the Annual Cap;
- (vii) *seventh*, to the Holders of the Class XS Notes, any unpaid Current Interest and any Interest Carryforward Amount thereon, in each case other than amounts required to be deposited into the Net WAC Shortfall Reserve Account, together any other amounts due and owing to the Holders of the Class XS Notes in accordance with the Indenture; and
- (viii) *eighth*, any remaining Available Funds will be distributed to the Class FR Certificateholders or the Class R Certificateholders in accordance with the Trust Agreement; provided, however, that no amounts shall be distributed to the Class R Certificateholders until all prior Applied Realized Loss Amounts have been reimbursed to all the REMIC Regular Interests. Amounts, if any, the Paying Agent believes are otherwise distributable to the Class R Certificateholders shall be held in the Reserve Account to protect the regular interests issued by REMIC II against future losses except to the extent that the Paying Agent is required by Section 860G(a)(7) of the Code and Treasury Regulations Section 1.860G-2(g) to reduce the Reserve Account. On or before the Closing Date, the Paying Agent shall open a non-

interest bearing trust account for the Reserve Account for any amounts pursuant to this Section 3.03(c)(viii), and amounts therein shall remain uninvested.

Any amounts paid to the holders of the Trust Certificates pursuant to this Section 3.03 shall be paid by wire in the amounts specified below in accordance with instructions provided by the holders of the Trust Certificates to the Paying Agent in writing. For the avoidance of doubt, all such amounts shall be paid *pro rata* to the holders of the Trust Certificates in accordance with their respective percentage interest in the Trust Certificates as provided by in writing by the Issuer to the Indenture Trustee.

(d) [reserved].

(e) Each payment with respect to a Book-Entry Note shall be paid to the Depository, as Holder thereof, and the Depository shall be responsible for crediting the amount of such distribution to the accounts of its Depository Participants in accordance with its normal procedures. Each Depository Participant shall be responsible for disbursing such distribution to the Note Owners that it represents and to each indirect participating brokerage firm (a “brokerage firm” or “indirect participating firm”) for which it acts as agent. Each brokerage firm shall be responsible for disbursing funds to the Note Owners that it represents and none of the Indenture Trustee, the Paying Agent, the REMIC Administrator, the Registrar, the Trust Registrar or the Issuer shall have any responsibility therefor.

(f) Any installment of interest or principal, if any, payable on any Definitive Note that is punctually paid or duly provided for by the Issuer on the applicable Payment Date shall be paid to each Holder of record on the related Record Date, by wire transfer to an account specified in writing by such Holder at least five (5) Business Days prior to such Payment Date; provided, however, that the Paying Agent shall not pay to such Holders any amount required to be withheld from a payment to such Holder by the Code or related Treasury Regulations.

(g) The Note Amount for each Class of Notes shall be due and payable in full on the Stated Final Maturity Date as provided in the forms of Notes set forth in Exhibit A-1 through Exhibit A-8 to this Indenture. All principal payments on the Notes shall be made to the Noteholders entitled thereto in accordance with the Percentage Interests represented by such Notes. Upon notice to the Paying Agent by the Issuer, the Paying Agent shall notify the Person in whose name a Note is registered at the close of business on the related Record Date for the Stated Final Maturity Date or other final Payment Date (including any final Payment Date resulting from any purchase, sale or redemption pursuant to Section 8.05 hereof). Such notice shall to the extent practicable be mailed no later than five (5) Business Days prior to such Stated Final Maturity Date or other final Payment Date and shall specify that payment of the principal amount and any interest due with respect to such Note will be payable on the Stated Final Maturity Date or other final Payment Date. No interest shall accrue on the Notes on or after the Stated Final Maturity Date or any such other final Payment Date.

(h) If, after giving effect to the allocation of Available Funds on any Payment Date and the increase of any Note Amounts of the Notes or the Certificate Balance of the Class FR Certificates as a result of Write-up Amounts, the sum of the aggregate Note Amount of the Offered Notes and the Certificate Balance of the Class FR Certificates exceeds the aggregate Principal

Balance of the Mortgage Loans as of the last day of the related Collection Period, the resulting Applied Realized Loss Amount will be allocated (A) on any Payment Date on which a Credit Event is not in effect, (i) to reduce the Certificate Balance by the Class FR Certificates Writedown Amount for such Payment Date, until the Certificate Balance has been reduced to zero and then (ii) sequentially to the Class G, Class F, Class E, Class D, Class C, Class B and Class A Notes, in that order, until their respective Note Amounts are reduced to zero and (B) on any Payment Date on which a Credit Event is in effect, sequentially to the Class FR Certificates and the Class G, Class F, Class E, Class D, Class C, Class B and Class A Notes, in that order, until the respective Certificate Balance or Note Amounts are reduced to zero. The Note Amount of the most senior Class of Notes to which Applied Realized Loss Amounts have been allocated or the Class FR Certificates will be increased up to the amount of Applied Realized Loss Amounts previously allocated thereto.

Subsequent Recoveries in respect of the Mortgage Loans will be paid to the Notes and the Class FR Certificates as part of Available Funds and the Note Amount of each Class of Notes then outstanding and the Certificate Balance of the Class FR Certificates, in each case that has been reduced by Applied Realized Loss Amounts, will be increased, if after giving effect to the allocation of Available Funds on any Payment Date, the aggregate Principal Balance of the Mortgage Loans as of the last day of the related Collection Period exceeds the sum of the aggregate Note Amount of the Notes and the Certificate Balance of the Class FR Certificates as further described below. On each Payment Date, any Write-up Amounts will be allocated to increase *first*, the Note Amounts of the Class A, Class B, Class C, Class D, Class E, Class F and Class G Notes, in that order, and *second*, the Certificate Balance of the Class FR Certificates, in each case up to the amount of Applied Realized Loss Amounts previously allocated thereto. Any allocation of a Write-up Amount on a Payment Date will have the result of increasing, as applicable, the Note Amount of such Class by the amount of such Write-up Amount allocated to such Class.

Any Class of Notes and the Class FR Certificates whose Note Amount or Certificate Balance has been reduced to zero due to the allocation of Realized Losses or Class FR Certificates Writedown Amounts will nonetheless remain outstanding under this Indenture or the Trust Agreement, as applicable, until the termination of the Issuer, and the Note Amount or Certificate Balance thereof, as applicable, may be increased by Subsequent Recoveries or reimbursed for prior Realized Losses or, in the case of the Class FR Certificates, by any Net Draws for which the Servicer is reimbursed by amounts funded by the Class FR Certificateholder.

(i) The Notes are nonrecourse obligations solely of the Issuer and shall be payable only from the Grant of Collateral. The Indenture Trustee, the Paying Agent, the Registrar and each Noteholder and each Note Owner shall be deemed to have agreed that they have no rights or claims against the Issuer directly and may only look to the Trust Estate to satisfy the Issuer's obligations hereunder. In the event that the proceeds of realization of the Collateral are insufficient to satisfy all claims whose recourse is limited thereto in accordance with this Indenture, such claims shall be limited to the proceeds received from the realization of the Collateral and once such proceeds have been exhausted in accordance with this Indenture, no debt shall be owed by the Issuer for any further sum, with any claims against, or obligations of the Issuer thereupon being extinguished and no further assets of the Issuer shall be available to meet such claims. Each Noteholder (and each Note Owner) shall be deemed to have agreed, by its acceptance of its Note (or any interest therein), not to file or join in filing any petition in bankruptcy or commence any similar proceeding in

respect of the Issuer for a period of one year and one day (or, if longer, then the applicable preference period plus one day) following payment in full of such Note.

Notwithstanding the provisions of this Section 3.03(i), the Issuer or another entity may, subject to Section 3.11 hereof, at any time advance funds to the Paying Agent for the purpose of allowing the Paying Agent to make payments of (i) accrued and unpaid interest on the Notes, (ii) principal on the Notes or any other amount owed by the Issuer pursuant to this Indenture on or after the Stated Final Maturity Date or following the acceleration of the Notes under Section 5.02 hereof or (iii) any unreimbursed Extraordinary Trust Expense; provided, however, that the Issuer shall not be permitted to make any such advance unless it has provided an Opinion of Counsel to the Paying Agent and REMIC Administrator that such advance will not result in an Adverse REMIC Event. If the Issuer or another entity makes such an advance, it shall be entitled to withdraw from the Payment Account on any Payment Date the amount so advanced but only after the payment of any amounts due and payable to any other Person on such Payment Date pursuant to this Indenture.

(j) Solely for U.S. federal income tax purposes, including the REMIC Provisions, the following shall apply:

(i) Payments made with respect to fees, reimbursable expenses, and indemnities will be treated as paid by REMIC I.

(ii) Payments made on the class FR Certificate will be treated as made by REMIC I.

(iii) Payments, if any, made on the Class R Certificates will be treated as made by REMIC II.

(iv) The principal balance of each class of REMIC II Regular Interests will be reduced to the same extent as the principal amount of the related Class of Notes has been reduced.

(v) The principal balance of each class of the REMIC I Regular Interest will be reduced to the same extent as the principal balance of the corresponding REMIC II Regular Interest has been reduced.

(vi) Interest on the REMIC I and REMIC II regular interests will accrue at the rates set out in the Trust Agreement.

(vii) Payments into the Net WAC Shortfall Reserve Account will be treated as having been made to the holder of the Class XS Notes and then transferred by such holder to the Grantor Trust.

(viii) Payments out of the Net WAC Shortfall Reserve Account will be treated as made from the Grantor Trust and not either REMIC.

(ix) [Reserved].

(x) Any unreimbursed Net Draws will be treated as if contributed by the holder of the Class FR Interest to a “qualified reserve fund” within the meaning of Section 860G(a)(7)(B) of the Code.

(xi) Applied Realized Loss Amounts and Subsequent Recoveries, in each case, if any, shall be allocated to the REMIC I Regular Interests in the same manner as such losses and recoveries are allocated to the corresponding REMIC II Regular Interests which shall be in the same manner as such losses and recoveries are allocated to the corresponding Classes of Notes, so that the principal balances of the REMIC II Regular Interests shall track the principal balances of the related Notes and the principal balances of the REMIC I Regular Interests will track the principal amounts of the related REMIC II Regular Interests. Interest on the REMIC I Regular Interests will be paid pro rata among the classes of regular interests.

(xii) Amounts that are considered to have been received by REMIC II, as holder of the REMIC I Regular Interests from REMIC I, and the amounts treated as paid by REMIC II on the Notes will be treated as paid in the same manner as distributions are made pursuant to section 3.03(a)-(c) hereof.

(k) The Paying Agent agrees that the Available Funds for any Payment Date paid in accordance with Section 3.03(a) hereof shall include, as required herein, all amounts collected with respect to the Mortgage Loans after the Cut-Off Date and all payments due after the Cut-Off Date but received prior to the Cut-Off Date.

Section 3.04. Protection of Trust Estate. (a) The Issuer shall from time to time prepare, execute and deliver all such supplements and amendments hereto and all such financing statements, continuation statements, instruments of further assurance and other instruments, and will take such other action necessary or advisable to:

(i) maintain or preserve the lien and security interest (and the priority thereof) of this Indenture or carry out more effectively the purposes hereof;

(ii) perfect, publish notice of or protect the validity of any Grant made or to be made by this Indenture;

(iii) enforce any rights with respect to the Trust Estate; or

(iv) preserve and defend title to the Trust Estate and the rights of the Indenture Trustee and the Noteholders in the Trust Estate against the claims of all persons and parties.

(b) Except as otherwise provided in a Transaction Document, neither the Indenture Trustee nor the Paying Agent shall, and shall not be directed to, remove or permit the Custodian to remove any portion of the Trust Estate that consists of money or is evidenced by an instrument, certificate or other writing from the jurisdiction in which it was held at the Closing Date, unless the Indenture Trustee and the Paying Agent shall have first received an Opinion of Counsel to the effect that the lien and security interest created by this Indenture with respect to such property will continue to be maintained after giving effect to such action or actions.

The Issuer hereby designates the Indenture Trustee its agent and attorney-in-fact to sign any applicable financing statement, continuation statement or other instrument required to be signed pursuant to this Section 3.04. The Issuer hereby authorizes the filing of financing statements in all appropriate jurisdictions describing the Trust Estate as “all assets” of the Issuer as debtor or words of similar effect, or being of equal or lesser scope or with greater detail.

Section 3.05. Performance of Obligations. (a) The Issuer shall punctually perform and observe all of its obligations and agreements contained in this Indenture, the Transaction Documents and in the instruments and agreements included in the Trust Estate.

(b) The Issuer may retain an administrator and may enter into contracts with other Persons to assist it in performing its duties under this Indenture, and any performance of such duties by any Person identified to the Indenture Trustee, the Trust Registrar, the Registrar and the Paying Agent in an Officer’s Certificate of the Issuer shall be deemed to be action taken by the Issuer. The Issuer has engaged the Administrator to perform the duties of the Administrator pursuant to the Administration Agreement and the other Transaction Documents.

(c) The Issuer shall not take any action or permit any action to be taken by others which would release any Person from any of such Person’s covenants or obligations under any instrument included in the Trust Estate, or which would result in the amendment, hypothecation, subordination, termination or discharge of, or impair the validity or effectiveness of, any such instrument, except as expressly provided in any Transaction Document.

(d) The Issuer shall not waive, amend, modify, supplement or terminate any Transaction Document or any provision thereof other than in accordance with the amendment or termination provisions of such Transaction Document.

Section 3.06. Negative Covenants. So long as any Notes are Outstanding, the Issuer shall not, except as expressly permitted by a Transaction Document:

- (i) sell, transfer, exchange or otherwise dispose of the Trust Estate;
- (ii) claim any credit on, or make any deduction from the principal or interest payable in respect of, the Notes (other than amounts properly withheld from such payments under the Code or Treasury Regulations) or assert any claim against any present or former Noteholder, by reason of the payment of the taxes levied or assessed upon any part of the Trust Estate;
- (iii) (A) permit the validity or effectiveness of this Indenture to be impaired, or permit the lien of this Indenture to be amended, hypothecated, subordinated, terminated or discharged, or permit any Person to be released from any covenants or obligations with respect to the Notes under this Indenture except as may be expressly permitted hereby, (B) permit any lien, charge, excise, claim, security interest, mortgage or other encumbrance (other than the lien of this Indenture) to be created on or extend to or otherwise arise upon or burden the Trust Estate or any part thereof or any interest therein or the proceeds thereof or (C) permit the lien of this Indenture not to constitute a valid first priority security interest in the Trust Estate;

(iv) waive or impair, or fail to assert rights under, the Mortgage Assets, or impair or cause to be impaired its interest in the Mortgage Assets or the Transaction Documents if any such action would materially and adversely affect the interests of the Noteholders;

(v) incur, assume, guaranty or agree to indemnify any Person with respect to any indebtedness of any Person, except for such indebtedness as may be incurred by the Issuer in connection with the issuance of the Notes pursuant to this Indenture;

(vi) change its name, the jurisdiction of its formation, or the type of entity it is, unless it has first (A) taken all actions, including the making of all filings under the UCC as in effect in all applicable jurisdictions, as are necessary to maintain and continue the first-priority security interest of the Indenture Trustee in the Collateral (to the extent that such filing can create a first priority security interest under the UCC), and (B) delivered to the Indenture Trustee an Opinion of Counsel acceptable to the Indenture Trustee that the Issuer has made all filings under the UCC as in effect in all applicable jurisdictions as are necessary to maintain and continue the first-priority security interest of the Indenture Trustee in the Collateral (to the extent that such filing can create a first priority security interest under the UCC); or

(vii) take any action or fail to take any action which may cause the Issuer to be subject to regulation by the Commission as an “investment company” within the meaning of the Investment Company Act of 1940, as amended.

Notwithstanding the foregoing, the Issuer acknowledges that the foregoing covenants and agreements are not intended to conflict with the establishment of each REMIC pursuant to the Trust Agreement and shall not take any action that should reasonably be expected to, or fail to take any action if such failure should reasonably be expected to, cause (A) the Issuer to be subject to entity-level U.S. federal income tax or (B) an Adverse REMIC Event.

Section 3.07. Issuer May Not Consolidate, etc. The Issuer shall not consolidate or merge with or into any other Person or convey or transfer the Trust Estate to any Person.

Section 3.08. Successor or Transferee. Upon any consolidation or merger, or any conveyance or transfer of the Trust Estate securing the Notes to a successor Issuer, such successor Issuer shall succeed to, and be substituted for the obligations of the Issuer, and may exercise every right and power of, the Issuer under this Indenture with the same effect as if such successor Issuer had been named as the Issuer herein. Upon notice of such successor Issuer, the Indenture Trustee, REMIC Administrator and the Paying Agent may require such Successor Person to furnish to the Indenture Trustee, the REMIC Administrator and the Paying Agent certain requested information to allow the Indenture Trustee, the REMIC Administrator and the Paying Agent to complete their “Know Your Customer” procedures. None of the Indenture Trustee, the REMIC Administrator or the Paying Agent shall have any obligations or liabilities to any successor Issuer until the Indenture Trustee, the REMIC Administrator and the Paying Agent have verified that they may legally transact business with such successor Issuer pursuant to the limitations and requirements of this Section 3.08(a) and the requirements and limitations of the Indenture Trustee’s, the REMIC Administrator’s and the Paying Agent’s “Know Your Customer” rules that may be in effect from time to time.

Section 3.09. No Other Business. The Issuer shall not engage in any business other than financing, purchasing, owning and selling and managing the Trust Certificates and the Trust Estate and the issuance (and redemption as set forth in Sections 8.05 hereof, if applicable) of the Notes in the manner contemplated by this Indenture and the Transaction Documents and all activities incidental thereto.

Section 3.10. No Borrowing. The Issuer shall not issue, incur, assume, guarantee or otherwise become liable, directly or indirectly, for any indebtedness except for the Notes under this Indenture.

Section 3.11. Guarantees, Loans, Advances and Other Liabilities. Except as contemplated by this Indenture or the Transaction Documents, the Issuer shall not make any loan or advance or credit to, or guarantee (directly or indirectly or by an instrument having the effect of assuring another's payment or performance on any obligation or capability of so doing or otherwise), endorse or otherwise become contingently liable, directly or indirectly, in connection with the obligations, stocks or dividends of, or own, purchase, repurchase or acquire (or agree contingently to do so) any stock, obligations, assets or securities of, or any other interest in, or make any capital contribution to, any other Person.

Section 3.12. Capital Expenditures. The Issuer shall not make any expenditure (by long-term or operating lease or otherwise) for capital assets (either realty or personalty).

Section 3.13. Restricted Payments. The Issuer shall not, directly or indirectly, (i) pay any dividend or make any distribution (by reduction of capital or otherwise), other than any other amounts payable to the Issuer under the Transaction Documents, which may be paid to the Depositor, whether in cash, property, securities or a combination thereof, (ii) redeem, purchase, retire or otherwise acquire for value any such ownership or equity interest or security except in connection with an optional redemption and new issuance under Article VIII hereof or (iii) set aside or otherwise segregate any amounts for any such purpose; provided, however, that the Issuer may make, or cause to be made, distributions and payments to itself, the Indenture Trustee, the Paying Agent, the REMIC Administrator, the Registrar, the Custodian, Owner Trustee and the Noteholders as contemplated by, and to the extent funds are available for such purpose under this Indenture and the Transaction Documents. The Issuer shall not, directly or indirectly, make payments to or distributions from the Payment Account except in accordance with this Indenture and the Transaction Documents.

Section 3.14. Notice of Events of Default. The Issuer shall give the Indenture Trustee, the Registrar, the Paying Agent and the 17g-5 Information Provider (which shall provide notice of the same to the Rating Agencies in accordance with Section 7.05 herein) prompt written notice of each Event of Default hereunder.

Section 3.15. Further Instruments and Acts. Upon request of the Indenture Trustee or the Paying Agent, the Issuer shall execute and deliver such further instruments and do such further acts as may be reasonably necessary or proper to carry out more effectively the purpose of this Indenture.

Section 3.16. Certain Representations Regarding the Trust Estate. The Issuer represents to the Indenture Trustee, the REMIC Administrator, the Registrar and the Paying Agent that:

(i) This Indenture creates a valid and continuing security interest (as defined in the applicable UCC) in the Collateral in favor of the Indenture Trustee, not in its individual capacity but solely in its capacity as Indenture Trustee on behalf of the Noteholders, which security interest is prior to all other liens, and is enforceable as such against creditors of and purchasers from the Issuer;

(ii) The Collateral constitutes “certificated securities,” “deposit accounts,” “instruments” or “general intangibles” or is a Financial Asset credited to a Securities Account, as applicable within the meaning of the applicable UCC; provided that the Payment Account and the Reserve Account constitute Securities Accounts;

(iii) The Issuer owns and has good and marketable title to the Collateral pledged by it, free and clear of any lien, claim or encumbrance of any Person;

(iv) The Issuer has caused or will have caused, within ten (10) days of the Closing Date, the filing of all appropriate financing statements in the proper filing office in the appropriate jurisdictions under applicable law; and

(v) Other than the security interest granted to the Indenture Trustee, not in its individual capacity but solely in its capacity as Indenture Trustee on behalf of the Noteholders, pursuant to this Indenture, the Issuer has not pledged, assigned, sold, granted a security interest in, or otherwise conveyed any of the Collateral. The Issuer has not authorized the filing of and is not aware of any financing statements against the Issuer that include a description of collateral comprising the Collateral other than any financing statement relating to the security interest granted to the Indenture Trustee hereunder or that has been terminated.

(vi) The Collateral is not in the name of any Person other than the Issuer, the Owner Trustee (on behalf of the Issuer), the Servicer or nominee (on behalf of the Issuer) or the Indenture Trustee. The Custodian has in its possession all original copies of the Mortgage Assets registered in the name of the Issuer or the Indenture Trustee not in its individual capacity but solely in its capacity as Indenture Trustee on behalf of the Noteholders. Each Mortgage Asset that constitutes or evidences the Collateral does not have any marks or notations indicating that it has been pledged, assigned or otherwise conveyed to any Person other than the Issuer or the Indenture Trustee. The Issuer has not consented to the Collateral being maintained to comply with instructions of any Person other than the Indenture Trustee or the Paying Agent.

(vii) The Issuer has received all consents and approvals required by the terms of each item of Collateral to the transfer to the Indenture Trustee of its interest and rights in the Collateral.

(viii) The Issuer is not now, and immediately following the issuance of the Notes pursuant to this Indenture will not be, required to be registered under the Investment Company Act. The Issuer is relying on an exclusion or exemption from the definition of

“investment company” under the Investment Company Act contained in Section 3(c)(5) of the Investment Company Act, although there may be additional exclusions or exemptions available to the Issuer. The Issuer is being structured so as not to constitute a “covered fund” as defined in the final regulations issued December 10, 2013, implementing the “Volcker Rule” (Section 619 of the Dodd-Frank Wall Street Reform and Consumer Protection Act).

ARTICLE IV

THE NOTES; SATISFACTION AND DISCHARGE OF INDENTURE

Section 4.01. The Notes. The Notes shall be registered in the name of a nominee designated by the Depository. Beneficial Owners will hold interests in the Book-Entry Notes through the book-entry facilities of the Depository in minimum Denominations of \$150,000 and integral multiples of \$1 in excess thereof; provided, that the Class XS Notes will be issued in minimum denominations of \$1,000,000 and integral multiples of \$1 in excess thereof.

The Paying Agent, the Indenture Trustee, the REMIC Administrator, the Owner Trustee, the Custodian and the Registrar may for all purposes (including the making of payments due on the Book-Entry Notes) deal with the Depository as the authorized representative of the Beneficial Owners with respect to the Book-Entry Notes for the purposes of exercising the rights of Holders of the Notes hereunder. Except as provided in the next succeeding paragraph of this Section 4.01, the rights of Beneficial Owners with respect to the Book-Entry Notes shall be limited to those established by law and agreements between such Beneficial Owners and the Depository and Depository Participants. Except as provided in Section 4.08 hereof, Beneficial Owners shall not be entitled to Definitive Notes in exchange for the Book-Entry Notes as to which they are the Beneficial Owners. Requests and directions from, and votes of, the Depository as Holder of the Notes shall not be deemed inconsistent if they are made with respect to different Beneficial Owners. The Registrar may establish a reasonable record date in connection with solicitations of consents from or voting by Noteholders and give notice to the Depository of such record date. Other than pursuant to Section 4.08, without the consent of the Issuer, the Indenture Trustee, the Registrar and the Paying Agent, no Book-Entry Note may be transferred by the Depository except to a successor Depository that agrees to hold such Note for the account of the Beneficial Owners.

In the event the Depository Trust Company resigns or is removed as Depository, the Paying Agent (in consultation with the Sponsor) may appoint a successor Depository. If no successor Depository has been appointed within thirty (30) days of the effective date of the Depository’s resignation or removal, each Beneficial Owner shall be entitled to Definitive Notes representing the Notes it beneficially owns in the manner prescribed in Section 4.08 hereof.

The Notes shall, on original issue, be executed by the Issuer, authenticated by the Registrar and delivered by the Registrar to or upon Issuer Request.

Section 4.02. Registration of and Limitations on Transfer and Exchange of Notes; Appointment of Registrar.

(a) At all times during the term of this Indenture, there shall be maintained at the office of a registrar appointed hereunder (the “Registrar”) a register (the “Register”) in which, subject to such reasonable regulations as the Registrar may prescribe, the Registrar shall provide for the registration of Notes and of transfers and exchanges of Notes as herein provided. The Indenture Trustee is hereby initially appointed (and hereby agrees to act in accordance with the terms hereof) as Registrar for the purpose of registering Notes and transfers and exchanges of Notes as herein provided. If the Indenture Trustee resigns or is removed in its capacity as Paying Agent in accordance with the terms hereof, the Indenture Trustee shall also resign or be removed in its capacity as Registrar. Any successor paying agent shall also immediately succeed as successor registrar hereunder.

(b) No transfer, sale, pledge or other disposition of any Note or interest therein shall be made unless that transfer, sale, pledge or other disposition is exempt from the registration and/or qualification requirements of the Securities Act and any applicable state securities laws, or is otherwise made in accordance with the Securities Act and such state securities laws. None of the Issuer, the Indenture Trustee, the Owner Trustee, the Paying Agent, the REMIC Administrator, or the Registrar is obligated to register or qualify any Notes under the Securities Act or any other securities law or to take any action not otherwise required under this Indenture to permit the transfer of any Note or interest therein without registration or qualification. Any Noteholder desiring to effect a transfer of Notes or interests therein shall, and does hereby agree to, provide the Issuer, the Indenture Trustee, the REMIC Administrator, the Paying Agent and the Registrar such security or indemnity as may be reasonably required by them to save each of them harmless against any liability that may result if the transfer is not so exempt or is not made in accordance with such federal and state laws. If a Noteholder does not meet the transfer requirements set forth herein, the Issuer shall have the right to require any such Noteholder to sell its interest in the Note it holds.

(c) If a transfer of an Ownership Interest held by the related transferor in the form of a Rule 144A Global Note and also to be held by the related transferee in the form of a Rule 144A Global Note is to be made without registration under the Securities Act, and a Responsible Officer of the Registrar has actual knowledge thereof, then the Registrar shall refuse to register such transfer unless it and the Indenture Trustee receives (and upon receipt, may conclusively rely upon) (i) a certificate from the Noteholder desiring to effect such transfer substantially in the form attached as Exhibit B-1 hereto and (ii) a certificate from such Noteholder’s prospective transferee substantially in the form attached as Exhibit B-2 hereto (as to which, in the case of the Book-Entry Notes, the Noteholder and the Noteholder’s prospective transferee will be deemed to have made the representations and agreements contained therein), to the effect that, among other things, the transfer is being made to a Person that is (i) a QIB and/or (ii) the Sponsor or an Affiliate thereof, in each case in accordance with Rule 144A. If a transfer of an Ownership Interest held by the related transferor in the form of a Rule 144A Global Note and to be held by the related transferee in the form of a Temporary Regulation S Global Note, on or prior to the Exchange Date, or a Permanent Regulation S Global Note, after the Exchange Date, is to be made without registration under the Securities Act, then the Registrar shall refuse to register such transfer unless it receives (and upon receipt may conclusively rely upon) a certificate from the prospective transferee of the Noteholder desiring to effect such transfer substantially in the form attached as Exhibit B-3 hereto (a “Regulation S Transfer Certificate”) (as to which, in the case of the Book-Entry Notes, the Noteholder’s prospective transferee will be deemed to have made the representations and

agreements contained therein), to the effect that such transfer is being made to a non-U.S. Person in accordance with Regulation S under the Securities Act.

(d) If a transfer of a Note held by the related transferor in the form of a Rule 144A Definitive Note and is to be made without registration under the Securities Act, and a Responsible Officer of the Registrar has actual knowledge thereof, then the Registrar shall refuse to register such transfer unless it and the Indenture Trustee receives (and upon receipt, may conclusively rely upon) a certificate from the Noteholder desiring to effect such transfer substantially in the form attached as Exhibit B-1 hereto and a certificate from such Noteholder's prospective transferee substantially in the form attached as Exhibit B-2 hereto, to the effect that, among other things, the transfer is being made to (i) a QIB and/or (ii) the Sponsor or an Affiliate thereof, in each case in accordance with Rule 144A.

(e) If any transfer of an Ownership Interest held by the related transferor in the form of a Temporary Regulation S Global Note or Permanent Regulation S Global Note, as the case may be, is to be made without registration under the Securities Act, then the Registrar shall refuse to register such transfer unless it receives (and upon receipt may conclusively rely upon) (i) in the case of a transfer to a transferee that takes delivery in the form of an Ownership Interest in a Rule 144A Global Note, a certificate from the Noteholder desiring to effect such transfer substantially in the form of Exhibit B-4 hereto (a "Rule 144A Transfer Certificate") or such other certification reasonably acceptable to the Registrar; and (ii) in the case of a transferee that takes delivery in the form of an Ownership Interest in a Temporary Regulation S Global Note, on or prior to the Exchange Date, or a Permanent Regulation S Global Note, after the Exchange Date, a Regulation S Transfer Certificate (as to which, in the case of the Book-Entry Notes, the Noteholder's prospective transferee will be deemed to have made the representations and agreements contained therein) from the Noteholder desiring to effect such transfer or such other certification reasonably acceptable to the Registrar, in either case to the effect that such transfer is being made in accordance with Rule 903 or 904 of Regulation S of the Securities Act and that, if such transfer occurs on or prior to the Exchange Date, the interest transferred will be held immediately thereafter through Euroclear or Clearstream. An Ownership Interest held by the related transferor in the form of a Temporary Regulation S Global Note may be exchanged, only on or after the Exchange Date, for an Ownership Interest held by the related transferor in the form of a Permanent Regulation S Global Note, upon delivery to the Registrar of a certification substantially in the form of Exhibit B-5 hereto (a "Clearing System Certificate").

(f) By acquiring a Class A Note, a Class B Note, a Class C Note or a Class D Note (or any interest therein), each purchaser and transferee (and its fiduciary, if applicable) will be deemed to represent and warrant that either (i) it is not acquiring and will not hold such Note (or interest therein) with the assets of a Benefit Plan Investor or a Plan that is subject to Similar Law or (ii) (A) the Note is rated at least "BBB-" or its equivalent by a nationally recognized statistical rating agency at the time of acquisition or transfer and the Note has not been characterized as other than indebtedness under applicable local law and (B) the acquisition, holding and disposition of the Note (or interest therein) will not, in the case of a Benefit Plan Investor, give rise to a non-exempt prohibited transaction under Section 406 of ERISA or Section 4975 of the Code or, in the case of a Plan that is subject to Similar Law, result in a violation of any Similar Law.

(g) By acquiring a Class XS Note, a Class E Note, a Class F Note or a Class G Note (or any interest therein), each purchaser and transferee (and its fiduciary, if applicable) will be deemed to represent and warrant that it is not acquiring and will not hold such Note (or interest therein) with the assets of a Benefit Plan Investor or a Plan that is subject to Similar Law.

(h) Notes of any Class may be transferred separately from Notes of any other Class. The foregoing will not be affected by any pattern of conduct of transferring more than one Class of Notes at the same time from a single transferor to a single transferee.

(i) If a Person is acquiring any Note or interest therein as a fiduciary or agent for one or more accounts, such Person shall be required to deliver to the Registrar a certification (which in the case of the Book-Entry Notes, the prospective transferee will be deemed to have represented such certification) to the effect that it has (i) sole investment discretion with respect to each such account and (ii) full power to make the foregoing acknowledgments, representations, warranties, certifications and agreements with respect to each such account as set forth in subsections (b) and any of (c) or (d) of this Section 4.02.

(j) Subject to the preceding provisions of this Section 4.02, upon surrender for registration of transfer of any Note at the applicable Corporate Trust Office of the Registrar maintained for such purpose, the Issuer shall execute and upon Issuer Request, the Registrar shall authenticate and deliver, in the name of the designated transferee or transferees, one or more new Notes of a like Denomination. As of the Closing Date, the offices of the Registrar maintained for such purpose are located at the Corporate Trust Office.

(k) At the option of any Noteholder, its Notes may be exchanged for other Notes of authorized Denominations of a like aggregate Denomination, upon surrender of the Notes to be exchanged at the offices of the Registrar maintained for such purpose. Whenever any Notes are so surrendered for exchange, the Issuer shall execute and upon Issuer Request the Registrar shall authenticate and deliver the Notes which the Noteholder making the exchange is entitled to receive.

(l) Every Note presented or surrendered for transfer or exchange shall (if so required by the Registrar) be duly endorsed by, or be accompanied by a written instrument of transfer in the form satisfactory to the Registrar and the Indenture Trustee duly executed by, the Holder thereof or his attorney duly authorized in writing.

(m) No service charge shall be imposed for any transfer or exchange of Notes, but the Indenture Trustee or the Registrar may require payment of a sum sufficient to cover any tax or other governmental charge that may be imposed in connection with any transfer or exchange of Notes.

(n) All Notes surrendered for transfer and exchange shall be physically delivered to the Registrar and thereupon cancelled by the Registrar, and the Registrar shall dispose of such cancelled Notes in accordance with its standard procedures.

(o) The Registrar shall provide to the Issuer, upon reasonable written request, and at the expense of the requesting party, an updated copy of the Register. The Issuer shall have the right to inspect the Register or to obtain a copy thereof at all reasonable times, and to rely conclusively upon a certificate of the Registrar as to the information set forth in the Register.

(p) No certifications shall be required of the Sponsor in connection with any transfers of the Notes by the Sponsor to any of its Affiliates.

Section 4.03. Mutilated, Destroyed, Lost or Stolen Notes. If any mutilated Note is surrendered to the Registrar, the Issuer shall execute and upon Issuer Request the Registrar shall authenticate and deliver, in exchange therefor, a new Note of the same Denomination and bearing a number not contemporaneously outstanding.

If there shall be delivered to the Issuer, the Indenture Trustee, the Paying Agent and the Registrar (i) evidence to their satisfaction of the destruction (including mutilation tantamount to destruction), loss or theft of any Note and the ownership thereof and (ii) such security or indemnity as may be reasonably required by any of them to hold each of them and any agent of any of them harmless, then, in the absence of written notice to the Issuer, the Indenture Trustee, the Paying Agent or the Registrar that such Note has been acquired by a protected purchaser, the Issuer shall execute and upon Issuer Request the Registrar shall authenticate and deliver, in lieu of any such destroyed, lost or stolen Note, a new Note of the same tenor and Denomination registered in the same manner, dated the date of its authentication and bearing a number not contemporaneously outstanding.

Upon the issuance of any replacement Note under this Section 4.03, the Issuer may require the payment by the Holder of such Note of a sum sufficient to cover any tax or other governmental charge that may be imposed in relation thereto and any other reasonable expenses (including the reasonable fees and expenses of the Registrar, the Paying Agent or the Indenture Trustee) in connection therewith.

Every replacement Note issued pursuant to this Section 4.03 in replacement of any mutilated, destroyed, lost or stolen Note shall constitute an original additional contractual obligation of the Issuer, whether or not the mutilated, destroyed, lost or stolen Note shall be at any time enforceable by anyone, and shall be entitled to all the benefits of this Indenture equally and proportionately with any and all other Notes duly issued hereunder.

The provisions of this Section 4.03 are exclusive and shall preclude (to the extent permitted by applicable law) all other rights and remedies with respect to the replacement or payment of mutilated, destroyed, lost or stolen Notes.

Section 4.04. Persons Deemed Owners. Prior to due presentment for registration of transfer of any Note, the Issuer, the Indenture Trustee, the REMIC Administrator, the Paying Agent, the Owner Trustee, the Custodian and the Registrar and any agent thereof may treat the Person in whose name any Note is registered (as of the day of determination) as the owner of such Note for the purpose of receiving payments of principal of and interest, if any, on such Note and for all other purposes whatsoever, whether or not such Note be overdue, and none of the Issuer, the Indenture Trustee, the REMIC Administrator, the Paying Agent, the Owner Trustee, the Custodian, the Registrar or any agent thereof shall be affected by notice to the contrary. Upon any request or inquiry by a Noteholder, the Issuer, the Indenture Trustee, the REMIC Administrator, the Paying Agent, the Owner Trustee, the Custodian and the Registrar and any agent thereof shall be entitled to receive a certification in form reasonably satisfactory to the Issuer, the Indenture Trustee, the REMIC Administrator, the Paying Agent, the Owner Trustee, the Custodian, the

Registrar or such agent, as the case may be, to enable the Issuer, the Indenture Trustee, the REMIC Administrator, the Paying Agent, the Owner Trustee, the Custodian, the Registrar or such agent, as applicable, to confirm the status of such entity as a Noteholder.

Section 4.05. Cancellation. All Notes surrendered for payment, registration of transfer, exchange or redemption shall, if surrendered to any Person other than the Registrar, be delivered to the Registrar and shall be promptly cancelled by the Registrar unless otherwise deemed cancelled in accordance with Section 8.04 hereof. The Issuer may at any time deliver to the Registrar for cancellation any Notes previously authenticated and delivered hereunder which the Issuer may have acquired in any manner whatsoever, and all Notes so delivered shall be promptly cancelled by the Registrar. No Notes shall be authenticated in lieu of or in exchange for any Notes cancelled as provided in this Section 4.05, except as expressly permitted by this Indenture. All cancelled Notes may be held or disposed of by the Registrar in accordance with its standard retention or disposal policy as in effect at the time unless the Issuer shall direct by an Issuer Request that they be destroyed or returned to it bearing a designation marked “cancelled” or another similar designation; provided, however, that such Issuer Request is timely and the Notes have not been previously disposed of by the Registrar.

Section 4.06. Form of Notes. The Notes, upon original issuance, will be issued in the form of typewritten Notes representing the Book-Entry Notes, to be delivered to the Indenture Trustee, as custodian for The Depository Trust Company, the initial Depository, by, or on behalf of, the Issuer. The Notes shall initially be registered on the Register in the name of Cede & Co., the nominee of the initial Depository, and no Beneficial Owner will receive a Definitive Note representing such Beneficial Owner’s interest in such Note, except as provided in Section 4.08 hereof. With respect to the Notes to be held as Rule 144A Global Notes, unless and until Definitive Notes have been issued to Beneficial Owners pursuant to Section 4.08 hereof:

- (i) the provisions of this Section 4.06 shall be in full force and effect;
- (ii) the Registrar, the Paying Agent, the REMIC Administrator, the Owner Trustee, the Custodian and the Indenture Trustee shall be entitled to deal with the Depository for all purposes of this Indenture (including the payment of principal of and interest on such Notes and the giving of instructions or directions hereunder) as the sole Holder of such Notes, and shall have no obligation to the Beneficial Owners of the Notes;
- (iii) to the extent that the provisions of this Section 4.06 conflict with any other provisions of this Indenture, the provisions of this Section 4.06 shall control;
- (iv) the rights of Beneficial Owners shall be exercised only through the Depository and shall be limited to those established by law and agreements between such owners of Notes and the Depository and/or the Depository Participants. Unless and until Definitive Notes are issued pursuant to Section 4.08 hereof, the initial Depository will make book- entry transfers among the Depository Participants and receive and transmit payments of principal of and interest on such Notes to such Depository Participants; and
- (v) whenever this Indenture or any other Transaction Document requires or permits actions to be taken based upon instructions or directions of Holders of Notes

evidencing a specified Percentage Interest, the Depository shall be deemed to represent such percentage with respect to such Notes only to the extent that it has received instructions to such effect from Beneficial Owners and/or Depository Participants owning or representing, respectively, such required percentage of the beneficial interest in such Notes and has delivered such instructions to the Indenture Trustee.

None of the Issuer, the Indenture Trustee, the REMIC Administrator, the Paying Agent, the Owner Trustee, the Custodian or the Registrar shall have any liability for any aspect of the records relating to or payments made on account of beneficial ownership interests in the Book-Entry Notes or for maintaining, supervising or reviewing any records relating to beneficial ownership interests or transfers thereof.

Section 4.07. Notices to Depository. Whenever a notice or other communication to the Noteholders of the Global Notes is required under this Indenture, unless and until Definitive Notes shall have been issued to Beneficial Owners pursuant to Section 4.08 hereof, the Indenture Trustee, the REMIC Administrator, the Registrar and the Paying Agent shall give all such notices and communications specified herein to be given to Holders of such Notes to the Depository, and shall have no obligation to deliver the same to the Beneficial Owners thereof.

Section 4.08. Definitive Notes for Book-Entry Notes. If the Depository advises the Issuer, the Administrator, the Owner Trustee, Indenture Trustee, the REMIC Administrator, the Paying Agent and the Registrar in writing that the Depository is no longer willing or able to properly discharge its responsibilities with respect to the Book-Entry Notes and the Paying Agent (in consultation with the Sponsor) is unable to locate a qualified successor within thirty (30) days of such notice, then the Indenture Trustee shall request that the Depository notify all Beneficial Owners of the occurrence of any such event and of the availability of Definitive Notes to Beneficial Owners requesting the same. Upon surrender to the Registrar of the typewritten Notes representing the Book-Entry Notes by the Depository, accompanied by registration instructions, the Issuer shall execute, and upon Issuer Request, the Registrar shall authenticate Definitive Notes in accordance with the instructions of the Depository. None of the Issuer, the Paying Agent, the REMIC Administrator, the Registrar or the Indenture Trustee shall be liable for any delay in delivery of such instructions and may conclusively rely on, and shall be protected in relying on, such instructions. Upon the issuance of such Definitive Notes, the Issuer, the Indenture Trustee, the REMIC Administrator, the Registrar and the Paying Agent shall recognize the Holders of such Definitive Notes as Noteholders.

Section 4.09. Tax Treatment. (a) The Issuer has entered into this Indenture, and the Notes shall be issued, with the intention that, for federal, state and local income, single business and franchise tax purposes, the Notes shall represent beneficial ownership of one or more “regular interests” in a REMIC as defined in the Code (which in turn represent beneficial ownership of regular interests in a lower-tier REMIC (each as more fully described in Section 2.15 et seq. of the Trust Agreement) , together, where specified in this Indenture and Trust Agreement, with interests in a notional principal contract, held in a grantor trust. The Issuer, by entering into this Indenture, and each Noteholder, by its acceptance of its Note, and all successors and assignees of the parties hereto agree to treat the Notes for federal, state and local income, single business and franchise tax purposes consistent with the aforementioned intended treatment and this Indenture and the Trust Agreement shall be interpreted to further this intention and the intention that the designation of the

REMIC Interests and Notional Principal Arrangements be interpreted to reflect the cashflows on the Notes and Certificates.

(b) Each Noteholder shall timely furnish the Issuer and the Paying Agent or their agents a correct, complete and properly executed U.S. federal income tax form or certification (including, without limitation, IRS Form W-8BEN, IRS Form W-8BEN-E, IRS Form W-8IMY (with appropriate attachments), IRS Form W-9 or IRS Form W-8ECI or any successors to such IRS forms) prior to the Initial Payment Date and at such time or times as required by law or that the Issuer, the Paying Agent or their respective agents may reasonably request and shall update and replace such form or certification in accordance with its terms or its subsequent amendments. Upon request, each Noteholder shall also furnish the Issuer and the Paying Agent or their agents any other documentation that is required under the Code (including without limitation Sections 1471 through 1474 of the Code) to enable them to determine their duties and responsibilities with respect to any taxes they may be required to withhold pursuant to the Code.

Section 4.10. Satisfaction and Discharge of Indenture. This Indenture shall cease to be of further effect with respect to the Notes except as to (i) rights of registration of transfer and exchange, (ii) substitution of mutilated, destroyed, lost or stolen Notes, (iii) rights of the Noteholders to receive payments of principal thereof and interest thereon, (iv) Sections 3.02, 3.03, 3.04, 3.06, 3.09, 4.11 and 10.14 hereof, (v) the rights, obligations and immunities of the Indenture Trustee, the REMIC Administrator, the Paying Agent and the Registrar hereunder (including, without limitation, the rights of the Indenture Trustee, the REMIC Administrator, the Paying Agent and the Registrar under Section 6.06 hereof and the obligations of the Paying Agent under Section 4.11 hereof), and (vi) the rights of the Noteholders as beneficiaries hereof with respect to the property so deposited with the Indenture Trustee payable to all or any of them, and the Indenture Trustee, on demand of and at the expense of the Issuer, shall execute proper instruments acknowledging satisfaction and discharge of this Indenture with respect to the Notes, shall release and deliver, the Collateral to or upon Issuer Request, when

(a) either

(i) all Notes theretofore authenticated and delivered (other than (i) Notes that have been destroyed, lost or stolen and that have been replaced or paid as provided in Section 4.03 hereof and (ii) Notes for whose payment money has theretofore been deposited or segregated and held by the Paying Agent and thereafter discharged from such trust, as provided in Section 4.11 hereof) have been delivered to the Registrar for cancellation or otherwise deemed cancelled in accordance with Section 8.04 hereof; or

(ii) all Notes not theretofore delivered to the Registrar for cancellation

- a. have become due and payable,
- b. will become due and payable at the Stated Final Maturity Date within one (1) year, or
- c. have been called for early redemption pursuant to Section 8.05 hereof,

and, in the case of a. or b. above, the Paying Agent has on deposit in the Payment Account or the Issuer has deposited with the Paying Agent an amount sufficient to pay and discharge the entire indebtedness on the Notes then Outstanding not theretofore delivered to the Registrar for cancellation when due on the Stated Final Maturity Date or other final Payment Date and all other sums payable hereunder, or, in the case of c. above, the Issuer shall have complied with all requirements of Section 8.05 hereof,

- (b) the Issuer has paid or caused to be paid all other sums payable hereunder; and
- (c) the Issuer has delivered to the Indenture Trustee, the REMIC Administrator, the Registrar and the Paying Agent an Officer's Certificate signed by the Depositor stating that all conditions precedent herein providing for relating to the satisfaction and discharge of this Indenture have been complied with and stating that the Noteholders and the Indenture Trustee have been paid all amounts owed to them and that the Indenture has been satisfied and discharged in accordance with its terms upon which each of the Indenture Trustee, the REMIC Administrator, the Registrar and the Paying Agent shall be entitled to fully rely with no obligation to verify, confirm or otherwise review and with no liability therefor and an Opinion of Counsel, stating that all conditions precedent herein provided for relating to the satisfaction and discharge of this Indenture have been complied with upon which each of the Indenture Trustee, the REMIC Administrator, the Registrar and the Paying Agent shall be entitled to fully rely with no obligation to verify, confirm or otherwise review and with no liability therefor.

Section 4.11. Application of Trust Money. All monies deposited with the Paying Agent pursuant to Section 4.10 hereof shall be held and applied by it, in accordance with the provisions of the Notes and this Indenture, to the payment, either directly or through any paying agent as designee of the Issuer, as the Paying Agent may determine, to the Holders of the Notes, of all sums due and to become due thereon for principal and interest or otherwise; but such monies need not be segregated from other funds except to the extent required herein or required by law.

Section 4.12. Repayment of Monies Held by Paying Agent. In connection with the satisfaction and discharge of this Indenture with respect to the Notes, all monies then held by any Person other than the Paying Agent under the provisions of this Indenture with respect to such Notes shall, upon demand of the Issuer, be paid to the Paying Agent to be held and applied according to Section 3.03 hereof and thereupon such Person shall be released from all further liability with respect to such monies.

Section 4.13. Temporary Notes. Pending the preparation of any Definitive Notes, the Issuer may execute and upon Issuer Request, the Registrar may authenticate and make available for delivery, temporary Notes that are printed, lithographed, typewritten, photocopied or otherwise produced, in any Denomination, substantially of the tenor of the Definitive Notes in lieu of which they are issued and with such appropriate insertions, omissions, substitutions and other variations as the officers executing such Notes may determine, as evidenced by their execution of such Notes.

If temporary Notes are issued, the Issuer will cause Definitive Notes to be prepared without unreasonable delay. After the preparation of the Definitive Notes, the temporary Notes shall be exchangeable for Definitive Notes upon surrender of the temporary Notes at the Corporate Trust

Office of the Registrar, without charge to the Holder. Upon surrender for cancellation of any one or more temporary Notes, the Issuer shall execute, and upon Issuer Request the Registrar shall authenticate and make available for delivery, in exchange therefor, Definitive Notes of authorized Denominations and of like tenor and aggregate Denomination. Until so exchanged, such temporary Notes shall in all respects be entitled to the same benefits under this Indenture as Definitive Notes.

Section 4.14. No Gross Up.

None of the Issuer, the Paying Agent, the Registrar, the REMIC Administrator or the Indenture Trustee shall be obligated to pay any additional amounts to the Noteholders or Note Owners as a result of any withholding or deduction for, or on account of, any present or future taxes, duties, assessments or governmental charges.

Section 4.15. Compliance with Withholding Requirements.

If the Issuer is required to deduct or withhold any tax from, or with respect to, payments to any Holder of the Notes, then the Issuer shall direct the Paying Agent in writing to deduct, or withhold, the amount required to be deducted or withheld and remit to the relevant authority such amount. Without limiting the generality of the foregoing, the Issuer, Indenture Trustee or Paying Agent may withhold any amount that it determines is required to be withheld from any amounts otherwise distributable to any Holder of a Note (including, but not limited to, as may be required pursuant to Section 1471 – 1474 of the Code). The Issuer shall not be obligated to pay any additional amounts to Holders or beneficial owners of the Notes as a result of any withholding or deduction for, or on account of, any tax imposed on or with respect to payments in respect of the Notes. For all purposes of this Indenture, any amount deducted or withheld pursuant to this Section 4.15 hereof with respect to any Holder shall be treated as cash distributed to such Holder at the time it is withheld or deducted by the Paying Agent.

ARTICLE V

DEFAULT AND REMEDIES

Section 5.01. Events of Default. The Issuer shall deliver to the Indenture Trustee, the Registrar, the REMIC Administrator, the Paying Agent and the 17g-5 Information Provider (which shall provide notice of the same to the Rating Agencies in accordance with Section 7.05 herein) within five (5) calendar days after learning of any occurrence which is or with notice or lapse of time or both would become an Event of Default, written notice in the form of an Officer's Certificate, indicating the status of such occurrence and what action the Issuer is taking or proposes to take with respect thereto. None of the Indenture Trustee, the REMIC Administrator, the Registrar, or the Paying Agent shall be deemed to have knowledge of any Event of Default unless a Responsible Officer of such entity has actual knowledge thereof or unless written notice of such Event of Default is received by a Responsible Officer and such notice references the Notes, the Trust Estate or this Indenture. In the absence of such actual knowledge or written notice, the Indenture Trustee, the REMIC Administrator, the Registrar and the Paying Agent may conclusively assume that there is no Event of Default.

Section 5.02. Acceleration of Maturity; Rescission and Annulment. If an Event of Default should occur and be continuing and notice has been provided of such Event of Default in accordance with Section 5.01 hereof, then and in every such case the Indenture Trustee may, and at the written direction of the Noteholders holding more than a 66 2/3% Percentage Interest in all Classes of the Notes in the aggregate, shall declare the Notes to be immediately due and payable, by a notice in writing to the Issuer, and upon any such declaration the unpaid Note Amount for each Class of Notes, together with accrued and unpaid interest thereon through the date of acceleration, shall become immediately due and payable.

At any time after such declaration of acceleration of maturity with respect to an Event of Default has been made and before a judgment or decree for payment of the money due has been obtained by the Indenture Trustee as hereinafter in this Article V provided, Noteholders representing more than a 66 2/3% Percentage Interest in all Classes of the Notes in the aggregate, by written notice to the Issuer, the Paying Agent, the 17g-5 Information Provider (which shall provide notice of the same to the Rating Agencies in accordance with Section 7.05 herein) and the Indenture Trustee, may, subject to Section 5.11 hereof, waive the related Event of Default and rescind and annul such declaration and its consequences; provided that no such rescission shall affect any subsequent default or impair any right consequent thereto.

The Indenture Trustee may not sell the Mortgage Loans without the written consent of Noteholders holding a 100% Percentage Interest of the Notes unless the proceeds of such sale are equal to the Optional Termination Price or the Optional Redemption Price, as applicable. The holder of the Trust Certificates or any affiliate will have the right to match any bid for the Mortgage Loans solicited by the Indenture Trustee or its agent and purchase the Mortgage Loans.

Section 5.03. Collection of Indebtedness and Suits for Enforcement by Indenture Trustee.

(a) If an Event of Default shall have occurred and is continuing and if an acceleration has been declared and not rescinded pursuant to Section 5.02 hereof, the Indenture Trustee, subject to the provisions of Section 10.14 hereof, shall at the written direction of the Noteholders representing more than a 66 2/3% Percentage Interest in all Classes of the Notes in the aggregate, or in the absence of such direction, at the written direction and expense of Controlling Holders, subject to Sections 5.04 and 5.05 hereof, proceed to protect and enforce its rights and the rights of the Noteholders by such appropriate Proceedings and to protect and enforce any such rights, whether for the specific enforcement of any covenant or agreement in this Indenture or in aid of the exercise of any power granted herein, or to enforce any other proper remedy or legal or equitable right vested in the Indenture Trustee by this Indenture or by law.

(b) In case there shall be pending, relative to the Issuer or any other obligor upon any Notes or any Person having or claiming an ownership interest in the Trust Estate, Proceedings under Title 11 of the United States Code or any other applicable federal or state bankruptcy, insolvency or other similar law, or in case a receiver, assignee or trustee in bankruptcy or reorganization, liquidator, sequestrator or similar official shall have been appointed for or taken possession of the Issuer or its property or such other obligor or Person, or in case of any other comparable judicial Proceedings relative to the Issuer or other obligor upon any Notes, or to the creditors or property of the Issuer or such other obligor, the Indenture Trustee, as directed in writing by Holders of a majority Percentage Interest in the Notes in the aggregate (other than with

respect to enforcement of its own rights, for which no such direction shall be necessary), irrespective of whether the principal of any Notes shall then be due and payable as therein expressed or by declaration or otherwise and irrespective of whether the Indenture Trustee shall have made any demand pursuant to the provisions of this Section 5.03, shall be entitled and empowered, by intervention in such Proceedings or otherwise:

(i) to file and prove a claim or claims for the whole amount of principal and interest owing and unpaid in respect of the Notes and to file such other papers or documents as may be necessary or advisable in order to have the claims of the Indenture Trustee (including any claim for reasonable compensation to the Indenture Trustee and each predecessor Indenture Trustee, and their respective agents, attorneys and counsel, and for reimbursement of all expenses and liabilities incurred, and all advances made, by the Indenture Trustee and each predecessor or Indenture Trustee, except as a result of gross negligence, willful misconduct or bad faith) and of the Noteholders allowed in such Proceedings;

(ii) unless prohibited by applicable law and regulations, to vote on behalf of the Holders of the Notes in any election of a trustee, a standby trustee or Person performing similar functions in any such Proceedings;

(iii) to collect and receive any monies or other property payable or deliverable on any such claims and to distribute all amounts received with respect to the claims of the Noteholders and of the Indenture Trustee on their behalf, and

(iv) to file such proofs of claim and other papers or documents as may be necessary or advisable in order to have the claims of the Indenture Trustee or the Holders of the Notes allowed in any judicial proceedings relative to the Issuer, its creditors and its property;

and any trustee, receiver, liquidator, custodian or other similar official in any such Proceeding is hereby authorized by each of the Noteholders to make payments to the Paying Agent on behalf of the Indenture Trustee, and, in the event that the Indenture Trustee shall consent to the making of payments directly to the Noteholders, to pay to the Paying Agent on behalf of the Indenture Trustee such amounts as shall be sufficient to cover reasonable compensation to the Owner Trustee, the Indenture Trustee, the REMIC Administrator, the Paying Agent, the Registrar, each predecessor Owner Trustee, each predecessor Indenture Trustee, each predecessor REMIC Administrator, each predecessor Paying Agent, each predecessor Registrar and their respective agents, attorneys and counsel, and all other expenses and liabilities incurred by the Owner Trustee, the Indenture Trustee, the REMIC Administrator, the Paying Agent, the Registrar, each predecessor Owner Trustee, each predecessor Indenture Trustee, each predecessor Paying Agent, and each predecessor Registrar, except as a result of gross negligence, bad faith or willful misconduct on the part of the Indenture Trustee, the REMIC Administrator, the Paying Agent, the Registrar, each predecessor Indenture Trustee, each predecessor REMIC Administrator, each predecessor Paying Agent, and each predecessor Registrar.

(c) Nothing herein contained shall be deemed to authorize the Indenture Trustee to authorize or consent to or vote for or accept or adopt on behalf of any Noteholder any plan of

reorganization, arrangement, adjustment or composition affecting the Notes or the rights of any Holder thereof or to authorize the Indenture Trustee to vote in respect of the claim of any Noteholder in any such proceeding except, as aforesaid, to vote for the election of a trustee in bankruptcy or similar Person.

(d) All rights of action and of asserting claims under this Indenture, or under any of the Notes, may be enforced by the Indenture Trustee without the possession of any of the Notes or the production thereof in any trial or other Proceedings relative thereto, and any such action or proceedings instituted by the Indenture Trustee shall be brought in its own name as trustee of an express trust, and any recovery of judgment, subject to the payment of the expenses, disbursements and compensation of the Indenture Trustee, the REMIC Administrator, the Paying Agent, the Registrar, each predecessor Indenture Trustee, each predecessor Paying Agent, and each predecessor Registrar and their respective agents and attorneys, shall be for the ratable benefit of the Holders of the Notes, subject to Section 5.05 hereof.

(e) In any Proceedings brought by the Indenture Trustee (and also any Proceedings involving the interpretation of any provision of this Indenture to which the Indenture Trustee shall be a party), the Indenture Trustee shall be held to represent all the Holders of the Notes, and it shall not be necessary to make any Noteholder a party to any such Proceedings.

Section 5.04. Remedies; Priorities. (a) If an Event of Default shall have occurred and be continuing and if an acceleration has been declared and not rescinded pursuant to Section 5.02 hereof, the Indenture Trustee, subject to the provisions of Section 10.14 hereof at the written direction of the Controlling Holder, shall, do one or more of the following (subject to Section 5.05 hereof):

(i) institute Proceedings in its own name and as trustee of an express trust for the collection of all amounts then payable on the Notes or under this Indenture with respect thereto, whether by declaration or otherwise, enforce any judgment obtained, and collect from the Issuer and any other obligor upon the Notes monies adjudged due;

(ii) institute Proceedings from time to time for the complete or partial foreclosure of this Indenture with respect to the Trust Estate;

(iii) exercise any remedies of a secured party under the UCC and take any other appropriate action to protect and enforce the rights and remedies of the Indenture Trustee and the Holders of the Notes;

(iv) subject to Section 5.14 hereof, sell the Trust Estate or any portion thereof or rights or interest therein, at one or more public or private sales called and conducted in any manner permitted by law; and

(v) notify the Servicer of the Event of Default in accordance with Section 5.02 of the Servicing Agreement and exercise any of its rights and remedies under the Servicing Agreement in accordance with written direction of the Controlling Holder.

provided, however, that neither the Indenture Trustee nor the Issuer may sell or otherwise liquidate all of the Trust Estate following an Event of Default, unless the Indenture Trustee or the Issuer, as

applicable, obtains the consent of the Noteholders of 100% Percentage Interest of the Notes unless the proceeds of such sale are equal to the Optional Termination Price or the Optional Redemption Price, as applicable. The holders of the Trust Certificate or any Affiliate shall have the right to match any bid for each Mortgage Asset solicited by the Indenture Trustee (or its agent) to purchase such Mortgage Asset. Any sale of the Mortgage Assets, as described above, shall be carried out only in accordance with a “qualified liquidation” of REMIC I and REMIC II as defined under Section 860F of the Code.

(b) If the Paying Agent collects any money or property pursuant to this Article V, it shall pay out the money or property *first*, to itself, the Registrar, the Indenture Trustee, the REMIC Administrator, the Owner Trustee, the Servicer and the Custodian any amount due (including any fees or expenses incurred in connection with a sale under Section 5.14 hereof) and not previously paid pursuant to this Indenture, the Trust Agreement and the other agreements (without regard to the Annual Cap) and *second*, in the order of priority set forth in Section 3.03 hereof.

The Paying Agent may fix a record date and Payment Date, as applicable, for any payment to Noteholders pursuant to this Section 5.04. At least fifteen (15) days before such record date, the Paying Agent shall send to each Noteholder a notice that states the applicable record date, the applicable Payment Date and the amount to be paid.

Section 5.05. Limitation of Suits. No Holder of any Note shall have any right to institute any Proceeding, judicial or otherwise, with respect to this Indenture or the Notes, or for the appointment of a receiver or trustee, or for any other remedy hereunder, unless and subject to the provisions of Section 10.14 hereof:

(i) such Holder has previously given written notice to the Indenture Trustee of a continuing Event of Default;

(ii) the Controlling Holders have made a written request to the Indenture Trustee to institute such Proceeding in respect of such Event of Default in its own name as Indenture Trustee hereunder;

(iii) such Holder or Holders have offered to the Indenture Trustee indemnity satisfactory to it against the costs, expenses and liabilities to be incurred in complying with such request;

(iv) the Indenture Trustee, for sixty (60) days after its receipt of such notice request and offer of indemnity, has failed to institute such Proceedings; and

(v) no direction inconsistent with such written request has been given to the Indenture Trustee during such sixty (60) day period by the Noteholders representing more than 50% Percentage Interest of the Offered Notes in the aggregate.

It is understood and intended that no one or more Holders of Notes shall have any right in any manner whatever by virtue of, or by availing itself of, any provision of this Indenture to affect, disturb or prejudice the rights of any other Holders of Notes or to obtain or to seek to obtain priority or preference over any other Holders or to enforce any right under this Indenture, except in the manner herein provided.

Section 5.06. Unconditional Rights of Noteholders to Receive Principal and Interest. Notwithstanding any other provisions in this Indenture, the Holder of any Note shall have the right, which is absolute and unconditional, to receive payment of the principal of and interest, if any, on such Note on or after the respective due dates thereof expressed in such Note or in this Indenture and to institute suit for the enforcement of any such payment, and such right shall not be impaired without the consent of such Holder.

Section 5.07. Restoration of Rights and Remedies. If the Indenture Trustee or any Noteholder has instituted any Proceeding to enforce any right or remedy under this Indenture and such Proceeding has been discontinued or abandoned for any reason or has been determined adversely to the Indenture Trustee or to such Noteholder, then and in every such case the Issuer, the Indenture Trustee and the Noteholders shall, subject to any determination in such Proceeding, be restored severally and respectively to their former positions hereunder, and thereafter all rights and remedies of the Indenture Trustee and the Noteholders shall continue as though no such Proceeding had been instituted.

Section 5.08. Rights and Remedies Cumulative. No right or remedy herein conferred upon or reserved to the Indenture Trustee or to the Noteholders is intended to be exclusive of any other right or remedy, and every right and remedy shall, to the extent permitted by law, be cumulative and in addition to every other right and remedy given hereunder or now or hereafter existing at law or in equity or otherwise. The assertion or employment of any right or remedy hereunder, or otherwise, shall not prevent the concurrent assertion or employment of any other appropriate right or remedy.

Section 5.09. Delay or Omission Not a Waiver. No delay or omission of the Indenture Trustee or any Holder of any Note to exercise any right or remedy accruing upon any Event of Default shall impair any such right or remedy or constitute a waiver of any such Event of Default or an acquiescence therein. Every right and remedy given by this Article V or by law to the Indenture Trustee or to the Noteholders may be exercised from time to time, and as often as may be deemed expedient, by the Indenture Trustee or by the Noteholders, as the case may be.

Section 5.10. Control By Noteholders. The Controlling Holder shall have the right to direct the time, method and place of conducting any Proceeding for any remedy available to the Indenture Trustee with respect to the Notes under this Article V or exercising any trust or power conferred on the Indenture Trustee under this Article V; provided, that:

- (i) such direction shall not be in conflict with any rule of law or with this Indenture;
- (ii) any direction to the Indenture Trustee to sell or liquidate the Trust Estate shall be subject to the express terms of Sections 5.04(a) and 5.14 hereof;
- (iii) the Indenture Trustee may take any other action deemed proper by the Indenture Trustee that is not inconsistent with such direction of the Controlling Holder; and
- (iv) such direction shall not apply to any defense, remedy, redress or claim the Indenture Trustee may have or may pursue or defend related to the Indenture Trustee's

rights, indemnities, immunities, performance, compensation or reimbursement for expenses, disbursements or advances.

Notwithstanding the rights of Noteholders set forth in this Section 5.10 the Indenture Trustee shall not be required to take any action that it determines might involve it in liability.

Section 5.11. Waiver of Past Defaults; Successor Servicer. The Indenture Trustee, at the written direction of the Noteholders holding more than a 66 2/3% Percentage Interest in all Classes of the Notes in the aggregate, shall waive any default by the Servicer in the performance of its obligations under the Servicing Agreement and its consequences. Upon any such waiver of a past default, such default will cease to exist, and any servicer event of default arising therefrom will be deemed to have been remedied for every purpose of the Servicing Agreement. No such waiver will extend to any subsequent or other default or impair any right consequent thereon except to the extent expressly so waived. Upon any such waiver, any Event of Default arising therefrom shall be deemed to have been cured and not to have occurred for every purpose of this Indenture; but no such waiver shall extend to any subsequent or other Event of Default or impair any right consequent thereto. The Indenture Trustee shall appoint a successor servicer pursuant to the terms of the Servicing Agreement, which shall succeed to all rights and assume all of the responsibilities, duties and liabilities of the Servicer under the Servicing Agreement simultaneously with the termination of the Servicer's responsibilities, duties and liabilities under the Servicing Agreement and in accordance with its terms.

Section 5.12. Undertaking for Costs. All parties to this Indenture agree, and each Holder of any Note and each Beneficial Owner of any interest therein by such Holder's or Beneficial Owner's acceptance thereof shall be deemed to have agreed, that any court may in its discretion require, in any suit for the enforcement of any right or remedy under this Indenture, or in any suit against the Indenture Trustee for any action taken, suffered or omitted by it as Indenture Trustee, the filing by any party litigant in such suit of an undertaking to pay the costs of such suit, and that such court may in its discretion assess reasonable costs, including reasonable attorneys' fees, against any party litigant in such suit, having due regard to the merits and good faith of the claims or defenses made by such party litigant; but the provisions of this Section 5.12 shall not apply to (a) any suit instituted by the Indenture Trustee, (b) any suit instituted by any Noteholder, or group of Noteholders, in each case holding more than a 10% Percentage Interest in the Notes in the aggregate, or (c) any suit instituted by any Noteholder for the enforcement of the payment of principal of or interest on any Note on or after the respective due dates expressed in such Note and in this Indenture.

Section 5.13. Waiver of Stay or Extension Laws. The Issuer covenants (to the extent that it may lawfully do so) that it will not at any time insist upon, or plead or in any manner whatsoever, claim or take the benefit or advantage of, any stay or extension law wherever enacted, now or at any time hereafter in force, that may affect the covenants or the performance of this Indenture; and the Issuer (to the extent that it may lawfully do so) hereby expressly waives all benefit or advantage of any such law, and covenants that it shall not hinder, delay or impede the execution of any power herein granted to the Indenture Trustee, but will suffer and permit the execution of every such power as though no such law had been enacted.

Section 5.14. Sale of Trust Estate.

(a) The power to effect any sale or other disposition (a “Sale”) of any portion of the Trust Estate pursuant to Section 5.04 hereof is expressly subject to the provisions of Sections 5.05 and 5.10(ii) hereof and this Section 5.14. The power to effect any such Sale shall not be exhausted by any one or more Sales as to any portion of the Trust Estate remaining unsold, but shall continue unimpaired until the entire Trust Estate shall have been sold or otherwise disposed of or all amounts payable on the Notes and under this Indenture shall have been paid. In effecting such Sale, the Indenture Trustee shall be entitled to hire an agent to conduct such Sale on its behalf, and any costs or expenses of such agent shall be paid in accordance with Section 5.04 hereof and shall not count towards or be limited by the Annual Cap. The Indenture Trustee (or its agent) shall publish a notice in a newspaper published in the English language, customarily published on each Business Day and of general circulation in The City of New York, stating that the Indenture Trustee (or its agent) intends to effect such a Sale in a commercially reasonable manner and on commercially reasonable terms, which shall include the solicitation of competitive bids from at least three (3) of the largest dealers in whole mortgage loans (determined by the Indenture Trustee (or its agent) in its sole discretion). Following such publication, the Indenture Trustee (or its agent) shall, unless otherwise prohibited by applicable law from any such action, sell the Collateral or any part thereof, in such manner and on such terms as provided above to the highest bidder. Five (5) Business Days prior to any such Sale, the Indenture Trustee shall notify the Depositor in writing of the sales price therefor and the Depositor, or one or more Affiliates designated by the Depositor, will have the right to match such price (and may use the Note Amount of any Notes held by the Depositor as credit for any bid it may make) by notifying the Indenture Trustee in writing at least two (2) Business Days prior to the scheduled date of such sale. The Indenture Trustee (or its agent) may from time to time postpone any public Sale by public announcement made at the time and place of such Sale. All costs incurred by the Indenture Trustee (or its agent) in connection with any Sale shall be reimbursed to the Indenture Trustee from amounts on deposit in the Payment Account in accordance with Section 5.04 hereof.

(b) The purchase by the Indenture Trustee of all or any portion of the Trust Estate at a private Sale shall not be deemed a Sale or other disposition thereof for purposes of Section 5.04(a) hereof. The Indenture Trustee shall execute and deliver an appropriate instrument of conveyance, prepared by and at the written direction of the Issuer and satisfactory to the Indenture Trustee, transferring its interest in any portion of the Trust Estate in connection with a Sale thereof. In addition, the Indenture Trustee is hereby irrevocably appointed the agent and attorney-in-fact of the Issuer to transfer and convey its interest in any portion of the Trust Estate in connection with a Sale thereof, and to take all action necessary to effect such Sale.

Section 5.15. Action on Notes.

(a) The Indenture Trustee’s right to seek and recover judgment on the Notes or under this Indenture shall not be affected by the seeking, obtaining or application of any other relief under or with respect to this Indenture. Neither the lien of this Indenture nor any rights or remedies of the Indenture Trustee or the Noteholders shall be impaired by the recovery of any judgment by the Indenture Trustee against the Issuer or by the levy of any execution under such judgment upon any portion of the Trust Estate or upon any of the assets of the Issuer. Any money or property collected by the Indenture Trustee or the Paying Agent shall be applied by the Paying Agent in accordance with Section 5.04(b) hereof.

(b) Notwithstanding anything to the contrary in this Indenture or the other Transaction Documents, other than with respect to sales of Eligible NPLs pursuant to the terms of the Servicing Agreement, no sale or other disposition of all or any part of the assets comprising the Trust Estate shall be made unless an Opinion of Counsel is first delivered to the Indenture Trustee, the REMIC Administrator, the Depositor and the Owner Trustee to the effect that no Adverse REMIC Event will arise as a result of such sale or other disposition.

Section 5.16. Optional Preservation of Trust Estate. If the Notes have been declared to be due and payable under Section 5.02 hereof following an Event of Default and such declaration and its consequences have not been rescinded and annulled, the Indenture Trustee may, and at the written direction of the Controlling Holder, shall elect to maintain possession of the Trust Estate (subject to the terms of this Indenture, including Article VIII). It is the intent of the parties hereto and the Noteholders that there be at all times sufficient funds for the payment of principal of and interest on the Notes (although the parties hereto understand that there exists the possibility of a shortfall in collections on the Mortgage Assets), and the Indenture Trustee shall take such intent into account when determining whether or not to maintain possession of the Trust Estate. In determining whether to maintain possession of the Trust Estate, the Indenture Trustee may, but need not, obtain and rely upon an opinion of an Independent investment banking or accounting firm of national reputation as to the feasibility of such proposed action and as to the sufficiency of the Trust Estate for such purpose.

ARTICLE VI

THE INDENTURE TRUSTEE AND THE PAYING AGENT

Section 6.01. Duties of Indenture Trustee and the Paying Agent.

(a) If an Event of Default of which a Responsible Officer of the Indenture Trustee has actual knowledge or has received written notice has occurred and is continuing, except for actions undertaken, or inaction, by the Indenture Trustee at the written direction of the Noteholders where directions of the Noteholders are permitted, the Indenture Trustee shall exercise the rights and powers vested in it by this Indenture and use the same degree of care and skill in their exercise as a prudent person would exercise or use under the circumstances in the conduct of such person's own affairs; provided, however, that the application of the prudent person standard shall not require the Indenture Trustee to perform the duties or obligations of another Person under this Indenture or any Transaction Document.

(b) Each of the Indenture Trustee (except during the continuance of an Event of Default of which the Indenture Trustee has actual knowledge or has received written notice) and the Paying Agent (at all times):

(i) undertakes to perform such duties and only such duties as are specifically assigned to it in this Indenture and the other Transaction Documents to which it is a party and no implied covenants or obligations (including fiduciary duties) shall be read into this Indenture and the other Transaction Documents against it; and

(ii) in the absence of bad faith on its part, may conclusively rely, as to the truth of the statements and the correctness of the calculations or opinions expressed therein, upon certificates, reports, documents, Issuer Requests or other instruments or opinions furnished to such party and conforming to the requirements of this Indenture or the other Transaction Documents; however, it shall examine the certificates, reports, documents, Issuer Requests or other instruments and opinions to determine whether or not they conform on their face to the requirements of this Indenture (it being understood that neither the Indenture Trustee nor the Paying Agent need confirm, recalculate, and/or investigate the accuracy of mathematical or numerical statements).

(c) Neither the Indenture Trustee nor the Paying Agent shall:

(i) have any liability, except for its own grossly negligent action, its own grossly negligent failure to act or its own willful misconduct, except that paragraph does not limit the effect of paragraph (b) of this Section 6.01;

(ii) be liable for any error of judgment made in good faith by a Responsible Officer of such party unless it is proved that the Indenture Trustee or the Paying Agent, as applicable was grossly negligent in ascertaining the pertinent facts; and

(iii) be liable with respect to any action it takes, suffers or omits to take in good faith in accordance with direction received by it from Noteholders representing the requisite Percentage Interest set forth in this Indenture (or if no such Percentage Interest is specified, Noteholders representing a majority Percentage Interest of the Notes in the aggregate), or from the Issuer or from any other party entitled to provide direction pursuant to the Transaction Documents.

(d) Neither the Indenture Trustee nor the Paying Agent shall be liable for interest on any money received by it except as the Indenture Trustee or the Paying Agent may agree in writing with the Issuer.

(e) Money held by the Indenture Trustee or the Paying Agent need not be segregated from other trust funds except to the extent required by law or the terms of this Indenture.

(f) No provision of this Indenture shall require the Indenture Trustee or the Paying Agent to expend or risk its own funds or otherwise incur financial liability in the performance of any of its duties hereunder or in the exercise of any of its rights or powers, if it shall have reasonable grounds to believe that repayment of such funds or indemnity satisfactory to it against such risk or liability is not reasonably assured to it, and none of the provisions contained in this Indenture shall in any event require the Indenture Trustee or the Paying Agent to perform, or be responsible for the manner of performance of, any of the obligations of the Issuer or the Sponsor under this Indenture except during such time, if any, as the Indenture Trustee or the Paying Agent, as applicable, shall be the successor to, and be vested with the rights, duties, powers and privileges of, the Issuer or the Sponsor in accordance with the terms of this Indenture.

(g) Every provision of this Indenture or any Transaction Document relating to the conduct or affecting the liability of or affording protection to the Indenture Trustee and the Paying Agent shall be subject to the provisions of this Section 6.01 and Section 6.02.

(h) Neither the Indenture Trustee nor the Paying Agent shall be personally liable for (x) special, consequential or punitive damages, however styled, including lost profits, (y) the acts or omissions of any clearing agency or securities depository through which it holds any securities or assets in each case in accordance with the terms of this Indenture or (z) delays, failures or losses due to forces beyond the control of the Indenture Trustee or Paying Agent, including, without limitation, strikes, work stoppages, lockouts, accidents, severe weather, floods, riots, civil or military disturbances or hostilities, acts of war or terrorism, insurrection, revolution, epidemics or pandemics, nuclear or natural catastrophes or acts of God and interruptions, Federal Reserve Bank wire service, any present or future law or regulation or any act of any governmental authority, loss or malfunctions of utilities, communications or computer (software and hardware) services provided to the Indenture Trustee or Paying Agent, as applicable; provided, that the Indenture Trustee uses reasonable efforts consistent with accepted practices in the banking industry to resume performance as soon as practicable under the circumstances.

(i) Neither the Indenture Trustee nor the Paying Agent shall have any responsibility or liability for or with respect to (i) the legality, validity or enforceability of any collateral document or any Mortgage Loan, (ii) the preparation, filing or accuracy of any financing statement or continuation statement, or (iii) the perfection or priority of any interest of the Indenture Trustee in the Trust Estate, or the monitoring or maintenance of any such perfection or priority.

(j) Neither the Indenture Trustee nor the Paying Agent shall have any responsibility or liability for or with respect to (i) the acquisition or maintenance of any insurance or (ii) the payment or discharge of any tax, assessment, or other governmental charge or any lien or encumbrance of any kind owing with respect to, assessed or levied against, any part of the Collateral.

(k) Any permissive or discretionary right of the Indenture Trustee or the Paying Agent under this Indenture shall not be construed as a duty of the Indenture Trustee or the Paying Agent, as applicable, and neither the Indenture Trustee nor the Paying Agent shall be answerable for other than its own negligence or willful misconduct in the performance or omission of such act as finally determined in a non-appealable decision by a court of competent jurisdiction in the State of New York.

(l) Neither the Indenture Trustee nor the Paying Agent shall be under any obligation to take any action in the performance of its respective duties hereunder that would be in violation of applicable law.

(m) The Indenture Trustee is hereby authorized and directed to execute and deliver the Transaction Documents to which it is a party.

(n) In the event that a Responsible Officer of the Indenture Trustee receives written notice from a Noteholder or any other party to a Transaction Document alleging (i) that a defective or missing Mortgage Loan Document prevents or Materially Delays realization against the related Mortgaged Property through foreclosure or similar loss mitigation activity or (ii) a breach of any representation or warranty set forth in Section 4(a) of Warranty Agreement that materially and adversely affects the interests of the Noteholders in such Mortgage Loan, the Indenture Trustee shall give written notice to the Sponsor and the 17g-5 Information Provider (which shall provide notice of the same to the Rating Agencies in accordance with Section 7.05 herein) of such claim.

(o) Neither the Indenture Trustee nor the Paying Agent shall have any duty to see to any recording, filing, or depositing of this Indenture or any agreement referred to herein or any financing statement or continuation statement evidencing a security interest, or to see to the maintenance of any such recording or filing or depositing or to any rerecording, refiling or redepositing of any thereof.

Section 6.02. Rights of Indenture Trustee and Paying Agent. (a) Each of the Indenture Trustee and the Paying Agent may rely on and shall be protected in acting or refraining to act upon any Issuer Request, resolution, Officers' Certificate, opinion of counsel, certificate of auditors or any other certificate, statement, instrument, opinion, report (including the Monthly Report and the Payment Report), notice, request, consent, order, appraisal, bond or other paper or any document believed by it to be genuine and to have been signed or presented by the proper person. Neither the Indenture Trustee nor the Paying Agent has any obligations to investigate any fact or matter stated in any such document and may conclusively rely as to the truth of the statements and the correctness of the calculations and opinions expressed therein.

(b) Before the Indenture Trustee or the Paying Agent acts or refrains from acting, it may require an Officer's Certificate or an Opinion of Counsel from the Issuer. Neither the Indenture Trustee nor the Paying Agent shall be liable for any action it takes or omits to take in good faith in reliance on and in accordance with an Officer's Certificate or Opinion of Counsel. Any Opinion of Counsel requested by the Indenture Trustee or the Paying Agent shall be an expense of the Person requesting the Indenture Trustee or the Paying Agent to act or refrain from acting or otherwise may be an expense of the Issuer.

(c) Neither the Indenture Trustee nor the Paying Agent shall be personally liable for any action it takes or omits to take in good faith which it believes to be authorized or within its rights or powers under this Indenture.

(d) Each of the Indenture Trustee and the Paying Agent may consult with counsel of its selection, and the written advice or Opinion of Counsel with respect to legal matters relating to this Indenture, the other Transaction Documents and the Notes shall be full and complete authorization and protection from liability in respect to any action taken, omitted or suffered by it hereunder in good faith and in accordance with the written advice or Opinion of Counsel.

(e) Each of the Indenture Trustee and the Paying Agent may, at the expense of the Issuer, execute any of the trusts or powers hereunder or perform any duties or obligations hereunder, either directly or by or through agents, attorneys, custodians or nominees and neither the Indenture Trustee nor the Paying Agent shall be responsible for any misconduct or negligence on the part of any such agent, attorney, custodian or nominee appointed with due care.

(f) Each of the Indenture Trustee and the Paying Agent may consult with accountants and financial advisors of its choice with respect to matters relating to this Indenture, the other Transaction Documents and the Notes and shall be fully protected from liability in respect to any action taken, omitted or suffered by it hereunder in good faith, in the absence of its gross negligence or willful misconduct, and in accordance with the written advice of such accountants or financial advisors.

(g) The Indenture Trustee and the Paying Agent shall not be deemed to have notice or knowledge of any default, Event of Default or any other fact or circumstance (including, but not limited to a servicer event of default or a repurchase request) unless a Responsible Officer of the Indenture Trustee or the Paying Agent has actual knowledge thereof or written notice of any such event that is in fact a Default or Event of Default is received by the Indenture Trustee at its Corporate Trust Office and such notice references the Notes generally, the Issuer, or this Indenture and specifies the relevant event, facts and circumstances. For purposes of any determination as to whether the Indenture Trustee and the Paying Agent shall be deemed to have knowledge of any of the foregoing events, the Indenture Trustee and the Paying Agent shall have no obligation to inquire into, or investigate as to, the occurrence of any such event. In the absence of receipt of such notice or actual knowledge, the Indenture Trustee and the Paying Agent may assume there is no Default or Event of Default.

(h) The Indenture Trustee, the Paying Agent or their Affiliates are permitted to receive additional compensation that could be deemed to be in the Indenture Trustee's or the Paying Agent's economic self-interest for (i) serving as investment adviser, administrator, shareholder servicing agent, custodian or sub-custodian with respect to certain investments of amounts in Eligible Accounts, (ii) using Affiliates to effect transactions in certain investments of amounts in Eligible Accounts and (iii) effecting transactions in certain investments of amounts in Eligible Accounts. Such compensation shall not be considered an amount that is reimbursable or payable to the Indenture Trustee or the Paying Agent (i) as part of the compensation.

(i) The Indenture Trustee and the Paying Agent shall not be required to take any action under this Indenture or any related document if taking such action (i) would subject the Indenture Trustee and the Paying Agent to tax in any jurisdiction where it is not then subject to tax or (ii) would require the Indenture Trustee to qualify to do business in any jurisdiction where it is not then so qualified; provided that, if in the reasonable opinion of the Indenture Trustee and the Paying Agent (which may be based on the advice or opinion of counsel) any action under this Indenture results in the consequences described in clauses (i) or (ii) above, the Indenture Trustee may or, if instructed to do so by the Administrator, shall appoint an additional trustee to proceed with such action.

(j) The Indenture Trustee and the Paying Agent shall be fully justified in failing or refusing to take any action under this Indenture or any other Transaction Document, unless it has been offered reasonable security or indemnity reasonably satisfactory to it against the costs, expenses and liabilities incurred thereby, if such action (i) would, in the reasonable opinion of the Indenture Trustee and the Paying Agent (which may be based on the advice or opinion of counsel), be contrary to applicable law, this Indenture or any other related document, (ii) is not provided for in this Indenture or any other Transaction Document or (iii) subject the Indenture Trustee and the Paying Agent to personal liability.

(k) Except for those actions that the Indenture Trustee or the Paying Agent is expressly required to take hereunder without written direction, neither the Indenture Trustee nor the Paying Agent shall have any obligation or liability to take any action or to refrain from taking any action hereunder that requires written direction in the absence of such written direction as provided hereunder.

(l) Neither the Indenture Trustee nor the Paying Agent shall be under any obligation to (i) exercise any of the trusts or powers vested in it by this Indenture, other than its obligation to give notices pursuant to this Indenture, (ii) institute, conduct, defend or otherwise participate in any litigation or other legal proceeding hereunder or in relation hereto at the request, order or direction of any of the Noteholders pursuant to the provisions of this Indenture, (iii) undertake an investigation of any party to any Transaction Document, unless, in each case under (i), (ii) and (iii) such Noteholders or the Sponsor shall have offered to the Indenture Trustee or the Paying Agent reasonable security or indemnity reasonably satisfactory to the Indenture Trustee or the Paying Agent, as applicable, against the costs, expenses and liabilities which may be incurred therein or thereby, or (iv) monitor or supervise the Servicer. Nothing contained herein shall, however, relieve the Indenture Trustee of the obligation, upon the occurrence of an Event of Default of which a Responsible Officer of the Indenture Trustee has actual knowledge (which has not been cured or waived), to exercise such of the rights and powers vested in it by this Indenture and to use the same degree of care and skill in their exercise as a prudent person would exercise under the circumstances in the conduct of his own affairs.

(m) Neither the Indenture Trustee nor the Paying Agent shall be bound to make any investigation into (i) the facts or matters stated in any resolution, certificate, statement, instrument, opinion, report, notice, request, consent, order, approval, bond or other paper or document, or (ii) the performance by any party to any Transaction Document of its obligations or the exercise of its rights, unless, in each case, requested in writing to do so by Holders of Notes representing not less than a 25% Percentage Interest in the Notes (other than the Class XS Notes), and provided that the payment within a reasonable time to the Indenture Trustee or the Paying Agent, as applicable, of the costs, expenses or liabilities likely to be incurred by it in the making of such investigation is, in the opinion of the Indenture Trustee or the Paying Agent, reasonably assured to the Indenture Trustee or the Paying Agent by the security afforded to it by the terms of this Indenture. The Indenture Trustee or the Paying Agent may require reasonable indemnity reasonably satisfactory to the Indenture Trustee or the Paying Agent against such expense or liability as a condition to taking any such action. The reasonable expense of every such examination shall be paid by the Noteholders requesting the investigation.

(n) Should the Indenture Trustee or the Paying Agent deem the nature of any action required on its part to be unclear, the Indenture Trustee or the Paying Agent may require prior to such action that it be provided by the Issuer or Holders of Notes representing not less than a 51% Percentage Interest in the Notes in the aggregate, with reasonable further instructions, upon which instructions the Indenture Trustee or the Paying Agent may conclusively rely.

(o) None of the Indenture Trustee, the Paying Agent or the Issuer shall be responsible for the acts or omissions of the other or any other party to any Transaction Document, it being understood that this Indenture shall not be construed to render them partners, joint venturers or agents of one another.

(p) Neither the Indenture Trustee nor the Paying Agent shall be required to give any bond or surety with respect to the execution of the trust created hereby or the powers granted hereunder.

(q) Neither the Indenture Trustee nor the Paying Agent shall have any duty to conduct any affirmative investigation as to the occurrence of any condition requiring the payment of the Repurchase Price for purposes of this Indenture.

(r) Other than with respect to any information that the Indenture Trustee or the Paying Agent has an express duty hereunder to review, neither the Paying Agent nor the Indenture Trustee, as applicable, shall be deemed to have knowledge of any fact or matter for purposes of this Indenture unless a Responsible Officer of the Paying Agent or the Indenture Trustee, respectively, (i) has actual knowledge thereof or (ii) receives written notice with respect thereto.

(s) Neither the Indenture Trustee nor the Paying Agent shall have any duty (A) to see to any insurance, (B) to see to the payment or discharge of any tax, assessment, or other governmental charge or any lien or encumbrance of any kind owing with respect to, assessed or levied against, any part of the Trust Estate other than as expressly provided herein, or (C) to confirm or verify the contents of any reports or certificates of the Servicer delivered to the Indenture Trustee or the Paying Agent pursuant to this Indenture believed by the Indenture Trustee or the Paying Agent, as applicable, to be genuine and to have been signed or presented by the proper party or parties.

(t) In the event that BNY is also acting in the capacity of Paying Agent, REMIC Administrator, Registrar, Trust Registrar, 17g-5 Information Provider or Securities Intermediary hereunder or under any Transaction Document, the rights, protections, immunities and indemnities afforded to the Indenture Trustee or Paying Agent pursuant to this Article VI shall also be afforded to BNY acting in such capacities hereunder and thereunder as if set forth *mutatis mutandis*.

(u) To help the government fight the funding of terrorism and money laundering activities, the Applicable Anti-Money Laundering Law requires all financial institutions to obtain, verify and record information that identifies each person who opens an account. Accordingly, in order to comply with Applicable Anti-Money Laundering Law, the Indenture Trustee and the Paying Agent is required to obtain from the Issuer on or before closing and from time to time thereafter documentation to verify and record information that identifies each person who opens an account. For a non-individual person such as a business entity, a charity, a trust or other legal entity, the Indenture Trustee and Paying Agent will ask for documentation to verify its formation and existence as a legal entity, financial statements, licenses, tax identification documents, and identification and authorization documents from individuals claiming authority to represent the entity and other relevant documentation and information (including beneficial owners of such entities). The Indenture Trustee and Paying Agent may, to the fullest extent permitted by Applicable Law, including Applicable Anti-Money Laundering Law, conclusively rely on, and shall be fully protected and indemnified in relying on, any information received, and failure to provide such information may result in an inability of the Indenture Trustee and Paying Agent to perform its obligations hereunder which, at the sole option of the Indenture Trustee or Paying Agent, may result in the resignation of the Indenture Trustee or Paying Agent, as applicable, pursuant to the terms of this Indenture.

(v) The Indenture Trustee and the Paying Agent may accept and reasonably rely on all accounting, records and work of any duly authorized Person without audit, and the Indenture Trustee and the Paying Agent shall have no liability for the acts or omissions of any such Person.

If any error, inaccuracy or omission (collectively “Errors”) exist in any information received, and such Errors should cause or materially contribute to the Indenture Trustee making or continuing any Error (collectively, “Continued Errors”), the Indenture Trustee shall have no liability for such Continued Errors.

(w) If at any time the Indenture Trustee and the Paying Agent is served with any arbitral, judicial or administrative order, judgment, award, decree, writ or other form of arbitral, judicial or administrative process which in any way affects this Indenture, the Notes, the Collateral or any part thereof or funds held by it (including, but not limited to, orders of attachment or garnishment or other forms of levies or injunctions), it shall be authorized to comply therewith in any reasonable manner as it or its legal counsel deems appropriate.

(x) Neither the Indenture Trustee nor the Paying Agent shall be liable for any error of judgment made in good faith by a Responsible Officer or other officers of the Indenture Trustee or the Paying Agent, as applicable, unless it shall be conclusively determined by the final judgment of a court of competent jurisdiction in the State of New York, no longer subject to appeal or review, that the Indenture Trustee or the Paying Agent, as applicable, was negligent in ascertaining the pertinent facts.

(y) Neither the Indenture Trustee nor the Paying Agent shall be liable with respect to any action taken, suffered or omitted to be taken by it in good faith in accordance with this Indenture or at the direction of the Issuer, the Sponsor or the requisite number of Holders, as the case may be, relating to the time, method and place of conducting any proceeding for any remedy available to the Indenture Trustee or the Paying Agent, as applicable, or exercising or omitting to exercise any trust or power conferred upon the Indenture Trustee or the Paying Agent, as applicable, under this Indenture.

(z) Anything in this Indenture to the contrary notwithstanding, neither the Indenture Trustee nor the Paying Agent shall be liable for special, indirect, incidental, exemplary, punitive or consequential loss, expense or damage of any kind whatsoever (including but not limited to lost profits), whether or not any such losses, expenses or damages were foreseeable or contemplated, even if the Indenture Trustee or the Paying Agent, as applicable, has been advised of the likelihood of such loss, expense or damage and regardless of the form of action.

(aa) In no case shall the Indenture Trustee or the Paying Agent have any obligations with respect to for any errors or omissions related to financial information or disbursements brought to its attention ninety days or more after the Holders’ receipt of the same. In such instance the Indenture Trustee’s or the Paying Agent’s, as applicable, only responsibility shall be to act at the direction and expense of the requisite percentage of Holders entitled to direct the Indenture Trustee or the Paying Agent, as applicable.

(bb) The rights, privileges, protections, exculpations, immunities, indemnities and benefits provided to the Indenture Trustee hereunder (including but not limited to its right to be indemnified) are extended to, and shall be enforceable by, the Indenture Trustee in each of its capacities hereunder (including but not limited to as the Paying Agent, the Registrar and the REMIC Administrator) and to each of its Responsible Officers and other Persons duly employed by the Indenture Trustee in any of its capacities hereunder as if they were each expressly set forth

herein for the benefit of the Indenture Trustee in each such capacity, Responsible Officers or employees *mutatis mutandis*.

(cc) The Indenture Trustee shall have the right to accept and act upon instructions, including funds transfer instructions (“Instructions”) given pursuant to this Indenture and the other Transaction Documents and delivered using Electronic Means; provided, however, that the Issuer and any other Person entitled to give Instructions to the Indenture Trustee or the Paying Agent (“Authorized Instructors”; each an “Authorized Instructor”), as applicable, shall provide to the Indenture Trustee an incumbency certificate listing officers with the authority to provide such Instructions (“Instructing Officers”) and containing specimen signatures of such Instructing Officers, which incumbency certificate shall be amended by the Issuer or the Authorized Instructor, as applicable, whenever a person is to be added or deleted from the listing. If the Issuer or the Authorized Instructor, as applicable, elects to give the Indenture Trustee Instructions using Electronic Means and the Indenture Trustee in its discretion elects to act upon such Instructions, the Indenture Trustee’s understanding of such Instructions shall be deemed controlling. The Issuer and the Authorized Instructor understand and agree that the Indenture Trustee cannot determine the identity of the actual sender of such Instructions and that the Indenture Trustee shall conclusively presume that directions that purport to have been sent by an Instructing Officer listed on the incumbency certificate provided to the Indenture Trustee have been sent by such Instructing Officer. The Issuer and the Authorized Instructor shall be responsible for ensuring that only Instructing Officers transmit such Instructions to the Indenture Trustee and that the Issuer, the Authorized Instructor and all Instructing Officers are solely responsible to safeguard the use and confidentiality of applicable user and authorization codes, passwords and/or authentication keys upon receipt by the Issuer and/or the Authorized Instructor, as applicable. The Indenture Trustee shall not be liable for any losses, costs or expenses arising directly or indirectly from the Indenture Trustee’s reliance upon and compliance with such Instructions notwithstanding such directions conflict or are inconsistent with a subsequent written instruction. The Issuer and the Authorized Instructor agree: (i) to assume all risks arising out of the use of Electronic Means to submit Instructions to the Indenture Trustee, including without limitation the risk of the Indenture Trustee acting on unauthorized Instructions, and the risk of interception and misuse by third parties; (ii) that it is fully informed of the protections and risks associated with the various methods of transmitting Instructions to the Indenture Trustee and that there may be more secure methods of transmitting Instructions than the method(s) selected by the Issuer and/or the Authorized Instructor, as applicable; (iii) that the security procedures (if any) to be followed in connection with its transmission of Instructions provide to it a commercially reasonable degree of protection in light of its particular needs and circumstances; and (iv) to notify the Indenture Trustee immediately upon learning of any compromise or unauthorized use of the security procedures.

(dd) Individual Rights of Indenture Trustee and Paying Agent.

The Indenture Trustee or the Paying Agent in its individual or any other capacity may become the owner or pledgee of Notes and may otherwise deal with the Issuer or its Affiliates with the same rights it would have if it were not Indenture Trustee or Paying Agent, as applicable. Any Registrar, co-registrar or co-paying agent may do the same with like rights. However, the Indenture Trustee must comply with Section 6.11 hereof.

Section 6.03. Indenture Trustee’s and Paying Agent’s Disclaimer.

Neither the Indenture Trustee nor the Paying Agent shall be responsible for and neither makes any representation as to the validity, sufficiency or adequacy of this Indenture, the Collateral, the Notes or any other Transaction Document, neither party shall be accountable for the Issuer's use of the proceeds from the Notes, and neither party shall be responsible for any statement of the Issuer (including any recitals) in this Indenture or in any document issued in connection with the sale of the Notes or in the Notes other than the Registrar's responsibility with respect to its certificate of authentication.

Section 6.04. Notice of Event of Default. Subject to Section 5.01 hereof, the Indenture Trustee shall promptly mail to the 17g-5 Information Provider (which shall provide notice of the same to the Rating Agencies in accordance with Section 7.05 herein) and each Noteholder notice of an Event of Default after a Responsible Officer of the Indenture Trustee has actual knowledge thereof or written notice of such Event of Default is received by a Responsible Officer of the Indenture Trustee and such notice references the Notes, the Trust Estate or this Indenture, unless such Event of Default shall have been waived or cured. Except in the case of an Event of Default in payment of principal of or interest on any Note, the Indenture Trustee may withhold the notice if and so long as it determines in good faith that withholding the notice is in the best interests of the Noteholders.

Section 6.05. Reports to Holders and Tax Administration.

The Paying Agent shall prepare or cause to be prepared, and file or cause to be filed with the Internal Revenue Service and deliver or cause to be delivered to each Noteholder such information and reports as may be required by the Code, Treasury Regulations and any applicable state or local income or franchise tax law and such other customary information as it or the Paying Agent may determine and/or be required by the Internal Revenue Service or by a U.S. federal or state income or franchise tax law or rules or regulations to enable such holder to prepare its federal and state income or franchise tax returns; provided, that any such information needed not in the possession of the Paying Agent or otherwise readily available to the Paying Agent, shall be provided to the Paying Agent by the Depositor (to the extent reasonably available to the Depositor) upon request therefor by the Paying Agent. In addition, if the Depositor is aware of any transaction among the holders of any Class of Offered Notes or either REMIC residual interest with the holder of any other Class of Offered Notes or REMIC residual interest that could impact the issue price, for tax purposes, of the REMIC regular interest represented by the Offered Note, the Depositor shall inform the Paying Agent and the Paying Agent shall take such information into account in preparing (or causing to be prepared) the affected tax returns and reports.

Section 6.06. Indemnification and Compensation. The Indenture Trustee, Paying Agent, REMIC Administrator, and Registrar shall be entitled to the Indenture Trustee and Paying Agent Fee and REMIC Administrator Fee. In addition, subject to the Annual Cap, each of the Paying Agent, the Registrar, the REMIC Administrator, and the Indenture Trustee, each in its individual capacity and in its capacity as Paying Agent, the Registrar, the REMIC Administrator, and Indenture Trustee, respectively, and each of its representative directors, officers, employees and agents, shall be indemnified and held harmless by the Issuer, and entitled to recover from the Payment Account pursuant to this Indenture, all reasonable out-of-pocket losses, liabilities, damages, costs or expenses (including, without limitation, any legal fees and expenses and including any legal fees and expenses incurred in connection with enforcement of indemnification

rights hereunder), incurred or expended by it or them in connection with (i) investigating, preparing for, defending itself or themselves against or prosecuting for itself or themselves or for the sake of the Trust Estate any legal proceeding, whether pending or threatened, that is related directly or indirectly in any way to the Trust Estate, the Transaction Documents, other assets of the Trust Estate, or the Notes (including without limitation the initial offering, any secondary trading and any transfer and exchange of the Notes), (ii) the acceptance or administration of the trusts created hereunder or under any other Transaction Document, (iii) pursuing enforcement (including by means of any action, claim or suit brought by the Paying Agent, the Registrar, the REMIC Administrator, or Indenture Trustee for such purpose) of any indemnification or other obligation of the Issuer (the indemnification afforded under this clause (iii) to include, without limitation, any reasonable legal fees, costs and expenses incurred by the Paying Agent, the Registrar, the REMIC Administrator, and Indenture Trustee in connection therewith) and (iv) the performance of its or their duties and responsibilities, and the exercise or lack of exercise of any or all of its or their powers, rights or privileges hereunder or under any other Transaction Document, including without limitation (A) complying with any new or updated law or regulation in any way related to or affecting the transactions contemplated under any Transaction Document or any party to any Transaction Document, and (B) addressing any bankruptcy in any way related to or affecting the transactions contemplated under any Transaction Document or any party to any Transaction Document, including with respect to this clause (B), as applicable, all costs incurred in connection with the use of default specialists within or outside BNY (in the case of BNY personnel, such costs to be calculated using standard market rates), except, in the case of each of the foregoing, any such claim, loss, liability, damage, cost or expense as may arise from its own gross negligence, bad faith or willful misconduct (as agreed to by such party or as otherwise determined by a court of competent jurisdiction) or the payment of which is expressly made the responsibility of the Noteholders herein. Such compensation and reimbursement obligation shall not be limited by any provision of law in regard to the compensation of a trustee of an express trust.

The Issuer's payment obligations to the Indenture Trustee, the Paying Agent, the REMIC Administrator, and the Registrar pursuant to this Section 6.06 shall survive the discharge or assignment of this Indenture and the termination or resignation of such party, as applicable. When the Indenture Trustee, the Paying Agent, the REMIC Administrator, or the Registrar incurs expenses after the occurrence of clause (iv) or (v) of the definition of "Event of Default" with respect to the Issuer, the expenses are intended to constitute expenses of administration under Title 11 of the United States Code or any similar provision of any other applicable federal or state bankruptcy, insolvency or similar law.

The rights and indemnity afforded to the Indenture Trustee, the Registrar, the REMIC Administrator, and the Paying Agent under this Section 6.06 apply, *mutatis mutandis*, to the Securities Intermediary, subject to the Annual Cap.

With respect to any third party claim: (i) the Indenture Trustee and the Paying Agent, as applicable, shall give the Issuer and the Noteholders written notice thereof promptly after the Indenture Trustee or the Paying Agent, as applicable has knowledge thereof and (ii) the Indenture Trustee and the Paying Agent, as applicable will be required to cooperate and consult fully with the Issuer in preparing such defense, but the Indenture Trustee or the Paying Agent, as applicable, shall be entitled to its own counsel at the expense of the Issuer.

Section 6.07. Replacement of Indenture Trustee, REMIC Administrator, or Paying Agent. The Indenture Trustee, Registrar, REMIC Administrator, and the Paying Agent may each resign at any time by providing thirty (30) days advance written notice to the Issuer. No resignation or removal of the Indenture Trustee, Registrar, REMIC Administrator, or the Paying Agent and no appointment of a successor indenture trustee, registrar, REMIC Administrator, or paying agent shall become effective until the acceptance of appointment by the successor indenture trustee, registrar, REMIC Administrator, or paying agent, as the case may be, pursuant to this Section 6.08 and payment of all outstanding fees, expenses and indemnities of the Indenture Trustee, Registrar, REMIC Administrator, or the Paying Agent. Any resignation or removal of the Paying Agent hereunder shall automatically result in the removal of the Registrar hereunder, and vice versa, without the need for delivery of any notice thereof. Holders of a majority Percentage Interest in the Notes in the aggregate may remove the Indenture Trustee or the Paying Agent by providing thirty (30) days advance written notice thereto and may appoint a successor indenture trustee or paying agent, as the case may be. The Issuer shall remove the Indenture Trustee or the Paying Agent if:

- (i) the Indenture Trustee or the Paying Agent fails to comply with or qualify pursuant to the provisions of Section 6.10 hereof;
- (ii) the Indenture Trustee or Paying Agent is adjudged a bankrupt or insolvent;
- (iii) a receiver or other public officer takes charge of the Indenture Trustee, the Paying Agent or their respective property; or
- (iv) the Indenture Trustee or Paying Agent otherwise becomes incapable of acting.

If the Indenture Trustee, REMIC Administrator or the Paying Agent resigns or is removed or if a vacancy exists in the office of the Indenture Trustee, REMIC Administrator or the Paying Agent for any reason (the Indenture Trustee, REMIC Administrator, or Paying Agent in such event being referred to herein as the retiring Indenture Trustee, REMIC Administrator or retiring Paying Agent), the Issuer shall promptly appoint a successor indenture trustee, REMIC administrator or paying agent, as the case may be.

Each successor indenture trustee, successor REMIC administrator or successor paying agent shall deliver a written acceptance of its appointment to the retiring Indenture Trustee or retiring Paying Agent, as the case may be, and the other parties to this Indenture and the 17g-5 Information Provider (which shall provide notice of the same to the Rating Agencies in accordance with Section 7.05 herein). Thereupon, the resignation or removal of the retiring Indenture Trustee, retiring REMIC administrator or retiring Paying Agent, as applicable, shall become effective, and the successor indenture trustee, successor REMIC Administrator or successor paying agent shall have all the rights, powers and duties of the Indenture Trustee, REMIC Administrator or Paying Agent, as the case may be, under this Indenture. The successor indenture trustee, successor REMIC Administrator or successor paying agent shall mail a notice of its succession to Noteholders and the 17g-5 Information Provider (which shall provide notice of the same to the Rating Agencies in accordance with Section 7.05 herein). Upon payment of all outstanding fees, expenses and indemnities, the retiring Indenture Trustee, retiring REMIC Administrator or retiring Paying Agent

shall promptly transfer all property held by it as Indenture Trustee, REMIC Administrator or Paying Agent to the successor indenture trustee or successor paying agent, as applicable.

If a successor Paying Agent, successor REMIC administrator or successor Indenture Trustee does not take office within sixty (60) days after the Paying Agent, REMIC Administrator or Indenture Trustee is removed, the Issuer or the Controlling Holders may petition any court of competent jurisdiction for the appointment of a successor Paying Agent, successor REMIC Administrator, or successor Indenture Trustee. The costs and expenses in connection with such petition will be the sole responsibility of the Issuer.

If the Issuer, after reasonable effort, is unable to appoint a successor Paying Agent, REMIC administrator, or successor Indenture Trustee within sixty (60) days after notice of resignation is given by the Paying Agent, REMIC Administrator or Indenture Trustee, as applicable, any of the resigning Paying Agent, resigning REMIC Administrator or the resigning Indenture Trustee, the Depositor or the Noteholders representing a majority Percentage Interest in the aggregate may petition any court of competent jurisdiction for appointment of a successor Paying Agent, REMIC Administrator or successor Indenture Trustee. The costs and expenses in connection with such petition will be the sole responsibility of the Issuer.

Notwithstanding the replacement of the Indenture Trustee, REMIC Administrator or the Paying Agent pursuant to this Section 6.07, the Issuer's obligations under Section 6.06 hereof shall continue for the benefit of the retiring Indenture Trustee (including in its capacity as Registrar), REMIC Administrator or retiring Paying Agent, as the case may be.

Section 6.08. Successor Indenture Trustee or Paying Agent by Merger. If the Indenture Trustee, Registrar, REMIC Administrator, or the Paying Agent consolidates with, merges or converts into, or transfers all or substantially all of its corporate trust business or assets to, another corporation or banking association, the resulting, surviving or transferee corporation, without any further act, shall be the successor indenture trustee, successor paying agent, successor registrar, or successor REMIC Administrator, as the case may be; provided, that such corporation or banking association shall be otherwise qualified and eligible under Section 6.10 hereof, if applicable. The resulting Indenture Trustee, Registrar, REMIC Administrator, or the Paying Agent shall provide the Issuer, the Indenture Trustee or Paying Agent, the Registrar, the 17g-5 Information Provider (which shall provide notice of the same to the Rating Agencies in accordance with Section 7.05 herein) and the Noteholders with prompt written notice after such merger, conversion or transfer.

Section 6.09. Appointment of Co-Indenture Trustee or Separate Indenture Trustee. (a) Notwithstanding any other provisions of this Indenture, at any time, for the purpose of meeting any legal requirement of any jurisdiction in which any part of the Trust Estate may at the time be located, the Indenture Trustee shall have the power and may execute and deliver all instruments to appoint one or more Persons to act as a co-trustee or co-trustees, or separate trustee or separate trustees, of all or any part of the Trust Estate, and to vest in such Person or Persons, in such capacity and for the benefit of the Noteholders, such title to the Trust Estate, or any part hereof, and, subject to the other provisions of this Section 6.09, such powers, duties, obligations, rights and trusts as the Indenture Trustee may consider necessary or desirable. No co-trustee or separate trustee hereunder shall be required to meet the terms of eligibility as a successor trustee under Section 6.11 hereof.

(b) Every separate trustee and co-trustee shall, to the extent permitted by law, be appointed and act subject to the following provisions and conditions:

(i) all rights, powers, duties and obligations conferred or imposed upon the Indenture Trustee shall be conferred or imposed upon and exercised or performed by the Indenture Trustee and such separate trustee or co-trustee jointly (it being understood that such separate trustee or co-trustee is not authorized to act separately without the Indenture Trustee joining in such act), except to the extent that under any law of any jurisdiction in which any particular act or acts are to be performed the Indenture Trustee shall be incompetent or unqualified to perform such act or acts, in which event such rights, powers, duties and obligations (including the holding of title to the Trust Estate or any portion thereof in any such jurisdiction) shall be exercised and performed singly by such separate trustee or co-trustee, but solely at the direction of the Indenture Trustee;

(ii) no separate trustee or co-trustee hereunder shall be personally liable by reason of any act or omission of any other trustee hereunder; and

(iii) the Indenture Trustee may at any time accept the resignation of or remove any separate trustee or co-trustee.

(c) Any notice, request or other writing given to the Indenture Trustee shall be deemed to have been given to each of the then separate trustees and co-trustees, as effectively as if given to each of them. Every instrument appointing any separate trustee or co-trustee shall refer to this Indenture and the conditions of this Article VI. Each separate trustee and co-trustee, upon its acceptance of the trusts conferred, shall be vested with the estates or property specified in its instrument of appointment, either jointly with the Indenture Trustee or separately, as may be provided therein, subject to all the provisions of this Indenture, specifically including every provision of this Indenture relating to the conduct of, affecting the liability of, or affording protection to, the Indenture Trustee. Every such instrument shall be filed with the Indenture Trustee.

(d) Any separate trustee or co-trustee may at any time constitute the Indenture Trustee, its agent or attorney-in-fact with full power and authority, to the extent not prohibited by law, to do any lawful act under or in respect of this Indenture on its behalf and in its name. If any separate trustee or co-trustee shall die, become incapable of acting, resign or be removed, all of its estates, properties, rights, remedies and trusts shall vest in and be exercised by the Indenture Trustee, to the extent permitted by law, without the appointment of a new or successor trustee.

Section 6.10. Eligibility; Disqualification. Each of the Indenture Trustee and the Paying Agent hereunder shall (i) be a national banking association or a bank (within the meaning of Section 2(a)(5) of the 1940 Act) organized and doing business under the laws of the United States or any State thereof, authorized under such laws to exercise corporate trust powers, having aggregate capital, surplus and undivided profits of at least \$50,000,000, and subject to supervision or examination by federal or state authority and (ii) have a long-term credit rating of at least “BBB” from each Rating Agency then rating the Notes. If such bank publishes reports of condition at least annually, pursuant to law or to the requirements of said supervising or examining authority, then for the purposes of this Section 6.10, the combined capital, surplus and undivided profits of such

bank shall be deemed to be its combined capital, surplus and undivided profits as set forth in its most recent report of condition so published.

Section 6.11. Representations and Warranties. Each of the Indenture Trustee and the Paying Agent hereby represents that:

(i) It is duly organized and validly existing as a banking organization under the Banking Law of the State of New York with power and authority to own its properties and to conduct its business as such properties are currently owned and such business is presently conducted;

(ii) It has the power and authority to execute and deliver this Indenture and to carry out its terms; and the execution, delivery and performance of this Indenture have been duly authorized by it by all necessary corporate action;

(iii) The consummation of the transactions contemplated by this Indenture and the fulfillment of the terms hereof do not conflict with, result in any breach of any of the terms and provisions of, or constitute (with or without notice or lapse of time) a default under, its articles of association or bylaws or any agreement or other instrument to which it is a party or by which it is bound; and

(iv) To its knowledge, there are no proceedings or investigations pending or threatened before any court, regulatory body, administrative agency or other governmental instrumentality having jurisdiction over it or its properties: (A) asserting the invalidity of this Indenture, (B) seeking to prevent the consummation of any of the transactions contemplated by this Indenture or (C) seeking any determination or ruling that might materially and adversely affect the performance by it of its obligations under, or the validity or enforceability of, this Indenture.

Section 6.12. Directions to Indenture Trustee, the Paying Agent and the Registrar.

(a) The Indenture Trustee is hereby directed to:

(i) execute and deliver each Transaction Document to which it is a party and take all actions as shall be required to be taken by the Indenture Trustee pursuant to the terms of this Indenture and the other Transaction Documents to which it is a party, or as it may be directed by the Issuer or Noteholder, as applicable hereunder or thereunder;

(ii) accept the pledge of the Mortgage Assets (and exercise any rights attendant thereto as it may be directed) and the other Collateral and hold the Trust Estate for the Noteholders; and

(iii) in connection with any sale or repurchase of a Mortgage Loan, cooperate with the Issuer, the Servicer and the Sponsor in releasing the lien of this Indenture by executing any necessary documents as directed by the Issuer, Noteholders, or the Servicer, as the case may be;

(b) The Paying Agent is hereby directed to:

(i) take all actions as shall be required to be taken by the Paying Agent pursuant to the terms of this Indenture and the other Transaction Documents; and

(ii) in connection with any sale or repurchase of a Mortgage Loan, cooperate with the Issuer, the Servicer, Noteholder, and the Sponsor in releasing the lien of this Indenture by executing any necessary documents as directed by the Issuer, Noteholders, or the Servicer, as the case may be.

(c) The Registrar is hereby directed to:

(i) authenticate and deliver the Notes substantially in the forms prescribed by Exhibit A-1A through Exhibit A-8C to this Indenture in accordance with the terms of this Indenture;

(ii) take all actions as shall be required to be taken by the Registrar pursuant to the terms of this Indenture and the other Transaction Documents; and

(iii) in connection with any sale or repurchase of a Mortgage Loan, cooperate with the Issuer, the Servicer and the Sponsor in releasing the lien of this Indenture by executing any necessary documents as directed by the Issuer or the Servicer, as the case may be.

ARTICLE VII

NOTEHOLDERS' LISTS AND REPORTS

Section 7.01. Registrar To Furnish Issuer, Indenture Trustee and Paying Agent Names and Addresses of Noteholders. Upon the written request of the Issuer, Indenture Trustee or Paying Agent, the Registrar shall furnish or cause to be furnished within three (3) Business Days after receipt by the Registrar of any such request, a list, in such form as the Issuer, the Indenture Trustee or the Paying Agent may reasonably require, of the names and addresses of the then current Holders of Notes, and, if requested, as of a date not more than ten (10) days prior to the time such list is furnished upon which the Indenture Trustee shall be entitled to fully rely with no obligations to verify, confirm or otherwise review and with no liability therefor.

Section 7.02. Preservation of Information; Communications to Noteholders. (a) The Indenture Trustee shall preserve, in as current a form as is reasonably practicable, the names and addresses of the Holders of Notes contained in the most recent list furnished to the Indenture Trustee as provided in Section 7.01 hereof. The Indenture Trustee may destroy any list furnished to it as provided in such Section 7.01 upon receipt of a new list so furnished upon which the Indenture Trustee shall be entitled to fully rely with no obligations to verify, confirm or otherwise review and with no liability therefor.

(b) Noteholders, at their own expense and subject to such reasonable procedures as the Indenture Trustee, the Paying Agent or the Registrar may require, may communicate with other Noteholders with respect to their rights under this Indenture or under the Notes.

Section 7.03. Financial Information. For so long as any Note bearing a restrictive legend remains Outstanding and is a “restricted security” within the meaning of Rule 144(a)(3) under the Securities Act, the Issuer shall, during any period in which it is not subject to Section 13 or 15(d) of the Exchange Act and is exempt from reporting pursuant to Rule 12g3-2(b) under such Act, cause the Paying Agent to make available to any Holder of any such Note in connection with any sale thereof and to any prospective purchaser of any such Note from such Holder, in each case upon request, the information specified in, and meeting the requirements of, Rule 144A(d)(4) under the Securities Act.

Unless the Issuer otherwise determines, the fiscal year of the Issuer shall end on December 31 of each year.

Section 7.04. Statements to Noteholders, the Rating Agencies and Others. (a) With respect to each Payment Date and based solely on information provided to it by the Servicer, the Paying Agent shall prepare and make available via the Paying Agent’s Website, initially located at <https://gctinvestorreporting.bnymellon.com> (the “Paying Agent’s Website”), to each Noteholder, the Issuer, the 17g-5 Information Provider (which shall provide notice of the same to the Rating Agencies in accordance with Section 7.05 herein within five (5) Business Days of the Issuer’s receipt of such monthly statement), the Indenture Trustee and the Sponsor a statement setting forth the following information as to the Notes, to the extent applicable:

- (i) Available Funds, the Additional Servicing Fee Amounts and the Servicing Fee;
- (ii) the Net WAC Rate;
- (iii) the Current Interest for each Class of WAC Cap Notes and the Class XS Notes;
- (iv) the Interest Carryforward Amount for each Class of WAC Cap Notes, if any;
- (v) the Net WAC Shortfall for each Class of WAC Cap Notes, if any;
- (vi) the Note Amount or Notional Amount for each Class of Notes and the Certificate Balance of the Class FR Certificates prior to such Payment Date and after payments on such Payment Date;
- (vii) [reserved];
- (viii) the amount, if any, by which the Note Amount of a Class of Notes or the Certificate Balance of the Class FR Certificates has been increased by the payment of Subsequent Recoveries or Write-up Amounts;
- (ix) the amount of Servicing Advances made and reimbursed during the related Collection Period and the amount of Servicing Advances, if any, outstanding as of the last day of the related Collection Period;

(x) information regarding delinquencies, foreclosures and bankruptcies during the related Collection Period and since the Cut-Off Date, using the MBA Method, by number of Mortgage Loans and Principal Balance;

(xi) the aggregate Principal Balance of the Mortgage Loans and the aggregate Principal Balances for the Mortgage Loans as of the last day of the related Collection Period;

(xii) the Asset Sale Proceeds resulting from the sale of one or more Eligible NPLs deposited into the Payment Account;

(xiii) the number and aggregate Principal Balance of Eligible NPLs sold in accordance with the provisions of the Servicing Agreement and the Indenture during the related Collection Period;

(xiv) aggregate Realized Losses with respect to the related Payment Date and cumulative Realized Losses since the Closing Date;

(xv) the number and aggregate Principal Balance of Mortgage Loans repurchased during the related Collection Period by the Sponsor;

(xvi) with respect to each Mortgage Loan that was subject to a modification during the related Collection Period: (i) the Mortgage Loan identifying number; (ii) the Principal Balance thereof prior to and after modification; (iii) the monthly payment prior to and after modification; (iv) the Mortgage Interest Rate prior to and after modification; and (v) the maturity date prior to and after modification;

(xvii) the amount of any Subsequent Recoveries on the Mortgage Loans;

(xviii) the amount of Draws funded by the Servicer during the related Collection Period, the amount of Net Draws funded by the Servicer during the related Collection Period and the amount of principal collections on the Mortgage Loans used by the Servicer to reimburse itself for draws during the related Collection Period;

(xix) (i) the amount on deposit in the Reserve Account as of such Payment Date, (ii) the amount withdrawn from the Reserve Account, if any, during the related Collection Period and remitted to the Servicer as reimbursement for Net Draws and (iii) the amount deposited into the Reserve Account on behalf of the Holder of the Class FR Certificate during such Collection Period;

(xx) the amounts and types of Extraordinary Trust Expenses paid from the Trust Estate during the related Collection Period;

(xxi) the amount remaining in the Reserve Account and the Reserve Account Required Amount after giving effect to all withdrawals from the Reserve Account on such Payment Date;

(xxii) the amount, if any, remitted to the WAC Cap Notes, the Class XS Notes or the Class FR Certificates from the Reserve Account on such Payment Date;

(xxiii) the net and gross Single Month Mortality Rate; and

(xxiv) the net and gross Conditional Prepayment Rate.

The Paying Agent may conclusively rely upon the information provided by the Servicer to the Paying Agent in accordance with the Servicing Agreement in its preparation of monthly statements to Noteholders.

(b) The Paying Agent will make the monthly statements, information and reports provided for in this Section 7.04 (and, at its option, any additional files containing the same information in an alternative format) available each month via the Paying Agent's Website to Noteholders that provide appropriate certification in the form furnished by the Paying Agent (which form may be furnished and submitted electronically via the Paying Agent's Website), to any designee of the Issuer, and to the Issuer, the Sponsor and the 17g-5 Information Provider (which shall provide such information to the Rating Agencies in accordance with Section 7.05 herein). Parties that are unable to use the above distribution method for monthly statements are entitled to a paper copy and may request the same by calling the customer service desk and requesting a copy. Paper copies will be sent to such Noteholder by first class mail. The Paying Agent shall have the right to change the manner in which the monthly statement is distributed in order to make such distribution more convenient and/or more accessible for the Noteholders, and the Paying Agent shall provide timely and adequate notification to each Noteholder regarding any such changes. As a condition to access the Paying Agent's Website, the Paying Agent may require registration and the acceptance of a disclaimer. The Paying Agent shall not be liable for the content or accuracy of any information provided by third parties and contained in the monthly statement or any notice, statement or information provided by third parties and furnished by the Paying Agent to Noteholders. In addition, the Paying Agent shall make the monthly statements provided for in this Section 7.04 available to Intex Solutions, Inc. in electronic or such other format and media mutually agreed upon by the Paying Agent and Intex Solutions, Inc. The Paying Agent shall be entitled to recover from the Payment Account any fees payable to Intex Solutions, Inc. pursuant to clause *first* of Section 3.03(a) of this Indenture. The Issuer may provide written authorization to the Paying Agent to make available the monthly statements provided for in this Section 7.04 to other market data providers. The Paying Agent may require any such recipient to deliver to it a written certification in form and substance reasonably acceptable to the Paying Agent.

(c) The Paying Agent shall be entitled to conclusively rely upon, but shall not be responsible for the content or accuracy of, any information provided by third parties for purposes of preparing the monthly statement or any notice, statement or information provided to the Paying Agent in connection with U.S. credit risk retention rules. The Paying Agent shall not be deemed to have obtained actual knowledge of any information by virtue of the receipt and posting of any notice, statement or information to the Paying Agent's Website, and may affix thereto any disclaimer it deems appropriate in its reasonable discretion (without suggesting liability on the part of any other party hereto or the Sponsor).

(d) The Paying Agent shall also make available on the Paying Agent's Website to each Noteholder, the Issuer, the Depositor and each Initial Purchaser, as well as to Intex Solutions, Inc. any risk retention notice, statement or information of the Sponsor, but only to the extent such notice or information is delivered to the Paying Agent by the Sponsor via electronic mail, specifically with a subject reference of "FIGRE Trust 2025-HE5 Risk Retention Notice." Any notice, statement or information provided to the Paying Agent by the Sponsor pursuant to this Section 7.04 shall be posted to the Paying Agent's Website within three (3) Business Days of receipt, or in any event as promptly as possible. The Paying Agent shall be entitled to conclusively rely upon, but shall have no duty or obligation to verify, confirm or otherwise be responsible for the content or accuracy of any notice, statement or information provided to the Paying Agent in connection with U.S. Risk Retention Rules.

(e) On the Initial Payment Date, the Paying Agent, based solely on information provided to it by the Sponsor, will make available, together with the monthly statement to Noteholders described in Section 7.04(a), a statement prepared by the Sponsor and furnished to the Indenture Trustee and the Paying Agent in accordance with Section 7.04(d) above, to the extent the interest in the Notes and Certificates retained by the Sponsor as of the Closing Date for the purpose of complying with U.S. Risk Retention Rules is materially different from the amount that the Sponsor intends to acquire and retain as described the Final Private Placement Memorandum, the actual interest in the Notes and Certificates retained by the Sponsor for the purpose of complying with U.S. Risk Retention Rules as of the Closing Date.

(f) For purposes of reporting with respect to the Notes and Trust Certificates or the eligible vertical interest retained by the Sponsor in order to comply with the U.S. Risk Retention Rules, unless the Paying Agent has received such statement from the Sponsor no later than three (3) Business Days prior to the Initial Payment Date a statement prepared by the Sponsor stating that the eligible vertical interest retained by the Sponsor as of the Closing Date is materially different from the amount that the Sponsor intends to acquire and retain, as described in the Final Private Placement Memorandum, the Paying Agent shall be entitled to assume (without further inquiry) compliance by the Sponsor with such covenant.

Section 7.05. Rule 17g-5 Compliance.

(a) The Issuer shall comply with its obligations under Rule 17g-5 promulgated under the Exchange Act, by the 17g-5 Information Provider posting on the 17g-5 Website, no later than the time such information is provided to the Rating Agencies, the Rating Agency Information and any other information provided to a Rating Agency for the purposes of determining the initial credit rating of the notes or undertaking credit rating surveillance of the Notes.

(b) The information described in Section 7.05(a) shall be made available by the 17g-5 Information Provider on its Rule 17g-5 Website. Such information shall be posted to the Rule 17g-5 Website on the same Business Day as it is received, provided that such information is received by 12:00 p.m. (Eastern time) or, if received after 12:00 p.m., on the next Business Day. The 17g-5 Information Provider shall have no obligation or duty to verify, confirm or otherwise determine whether the information being delivered is accurate, complete, conforms to the requirements of this Indenture, or otherwise is or is not anything other than what it purports to be. The 17g-5 Information Provider shall not be deemed to have obtained actual knowledge of any

information by virtue of the receipt and posting of such information to the Rule 17g-5 Website. Further, notwithstanding anything to the contrary herein, in the event the Issuer determines that any information previously posted to the Rule 17g-5 Website should not have been posted thereto pursuant to the terms of this Indenture, the 17g-5 Information Provider shall, at the written direction of the Issuer, remove such information from the Rule 17g-5 Website.

(c) Each of the parties hereto hereby agrees that, except as otherwise expressly permitted herein, it shall not communicate with (including verbally) or provide information to a Rating Agency without the prior consent of and consultation with the Issuer, and that any permitted communication by it to a Rating Agency shall be made by it only in the manner prescribed by the procedures established by the Sponsor to ensure compliance with Rule 17g-5 of the Securities Exchange Act of 1934, as amended, including to the extent set forth herein, providing any such communications to the 17g-5 Information Provider for posting on the Rule 17g-5 Website pursuant to this Section 7.05 prior to communicating with such Rating Agency.

(d) The 17g-5 Information Provider shall make available on the 17g-5 Information Provider's Website, solely to the Rating Agencies and to NRSROs who deliver an NRSRO Certification to the Issuer and to the 17g-5 Information Provider, any document, report, statement or other information required to be communicated or delivered to the Rating Agencies under this Indenture or any other Transaction Document and any other report or information as directed in writing by the Issuer or required to be delivered to the Rating Agencies hereunder or under any other Transaction Document.

(e) In addition, any request for Rating Agency confirmation or other Rating Agency approval made pursuant to this Indenture or any other Transaction Document shall be in writing, with a cover letter indicating the nature of the request and shall include all information the requesting party believes is reasonably necessary for the applicable Rating Agency to make its decision. All such requests shall be submitted solely through the 17g-5 Information Provider pursuant to the provisions and procedures in this Section 7.05.

(f) Any notice, report or information required to be delivered to a Rating Agency shall be submitted to the 17g-5 Information Provider via electronic mail at figre2025HE5q2u5@17g5.com, specifically with a subject reference of "FIGRE Trust 2025-HE5" and an identification of the type of information being provided in the body of such electronic mail; or any other delivery method established or approved by the 17g-5 Information Provider (and agreed to by the Issuer) if or as may be necessary or beneficial, and the 17g-5 Information Provider shall promptly upload such notice or information to the 17g-5 Information Provider's website (a link to which shall be provided on the Issuer's website or such other website as the Issuer may notify the parties hereto in writing) on the same Business Day of receipt provided that such information is received by 12:00 p.m. (Eastern time) or, if received after 12:00 p.m., on the next Business Day.

(g) In connection with providing access to the 17g-5 Information Provider's Website, the 17g-5 Information Provider may require registration and the acceptance of a disclaimer. The 17g-5 Information Provider shall have no obligation or duty to verify, confirm or otherwise determine whether the information being delivered is accurate, complete, conforms to the transaction, or otherwise is or is not anything other than what it purports to be. In the event that

any information is delivered or posted in error, the 17g-5 Information Provider may remove it from the 17g-5 Information Provider's Website. The Indenture Trustee and the 17g-5 Information Provider shall not be deemed to have obtained actual knowledge of any information only by receipt and posting to the 17g-5 Information Provider's Website to the extent (with respect to the Indenture Trustee) such information is not prepared by the Indenture Trustee in accordance with this Indenture and any other Transaction Document. Access will be provided by the 17g-5 Information Provider to the Rating Agencies, and to the NRSROs upon receipt of an NRSRO Certification (which certification may be submitted electronically via e-mail to the 17g-5 Information Provider). Questions regarding delivery of information to the 17g-5 Information Provider may be directed to the Sponsor.

(h) Upon request of the Issuer or a Rating Agency, the 17g-5 Information Provider shall post on the 17g-5 Information Provider's Website any additional information requested by the Issuer or a Rating Agency to the extent such information is delivered to the 17g-5 Information Provider electronically in accordance with this Section 7.05. In no event shall the 17g-5 Information Provider disclose on the 17g-5 Information Provider's Website which NRSRO requested such additional information. The 17g-5 Information Provider shall notify each of party hereto in writing of any change in the contact information of the 17g-5 Information Provider.

(i) The 17g-5 Information Provider shall provide a mechanism to notify the Rating Agencies or any NRSRO who has delivered a NRSRO Certification to the 17g-5 Information Provider and has selected to be so notified per the terms of the 17g-5 Information Provider's Website each time the 17g-5 Information Provider posts an additional document to the 17g-5 Information Provider's Website.

(j) The Indenture Trustee, the Registrar, the REMIC Administrator, the Paying Agent, the Administrator and the 17g-5 Information Provider, as the case may be, shall not be liable for the dissemination of information in accordance with the terms of this Indenture, make no representations or warranties as to the accuracy or completeness of such information being made available, and assume no responsibility for such information except to the extent such information is prepared by the Indenture Trustee, the Registrar, the REMIC Administrator, the Paying Agent or the Administrator pursuant to the terms of this Indenture or any other Transaction Document. The 17g-5 Information Provider shall not be liable for its failure to make any information available to the Rating Agencies or any NRSRO unless such information was delivered to the 17g-5 Information Provider at the email address set forth herein, with a subject heading of "FIGRE Trust 2025-HE5" and sufficient detail to indicate that such information is required to be posted on the 17g-5 Information Provider's Website. In the event that the Issuer determines that any information previously posted to the 17g-5 Information Provider Website should not have been posted, the Issuer shall direct the 17g-5 Information Provider in writing to remove such information and the 17g-5 Information Provider shall not be liable for the removal of such information.

(k) Notwithstanding the provisions of this 7.05, the Issuer may authorize, in its sole discretion, any of the Indenture Trustee, the Registrar, the Paying Agent, the Administrator or another Person to provide information directly to, or communicate with, the Rating Agencies and any other NRSRO (including, but not limited to, responses to inquiries from any Rating Agency or such NRSRO). Any such authorization shall be in writing (which writing may be electronic mail) by an Responsible Officer of the Issuer, and shall set forth the procedures that the Indenture

Trustee, the Registrar, the Paying Agent, the Administrator or such other Person, as applicable, shall follow if it elects (in its sole discretion) to provide information directly to the Rating Agencies and any other NRSRO, which procedures shall be reasonable and customary as is necessary to allow the Issuer to comply with Exchange Act Rule 17g-5; it being understood and agreed that the Indenture Trustee, the Registrar, the Paying Agent, the Administrator or such other Person shall be entitled to conclusively rely on, and shall be fully protected in relying on, any such authorization.

(l) The 17g-5 Information Provider (the “Indemnifying Party”), hereby expressly agrees to indemnify and hold harmless the Issuer and its respective officers, directors, shareholders, members, managers, employees, agents, Affiliates and controlling persons, and each of the Owner Trustee, the Indenture Trustee, the Registrar, the Trust Registrar, the REMIC Administrator and the Paying Agent (each, an “Indemnified Party”), from and against any and all losses, liabilities, damages, claims, judgments, costs, fees, penalties, fines, forfeitures or other expenses (including reasonable legal fees and expenses), joint or several, to which any such Indemnified Party may become subject, under the Securities Act, the Exchange Act or otherwise, insofar as such losses, liabilities, damages, claims, judgments, costs, fees, penalties, fines, forfeitures or other expenses (including reasonable legal fees and expenses) arise out of or are based upon (i) the Indemnifying Party’s breach of this Section 7.05 or (ii) a determination by a Rating Agency that it cannot reasonably rely on representations made by the Issuer or any Affiliate thereof pursuant to Exchange Act Rule 17g-5(a)(3), to the extent caused by any such breach referred to in clause (i) above by the applicable Indemnifying Party, and shall reimburse such Indemnified Party for any legal or other expenses reasonably incurred by such Indemnified Party in connection with investigating or defending any such action or claim, as such expenses are incurred.

(m) None of the Indenture Trustee, the Registrar, the Trust Registrar, the REMIC Administrator, the Paying Agent, the Administrator, the Owner Trustee or any other Person will have any liability for (i) the 17g-5 Information Provider’s failure to post information provided by them in accordance with the terms of this Indenture or any other Transaction Document, (ii) any malfunction or disabling of the 17g-5 Information Provider’s Website or (iii) such party’s failure to perform any of its obligations under this Indenture regarding providing information or communication to the Rating Agencies that are required to be performed after the 17g-5 Information Provider posts the related information or communication if the 17g-5 Information Provider fails to notify such party that it has posted such information or communication on the 17g-5 Information Provider’s Website.

(n) [Reserved].

(o) If the 17g-5 Information Provider is asked to answer any inquiry, it shall not be required to answer such inquiry if it is determined, in the 17g-5 Information Provider’s sole discretion, that (i) the inquiry is beyond the scope provided for in this Indenture, (ii) answering such inquiry would not be in the best interest of the Issuer, (iii) answering such inquiry would be in violation of applicable law or any Transaction Document, (iv) answering such inquiry would, or is reasonably expected to, result in a waiver of attorney-client privilege, or (v) answering such inquiry would materially increase the duties of, or result in significant cost and expense to the 17g-5 Information Provider. Any answers posted to the 17g-5 Information Provider’s Website will be

attributable only to the respondent and shall not be deemed to be answers from any other party, nor shall any other party have any responsibility or liability for the content of such information.

(p) The Owner Trustee shall have no duty or obligation to post, or otherwise make available, any statement or reports it receives in its capacity as Owner Trustee or on behalf of the Issuer.

Section 7.06. EU and UK Securitisation Framework Due Diligence Requirements.

(a) The Issuer (as the entity designated pursuant to Article 7(2) of each of (i) the European Union Regulation 2017/2402, as amended, supplemented or replaced, from time to time (as in force on the Closing Date) (the “EU Securitisation Regulation”) and (ii) paragraph (1)(d) of SECN 5.2.8R and (iii) paragraph (d) of Article 6(3) of Chapter 2 of the PRASR, in each case under the UK securitization framework (as in force on the Closing Date), which comprises the Securitisation Regulations 2024 (as amended, the “SR 2024”), together with (i) the securitisation sourcebook of the handbook of rules and guidance adopted by the Financial Conduct Authority (the “FCA”) of the United Kingdom (the “UK”) (the “SECN”), (ii) the Securitisation Part of the rulebook of published policy of the Prudential Regulation Authority of the Bank of England (the “PRA”) (the “PRASR”) and (iii) relevant provisions of the Financial Services and Markets Act 2000 (as amended, the “FSMA”) (collectively, the “UK Securitization Framework”) hereby undertakes to:

(i) from the Closing Date, make available a quarterly investor report in respect of the relevant period in the form of Annex 12 of the (“*Investor Report – Non-ABCP securitisation*”) of the disclosure technical standards published as of the Closing Date by the European Securities and Markets Authority, as then required by and in accordance with Article 7(1)(e) of the EU Securitisation Regulation (the “SR Investor Report”);

(ii) from the Closing Date, make available a quarterly report containing certain loan-by loan information in relation to the Mortgage Assets in respect of the relevant period in the form of Annex 2 (“*Underlying exposures – residential real estate*”) of the disclosure technical standards published as of Closing Date by the European Securities and Markets Authority, as then required by and in accordance with Article 7(1)(a) of the EU Securitisation Regulation (the “SR Data Tape”);

(iii) make available the documents as required by and in accordance with Article 7(1)(b) of the EU Securitisation Regulation, paragraph (2) of SECN 6.2.1R and Article 7(1)(b) of Chapter 2 of the PRASR prior to the pricing date of the Notes (and in final form, if applicable, no later than fifteen (15) calendar days after the Closing Date); and

(iv) make available without delay, following the occurrence of the significant event, details of any information required to be reported in accordance with Article 7(1)(g) of the EU Securitisation Regulation, paragraph (7) of SECN 6.2.1R and Article 7(1)(g) of Chapter 2 of the PRASR;

provided that (i) the Issuer will only be required to do so to the extent that the disclosure requirements under Article 7 of the EU Securitisation Regulation, paragraph (7) of SECN 6.2.1R and Article 7(1)(g) of Chapter 2 of the PRASR remain in effect and (ii) the Issuer

will not be in breach of such undertaking if the Issuer fails to so comply due to events, actions or circumstances beyond the Issuer's control.

(b) To the extent that, after the Closing Date, there is any divergence between the disclosure requirements under (a) Article 7 of the EU Securitisation Regulation and SECN 6 and Article 7 of Chapter 2 of the PRASR (each as in force on the Closing Date) and (b) the disclosure requirements under Article 7 of the EU Securitisation Regulation and SECN 6 and Article 7 of Chapter 2 of the PRASR (each as in force at such time), the Issuer shall only continue to comply with the disclosure requirements under Article 7 of the EU Securitisation Regulation and SECN 6 and Article 7 of Chapter 2 of the PRASR on a reasonable efforts basis.

(c) The reports set out in subsections (a)(i) and (ii) above will be published or made otherwise available by the Issuer on the website of the EU/UK Risk Retention Reporting Agent.

(d) The documents and information set out in subsections (a)(iii) and (iv) above will be published or made otherwise available by the Issuer on the website of the Paying Agent.

(e) In addition to the foregoing, the Issuer hereby undertakes to make available, subject and to the extent permissible under all applicable laws, to each Institutional Investor such additional information as is in the Issuer's possession or reasonably obtainable (as determined by the Issuer) by the Issuer, as may reasonably be required to enable such Institutional Investor to satisfy SECN 4 and Article 5 of Chapter 2 of the PRASR and Article 5 of the EU Securitisation Regulation (together the "Due Diligence Requirements"), provided that the Issuer will not be liable to any Institutional Investor if the information that the Issuer is required to provide in accordance with the Indenture is insufficient to enable any Institutional Investor to comply with its applicable Due Diligence Requirements under the Securitisation Rules or fails to provide such information in accordance with the format and templates required by the applicable Securitisation Rules and provided further that the Issuer will not be in breach of the requirements of this paragraph if, due to events, actions or circumstances beyond its control, it is not able to comply with such undertaking and the Issuer is only required to comply with such undertaking to the extent that the disclosure requirements under SECN 6 and Article 7 of Chapter 2 of the PRASR and Article 7 of the EU Securitisation Regulation remain in effect.

ARTICLE VIII

ACCOUNTS; DISBURSEMENTS AND RELEASES; SALES, REDEMPTIONS AND NEW ISSUANCES

Section 8.01. Collection of Money. Except as otherwise expressly provided herein, the Indenture Trustee or the Paying Agent may demand payment or delivery of, and shall receive and collect, directly and without intervention or assistance of any fiscal agent or other intermediary, all money and other property payable to or receivable by the Indenture Trustee or the Paying Agent pursuant to this Indenture. The Indenture Trustee or the Paying Agent, as applicable, shall apply all such money received by it as provided in this Indenture. Except as otherwise expressly provided in this Indenture, if any default occurs in the making of any payment or performance under any agreement or instrument that is part of the Trust Estate, the Indenture Trustee or the Paying Agent may take such action as may be appropriate to enforce such payment or performance, including the institution and prosecution of appropriate Proceedings. Any such action shall be without prejudice to any right to claim a default or Event of Default under this Indenture and any right to proceed thereafter as provided in Article V.

Section 8.02. [RESERVED]

Section 8.03. Release of Trust Estate. (a) Subject to the payment of its fees, expenses and indemnity amounts (including the fees, expenses and indemnity amounts of the Owner Trustee, the Custodian, the Paying Agent, the REMIC Administrator, the Trust Registrar and the Registrar), the Indenture Trustee may, and when required by the provisions of this Indenture shall, execute instruments to release property from the lien of this Indenture, or convey the Indenture Trustee's interest in the same, in a manner and under circumstances that are not inconsistent with the provisions of this Indenture. No party relying upon an instrument executed by the Indenture Trustee as provided in Article VIII hereunder shall be bound to ascertain the Indenture Trustee's authority, inquire into the satisfaction of any conditions precedent, or see to the application of any monies.

(b) The Indenture Trustee shall, subject to Section 4.10 hereof, at such time as (i) there are no Notes Outstanding and (ii) all sums then due and unpaid to the Indenture Trustee, the Paying Agent, the Registrar, the Custodian, the Owner Trustee, the Trust Registrar and the Servicer pursuant to this Indenture have been paid, release any remaining portion of the Trust Estate that secured the Notes from the lien of this Indenture.

(c) The Indenture Trustee shall release property from the lien of this Indenture pursuant to this Section 8.03 only upon receipt of an Issuer Request; provided however that, pursuant to Section 2.05(b)(ii) of the Servicing Agreement, the Indenture Trustee shall release the related Eligible NPLs at the written direction of the Servicer.

Section 8.04. Surrender of Notes Upon Final Payment. In connection with the distribution of final payment on any Note, (i) the related Noteholder shall not be required to surrender its Note to the Registrar prior to such Noteholder's receipt of final payment thereon, and (ii) such Note shall be deemed cancelled upon distribution of final payment thereon without further action by any party.

Section 8.05. Optional Termination.

(a) On or after the earlier of (i) the Payment Date on which the Note Amount of the Class A Notes is reduced to zero and (ii) the Payment Date on which the aggregate Principal Balance of the Mortgage Loans and any REO Properties is less than or equal to 25% of the aggregate Principal Balance of the Mortgage Loans as of the Cut-Off Date (the “Optional Termination Date”), the Depositor may, at its option, purchase all of the Mortgage Loans and any REO Properties (an “Optional Termination”) at an aggregate purchase price equal to the sum of (X) the greater of (a) the sum of (i) the aggregate Principal Balance of the Mortgage Loans that are less than ninety (90) days delinquent under the MBA Method (excluding any REO Properties), plus accrued and unpaid interest thereon, (ii) the fair market value of all Mortgage Loans that are ninety (90) or more days delinquent under the MBA Method and (iii) the fair market value of each REO Property immediately prior to the date of such purchase as determined by the Depositor in its sole good faith discretion taking into account customary factors, less any estimated liquidation expenses, and (b) the sum of (i) the aggregate Note Amount of the Notes and (ii) any accrued and unpaid interest thereon at the applicable Interest Rate for the Accrual Period related to such Optional Termination Date (including any Interest Carryforward Amounts and any Net WAC Shortfalls, in each case, for each Class of WAC Cap Notes, if any) and (Y) with respect to each of the foregoing clauses (X)(a) and (b), (i) any unpaid Servicing Advances and Net Draws and (ii) any fees, expenses, indemnification amounts and unpaid Extraordinary Trust Expenses or other reimbursements owed to the Servicer, the Indenture Trustee, the Paying Agent, the Owner Trustee, the Controlling Holder, the Loan Data Agent, the Back-Up Servicer, the Administrator, the REMIC Administrator, the Trust Registrar, the Registrar and the Custodian, without regard to the Annual Cap (the “Optional Termination Price”). Any Optional Termination will be conducted concurrently with a “qualified liquidation” (as defined under Section 860F of the Code) of each Trust REMIC.

(b) Subject to the requirements of the Transaction Documents and, if applicable, any financing arrangement, any person (including the Depositor, a Noteholder or Certificateholder) having the right to exercise the Optional Termination may sell, transfer, convey, assign or otherwise pledge such right to a third party, which right must be exercised by such third party in accordance with the Transaction Documents. Any person to whom the right to exercise the Optional Termination is assigned will be prohibited from further assigning any portion of such rights without prior notice to the Paying Agent and the prior written consent of the Depositor in its sole discretion.

(c) On any Payment Date on which the aggregate Principal Balance of the Mortgage Loans and any REO Properties is less than or equal to 10% of the aggregate Principal Balance of the Mortgage Loans as of the Cut-Off Date (the “Optional Redemption Date”), the Servicer may, at its option, purchase all of the Mortgage Loans and any REO Properties (an “Optional Redemption”) at an aggregate purchase price equal to the sum of (X) the greater of (a) the sum of (i) the aggregate Principal Balance of the Mortgage Loans that are less than ninety (90) days delinquent under the MBA Method of measuring delinquency (excluding any REO Properties), plus accrued and unpaid interest thereon, (ii) the fair market value of all Mortgage Loans that are ninety (90) or more days delinquent under the MBA Method of measuring delinquency and (iii) the fair market value of each REO Property immediately prior to the date of such purchase as determined by the Servicer in its sole good faith discretion taking into account customary factors,

less any estimated liquidation expenses, and (b) the sum of (i) the aggregate Note Amount of the Notes and (ii) any accrued and unpaid interest thereon at the applicable Interest Rate for the Accrual Period related to such Optional Redemption Date (including any Interest Carryforward Amounts and any Net WAC Shortfalls, in each case for each class of WAC Cap Notes, if any) and (Y) with respect to each of the foregoing clauses (X)(a) and (b), (i) any unpaid Servicing Advances and Net Draws and (ii) any fees, expenses, indemnification amounts and unpaid Extraordinary Trust Expenses or other reimbursements owed to the Servicer, the Indenture Trustee, the Paying Agent, the Owner Trustee, the Controlling Holder, the Loan Data Agent, the Back-Up Servicer, the Subservicer, the Administrator, the REMIC Administrator, the Trust Registrar, the Registrar and the Custodian, without regard to the Annual Cap (the “Optional Redemption Price”). Any Optional Redemption will be conducted concurrently with and only as a part of a “qualified liquidation” (as defined under Section 860F of the Code) of each Trust REMIC.

(d) In order to exercise the Optional Termination right set forth in Section 8.05(a) or the Optional Redemption right set forth in Section 8.05(c) hereof, the Depositor or the Servicer, as applicable, shall provide written notice of its exercise of such option to the Indenture Trustee, the Registrar, the 17g-5 Information Provider (which shall provide notice of the same to the Rating Agencies in accordance with Section 7.05 herein) and the Paying Agent at least five (5) days prior to its exercise. Following receipt of such notice, the Paying Agent shall provide written notice to the Noteholders of the final payment on the Notes on the Optional Termination Date or the Optional Redemption Date, as applicable. Such notice shall to the extent practicable be mailed no later than one (1) Business Day prior to the Optional Termination Date or the Optional Redemption Date, as applicable, and shall specify that payment of the principal amount and any interest due with respect to such Note shall be payable at the Optional Termination Date or the Optional Redemption Date, as applicable; provided, however, the Depositor or the Servicer, as applicable, shall have the right to rescind its notice of its election to exercise the Optional Termination right or the Optional Redemption right, as applicable, as the case may be, to the Paying Agent at any time so long as the Paying Agent has not provided such notice to the applicable Noteholders. No interest shall accrue on the Notes on or after the Optional Termination Date or the Optional Redemption Date, as applicable, the Stated Final Maturity Date or any such other final Payment Date. In addition, (x) the Depositor (or its assignee) shall, on or before the Optional Termination Date on which such redemption is to be made, deposit the Optional Termination Price with the Paying Agent, who shall deposit such amount into the Payment Account and (y) the Servicer shall, on or before the Optional Redemption Date on which such redemption is to be made, deposit the Optional Redemption Price with the Paying Agent, who shall deposit such amount into the Payment Account. On the Optional Termination Date or the Optional Redemption Date, as applicable, following receipt of the Optional Termination Price or the Optional Redemption Price, as applicable, the Paying Agent shall apply the Optional Termination Price or the Optional Redemption Price, as applicable, based solely on and consistent with instructions provided by the Administrator which shall be substantially in the form of the Monthly Report or in such other form as the Paying Agent deems acceptable, first, to make payment to the Indenture Trustee, the Paying Agent, the REMIC Administrator, the Registrar, the Trust Registrar, the Custodian, the Servicer and the Owner Trustee, all amounts owing to such parties under the Transaction Documents, and second, to make final payments of principal and interest on the Notes in accordance with Section 3.03 hereof, and this Indenture shall be discharged subject to the provisions of Section 4.10 hereof.

(e) Notwithstanding anything to the contrary set forth in this Indenture, this Section 8.05 may not be amended in any way that would be adverse to the Servicer or that would change the repayment of the Servicer's fees or expenses without the prior written consent of the Servicer.

(f) Each of REMIC I and REMIC II shall be liquidated only in a qualified liquidation in conformance with Section 9.2 of the Trust Agreement and pursuant to the provisions of this Indenture.

Section 8.06. Repurchase Price.

(a) The Sponsor hereby makes the representations and warranties to the Issuer with respect to the Mortgage Assets contained in Section 4(a) of the Warranty Agreement as of the Closing Date or such other date specified therein. To the extent there is a breach of any such representation and warranty that materially and adversely affects the value of a Mortgage Loan or the interests of the Noteholders therein, as determined by the Sponsor in its sole discretion, the Sponsor may be required to cure or repurchase such Mortgage Loan as described below. The Sponsor's obligation to cure or repurchase the Mortgage Loans which are in breach of the Sponsor's representations or warranties will only exist with respect to such breaches for which the Sponsor discovers or receives written notice.

(b) (i) If a Realized Loss occurs with respect to any Mortgage Loan, the Controlling Holder may, at its option, review such Mortgage Loan (each such reviewed Mortgage Loan, an "Optional Review Loan") to determine whether there has been a breach of a representation or warranty under the Warranty Agreement. Following liquidation of an Optional Review Loan, the Controlling Holder may, at its own option, review such Mortgage Loan to determine whether a breach of a representation or warranty has occurred. The Controlling Holder may utilize the services of a third-party diligence firm or may perform the review itself. Any reasonable costs and expenses incurred in connection with a review by the Controlling Holder shall be reimbursed to the Controlling Holder from amounts on deposit in the Payment Account, pursuant to Section 3.03 hereof, and the Controlling Holder will be indemnified and held harmless by the Issuer for any liability relating to such review.

(ii) The Controlling Holder will provide written notice to a Responsible Officer of the Indenture Trustee, the Sponsor, the Seller and the Servicer of the review findings with respect to each Optional Review Loan within 120 Business Days of receipt of all requested documents from the Servicer that are in the Servicer's possession. Upon receipt of notice from the Controlling Holder of a breach of representation or warranty with respect to an Optional Review Loan, the Sponsor will have sixty (60) Business Days to cure or repurchase such Optional Review Loan, but only if, as determined by the Sponsor in its sole discretion, the breach materially and adversely affects the value of such Mortgage Loan or the interests of the Noteholders therein. If the Sponsor is not affiliated with or the same party as the Controlling Holder and disputes the determination of the Controlling Holder that a breach of representation or warranty has occurred, the Controlling Holder on behalf of the Noteholders shall commence a confidential binding arbitration proceeding to resolve the dispute. The costs of such confidential binding arbitration proceeding will be paid by the Controlling Holder, and if the arbitration proceeding is in favor of the Controlling Holder, then the Controlling Holder shall be entitled to reimbursement for such

expenses from amounts on deposit in the Payment Account constituting Available Funds, prior to making any payments to the Notes on the related Payment Date, without regard to the Annual Cap.

(iii) In the event that (x) the Controlling Holder determines that, following its review of an Optional Review Loan, no breach of a representation or warranty with respect to such Mortgage Loan has occurred or (y) the Controlling Holder elects not to review an Optional Review Loan for any reason, or following a review determines that (x) no breach of representation or warranty under the Warranty Agreement with respect to such Mortgage Loan has occurred or (y) no breach of representation or warranty with respect to such Mortgage Loan has occurred that materially and adversely affects the value of such Mortgage Loan or the interests of the Noteholders therein, the holders of Notes representing not less than 25% Percentage Interest in the Notes (other than the Class XS Notes) in the aggregate may, nevertheless, notify a Responsible Officer of the Indenture Trustee in writing, in accordance with the provisions of this Indenture, of their intent to commence a separate review of the related Mortgage Loan. Such Noteholders may utilize the services of a third-party diligence firm or may coordinate for a representative Noteholder to perform the review itself. Any reasonable costs and expenses incurred in connection with a review by the Noteholders shall be reimbursed to the Noteholders from amounts on the deposit in the Payment Account. For the avoidance of doubt, any Notes held by a Noteholder that is affiliated with the Sponsor, the Seller, the Depositor or the Issuer shall be included when calculating the 25% Percentage Interest threshold required to commence a separate review. No such written notice may be provided to the Indenture Trustee until sixty (60) Business Days have elapsed since the notice of the related Realized Loss. The Indenture Trustee, if directed by such Noteholders, will request any applicable documents identified by such Noteholders from the Sponsor, the Servicer or the Custodian in such party's possession reasonably necessary for such review. Following such separate review, if such Noteholders determine that there has been a breach of any of the representations and warranties set forth in the Warranty Agreement and such breach materially and adversely affects the value of such Mortgage Loan or the interests of the Noteholders therein, such Noteholders shall direct the Indenture Trustee in writing (pursuant to the terms of the Transaction Documents) to demand that the Sponsor cure or repurchase such Mortgage Loan, and the Sponsor shall have sixty (60) Business Days from the date of such demand to do so. If the Sponsor disputes the determination of such Noteholders representing not less than 25% Percentage Interest in the Notes (other than the Class XS Notes), the Indenture Trustee, solely at the written direction of the Noteholders representing not less than 25% Percentage Interest in the Notes (other than the Class XS Notes) and in accordance with the requirements set forth in the Transaction Documents, shall commence a confidential binding arbitration proceeding to resolve the dispute. In connection with any such confidential binding arbitration proceeding, the Indenture Trustee shall pursue reimbursement for any fees, costs and expenses related to such arbitration from (x) if the arbitration decision is in favor of the Sponsor, the Issuer from amounts on deposit in the Payment Account constituting Available Funds prior to any payments to the Notes (without regard to the Annual Cap) and (y) if the arbitration decision is not in the favor of the Sponsor, the Sponsor under the terms of this Indenture and the Warranty Agreement. To the extent not reimbursed by the Sponsor, the Indenture Trustee shall be reimbursed for such amount by the Issuer from amounts on deposit in the Payment

Account prior to any payments to the Notes pursuant to Section 3.03 hereof, without regard to the Annual Cap.

(iv) Within ten (10) Business Days after a party has provided notice that it has elected to pursue confidential binding arbitration, each party involved in such arbitration may submit the names of one or more proposed arbitrators to the other party in writing. If the parties have not agreed on the selection of an arbitrator within five (5) Business Days after the first such submission, then the party commencing arbitration will, within the next five (5) Business Days, notify the American Arbitration Association in New York, New York and request that it appoint a single arbitrator with experience in arbitrating disputes arising in the financial services industry. The finding of the arbitrator will be final and binding upon the parties. Judgment upon any arbitration award rendered may be entered and enforced in any court of competent jurisdiction.

(c) Upon payment of the Repurchase Price, the Administrator shall or shall direct the related Servicer to transfer the related Mortgage Asset to the Sponsor or the Sponsor's designee. The Paying Agent shall have no duty to enforce the obligation of the Sponsor to make any payment of the Repurchase Price. In the case of the Indenture Trustee giving written notice of a breach or a representation or warranty that materially and adversely affects the interests of the Noteholders, (i) such notice shall be given by the Indenture Trustee only if a Responsible Officer of the Indenture Trustee has received written notice of a breach or an alleged breach (without regard to whether such breach or alleged breach materially and adversely affects the interest of the Noteholders) and (ii) in no event shall the Indenture Trustee be required to determine the materiality of any breach or alleged breach.

(d) The Indenture Trustee shall have no obligation to enforce the obligation of the Sponsor to make any payment of the Repurchase Price, or act in connection with the enforcement of any other remedies against the Sponsor, except upon receipt of written notice, direction and indemnity from the Controlling Holder or at the written direction of not less than 25% Percentage Interest in the Notes (other than the Class XS Notes) in the aggregate. In the absence of its receipt of such written notice, direction and indemnity, the Indenture Trustee shall have no duty to enforce any remedy or take any action against the Sponsor.

(e) Subject to Section 3.4 of the Seller Mortgage Loan Sale Agreement, to the extent a defective or missing Mortgage Loan Document that the Servicer would be expected to have prevents or Materially Delays realization against the related Mortgaged Property through foreclosure or similar loss mitigation activity, the Sponsor shall have 120 days upon having actual knowledge or notice of such delay to deliver such missing document to the Custodian or cure such defect or shall be required to repurchase the related Mortgage Loan at the related Repurchase Price. For the avoidance of doubt, (i) in the event of the Servicer's failure to have any document that it did not expect to need for realization against the related Mortgaged Property, the Mortgage Loan shall be treated, as of the date of discovery that the document was missing, as a defective Mortgage Loan that is not treated as a qualified mortgage for federal income tax purposes and shall be repurchased pursuant to the Seller Mortgage Loan Sale Agreement, (ii) clause (i) shall apply not only to Mortgage Loans in default but also to any Mortgage Loan, including any performing Mortgage Loan, where, because of a change of law (whether by statute, a regulation, a case, an administrative pronouncement, or otherwise), it is determined that the Servicer does not possess

and would not have been expected to possess any document that is required for realization against the related Mortgaged Property, and (iii) for purposes of clauses (i) and (ii), a discovery that a document is required for realization against a Mortgaged Property need not be specific to any particular Mortgage Loan but may apply to all Mortgage Loans of a type (for this purpose including by the location of the Mortgaged Property) where there is a change of law that would apply broadly to that type of mortgage loan.

(f) With respect to any Mortgage Loan that is not registered on the Dart System (each such Mortgage Loan, a “Non-DART Mortgage Loan”) for which a mortgage, Assignment of Security Instrument or intervening assignment is not delivered by the 60th day after the Closing Date (such Mortgage Loans, the “Missing Document Loans”) the Sponsor will repurchase or cause the repurchase of such Missing Document Loan from the Issuer at such time for the Repurchase Price; *provided, that* to the extent that the Sponsor or its designee is actively working to cure such Missing Document Loan by the 60th day following the Closing Date, the period will be extended for so long as the Sponsor needs to provide such missing document, but in no event will such extension be more than 30 additional days.

(g) Except as otherwise set forth above, notwithstanding anything to the contrary contained herein, no recourse shall be had, whether by levy or execution or otherwise, for the payment of any interest, principal or other amounts on the Notes, or for any claim based on payments due thereon, against the Sponsor, any of its partners, and any directors, officers, agents or employees of the Sponsor or any of its partners, under any rule of law, statute or constitution, or by the enforcement of any assessment or penalty, or otherwise, nor shall any of such persons be personally liable for any such amounts or claims, or liable for any defenses or judgment based thereon or with respect thereto; provided that the foregoing shall not (a) constitute a waiver of any rights of the Issuer against the Sponsor for breach of any representations or warranties or a defective or missing Mortgage Loan Document or REO Property File contained herein, or (b) be taken to prevent recourse by the purchaser to, and the enforcement of its rights against, the Notes or any issuer thereof; and provided further, shall not limit any right of the Indenture Trustee to recourse for losses that arise from a violation of applicable law with respect to the Mortgage Loans.

(h) Notwithstanding anything in this Indenture the contrary, if there is a breach of the representation set forth in Section 4(a)(xxxii) of the Warranty Agreement, the Depositor shall repurchase (or cause Sponsor to repurchase) the Mortgage Loan at the Repurchase Price as soon as possible but in no event later than the 85th day following the discovery of the breach.

Section 8.07. Optional Purchase of Delinquent Mortgage Loans. The Depositor, at its option, may purchase any Mortgage Loan that is 90 days or more delinquent under the MBA Method of measuring delinquency at the Repurchase Price (an “Optional Purchase”) by providing written notice thereof to the Servicer, the Indenture Trustee, the Paying Agent, the Owner Trustee and the Custodian. The aggregate Principal Balance of such Mortgage Loans and any REO Properties purchased by the Depositor will not exceed 10% of the aggregate Principal Balance of the Mortgage Loans as of the Cut-Off Date, as determined by the Depositor.

Section 8.08. Mortgage Asset Sales.

(a) In the event that title to any Mortgaged Property is acquired in foreclosure or by deed in lieu of foreclosure, the deed or certificate of sale shall be issued in the name of the Issuer or, if the Issuer cannot hold legal title in the relevant jurisdiction as dictated by state law, local law or local court rules, then title shall, subject to the requirements of the Trust Agreement, be recorded in the name of a nominee for the Issuer identified by the Depositor, as shall be consistent with Accepted Servicing Practices in the state where the Mortgaged Property is located for the benefit of the Issuer, as owner of the related Mortgaged Property, and the Person or Persons holding such title shall acknowledge in writing that such title is being held as nominee for the Issuer.

(b) The Depositor shall cause the Servicer, either itself or through an agent selected by the Depositor, to manage, conserve, protect and operate each REO Property (and may temporarily rent the same) in the same manner that it manages, conserves, protects and operates other foreclosed property for its own account, and in the same manner that similar property in the same locality as the REO Property is managed. The Depositor shall manage, conserve, protect and operate each REO Property in a manner which does not cause such REO Property to fail to qualify as “foreclosure property” within the meaning of Section 860G(a)(8) of the Code or result in the receipt by such REMIC of any “income from non permitted assets” within the meaning of Section 860F(a)(2)(B) of the Code or any “net income from foreclosure property” within the meaning of Section 860G(c)(2) of the Code. The Depositor shall cause each REO Property to be inspected promptly upon the acquisition of title thereto, except for properties still occupied pending eviction, and shall cause each REO Property to be inspected at least annually thereafter. The Depositor shall make or cause to be made a written report of each such inspection. Such reports shall be retained in the REO Property File and copies thereof shall be forwarded by the Depositor to the Issuer. The Depositor shall use its best efforts to dispose of the REO Property as soon as possible and shall sell such REO Property in any event within one year after title has been taken to such REO Property, unless the Depositor determines, and gives appropriate notice to the Issuer and Depositor, that a longer period is necessary for the orderly liquidation of such REO Property. If a period longer than one year is necessary to sell any REO Property, (i) the Servicer shall report monthly to the Issuer as to the progress being made in selling such REO Property and (ii) if, with the written consent of the Issuer, a purchase money mortgage is taken in connection with such sale, such purchase money mortgage shall name the Servicer as mortgagee, and a separate servicing agreement between the Servicer and the Issuer shall be entered into with respect to such purchase money mortgage. Notwithstanding the foregoing, such REO Property shall be disposed of within three years or such other period as may be permitted under Section 860G(a)(8) of the Code.

ARTICLE IX

SUPPLEMENTAL INDENTURES; AMENDMENTS

Section 9.01. Supplemental Indentures Without Consent of Noteholders. (a) Without the consent of the Holders of any Notes, the Issuer, the Paying Agent, the Registrar, the REMIC Administrator and the Indenture Trustee, at any time and from time to time, may enter into one or more indentures supplemental hereto, or one or more amendments hereto, or to the Notes, in form satisfactory to the Indenture Trustee, the Registrar, the REMIC Administrator and the Paying Agent, for any of the following purposes:

(i) to correct or amplify the description of any property at any time subject to the lien of this Indenture, or better to assure, convey and confirm unto the Indenture Trustee any property subject or required to be subjected to the lien of this Indenture, or to subject to the lien of this Indenture additional property;

(ii) to evidence the succession, in compliance with the applicable provisions hereof, of another person to the Issuer, and the assumption by any such successor of the covenants of the Issuer herein and in the Notes;

(iii) to add to the covenants of the Issuer, for the benefit of the Holders of the Notes, or to surrender any right or power herein conferred upon the Issuer;

(iv) to convey, transfer, assign, mortgage or pledge any property to or with the Indenture Trustee, including additional underlying Mortgage Loans or other assets;

(v) to cure any ambiguity or mistake or to correct or supplement any provision herein or in any supplemental indenture or in any amended and restated indenture that may be inconsistent with, or otherwise to conform the terms of this Indenture to, any other provision herein or in any supplemental indenture or amended and restated indenture or in any private placement memorandum created with respect to any offering of the Notes;

(vi) to prevent the Issuer or any Noteholder from being subject to withholding or other taxes, fees or assessments or to prevent an Adverse REMIC Event;

(vii) to make any other provisions with respect to matters or questions arising under this Indenture or in any supplemental indenture; provided, that such action shall not materially and adversely affect the interests of the Holders of the Notes as evidenced by an Opinion of Counsel to such effect;

(viii) to evidence and provide for the acceptance of the appointment hereunder of a successor trustee or paying agent or similar role with respect to the Notes and to add to or change any of the provisions of this Indenture as shall be necessary to facilitate the administration of the trusts hereunder by more than one trustee, pursuant to the requirements of Article VI hereof; or

(ix) to take any action that, as determined by the Depositor, is reasonably necessary to avoid a reduction by the Rating Agencies in their respective then-current ratings of the Notes; provided, that such action shall not materially and adversely affect the interest of the Holders of the Notes as evidenced by an officer's certificate of the Depositor.

provided, however, that no such indenture supplement or amended and restated indenture shall be entered into unless (a) the Rating Agency Condition is satisfied and (b) the Owner Trustee, the Indenture Trustee, the Paying Agent, the REMIC Administrator and the Registrar shall have received an officer's certificate of the Depositor not at the expense of the Indenture Trustee, the Paying Agent, the REMIC Administrator or the Registrar as to the enforceability of any such indenture supplement or amended and restated indenture and to the effect that (i) such indenture supplement or amended and restated indenture is authorized or permitted hereunder and all

conditions precedent thereto have been satisfied and (ii) entering into such indenture supplement or amended and restated indenture will not result in an Adverse REMIC Event, as evidenced by an opinion of counsel.

The Indenture Trustee, the REMIC Administrator, the Registrar and the Paying Agent each is hereby authorized to join in the execution of any such supplemental indenture or amended and restated indenture and to make any further appropriate agreements and stipulations that may be therein contained.

(b) The Issuer, the REMIC Administrator, the Paying Agent, the Registrar and the Indenture Trustee may, also without the consent of any of the Holders of the Notes, enter into an indenture or indentures supplemental hereto or an amended and restated indenture for the purpose of adding any provisions to, or changing in any manner or eliminating any of the provisions of, this Indenture or of modifying in any manner the rights of the Holders of the Notes under this Indenture; provided, however, that such action as evidenced by an Opinion of Counsel, (i) is authorized or permitted by this Indenture, (ii) shall not adversely affect in any material respect the interests of any Noteholder, (iii) will not result in an Adverse REMIC Event and (iv) such action does not materially and adversely affect the transfer restrictions with respect to the Notes set forth in Section 4.02 hereof.

Section 9.02. Supplemental Indentures With Consent of Noteholders. The Issuer, the Paying Agent, the Registrar, the REMIC Administrator and the Indenture Trustee may, with the prior written notice to the 17g-5 Information Provider (which shall provide notice of the same to the Rating Agencies in accordance with Section 7.05 herein) and the consent of Holders of not less than 66 2/3% Percentage Interest of each Class of Notes affected thereby, by Act (as defined in Section 10.03 hereof) of such Holders delivered to the Issuer and the Indenture Trustee, shall enter into an indenture or indentures supplemental hereto or an amended and restated indenture for the purpose of adding any provisions to, or changing in any manner or eliminating any of the provisions of, this Indenture or of modifying in any manner the rights of the Holders of the Notes under this Indenture; provided, however, that no such supplemental indenture or amended and restated indenture shall, without the consent of the Holder of each Note materially and adversely affected thereby:

(i) change the date of payment of any installment of principal of or interest on any Note, or reduce the principal amount thereof or the interest rate thereon, change the provisions of this Indenture relating to the application of collections on, or the proceeds of the sale of, the Trust Estate and to payment of principal of or interest on a Class of Notes, or change any place of payment where, or the coin or currency in which, any Note or the interest thereon is payable, or impair the right to institute suit for the enforcement of the provisions of this Indenture requiring the application of funds available therefor, as provided in Article V, to the payment of any such amount due on the Notes on or after the Stated Final Maturity Date;

(ii) reduce the Percentage Interest for consent required for any such supplemental indenture or amended and restated indenture, or the consent of the Holders of which is required for any waiver of compliance with certain provisions of this Indenture or certain defaults hereunder and their consequences provided for in this Indenture;

(iii) reduce the Percentage Interest required to direct the Indenture Trustee to sell or liquidate the Trust Estate pursuant to Section 5.04 hereof;

(iv) modify any provision of this Section 9.02 except to increase any percentage specified herein or to provide that certain additional provisions of this Indenture or the Transaction Documents cannot be modified or waived without the consent of the Holder of each Note affected thereby;

(v) modify any of the provisions of this Indenture in such manner as to affect the calculation of the amount of any payment of interest or principal due on any Note on any Payment Date (including the calculation of any of the individual components of such calculation); or

(vi) permit the creation of any lien ranking prior to or on a parity with the lien of this Indenture with respect to any part of the Trust Estate or, except as otherwise permitted or contemplated herein, terminate the lien of this Indenture on any property at any time subject hereto or deprive the Holder of any Note of the security provided by the lien of this Indenture;

and provided, further, that such action will not, as evidenced by an Opinion of Counsel, result in an Adverse REMIC Event.

Any such action shall not adversely affect in any material respect the interest of any Holder (other than a Holder who shall consent to such supplemental indenture or amended and restated indenture) as evidenced by an Opinion of Counsel (provided by the Person requesting such supplemental indenture or amended and restated indenture) delivered to the Owner Trustee, the Indenture Trustee, the REMIC Administrator, the Registrar and the Paying Agent.

It shall not be necessary for any Act of Noteholders under this Section 9.02 to approve the particular form of any proposed supplemental indenture or amended and restated indenture, but it shall be sufficient if such Act shall approve the substance thereof.

After the execution by the Issuer, the Indenture Trustee, the Registrar, the REMIC Administrator and the Paying Agent of any supplemental indenture or amended and restated indenture pursuant to this Section 9.02, the Indenture Trustee shall make a notice available to the Holders of the Notes to which such supplemental indenture or amended and restated indenture relates setting forth in general terms the substance of such supplemental indenture or amended and restated indenture; provided, however, the Paying Agent shall not be required to make such notice available to the Holders of the Notes to which such supplemental indenture or amended and restated indenture relates if such Holders consented to the form and substance of such supplemental indenture or amended and restated indenture. Any failure of the Paying Agent to make such notice available, or any defect therein, shall not, however, in any way impair or affect the validity of any such supplemental indenture or amended and restated indenture.

Section 9.03. Execution of Supplemental Indentures. In executing, or permitting the additional trusts created by, any supplemental indenture or amended and restated indenture permitted by this Article IX or the modification thereby of the trusts created by this Indenture or the amendment of any Transaction Document to be executed by the REMIC Administrator, the

Indenture Trustee, the Registrar, the Owner Trustee, the Custodian or the Paying Agent, the REMIC Administrator, the Indenture Trustee, the Registrar, the Owner Trustee, the Custodian and the Paying Agent, as applicable, shall be entitled to receive, and subject to Sections 6.01 and 6.02 hereof, shall be fully protected in relying upon, an Opinion of Counsel not at the expense of the Indenture Trustee, the Registrar, the REMIC Administrator, the Owner Trustee, the Custodian or the Paying Agent stating that the execution of such supplemental indenture or amended and restated indenture is authorized or permitted by this Indenture and that all conditions precedent, if any, have been met. The Indenture Trustee, the REMIC Administrator, the Registrar or the Paying Agent may, but shall not be obligated to, enter into any such supplemental indenture or amended and restated indenture that affects the Indenture Trustee's, the Registrar's, the REMIC Administrator's or the Paying Agent's own rights, duties, liabilities or immunities under this Indenture or otherwise. No amendment or supplement to this Indenture that affects the rights, protections, immunities, indemnities, duties or obligations of the Owner Trustee or the Custodian shall be effective without the prior written consent of the Owner Trustee or the Custodian.

Section 9.04. Effect of Supplemental Indenture. Upon the execution of any supplemental indenture or amended and restated indenture pursuant to the provisions hereof, this Indenture shall be and shall be deemed to be modified and amended in accordance therewith with respect to the Notes affected thereby, and the respective rights, limitations of rights, obligations, duties, liabilities and immunities under this Indenture of the Indenture Trustee, the REMIC Administrator, the Registrar, the Paying Agent, the Issuer and the Holders of the Notes shall thereafter be determined, exercised and enforced hereunder subject in all respects to such modifications and amendments, and all the terms and conditions of any such supplemental indenture or amended and restated indenture shall be and be deemed to be part of the terms and conditions of this Indenture for any and all purposes.

Section 9.05. Reference in Notes to Supplemental Indentures. Notes authenticated and delivered after the execution of any supplemental indenture or amended and restated indenture pursuant to this Article IX may, and if required by the Registrar shall, bear a notation in form approved by the Registrar as to any matter provided for in such supplemental indenture or amended and restated indenture. If the Issuer, the Paying Agent, the Registrar or the Indenture Trustee shall so determine, new Notes so modified as to conform, in the opinion of the Indenture Trustee, the Paying Agent, the Registrar or the Issuer, to any such supplemental indenture or amended and restated indenture may be prepared and executed by the Issuer and upon Issuer Request authenticated and delivered by the Registrar in exchange for Outstanding Notes.

ARTICLE X

MISCELLANEOUS

Section 10.01. Compliance Certificates and Opinions, etc. Upon any application or request by the Issuer to the Indenture Trustee, the REMIC Administrator, the Registrar and the Paying Agent to take any action under any provision of this Indenture, the Issuer shall furnish to the Indenture Trustee, the REMIC Administrator, the Registrar and the Paying Agent (a) an Officer's Certificate stating that all conditions precedent, if any, provided for in this Indenture relating to the proposed action have been complied with and (b) an Opinion of Counsel stating that in the opinion of such counsel all such conditions precedent, if any, have been complied with, except

that, in the case of any such application or request as to which the furnishing of such documents is specifically required by any provision of this Indenture, no additional certificate or opinion need be furnished.

Every certificate or opinion with respect to compliance with a condition or covenant provided for in this Indenture shall include:

- (a) a statement that each signatory of such certificate or opinion has read or has caused to be read such covenant or condition and the definitions herein relating thereto;
- (b) a brief statement as to the nature and scope of the examination or investigation upon which the statements or opinions contained in such certificate or opinion are based;
- (c) a statement that, in the opinion of each such signatory, such signatory has made such examination or investigation as is necessary to enable such signatory to express an informed opinion as to whether or not such covenant or condition has been complied with; and
- (d) a statement as to whether, in the opinion of each such signatory, such condition or covenant has been complied with.

Section 10.02. Form of Documents Delivered to the Indenture Trustee, the Registrar and the Paying Agent. In any case where several matters are required to be certified by, or covered by an opinion of, any specified Person, it is not necessary that all such matters be certified by, or covered by the opinion of, only one such Person, or that they be so certified or covered by only one document, but one such Person may certify or give an opinion with respect to some matters and one or more other such Persons as to other matters, and any such Person may certify or give an opinion as to such matters in one or several documents.

Any certificate or opinion of the Issuer may be based, insofar as it relates to legal matters, upon a certificate or opinion of, or representations by, counsel, unless such officer knows, or in the exercise of reasonable care should know, that the certificate or opinion or representations with respect to the matters upon which his certificate or opinion is based are erroneous. Any such certificate of the Issuer or Opinion of Counsel may be based, insofar as it relates to factual matters, upon a certificate or opinion of, or representations by, an officer or officers of the Sponsor or the Issuer, stating that the information with respect to such factual matters is in the possession of the Sponsor or the Issuer, unless such counsel knows, or in the exercise of reasonable care should know, that the certificate or opinion or representations with respect to such matters are erroneous.

Where any Person is required to make, give or execute two or more applications, requests, consents, certificates, statements, opinions or other instruments under this Indenture, they may, but need not, be consolidated and form one instrument.

Whenever in this Indenture, in connection with any application or certificate or report to the Indenture Trustee, the REMIC Administrator, the Registrar or the Paying Agent, it is provided that the Issuer shall deliver any document as a condition of the granting of such application, or as evidence of the Issuer's compliance with any term hereof, it is intended that the truth and accuracy, at the time of the granting of such application or at the effective date of such certificate or report (as the case may be), of the facts and opinions stated in such document shall in such case be

conditions precedent to the right of the Issuer to have such application granted or to the sufficiency of such certificate or report. The foregoing shall not, however, be construed to affect the Indenture Trustee's, the REMIC Administrator's, Registrar's or the Paying Agent's right to rely upon the truth and accuracy of any statement or opinion contained in any such document as provided in Article VI.

Section 10.03. Acts of Noteholders. (a) Any request, demand, authorization, direction, notice, consent, waiver or other action provided by this Indenture to be given or taken by Noteholders may be embodied in and evidenced by one or more instruments of substantially similar tenor signed by such Noteholders in person or by agents duly appointed in writing; and except as herein otherwise expressly provided, such action shall become effective when such instrument or instruments are delivered to the Indenture Trustee, the Registrar or the Paying Agent, and, where it is hereby expressly required, to the Issuer. Such instrument or instruments (and the action embodied therein and evidenced thereby) are herein sometimes referred to as the "Act" of the Noteholders signing such instrument or instruments. Proof of execution of any such instrument or of a writing appointing any such agent shall be sufficient for any purpose of this Indenture and (subject to Section 6.01 hereof) conclusive in favor of the Indenture Trustee, the Paying Agent and the Issuer, if made in the manner provided in this Section 10.03 hereof.

(b) The fact and date of the execution by any person of any such instrument or writing may be proved in any manner that the Indenture Trustee, the REMIC Administrator, the Registrar or the Paying Agent, as the case may be, deems sufficient.

(c) The ownership of Notes shall be proved by the Register.

(d) Any request, demand, authorization, direction, notice, consent, waiver or other action by the Holder of any Notes shall bind the Holder of every Note issued upon the registration thereof or in exchange therefor or in lieu thereof, in respect of anything done, omitted or suffered to be done by the Indenture Trustee, the Paying Agent, the Registrar or the Issuer in reliance thereon, whether or not notation of such action is made upon such Note.

Section 10.04. Notices etc., to Issuer, the Paying Agent, the Registrar, the Indenture Trustee and the Rating Agencies. Any request, demand, authorization, direction, notice, consent, waiver or Act of Noteholders or other documents provided or permitted by this Indenture shall be in writing (and may be delivered via electronic mail) and if such request, demand, authorization, direction, notice, consent, waiver or act of Noteholders is to be made upon, given or furnished to or filed with:

(i) the Indenture Trustee by any Noteholder or by the Issuer or Paying Agent shall be sufficient for every purpose hereunder if made, given, furnished or filed in writing and mailed first-class, postage prepaid, addressed to the Indenture Trustee at the applicable Corporate Trust Office, or such other address as may hereafter be furnished to the other parties hereto in writing. The Indenture Trustee shall make available any notice received by it from the Noteholders to the Issuer and the Paying Agent; or

(ii) the Paying Agent or the Registrar, by any Noteholder or by the Issuer or Indenture Trustee shall be sufficient for every purpose hereunder if made, given, furnished

or filed in writing and mailed first-class, postage prepaid, addressed to the Paying Agent or the Registrar, as applicable, at the applicable Corporate Trust Office, or such other address as may hereafter be furnished to the other parties hereto in writing. The Paying Agent or the Registrar shall make available any notice received by it from the Noteholders to the Issuer and the Indenture Trustee;

(iii) the Issuer by the Indenture Trustee or by any Noteholder shall be sufficient for every purpose hereunder if made, given, furnished or filed in writing and mailed first-class, postage prepaid to the Issuer addressed to: FIGRE Trust 2025-HE5, c/o WSFS, 500 Delaware Avenue, 11th Floor, Wilmington, Delaware 19801, Attention: Corporate Trust Administration – FIGRE Trust 2025-HE5, or at any other address previously furnished in writing to the Indenture Trustee and Paying Agent by the Issuer. The Issuer shall promptly transmit any notice received by it from the Noteholders to the Indenture Trustee and the Paying Agent; or

(iv) the Rating Agencies by the Indenture Trustee, the Paying Agent or the Issuer shall be sufficient for every purpose hereunder if submitted to the 17g-5 Information Provider via electronic mail at figre2025HE5q2u5@17g5.com, specifically with a subject reference of “FIGRE Trust 2025-HE5” and an identification of the type of information being provided in the body of such electronic mail; or any other delivery method established or approved by the 17g-5 Information Provider (and agreed to by the Issuer) if or as may be necessary or beneficial, and the 17g-5 Information Provider shall post on the 17g-5 Website; if to DBRS, sent to 140 Broadway, 43rd Floor, New York, New York 10005, with a copy to US-RMBS-Surveillance@morningstar.com and if to S&P, sent via electronic delivery to Servicer_reports@sandp.com.

Section 10.05. Notices to Noteholders; Waiver. Where this Indenture provides for notice to Noteholders of any event, such notice shall be sufficiently given (unless otherwise herein expressly provided) if made, given, furnished or filed (a) in the case of Book-Entry Notes, through the electronic facilities of the Depository and posted on the Paying Agent’s Website and (b) in the case of Definitive Notes, in writing and mailed, first-class, postage prepaid to each Noteholder affected by such event, at such Person’s address as it appears on the Register, not later than the latest date, and not earlier than the earliest date, prescribed for the giving of such notice. In any case where notice to Noteholders is given by mail, neither the failure to mail such notice nor any defect in any notice so mailed to any particular Noteholder shall affect the sufficiency of such notice with respect to other Noteholders, and any notice that is mailed in the manner herein provided shall conclusively be presumed to have been duly given regardless of whether such notice is in fact actually received.

Where this Indenture provides for notice in any manner, such notice may be waived in writing by any Person entitled to receive such notice, either before or after the event, and such waiver shall be the equivalent of such notice. Waivers of notice by Noteholders shall be filed with the Indenture Trustee and the Paying Agent but such filing shall not be a condition precedent to the validity of any action taken in reliance upon such a waiver.

In case, by reason of the suspension of regular mail service as a result of a strike, work stoppage or similar activity, it shall be impractical to mail notice of any event to Noteholders when

such notice is required to be given pursuant to any provision of this Indenture, then any manner of giving such notice (including but not limited to making such notice available on the Paying Agent's Website) as shall be satisfactory to the Paying Agent shall be deemed to be as sufficient giving of such notice.

Section 10.06. Effect of Headings. The Article and Section headings herein are for convenience only and shall not affect the construction hereof.

Section 10.07. Successors and Assigns. All covenants and agreements in this Indenture and the Notes by the Issuer shall bind its successors and assigns, whether so expressed or not. All agreements of the Indenture Trustee in this Indenture shall bind its successors, co-trustees and agents. All agreements of the Paying Agent in this Indenture shall bind its successors and agents. All agreements of the Registrar in this Indenture shall bind its successors and agents.

Section 10.08. Separability. In case any provision in this Indenture or in the Notes shall be invalid, illegal or unenforceable, the validity, legality, and enforceability of the remaining provisions shall not in any way be affected or impaired thereby.

Section 10.09. Legal Holidays. In any case where the date on which any payment is due shall not be a Business Day, then (notwithstanding any other provision of the Notes or this Indenture) payment need not be made on such date, but may be made on the next succeeding Business Day with the same force and effect as if made on the date on which nominally due, and no interest shall accrue for the period from and after any such nominal date.

Section 10.10. GOVERNING LAW. **THIS INDENTURE AND ANY CLAIM, CONTROVERSY OR DISPUTE ARISING UNDER OR RELATED TO THIS INDENTURE, THE RELATIONSHIP OF THE PARTIES, AND/OR THE INTERPRETATION AND ENFORCEMENT OF THE RIGHTS AND DUTIES OF THE PARTIES SHALL BE GOVERNED BY, AND CONSTRUED AND ENFORCED IN ACCORDANCE WITH, THE LAWS OF THE STATE OF NEW YORK, WITHOUT REGARD TO CONFLICT OF LAWS PRINCIPLES THEREOF (OTHER THAN SECTIONS 5-1401 AND 5-1402 OF THE NEW YORK GENERAL OBLIGATIONS LAW, WHICH SHALL GOVERN). THE LAWS OF THE STATE OF NEW YORK ARE APPLICABLE TO ALL ISSUES SPECIFIED IN ARTICLE 2(1) OF THE HAGUE SECURITIES CONVENTION, AND AN AMENDMENT OR MODIFICATION TO THE CHOICE OF LAW SHALL NOT BE DONE TO CHANGE THE LAW DESIGNATED AS APPLICABLE TO THE ISSUES SPECIFIED IN ARTICLE 2(1) OF THE HAGUE SECURITIES CONVENTION, WITHIN THE MEANING OF ARTICLE 4(1) THEREOF TO BE ANY LAW OTHER THAN THE LAW OF THE STATE OF NEW YORK. TO THE EXTENT THAT THE PAYMENT ACCOUNT OR ANY AGREEMENTS BETWEEN THE SECURITIES INTERMEDIARY AND THE ISSUER, ARE AT ANY TIME GOVERNED BY LAWS OTHER THAN THE LAWS OF THE STATE OF NEW YORK, THE PARTIES HERETO DO NOT CONSENT TO THE NEW GOVERNING LAW FOR THE PURPOSES OF ARTICLE 7 OF THE HAGUE SECURITIES CONVENTION.**

Section 10.11. Counterparts. This Indenture may be executed in any number of counterparts, each of which when so executed shall be deemed to be an original, but all such

counterparts shall together constitute but one and the same instrument. The parties intend that faxed signatures and electronically imaged signatures such as .pdf files shall constitute original signatures and be binding on the parties hereto.

Section 10.12. Recording of Indenture. If this Indenture is subject to recording in any appropriate public recording offices, such recording is to be effected by the Issuer and at its expense accompanied by an Opinion of Counsel at its expense (which may be counsel to the Issuer or the Depositor or any other counsel reasonably acceptable to the Indenture Trustee, the Registrar and the Paying Agent) to the effect that such recording is necessary either for the protection of the Noteholders or any other Person secured hereunder or for the enforcement of any right or remedy granted to the Indenture Trustee, the Registrar or the Paying Agent under this Indenture.

Section 10.13. Issuer, Indenture Trustee, Registrar and Paying Agent Obligations. No recourse may be taken, directly or indirectly, with respect to the obligations of the Issuer, the Indenture Trustee, the REMIC Administrator, the Registrar or the Paying Agent set forth on the Notes or under this Indenture or any certificate or other writing delivered in connection herewith or therewith, against (i) the Indenture Trustee, the REMIC Administrator, the Registrar or the Paying Agent in their respective individual capacities, (ii) any owner of a beneficial interest in the Issuer or (iii) any partner, owner, beneficiary, agent, officer, director, employee or agent of the Indenture Trustee, the REMIC Administrator, the Registrar, the Paying Agent, any holder of a beneficial interest in the Issuer, the Indenture Trustee, the REMIC Administrator, the Registrar or the Paying Agent or of any successor or assign of the Indenture Trustee, the REMIC Administrator, the Registrar or the Paying Agent in its individual capacity, except as any such Person may have expressly agreed (it being understood that the Indenture Trustee, the REMIC Administrator, the Registrar and the Paying Agent have no such obligations in their respective individual capacities) and except that any such partner, owner or beneficiary shall be fully liable, to the extent provided by applicable law, for any unpaid consideration for stock, unpaid capital contribution or failure to pay any installment or call owing to such entity.

Section 10.14. No Petition. The Indenture Trustee, the Registrar and the Paying Agent, by entering into this Indenture, and each Noteholder, by accepting a Note, hereby covenant and agree that they will not at any time prior to one year from the date of termination hereof, institute against the Issuer or join in any institution against the Issuer of, any bankruptcy, reorganization, arrangement, insolvency or liquidation proceedings, or other proceedings under any United States federal or state bankruptcy or similar law in connection with any obligations relating to the Notes, this Indenture or any of the Transaction Documents; provided, however, that nothing herein shall prohibit the Indenture Trustee from filing proofs of claim in any Proceeding.

Section 10.15. Inspection. The Issuer agrees that, at its expense, on reasonable prior notice, it shall permit any representative of the Indenture Trustee or the Paying Agent, during the Issuer's normal business hours, to examine all the books of account, records, reports and other papers of the Issuer, to make copies and extracts therefrom, to cause such books to be audited by Independent certified public accountants, and to discuss the Issuer's affairs, finances and accounts with the Issuer's officers, employees, and Independent certified public accountants, all at such reasonable times and as often as may be reasonably requested. Each of the Indenture Trustee and the Paying Agent shall hold in confidence all such information except (i) to its affiliates, controlling persons, controlling persons of any affiliates, officers, directors, employees, assignees and prospective

assignees, agents, analytical service providers, counsel, accountants, subservicers, auditors, advisors or representatives, in each case, including actual and prospective, (ii) to the extent it is required by Applicable Law or in connection with any legal or regulatory proceeding or requested by any governmental authority to disclose such information or (iii) to the extent that it is necessary to do so in working with legal counsel, auditors, taxing authorities or other governmental agencies or regulatory bodies or in order to comply with any applicable federal or state laws.

Section 10.16. Submission to Jurisdiction; Waiver of Jury Trial. Each of the parties hereto hereby irrevocably and unconditionally:

(a) submits for itself and its property in any legal action or Proceeding relating to this Indenture or any documents executed and delivered in connection herewith, or for recognition and enforcement of any judgment in respect thereof, to the non-exclusive general jurisdiction of the courts of the State of New York, the courts of the United States of America for the Southern District of New York and appellate courts from any thereof;

(b) consents that any such action or Proceeding may be brought in such courts and waives any objection that it may now or hereafter have to the venue of such action or Proceeding in any such court or that such action or Proceeding was brought in an inconvenient court and agrees not to plead or claim the same;

(c) agrees that service of process in any such action or Proceeding may be effected by mailing a copy thereof by registered or certified mail (or any substantially similar form of mail), postage prepaid, to such Person at its address determined in accordance with Section 10.04 hereof;

(d) agrees that nothing herein shall affect the right to effect service of process in any other manner permitted by law or shall limit the right to sue in any other jurisdiction; and

(e) TO THE EXTENT PERMITTED BY APPLICABLE LAW, WAIVES ALL RIGHT OF TRIAL BY JURY IN ANY ACTION, PROCEEDING OR COUNTERCLAIM BASED ON, OR ARISING OUT OF, UNDER OR IN CONNECTION WITH THIS INDENTURE, ANY OTHER TRANSACTION DOCUMENT, OR ANY MATTER ARISING HEREUNDER OR THEREUNDER.

Section 10.17. Third Party Beneficiary. The Owner Trustee, Custodian, and the Servicer shall each be a third party beneficiary to this Indenture, entitled to enforce its rights hereunder as if it were a party hereto.

Section 10.18. Recourse. Each Noteholder, by its acceptance of its Note, agrees that such Note represents a non-recourse obligation of the Issuer, and is payable solely from the Collateral.

Section 10.19. Owner Trustee. It is expressly understood and agreed by the parties hereto that (a) this Indenture is executed and delivered at the direction of the Depositor pursuant to the Trust Agreement by WSFS, not individually or personally but solely as Owner Trustee on behalf of the Issuer, in the exercise of the powers and authority conferred and vested in it under the Trust Agreement, (b) each of the representations, warranties, undertakings and agreements herein made on the part of the Issuer is made and intended not as personal representations, warranties, undertakings and agreements by WSFS in its individual capacity or as Owner Trustee but is made

and intended for the purpose of binding only, and is binding only on, the Issuer, (c) nothing herein contained shall be construed as creating any liability on WSFS, individually or personally, to perform any covenant either expressed or implied contained herein, all such liability, if any, being expressly waived by the parties hereto and by any Person claiming by, through or under the parties hereto, (d) WSFS has made and will make no investigation as to the accuracy or completeness of any representations or warranties made by the Issuer in this Indenture and (e) under no circumstances shall WSFS, individually or as Owner Trustee be personally liable for the payment of any indebtedness, indemnities or expenses of the Issuer or be liable for the performance, breach or failure of any obligation, representation, warranty or covenant made or undertaken by the Issuer under this Indenture or any other related documents, as to all of which recourse shall be had solely to the assets of the Issuer. It is expressly understood and agreed that the rights, duties and obligations of Issuer hereunder will be exercised and performed by the Depositor in its capacity as depositor or the Administrator as Administrator of the Issuer or other agents on behalf of the Issuer as permitted by the Trust Agreement or the other Transaction Documents and under no circumstances shall the Owner Trustee have any duty or obligation to monitor, supervise, exercise or perform the rights, duties or obligations of the Issuer, the Depositor or the Administrator or such other agents of the Issuer hereunder.

Section 10.20. Multiple Capacities.

(a) It is expressly acknowledged, agreed and consented to that WSFS will be acting in the capacities of Owner Trustee, Depositor Trustee, and Custodian. WSFS may, in such multiple capacities, discharge its separate functions fully, without hindrance or regard to conflict of interest principles, duty of loyalty principles or other breach of fiduciary duties to the extent that any such conflict or breach arises from the performance by WSFS of express duties set forth in this Indenture, the Trust Agreement, the Depositor Trust Agreement, the Custodial Agreement, and the other Transaction Documents to which it is a party in any of such capacities. The parties hereto and any other Person having rights hereto expressly waive any defenses, claims or assertions arising out of WSFS acting in such multiple capacities.

(b) It is expressly acknowledged, agreed and consented to that BNY will be acting in the capacities of Indenture Trustee, Registrar, REMIC Administrator, Paying Agent, Paying Agent (as defined in the Issuer Trust Agreement) and Trust Registrar and Securities Intermediary. BNY may, in such multiple capacities, discharge its separate functions fully, without hindrance or regard to conflict of interest principles, duty of loyalty principles or other breach of fiduciary duties to the extent that any such conflict or breach arises from the performance by BNY of express duties set forth in this Indenture, the Issuer Trust Agreement, the Custodial Agreement, and the other Transaction Documents to which it is a party in any of such capacities. The parties hereto and any other Person having rights hereto expressly waive any defenses, claims or assertions arising out of BNY acting in such multiple capacities.

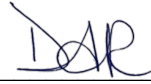
IN WITNESS WHEREOF, the Issuer, the Paying Agent, the REMIC Administrator, the Registrar and the Indenture Trustee have caused their names to be signed hereto by their respective officers thereunto duly authorized, all as of the day and year first above written.

FIGRE TRUST 2025-HE5, as Issuer

By: Wilmington Savings Fund Society, FSB, not in
its individual capacity but solely as Owner Trustee

By: _____

Name: **Devon C. A. Reverdito**
Title: **Vice President**



THE BANK OF NEW YORK MELLON, as
Indenture Trustee, Paying Agent, REMIC
Administrator and Registrar

By: _____

Name:


Esther Antoine

Title:

Vice President

FIGURE LENDING LLC,
as Sponsor

Signed by:

By:

Name: Todd Stevens

Title: Authorized Signatory

Exhibit A-1A

FORM OF RULE 144A GLOBAL CLASS A NOTE

FIGRE TRUST 2025-HE5 MORTGAGE-BACKED NOTES, SERIES 2025-HE5

Interest Rate: As set forth in the Indenture	Date of Indenture: August 28, 2025
Initial Note Amount: \$[•]	Closing Date: August 28, 2025
Minimum Denomination of this Note: \$150,000	Initial Payment Date: September 2025
Legal Final Maturity: Payment Date occurring in August 2055	Note No.: [•]
CUSIP: 31684MAA7	ISIN: US31684MAA71
Issuer: FIGRE TRUST 2025-HE5, a Delaware statutory trust	Indenture Trustee: THE BANK OF NEW YORK MELLON

UNLESS THIS NOTE IS PRESENTED BY AN AUTHORIZED REPRESENTATIVE OF THE DEPOSITORY TRUST COMPANY, A NEW YORK CORPORATION (“DTC”), TO THE REGISTRAR, THE INDENTURE TRUSTEE OR THEIR AGENT FOR REGISTRATION OF TRANSFER, EXCHANGE, OR PAYMENT, AND ANY NOTE ISSUED IS REGISTERED IN THE NAME OF CEDE & CO. OR IN SUCH OTHER NAME AS IS REQUESTED BY AN AUTHORIZED REPRESENTATIVE OF DTC (AND ANY PAYMENT IS MADE TO CEDE & CO. OR TO SUCH OTHER ENTITY AS IS REQUESTED BY AN AUTHORIZED REPRESENTATIVE OF DTC), ANY TRANSFER, PLEDGE, OR OTHER USE HEREOF FOR VALUE OR OTHERWISE BY OR TO ANY PERSON IS WRONGFUL INASMUCH AS THE REGISTERED OWNER HEREOF, CEDE & CO., HAS AN INTEREST HEREIN.

THIS NOTE HAS NOT BEEN REGISTERED OR QUALIFIED UNDER THE SECURITIES ACT OF 1933, AS AMENDED (THE “SECURITIES ACT”), OR THE SECURITIES LAWS OF ANY STATE AND THE ISSUER IS NOT AND WILL NOT BE REGISTERED UNDER THE UNITED STATES INVESTMENT COMPANY ACT OF 1940, AS AMENDED (THE “INVESTMENT COMPANY ACT”). ANY RESALE, PLEDGE, TRANSFER OR OTHER DISPOSITION OF THIS NOTE OR ANY INTEREST HEREIN WITHOUT SUCH REGISTRATION OR QUALIFICATION MAY BE MADE ONLY IN A TRANSACTION WHICH DOES NOT REQUIRE SUCH REGISTRATION OR QUALIFICATION AND WHICH IS IN ACCORDANCE WITH THE PROVISIONS OF SECTION 4.02 OF THE INDENTURE REFERRED TO HEREIN.

THE INITIAL INVESTOR IN THIS NOTE, AND EACH SUBSEQUENT PURCHASER OF THIS NOTE, BY PURCHASING THIS NOTE OR AN INTEREST HEREIN, IS DEEMED TO HAVE AGREED TO COMPLY WITH CERTAIN TRANSFER REQUIREMENTS SET FORTH IN THE INDENTURE REFERRED TO HEREIN.

BY ACQUIRING THIS CLASS A NOTE (OR ANY INTEREST HEREIN), EACH PURCHASER AND TRANSFEREE (AND, ITS FIDUCIARY, IF APPLICABLE) WILL BE DEEMED TO REPRESENT AND WARRANT THAT EITHER (A) IT IS NOT ACQUIRING AND WILL NOT HOLD SUCH NOTE (OR INTEREST HEREIN) WITH THE ASSETS OF A PLAN (AS DEFINED BELOW) THAT IS SUBJECT TO TITLE I OF THE EMPLOYEE RETIREMENT INCOME SECURITY ACT OF 1974, AS AMENDED (“ERISA”) OR SECTION 4975 OF THE INTERNAL REVENUE CODE OF 1986, AS AMENDED (THE “CODE”) (EACH OF THE FOREGOING, A “BENEFIT PLAN INVESTOR”) OR THAT IS SUBJECT TO A LAW THAT IS SUBSTANTIALLY SIMILAR TO TITLE I OF ERISA OR SECTION 4975 OF THE CODE (“SIMILAR LAW”) OR (B)(1) THE NOTE IS RATED AT LEAST “BBB-” OR ITS EQUIVALENT BY A NATIONALLY RECOGNIZED STATISTICAL RATING AGENCY AT THE TIME OF ACQUISITION OR TRANSFER AND THE NOTE HAS NOT BEEN CHARACTERIZED AS OTHER THAN INDEBTEDNESS UNDER APPLICABLE LOCAL LAW AND (2) THE ACQUISITION, HOLDING AND DISPOSITION OF THE NOTE (OR INTEREST HEREIN) WILL NOT, IN THE CASE OF A BENEFIT PLAN INVESTOR, GIVE RISE TO A NON-EXEMPT PROHIBITED TRANSACTION UNDER SECTION 406 OF ERISA OR SECTION 4975 OF THE CODE OR, IN THE CASE OF A PLAN THAT IS SUBJECT TO SIMILAR LAW, RESULT IN A VIOLATION OF ANY SIMILAR LAW. FOR THESE

PURPOSES, A “PLAN” MEANS AN “EMPLOYEE BENEFIT PLAN” AS DEFINED IN SECTION 3(3) OF ERISA WHETHER OR NOT SUBJECT TO TITLE I OF ERISA, A “PLAN” AS DEFINED IN SECTION 4975 OF THE CODE, OR AN ENTITY OR ACCOUNT DEEMED TO HOLD PLAN ASSETS OF THE FOREGOING BY VIRTUE OF SUCH EMPLOYEE BENEFIT PLAN’S OR PLAN’S INVESTMENT IN THE ENTITY OR ACCOUNT.

THIS NOTE REPRESENTS A NON-RECOURSE OBLIGATION OF THE ISSUER AND WILL BE PAID SOLELY FROM THE COLLATERAL SECURING THIS NOTE. NEITHER THIS NOTE NOR THE COLLATERAL IS INSURED OR GUARANTEED BY ANY GOVERNMENTAL AGENCY OR INSTRUMENTALITY OR BY ANY OTHER PERSON.

PAYMENTS IN REDUCTION OF THE INITIAL NOTE AMOUNT OF THIS NOTE MAY BE MADE MONTHLY AS SET FORTH IN THE INDENTURE REFERRED TO HEREIN. ACCORDINGLY, THE OUTSTANDING NOTE AMOUNT HEREOF AT ANY TIME MAY BE LESS THAN THE AMOUNT SHOWN ABOVE.

This certifies that Cede & Co. is the registered owner (the “Holder”) of this Note which is one of the Notes (collectively, the “Notes”) issued by the Issuer referred to above pursuant to the indenture, dated August 28, 2025 (the “Indenture”), among, *inter alios*, the Issuer referred to above, THE BANK OF NEW YORK MELLON, as paying agent (the “Paying Agent”), registrar (the “Registrar”), REMIC administrator (the “REMIC Administrator”) and the Indenture Trustee referred to above, on behalf of the holders of the Notes (the “Noteholders”), and FIGURE LENDING LLC, as sponsor (the “Sponsor”), a summary of certain of the pertinent provisions of which is set forth hereafter. To the extent not defined herein, capitalized terms used herein have the respective meanings assigned in the Indenture. This Note is issued under and is subject to the terms, provisions and conditions of the Indenture, to which Indenture the Holder of this Note by virtue of the acceptance hereof assents and by which such holder is bound.

Pursuant to the terms of the Indenture, payments on the Notes will be made on the 25th day of each month, or the immediately following Business Day if the 25th day is not a Business Day (each, a “Payment Date”), commencing in September 2025. All payments made under the Indenture on this Note will be made by the Paying Agent to the Depository and the Depository shall be responsible for crediting the amount of such distribution to the accounts of its Depository Participants in accordance with its normal procedures.

The Notes are limited in right of payment to certain distributions on the Mortgage Loans and other amounts, all as more specifically set forth herein and in the Indenture. As provided in the Indenture, withdrawals from the Payment Account may be made from time to time for purposes other than, and, in certain cases, prior to, payments to Noteholders, such purposes including reimbursement of certain expenses incurred by the transaction parties.

Any payment to the Holder of this Note in reduction of the Denomination hereof is binding on such Holder and all future Holders of this Note and any Note issued upon the transfer hereof or in exchange herefor or in lieu hereof whether or not notation of such payment is made upon this Note.

The Notes are issuable in fully registered form only without coupons in minimum denominations specified in the Indenture. As provided in the Indenture and subject to certain limitations therein set forth, this Note is exchangeable for new Notes in authorized denominations evidencing the same aggregate Denomination, as requested by the Holder surrendering the same.

No transfer, sale, pledge or other disposition of this Note or interest herein shall be made unless that transfer, sale, pledge or other disposition is exempt from the registration and/or qualification requirements of the Securities Act and any applicable state securities laws, or is otherwise made in accordance with the Securities Act and such state securities laws. If a transfer of this Note is to be made without registration under the Securities Act, and a Responsible Officer of the Registrar has actual knowledge thereof, then the Registrar shall refuse to register such transfer unless it and the Indenture Trustee receive (and upon receipt, may conclusively rely upon) certain certificate(s) required pursuant to Section 4.02 of the Indenture (as to which, so long as this Note is a Book-Entry Note, the representations and agreements made therein will be deemed to have been made by the prospective transferor and/or the prospective transferee, as applicable). None of the Issuer, the Indenture Trustee, the Paying Agent, REMIC Administrator or the Registrar is obligated to register or qualify any Notes under the Securities Act or any other securities law or to take any action not otherwise required under the Indenture to permit the transfer of any Note or interest therein without registration or qualification. Any Noteholder desiring to effect a transfer of Notes or interests therein shall, and does hereby agree to, indemnify the Issuer, the Indenture Trustee, the Paying Agent and the Registrar against any liability that may result if the transfer is not so exempt or is not made in accordance with such federal and state laws.

As provided in the Indenture and subject to certain limitations therein set forth, the transfer of this Note is registrable in the Register upon surrender of this Note for registration of transfer at the applicable Corporate Trust Office of the Registrar, duly endorsed by, or accompanied by a written instrument of transfer in the form satisfactory to the Registrar and the Indenture Trustee duly executed by, the Holder hereof or his attorney duly authorized in writing, and thereupon one or more new Notes in authorized denominations evidencing the same aggregate Denomination will be issued to the designated transferee or transferees.

No service charge will be imposed for any registration of transfer or exchange of this Note, but the Indenture Trustee or the Registrar may require payment of a sum sufficient to cover any tax or other governmental charge that may be imposed in connection with any transfer or exchange of this Note.

The Issuer, the Indenture Trustee, the Paying Agent, the Registrar and any agent thereof may treat the Person in whose name this Note is registered as the owner hereof for all purposes, and none of the Issuer, the Indenture Trustee, the Paying Agent, the Registrar or any such agent shall be affected by notice to the contrary.

Each Noteholder, by acceptance of a Class A Note or a beneficial interest therein, as the case may be, covenants and agrees that no recourse may be taken, directly or indirectly, with respect to the obligations of the Issuer, the Owner Trustee, the Depositor, the Depositor Trustee, the Indenture Trustee, the Registrar, the REMIC Administrator or the Paying Agent on the Notes or under the Indenture or any certificate or other writing delivered in connection herewith or therewith, against (i) the Indenture Trustee, the Registrar, the REMIC Administrator the Paying

Agent, the Administrator, the Servicer, the Sponsor, the Depositor, the Owner Trustee or the Depositor Trustee in its individual capacity except as provided in the Transaction Documents (it being understood that the Owner Trustee has no such obligation in its individual capacity), (ii) any direct or indirect holder of a beneficial ownership interest in the Issuer or the Depositor or (iii) any partner, owner, beneficiary, agent, officer, director, employee or agent of the Indenture Trustee, the Registrar, the REMIC Administrator the Paying Agent, the Administrator, the Servicer, the Sponsor, the Depositor, the Owner Trustee or the Depositor Trustee in its individual capacity, any direct or indirect holder of a beneficial ownership interest in the Issuer, the Owner Trustee, the Depositor Trustee, the Indenture Trustee, the Registrar, the REMIC Administrator or the Paying Agent. For all purposes of the Indenture, (x) in the performance of any duties or obligations of the Issuer thereunder, each of the Administrator and the Owner Trustee shall be subject to, and entitled to the benefits of, the Trust Agreement, (y) in the performance of any duties or obligations of the Depositor thereunder, each of the Depositor Trustee and the Administrator shall be subject to, and entitled to the benefits of, the Depositor Trust Agreement and (z) in the performance of any duties or obligations of the Indenture Trustee, REMIC Administrator, Registrar, or Paying Agent thereunder, each of the Indenture Trustee, REMIC Administrator, Registrar, and Paying Agent shall be subject to, and entitled to the benefits of, the Indenture.

The Indenture will be discharged (except with respect to certain continuing rights specified in the Indenture) in accordance with the provisions therein.

Modifications of and amendments to the Indenture may be made by the Issuer, the Paying Agent, the Registrar, the REMIC Administrator and the Indenture Trustee in accordance with the provisions of the Indenture.

Unless the certificate of authentication hereon has been executed by the Registrar, by manual signature, this Note shall not be entitled to any benefit under the Indenture or be valid for any purpose.

This Note is a “regular interest” in a “real estate mortgage investment conduit,” as those terms are defined, respectively, in Sections 860G(a)(1) and 860D of the Code. Each Holder of this Note, by acceptance hereof, agrees to treat, and take no action inconsistent with the treatment of, this Note in accordance with the preceding sentence for purposes of U.S. federal income taxes, state and local income and franchise taxes and other taxes imposed on or measured by income.

The registered Holder hereof, by its acceptance hereof agrees that it will look solely to the Trust Estate (to the extent of its rights therein) for payments hereunder.

This Note shall be construed in accordance with the internal laws of the State of New York applicable to agreements made and to be performed in said State other than its conflicts of law principles except for Section 5-1401 and 1402 of the General Obligations Law, and the obligations, rights and remedies of the Holder hereof shall be determined in accordance with such laws.

IN WITNESS WHEREOF, the Issuer has caused this instrument to be duly executed by its Authorized Officer, as of the date set forth below.

FIGRE TRUST 2025-HE5,
as Issuer

By: Wilmington Savings Fund Society, FSB,
not in its individual capacity but solely
as Owner Trustee

By: _____
Name:
Title:
Dated:

CERTIFICATE OF AUTHENTICATION

This is one of the Class A Notes referred to in the within mentioned Indenture.

The Bank of New York Mellon,
as Registrar

By: _____
Authorized Officer
Dated: _____

ASSIGNMENT

FOR VALUE RECEIVED, the undersigned hereby sell(s), assign(s) and transfer(s) unto

(please print or typewrite name and address including postal zip code of assignee)

the within Note and all rights thereunder and hereby authorize(s) the registration of transfer of such interest to assignee on the Register.

I (we) further direct the Registrar to issue a new Note of a like aggregate Denomination to the above named assignee and deliver such Note to the following address:

Dated:

Signature by or on behalf of Assignor

Signature Guaranteed

*1

PAYMENT INSTRUCTIONS

The Assignee should include the following for purposes of payment:

Payments shall, if permitted, be made by wire transfer or otherwise, in immediately available _____ funds, _____ to

_____ for the account of _____.

Payments made by check (such check to be made payable to _____) and all applicable statements and notices should be mailed to _____.

This information is provided by _____, the Assignee named above, or _____, as its agent.

* NOTICE: The signature to this assignment must correspond with the name of the registered owner as it appears on the face of the within Note in every particular, without alteration, enlargement or any change whatsoever. Such signature must, at the election of the Registrar, be guaranteed by an "eligible guarantor institution" meeting the requirements of the Registrar.

Exhibit A-1B

**FORM OF TEMPORARY REGULATION S GLOBAL CLASS A NOTE
FIGRE TRUST 2025-HE5 MORTGAGE-BACKED NOTES, SERIES 2025-HE5**

Interest Rate: As set forth in the Indenture	Date of Indenture: August 28, 2025
Initial Note Amount: \$[●]	Closing Date: August 28, 2025
Minimum Denomination of this Note: \$150,000	Initial Payment Date: September 2025
Legal Final Maturity: Payment Date occurring in August 2055	Note No.: [●]
CUSIP: U3202RAA5	ISIN: USU3202RAA50
Issuer: FIGRE TRUST 2025-HE5, a Delaware statutory trust	Indenture Trustee: THE BANK OF NEW YORK MELLON

THIS NOTE IS A TEMPORARY REGULATION S GLOBAL NOTE FOR PURPOSES OF REGULATION S UNDER THE UNITED STATES SECURITIES ACT OF 1933, AS AMENDED (THE “SECURITIES ACT”). NEITHER THIS TEMPORARY REGULATION S GLOBAL NOTE NOR ANY INTEREST HEREIN MAY BE OFFERED, SOLD OR DELIVERED, EXCEPT AS PERMITTED UNDER THE INDENTURE REFERRED TO HEREIN.

UNLESS THIS NOTE IS PRESENTED BY AN AUTHORIZED REPRESENTATIVE OF THE DEPOSITORY TRUST COMPANY, A NEW YORK CORPORATION (“DTC”), TO THE REGISTRAR, THE INDENTURE TRUSTEE OR THEIR AGENT FOR REGISTRATION OF TRANSFER, EXCHANGE, OR PAYMENT, AND ANY NOTE ISSUED IS REGISTERED IN THE NAME OF CEDE & CO. OR IN SUCH OTHER NAME AS IS REQUESTED BY AN AUTHORIZED REPRESENTATIVE OF DTC (AND ANY PAYMENT IS MADE TO CEDE & CO. OR TO SUCH OTHER ENTITY AS IS REQUESTED BY AN AUTHORIZED REPRESENTATIVE OF DTC), ANY TRANSFER, PLEDGE, OR OTHER USE HEREOF FOR VALUE OR OTHERWISE BY OR TO ANY PERSON IS WRONGFUL INASMUCH AS THE REGISTERED OWNER HEREOF, CEDE & CO., HAS AN INTEREST HEREIN.

THIS NOTE HAS NOT BEEN REGISTERED OR QUALIFIED UNDER THE SECURITIES ACT, OR THE SECURITIES LAWS OF ANY STATE AND THE ISSUER IS NOT AND WILL NOT BE REGISTERED UNDER THE UNITED STATES INVESTMENT COMPANY ACT OF 1940, AS AMENDED (THE “INVESTMENT COMPANY ACT”). ANY RESALE, PLEDGE, TRANSFER OR OTHER DISPOSITION OF THIS NOTE OR ANY INTEREST HEREIN WITHOUT SUCH REGISTRATION OR QUALIFICATION MAY BE MADE ONLY IN A TRANSACTION WHICH DOES NOT REQUIRE SUCH REGISTRATION OR QUALIFICATION AND WHICH IS IN ACCORDANCE WITH THE PROVISIONS OF SECTION 4.02 OF THE INDENTURE REFERRED TO HEREIN.

THE HOLDER OF THIS NOTE BY ITS ACCEPTANCE HEREOF AGREES NOT TO OFFER, SELL OR OTHERWISE TRANSFER SUCH NOTE WITHIN THE UNITED STATES OR TO U.S. PERSONS (AS DEFINED IN REGULATION S UNDER THE SECURITIES ACT) PRIOR TO THE EXCHANGE DATE EXCEPT PURSUANT TO AN EXEMPTION FROM THE REGISTRATION REQUIREMENTS OF THE SECURITIES ACT.

THE INITIAL INVESTOR IN THIS NOTE, AND EACH SUBSEQUENT PURCHASER OF THIS NOTE, BY PURCHASING THIS NOTE OR AN INTEREST HEREIN, IS DEEMED TO HAVE AGREED TO COMPLY WITH CERTAIN TRANSFER REQUIREMENTS SET FORTH IN THE INDENTURE REFERRED TO HEREIN.

BY ACQUIRING THIS CLASS A NOTE (OR ANY INTEREST HEREIN), EACH PURCHASER AND TRANSFEREE (AND, ITS FIDUCIARY, IF APPLICABLE) WILL BE DEEMED TO REPRESENT AND WARRANT THAT EITHER (A) IT IS NOT ACQUIRING AND WILL NOT HOLD SUCH NOTE (OR INTEREST HEREIN) WITH THE ASSETS OF A PLAN (AS DEFINED BELOW) THAT IS SUBJECT TO TITLE I OF

THE EMPLOYEE RETIREMENT INCOME SECURITY ACT OF 1974, AS AMENDED (“ERISA”) OR SECTION 4975 OF THE INTERNAL REVENUE CODE OF 1986, AS AMENDED (THE “CODE”) (EACH OF THE FOREGOING, A “BENEFIT PLAN INVESTOR”) OR THAT IS SUBJECT TO A LAW THAT IS SUBSTANTIALLY SIMILAR TO TITLE I OF ERISA OR SECTION 4975 OF THE CODE (“SIMILAR LAW”) OR (B)(1) THE NOTE IS RATED AT LEAST “BBB-” OR ITS EQUIVALENT BY A NATIONALLY RECOGNIZED STATISTICAL RATING AGENCY AT THE TIME OF ACQUISITION OR TRANSFER AND THE NOTE HAS NOT BEEN CHARACTERIZED AS OTHER THAN INDEBTEDNESS UNDER APPLICABLE LOCAL LAW AND (2) THE ACQUISITION, HOLDING AND DISPOSITION OF THE NOTE (OR INTEREST HEREIN) WILL NOT, IN THE CASE OF A BENEFIT PLAN INVESTOR, GIVE RISE TO A NON-EXEMPT PROHIBITED TRANSACTION UNDER SECTION 406 OF ERISA OR SECTION 4975 OF THE CODE OR, IN THE CASE OF A PLAN THAT IS SUBJECT TO SIMILAR LAW, RESULT IN A VIOLATION OF ANY SIMILAR LAW. FOR THESE PURPOSES, A “PLAN” MEANS AN “EMPLOYEE BENEFIT PLAN” AS DEFINED IN SECTION 3(3) OF ERISA WHETHER OR NOT SUBJECT TO TITLE I OF ERISA, A “PLAN” AS DEFINED IN SECTION 4975 OF THE CODE, OR AN ENTITY OR ACCOUNT DEEMED TO HOLD PLAN ASSETS OF THE FOREGOING BY VIRTUE OF SUCH EMPLOYEE BENEFIT PLAN’S OR PLAN’S INVESTMENT IN THE ENTITY OR ACCOUNT.

THIS NOTE REPRESENTS A NON-RECOURSE OBLIGATION OF THE ISSUER AND WILL BE PAID SOLELY FROM THE COLLATERAL SECURING THIS NOTE. NEITHER THIS NOTE NOR THE COLLATERAL IS INSURED OR GUARANTEED BY ANY GOVERNMENTAL AGENCY OR INSTRUMENTALITY OR BY ANY OTHER PERSON.

PAYMENTS IN REDUCTION OF THE INITIAL NOTE AMOUNT OF THIS NOTE MAY BE MADE MONTHLY AS SET FORTH IN THE INDENTURE REFERRED TO HEREIN. ACCORDINGLY, THE OUTSTANDING NOTE AMOUNT HEREOF AT ANY TIME MAY BE LESS THAN THE AMOUNT SHOWN ABOVE.

This certifies that Cede & Co. is the registered owner (the “Holder”) of this Note which is one of the Notes (collectively, the “Notes”) issued by the Issuer referred to above pursuant to the indenture, dated August 28, 2025 (the “Indenture”), among, *inter alios*, the Issuer referred to above, THE BANK OF NEW YORK MELLON, as paying agent (the “Paying Agent”), registrar (the “Registrar”), REMIC administrator (the “REMIC Administrator”) and the Indenture Trustee referred to above, on behalf of the holders of the Notes (the “Noteholders”), and FIGURE LENDING LLC, as sponsor (the “Sponsor”), a summary of certain of the pertinent provisions of which is set forth hereafter. To the extent not defined herein, capitalized terms used herein have the respective meanings assigned in the Indenture. This Note is issued under and is subject to the terms, provisions and conditions of the Indenture, to which Indenture the Holder of this Note by virtue of the acceptance hereof assents and by which such holder is bound.

Pursuant to the terms of the Indenture, payments on the Notes will be made on the 25th day of each month, or the immediately following Business Day if the 25th day is not a Business Day (each, a “Payment Date”), commencing in September 2025. All payments made under the

Indenture on this Note will be made by the Paying Agent to the Depository and the Depository shall be responsible for crediting the amount of such distribution to the accounts of its Depository Participants in accordance with its normal procedures.

The Notes are limited in right of payment to certain distributions on the Mortgage Loans and other amounts, all as more specifically set forth herein and in the Indenture. As provided in the Indenture, withdrawals from the Payment Account may be made from time to time for purposes other than, and, in certain cases, prior to, payments to Noteholders, such purposes including reimbursement of certain expenses incurred by the transaction parties.

Any payment to the Holder of this Note in reduction of the Denomination hereof is binding on such Holder and all future Holders of this Note and any Note issued upon the transfer hereof or in exchange herefor or in lieu hereof whether or not notation of such payment is made upon this Note.

The Notes are issuable in fully registered form only without coupons in minimum denominations specified in the Indenture. As provided in the Indenture and subject to certain limitations therein set forth, this Note is exchangeable for new Notes in authorized denominations evidencing the same aggregate Denomination, as requested by the Holder surrendering the same.

No transfer, sale, pledge or other disposition of this Note or interest herein shall be made unless that transfer, sale, pledge or other disposition is exempt from the registration and/or qualification requirements of the Securities Act and any applicable state securities laws, or is otherwise made in accordance with the Securities Act and such state securities laws. If a transfer of this Note is to be made without registration under the Securities Act, and a Responsible Officer of the Registrar has actual knowledge thereof, then the Registrar shall refuse to register such transfer unless it and the Indenture Trustee receive (and upon receipt, may conclusively rely upon) certain certificate(s) required pursuant to Section 4.02 of the Indenture (as to which, so long as this Note is a Book-Entry Note, the representations and agreements made therein will be deemed to have been made by the prospective transferor and/or the prospective transferee, as applicable). None of the Issuer, the Indenture Trustee, the Paying Agent, REMIC Administrator or the Registrar is obligated to register or qualify any Notes under the Securities Act or any other securities law or to take any action not otherwise required under the Indenture to permit the transfer of any Note or interest therein without registration or qualification. Any Noteholder desiring to effect a transfer of Notes or interests therein shall, and does hereby agree to, indemnify the Issuer, the Indenture Trustee, the Paying Agent and the Registrar against any liability that may result if the transfer is not so exempt or is not made in accordance with such federal and state laws.

As provided in the Indenture and subject to certain limitations therein set forth, the transfer of this Note is registrable in the Register upon surrender of this Note for registration of transfer at the applicable Corporate Trust Office of the Registrar, duly endorsed by, or accompanied by a written instrument of transfer in the form satisfactory to the Registrar and the Indenture Trustee duly executed by, the Holder hereof or his attorney duly authorized in writing, and thereupon one or more new Notes in authorized denominations evidencing the same aggregate Denomination will be issued to the designated transferee or transferees.

No service charge will be imposed for any registration of transfer or exchange of this Note, but the Indenture Trustee or the Registrar may require payment of a sum sufficient to cover any tax or other governmental charge that may be imposed in connection with any transfer or exchange of this Note.

The Issuer, the Indenture Trustee, the Paying Agent, the Registrar and any agent thereof may treat the Person in whose name this Note is registered as the owner hereof for all purposes, and none of the Issuer, the Indenture Trustee, the Paying Agent, the Registrar or any such agent shall be affected by notice to the contrary.

Each Noteholder, by acceptance of a Class A Note or a beneficial interest therein, as the case may be, covenants and agrees that no recourse may be taken, directly or indirectly, with respect to the obligations of the Issuer, the Owner Trustee, the Depositor, the Depositor Trustee, the Indenture Trustee, the Registrar, the REMIC Administrator or the Paying Agent on the Notes or under the Indenture or any certificate or other writing delivered in connection herewith or therewith, against (i) the Indenture Trustee, the Registrar, the REMIC Administrator the Paying Agent, the Administrator, the Servicer, the Sponsor, the Depositor, the Owner Trustee or the Depositor Trustee in its individual capacity except as provided in the Transaction Documents (it being understood that the Owner Trustee has no such obligation in its individual capacity), (ii) any direct or indirect holder of a beneficial ownership interest in the Issuer or the Depositor or (iii) any partner, owner, beneficiary, agent, officer, director, employee or agent of the Indenture Trustee, the Registrar, the REMIC Administrator the Paying Agent, the Administrator, the Servicer, the Sponsor, the Depositor, the Owner Trustee or the Depositor Trustee in its individual capacity, any direct or indirect holder of a beneficial ownership interest in the Issuer, the Owner Trustee, the Depositor Trustee, the Indenture Trustee, the Registrar, the REMIC Administrator or the Paying Agent. For all purposes of the Indenture, (x) in the performance of any duties or obligations of the Issuer thereunder, each of the Administrator and the Owner Trustee shall be subject to, and entitled to the benefits of, the Trust Agreement, (y) in the performance of any duties or obligations of the Depositor thereunder, each of the Depositor Trustee and the Administrator shall be subject to, and entitled to the benefits of, the Depositor Trust Agreement and (z) in the performance of any duties or obligations of the Indenture Trustee, REMIC Administrator, Registrar, or Paying Agent thereunder, each of the Indenture Trustee, REMIC Administrator, Registrar, and Paying Agent shall be subject to, and entitled to the benefits of, the Indenture.

The Indenture will be discharged (except with respect to certain continuing rights specified in the Indenture) in accordance with the provisions therein.

Modifications of and amendments to the Indenture may be made by the Issuer, the Paying Agent, the Registrar, the REMIC Administrator and the Indenture Trustee in accordance with the provisions of the Indenture.

Unless the certificate of authentication hereon has been executed by the Registrar, by manual signature, this Note shall not be entitled to any benefit under the Indenture or be valid for any purpose.

This Note is a “regular interest” in a “real estate mortgage investment conduit,” as those terms are defined, respectively, in Sections 860G(a)(1) and 860D of the Code. Each Holder of this

Note, by acceptance hereof, agrees to treat, and take no action inconsistent with the treatment of, this Note in accordance with the preceding sentence for purposes of U.S. federal income taxes, state and local income and franchise taxes and other taxes imposed on or measured by income.

The registered Holder hereof, by its acceptance hereof agrees that it will look solely to the Trust Estate (to the extent of its rights therein) for payments hereunder.

This Note shall be construed in accordance with the internal laws of the State of New York applicable to agreements made and to be performed in said State other than its conflicts of law principles except for Section 5-1401 and 1402 of the General Obligations Law, and the obligations, rights and remedies of the Holder hereof shall be determined in accordance with such laws.

IN WITNESS WHEREOF, the Issuer has caused this instrument to be duly executed by its Authorized Officer, as of the date set forth below.

FIGRE TRUST 2025-HE5,
as Issuer

By: Wilmington Savings Fund Society, FSB,
not in its individual capacity but solely
as Owner Trustee

By: _____
Name:
Title:
Dated:

CERTIFICATE OF AUTHENTICATION

This is one of the Class A Notes referred to in the within mentioned Indenture.

The Bank of New York Mellon,
as Registrar

By: _____
Authorized Officer
Dated: _____

ASSIGNMENT

FOR VALUE RECEIVED, the undersigned hereby sell(s), assign(s) and transfer(s) unto

(please print or typewrite name and address including postal zip code of assignee)

the within Note and all rights thereunder and hereby authorize(s) the registration of transfer of such interest to assignee on the Register.

I (we) further direct the Registrar to issue a new Note of a like aggregate Denomination to the above named assignee and deliver such Note to the following address:

Dated:

Signature by or on behalf of Assignor

Signature Guaranteed

*2

PAYMENT INSTRUCTIONS

The Assignee should include the following for purposes of payment:

Payments shall, if permitted, be made by wire transfer or otherwise, in immediately available _____ funds, _____ to

_____ for the account of _____.

Payments made by check (such check to be made payable to _____) and all applicable statements and notices should be mailed to _____.

This information is provided by _____, the Assignee named above, or _____, as its agent.

* NOTICE: The signature to this assignment must correspond with the name of the registered owner as it appears on the face of the within Note in every particular, without alteration, enlargement or any change whatsoever. Such signature must, at the election of the Registrar, be guaranteed by an "eligible guarantor institution" meeting the requirements of the Registrar.

Exhibit A-1C

**FORM OF PERMANENT REGULATION S GLOBAL CLASS A NOTE
FIGRE TRUST 2025-HE5 MORTGAGE-BACKED NOTES, SERIES 2025-HE5**

Interest Rate: As set forth in the Indenture	Date of Indenture: August 28, 2025
Initial Note Amount: \$[•]	Closing Date: August 28, 2025
Minimum Denomination of this Note: \$150,000	Initial Payment Date: September 2025
Legal Final Maturity: Payment Date occurring in August 2055	Note No.: [•]
CUSIP: U3202RAA5	ISIN: USU3202RAA50
Issuer: FIGRE TRUST 2025-HE5, a Delaware statutory trust	Indenture Trustee: THE BANK OF NEW YORK MELLON

THIS NOTE IS A PERMANENT REGULATION S GLOBAL NOTE FOR PURPOSES OF REGULATION S UNDER THE UNITED STATES SECURITIES ACT OF 1933, AS AMENDED (THE “SECURITIES ACT”). NEITHER THIS PERMANENT REGULATION S GLOBAL NOTE NOR ANY INTEREST HEREIN MAY BE OFFERED, SOLD OR DELIVERED, EXCEPT AS PERMITTED UNDER THE INDENTURE REFERRED TO HEREIN.

UNLESS THIS NOTE IS PRESENTED BY AN AUTHORIZED REPRESENTATIVE OF THE DEPOSITORY TRUST COMPANY, A NEW YORK CORPORATION (“DTC”), TO THE REGISTRAR, THE INDENTURE TRUSTEE OR THEIR AGENT FOR REGISTRATION OF TRANSFER, EXCHANGE, OR PAYMENT, AND ANY NOTE ISSUED IS REGISTERED IN THE NAME OF CEDE & CO. OR IN SUCH OTHER NAME AS IS REQUESTED BY AN AUTHORIZED REPRESENTATIVE OF DTC (AND ANY PAYMENT IS MADE TO CEDE & CO. OR TO SUCH OTHER ENTITY AS IS REQUESTED BY AN AUTHORIZED REPRESENTATIVE OF DTC), ANY TRANSFER, PLEDGE, OR OTHER USE HEREOF FOR VALUE OR OTHERWISE BY OR TO ANY PERSON IS WRONGFUL INASMUCH AS THE REGISTERED OWNER HEREOF, CEDE & CO., HAS AN INTEREST HEREIN.

THIS NOTE HAS NOT BEEN REGISTERED OR QUALIFIED UNDER THE SECURITIES ACT, OR THE SECURITIES LAWS OF ANY STATE AND THE ISSUER IS NOT AND WILL NOT BE REGISTERED UNDER THE UNITED STATES INVESTMENT COMPANY ACT OF 1940, AS AMENDED (THE “INVESTMENT COMPANY ACT”). ANY RESALE, PLEDGE, TRANSFER OR OTHER DISPOSITION OF THIS NOTE OR ANY INTEREST HEREIN WITHOUT SUCH REGISTRATION OR QUALIFICATION MAY BE MADE ONLY IN A TRANSACTION WHICH DOES NOT REQUIRE SUCH REGISTRATION OR QUALIFICATION AND WHICH IS IN ACCORDANCE WITH THE PROVISIONS OF SECTION 4.02 OF THE INDENTURE REFERRED TO HEREIN.

THE HOLDER OF THIS NOTE BY ITS ACCEPTANCE HEREOF AGREES NOT TO OFFER, SELL OR OTHERWISE TRANSFER SUCH NOTE WITHIN THE UNITED STATES OR TO U.S. PERSONS (AS DEFINED IN REGULATION S UNDER THE SECURITIES ACT) PRIOR TO THE EXCHANGE DATE EXCEPT PURSUANT TO AN EXEMPTION FROM THE REGISTRATION REQUIREMENTS OF THE SECURITIES ACT.

THE INITIAL INVESTOR IN THIS NOTE, AND EACH SUBSEQUENT PURCHASER OF THIS NOTE, BY PURCHASING THIS NOTE OR AN INTEREST HEREIN, IS DEEMED TO HAVE AGREED TO COMPLY WITH CERTAIN TRANSFER REQUIREMENTS SET FORTH IN THE INDENTURE REFERRED TO HEREIN.

BY ACQUIRING THIS CLASS A NOTE (OR ANY INTEREST HEREIN), EACH PURCHASER AND TRANSFEREE (AND, ITS FIDUCIARY, IF APPLICABLE) WILL BE DEEMED TO REPRESENT AND WARRANT THAT EITHER (A) IT IS NOT ACQUIRING AND WILL NOT HOLD SUCH NOTE (OR INTEREST HEREIN) WITH THE ASSETS OF A PLAN (AS DEFINED BELOW) THAT IS SUBJECT TO TITLE I OF

THE EMPLOYEE RETIREMENT INCOME SECURITY ACT OF 1974, AS AMENDED (“ERISA”) OR SECTION 4975 OF THE INTERNAL REVENUE CODE OF 1986, AS AMENDED (THE “CODE”) (EACH OF THE FOREGOING, A “BENEFIT PLAN INVESTOR”) OR THAT IS SUBJECT TO A LAW THAT IS SUBSTANTIALLY SIMILAR TO TITLE I OF ERISA OR SECTION 4975 OF THE CODE (“SIMILAR LAW”) OR (B)(1) THE NOTE IS RATED AT LEAST “BBB-” OR ITS EQUIVALENT BY A NATIONALLY RECOGNIZED STATISTICAL RATING AGENCY AT THE TIME OF ACQUISITION OR TRANSFER AND THE NOTE HAS NOT BEEN CHARACTERIZED AS OTHER THAN INDEBTEDNESS UNDER APPLICABLE LOCAL LAW AND (2) THE ACQUISITION, HOLDING AND DISPOSITION OF THE NOTE (OR INTEREST HEREIN) WILL NOT, IN THE CASE OF A BENEFIT PLAN INVESTOR, GIVE RISE TO A NON-EXEMPT PROHIBITED TRANSACTION UNDER SECTION 406 OF ERISA OR SECTION 4975 OF THE CODE OR, IN THE CASE OF A PLAN THAT IS SUBJECT TO SIMILAR LAW, RESULT IN A VIOLATION OF ANY SIMILAR LAW. FOR THESE PURPOSES, A “PLAN” MEANS AN “EMPLOYEE BENEFIT PLAN” AS DEFINED IN SECTION 3(3) OF ERISA WHETHER OR NOT SUBJECT TO TITLE I OF ERISA, A “PLAN” AS DEFINED IN SECTION 4975 OF THE CODE, OR AN ENTITY OR ACCOUNT DEEMED TO HOLD PLAN ASSETS OF THE FOREGOING BY VIRTUE OF SUCH EMPLOYEE BENEFIT PLAN’S OR PLAN’S INVESTMENT IN THE ENTITY OR ACCOUNT.

THIS NOTE REPRESENTS A NON-RECOURSE OBLIGATION OF THE ISSUER AND WILL BE PAID SOLELY FROM THE COLLATERAL SECURING THIS NOTE. NEITHER THIS NOTE NOR THE COLLATERAL IS INSURED OR GUARANTEED BY ANY GOVERNMENTAL AGENCY OR INSTRUMENTALITY OR BY ANY OTHER PERSON.

PAYMENTS IN REDUCTION OF THE INITIAL NOTE AMOUNT OF THIS NOTE MAY BE MADE MONTHLY AS SET FORTH IN THE INDENTURE REFERRED TO HEREIN. ACCORDINGLY, THE OUTSTANDING NOTE AMOUNT HEREOF AT ANY TIME MAY BE LESS THAN THE AMOUNT SHOWN ABOVE.

This certifies that Cede & Co. is the registered owner (the “Holder”) of this Note which is one of the Notes (collectively, the “Notes”) issued by the Issuer referred to above pursuant to the indenture, dated August 28, 2025 (the “Indenture”), among, *inter alios*, the Issuer referred to above, THE BANK OF NEW YORK MELLON, as paying agent (the “Paying Agent”), registrar (the “Registrar”), REMIC administrator (the “REMIC Administrator”) and the Indenture Trustee referred to above, on behalf of the holders of the Notes (the “Noteholders”), and FIGURE LENDING LLC, as sponsor (the “Sponsor”), a summary of certain of the pertinent provisions of which is set forth hereafter. To the extent not defined herein, capitalized terms used herein have the respective meanings assigned in the Indenture. This Note is issued under and is subject to the terms, provisions and conditions of the Indenture, to which Indenture the Holder of this Note by virtue of the acceptance hereof assents and by which such holder is bound.

Pursuant to the terms of the Indenture, payments on the Notes will be made on the 25th day of each month, or the immediately following Business Day if the 25th day is not a Business Day (each, a “Payment Date”), commencing in September 2025. All payments made under the

Indenture on this Note will be made by the Paying Agent to the Depository and the Depository shall be responsible for crediting the amount of such distribution to the accounts of its Depository Participants in accordance with its normal procedures.

The Notes are limited in right of payment to certain distributions on the Mortgage Loans and other amounts, all as more specifically set forth herein and in the Indenture. As provided in the Indenture, withdrawals from the Payment Account may be made from time to time for purposes other than, and, in certain cases, prior to, payments to Noteholders, such purposes including reimbursement of certain expenses incurred by the transaction parties.

Any payment to the Holder of this Note in reduction of the Denomination hereof is binding on such Holder and all future Holders of this Note and any Note issued upon the transfer hereof or in exchange herefor or in lieu hereof whether or not notation of such payment is made upon this Note.

The Notes are issuable in fully registered form only without coupons in minimum denominations specified in the Indenture. As provided in the Indenture and subject to certain limitations therein set forth, this Note is exchangeable for new Notes in authorized denominations evidencing the same aggregate Denomination, as requested by the Holder surrendering the same.

No transfer, sale, pledge or other disposition of this Note or interest herein shall be made unless that transfer, sale, pledge or other disposition is exempt from the registration and/or qualification requirements of the Securities Act and any applicable state securities laws, or is otherwise made in accordance with the Securities Act and such state securities laws. If a transfer of this Note is to be made without registration under the Securities Act, and a Responsible Officer of the Registrar has actual knowledge thereof, then the Registrar shall refuse to register such transfer unless it and the Indenture Trustee receive (and upon receipt, may conclusively rely upon) certain certificate(s) required pursuant to Section 4.02 of the Indenture (as to which, so long as this Note is a Book-Entry Note, the representations and agreements made therein will be deemed to have been made by the prospective transferor and/or the prospective transferee, as applicable). None of the Issuer, the Indenture Trustee, the Paying Agent, REMIC Administrator or the Registrar is obligated to register or qualify any Notes under the Securities Act or any other securities law or to take any action not otherwise required under the Indenture to permit the transfer of any Note or interest therein without registration or qualification. Any Noteholder desiring to effect a transfer of Notes or interests therein shall, and does hereby agree to, indemnify the Issuer, the Indenture Trustee, the Paying Agent and the Registrar against any liability that may result if the transfer is not so exempt or is not made in accordance with such federal and state laws.

As provided in the Indenture and subject to certain limitations therein set forth, the transfer of this Note is registrable in the Register upon surrender of this Note for registration of transfer at the applicable Corporate Trust Office of the Registrar, duly endorsed by, or accompanied by a written instrument of transfer in the form satisfactory to the Registrar and the Indenture Trustee duly executed by, the Holder hereof or his attorney duly authorized in writing, and thereupon one or more new Notes in authorized denominations evidencing the same aggregate Denomination will be issued to the designated transferee or transferees.

No service charge will be imposed for any registration of transfer or exchange of this Note, but the Indenture Trustee or the Registrar may require payment of a sum sufficient to cover any tax or other governmental charge that may be imposed in connection with any transfer or exchange of this Note.

The Issuer, the Indenture Trustee, the Paying Agent, the Registrar and any agent thereof may treat the Person in whose name this Note is registered as the owner hereof for all purposes, and none of the Issuer, the Indenture Trustee, the Paying Agent, the Registrar or any such agent shall be affected by notice to the contrary.

Each Noteholder, by acceptance of a Class A Note or a beneficial interest therein, as the case may be, covenants and agrees that no recourse may be taken, directly or indirectly, with respect to the obligations of the Issuer, the Owner Trustee, the Depositor, the Depositor Trustee, the Indenture Trustee, the Registrar, the REMIC Administrator or the Paying Agent on the Notes or under the Indenture or any certificate or other writing delivered in connection herewith or therewith, against (i) the Indenture Trustee, the Registrar, the REMIC Administrator the Paying Agent, the Administrator, the Servicer, the Sponsor, the Depositor, the Owner Trustee or the Depositor Trustee in its individual capacity except as provided in the Transaction Documents (it being understood that the Owner Trustee has no such obligation in its individual capacity), (ii) any direct or indirect holder of a beneficial ownership interest in the Issuer or the Depositor or (iii) any partner, owner, beneficiary, agent, officer, director, employee or agent of the Indenture Trustee, the Registrar, the REMIC Administrator the Paying Agent, the Administrator, the Servicer, the Sponsor, the Depositor, the Owner Trustee or the Depositor Trustee in its individual capacity, any direct or indirect holder of a beneficial ownership interest in the Issuer, the Owner Trustee, the Depositor Trustee, the Indenture Trustee, the Registrar, the REMIC Administrator or the Paying Agent. For all purposes of the Indenture, (x) in the performance of any duties or obligations of the Issuer thereunder, each of the Administrator and the Owner Trustee shall be subject to, and entitled to the benefits of, the Trust Agreement, (y) in the performance of any duties or obligations of the Depositor thereunder, each of the Depositor Trustee and the Administrator shall be subject to, and entitled to the benefits of, the Depositor Trust Agreement and (z) in the performance of any duties or obligations of the Indenture Trustee, REMIC Administrator, Registrar, or Paying Agent thereunder, each of the Indenture Trustee, REMIC Administrator, Registrar, and Paying Agent shall be subject to, and entitled to the benefits of, the Indenture.

The Indenture will be discharged (except with respect to certain continuing rights specified in the Indenture) in accordance with the provisions therein.

Modifications of and amendments to the Indenture may be made by the Issuer, the Paying Agent, the Registrar, the REMIC Administrator and the Indenture Trustee in accordance with the provisions of the Indenture.

Unless the certificate of authentication hereon has been executed by the Registrar, by manual signature, this Note shall not be entitled to any benefit under the Indenture or be valid for any purpose.

This Note is a “regular interest” in a “real estate mortgage investment conduit,” as those terms are defined, respectively, in Sections 860G(a)(1) and 860D of the Code. Each Holder of this

Note, by acceptance hereof, agrees to treat, and take no action inconsistent with the treatment of, this Note in accordance with the preceding sentence for purposes of U.S. federal income taxes, state and local income and franchise taxes and other taxes imposed on or measured by income.

The registered Holder hereof, by its acceptance hereof agrees that it will look solely to the Trust Estate (to the extent of its rights therein) for payments hereunder.

This Note shall be construed in accordance with the internal laws of the State of New York applicable to agreements made and to be performed in said State other than its conflicts of law principles except for Section 5-1401 and 1402 of the General Obligations Law, and the obligations, rights and remedies of the Holder hereof shall be determined in accordance with such laws.

IN WITNESS WHEREOF, the Issuer has caused this instrument to be duly executed by its Authorized Officer, as of the date set forth below.

FIGRE TRUST 2025-HE5,
as Issuer

By: Wilmington Savings Fund Society, FSB,
not in its individual capacity but solely
as Owner Trustee

By: _____
Name:
Title:
Dated:

CERTIFICATE OF AUTHENTICATION

This is one of the Class A Notes referred to in the within mentioned Indenture.

The Bank of New York Mellon,
as Registrar

By: _____
Authorized Officer
Dated: _____

ASSIGNMENT

FOR VALUE RECEIVED, the undersigned hereby sell(s), assign(s) and transfer(s) unto

(please print or typewrite name and address including postal zip code of assignee)

the within Note and all rights thereunder and hereby authorize(s) the registration of transfer of such interest to assignee on the Register.

I (we) further direct the Registrar to issue a new Note of a like aggregate Denomination to the above named assignee and deliver such Note to the following address:

Dated:

Signature by or on behalf of Assignor

Signature Guaranteed

*3

PAYMENT INSTRUCTIONS

The Assignee should include the following for purposes of payment:

Payments shall, if permitted, be made by wire transfer or otherwise, in immediately available _____ funds, _____ to

_____ for the account of _____.

Payments made by check (such check to be made payable to _____) and all applicable statements and notices should be mailed to _____.

This information is provided by _____, the Assignee named above, or _____, as its agent.

* NOTICE: The signature to this assignment must correspond with the name of the registered owner as it appears on the face of the within Note in every particular, without alteration, enlargement or any change whatsoever. Such signature must, at the election of the Registrar, be guaranteed by an "eligible guarantor institution" meeting the requirements of the Registrar.

Exhibit A-2A

FORM OF RULE 144A GLOBAL CLASS B NOTE

FIGRE TRUST 2025-HE5 MORTGAGE-BACKED NOTES, SERIES 2025-HE5

Interest Rate: As set forth in the Indenture	Date of Indenture: August 28, 2025
Initial Note Amount: \$[•]	Closing Date: August 28, 2025
Minimum Denomination of this Note: \$150,000	Initial Payment Date: September 2025
Legal Final Maturity: Payment Date occurring in August 2055	Note No.: [•]
CUSIP: 31684MAB5	ISIN: US31684MAB54
Issuer: FIGRE TRUST 2025-HE5, a Delaware statutory trust	Indenture Trustee: THE BANK OF NEW YORK MELLON

UNLESS THIS NOTE IS PRESENTED BY AN AUTHORIZED REPRESENTATIVE OF THE DEPOSITORY TRUST COMPANY, A NEW YORK CORPORATION (“DTC”), TO THE REGISTRAR, THE INDENTURE TRUSTEE OR THEIR AGENT FOR REGISTRATION OF TRANSFER, EXCHANGE, OR PAYMENT, AND ANY NOTE ISSUED IS REGISTERED IN THE NAME OF CEDE & CO. OR IN SUCH OTHER NAME AS IS REQUESTED BY AN AUTHORIZED REPRESENTATIVE OF DTC (AND ANY PAYMENT IS MADE TO CEDE & CO. OR TO SUCH OTHER ENTITY AS IS REQUESTED BY AN AUTHORIZED REPRESENTATIVE OF DTC), ANY TRANSFER, PLEDGE, OR OTHER USE HEREOF FOR VALUE OR OTHERWISE BY OR TO ANY PERSON IS WRONGFUL INASMUCH AS THE REGISTERED OWNER HEREOF, CEDE & CO., HAS AN INTEREST HEREIN.

THIS NOTE HAS NOT BEEN REGISTERED OR QUALIFIED UNDER THE SECURITIES ACT OF 1933, AS AMENDED (THE “SECURITIES ACT”), OR THE SECURITIES LAWS OF ANY STATE AND THE ISSUER IS NOT AND WILL NOT BE REGISTERED UNDER THE UNITED STATES INVESTMENT COMPANY ACT OF 1940, AS AMENDED (THE “INVESTMENT COMPANY ACT”). ANY RESALE, PLEDGE, TRANSFER OR OTHER DISPOSITION OF THIS NOTE OR ANY INTEREST HEREIN WITHOUT SUCH REGISTRATION OR QUALIFICATION MAY BE MADE ONLY IN A TRANSACTION WHICH DOES NOT REQUIRE SUCH REGISTRATION OR QUALIFICATION AND WHICH IS IN ACCORDANCE WITH THE PROVISIONS OF SECTION 4.02 OF THE INDENTURE REFERRED TO HEREIN.

THE INITIAL INVESTOR IN THIS NOTE, AND EACH SUBSEQUENT PURCHASER OF THIS NOTE, BY PURCHASING THIS NOTE OR AN INTEREST HEREIN, IS DEEMED TO HAVE AGREED TO COMPLY WITH CERTAIN TRANSFER REQUIREMENTS SET FORTH IN THE INDENTURE REFERRED TO HEREIN.

BY ACQUIRING THIS CLASS B NOTE (OR ANY INTEREST HEREIN), EACH PURCHASER AND TRANSFEREE (AND, ITS FIDUCIARY, IF APPLICABLE) WILL BE DEEMED TO REPRESENT AND WARRANT THAT EITHER (A) IT IS NOT ACQUIRING AND WILL NOT HOLD SUCH NOTE (OR INTEREST HEREIN) WITH THE ASSETS OF A PLAN (AS DEFINED BELOW) THAT IS SUBJECT TO TITLE I OF THE EMPLOYEE RETIREMENT INCOME SECURITY ACT OF 1974, AS AMENDED (“ERISA”) OR SECTION 4975 OF THE INTERNAL REVENUE CODE OF 1986, AS AMENDED (THE “CODE”) (EACH OF THE FOREGOING, A “BENEFIT PLAN INVESTOR”) OR THAT IS SUBJECT TO A LAW THAT IS SUBSTANTIALLY SIMILAR TO TITLE I OF ERISA OR SECTION 4975 OF THE CODE (“SIMILAR LAW”) OR (B)(1) THE NOTE IS RATED AT LEAST “BBB-” OR ITS EQUIVALENT BY A NATIONALLY RECOGNIZED STATISTICAL RATING AGENCY AT THE TIME OF ACQUISITION OR TRANSFER AND THE NOTE HAS NOT BEEN CHARACTERIZED AS OTHER THAN INDEBTEDNESS UNDER APPLICABLE LOCAL LAW AND (2) THE ACQUISITION, HOLDING AND DISPOSITION OF THE NOTE (OR INTEREST HEREIN) WILL NOT, IN THE CASE OF A BENEFIT PLAN INVESTOR, GIVE RISE TO A NON-EXEMPT PROHIBITED TRANSACTION UNDER SECTION 406 OF ERISA OR SECTION 4975 OF THE CODE OR, IN THE CASE OF A PLAN THAT IS SUBJECT TO SIMILAR LAW, RESULT IN A VIOLATION OF ANY SIMILAR LAW. FOR THESE

PURPOSES, A “PLAN” MEANS AN “EMPLOYEE BENEFIT PLAN” AS DEFINED IN SECTION 3(3) OF ERISA WHETHER OR NOT SUBJECT TO TITLE I OF ERISA, A “PLAN” AS DEFINED IN SECTION 4975 OF THE CODE, OR AN ENTITY OR ACCOUNT DEEMED TO HOLD PLAN ASSETS OF THE FOREGOING BY VIRTUE OF SUCH EMPLOYEE BENEFIT PLAN’S OR PLAN’S INVESTMENT IN THE ENTITY OR ACCOUNT.

THIS NOTE REPRESENTS A NON-RECOURSE OBLIGATION OF THE ISSUER AND WILL BE PAID SOLELY FROM THE COLLATERAL SECURING THIS NOTE. NEITHER THIS NOTE NOR THE COLLATERAL IS INSURED OR GUARANTEED BY ANY GOVERNMENTAL AGENCY OR INSTRUMENTALITY OR BY ANY OTHER PERSON.

PAYMENTS IN REDUCTION OF THE INITIAL NOTE AMOUNT OF THIS NOTE MAY BE MADE MONTHLY AS SET FORTH IN THE INDENTURE REFERRED TO HEREIN. ACCORDINGLY, THE OUTSTANDING NOTE AMOUNT HEREOF AT ANY TIME MAY BE LESS THAN THE AMOUNT SHOWN ABOVE.

This certifies that Cede & Co. is the registered owner (the “Holder”) of this Note which is one of the Notes (collectively, the “Notes”) issued by the Issuer referred to above pursuant to the indenture, dated August 28, 2025 (the “Indenture”), among, *inter alios*, the Issuer referred to above, THE BANK OF NEW YORK MELLON, as paying agent (the “Paying Agent”), registrar (the “Registrar”), REMIC administrator (the “REMIC Administrator”) and the Indenture Trustee referred to above, on behalf of the holders of the Notes (the “Noteholders”), and FIGURE LENDING LLC, as sponsor (the “Sponsor”), a summary of certain of the pertinent provisions of which is set forth hereafter. To the extent not defined herein, capitalized terms used herein have the respective meanings assigned in the Indenture. This Note is issued under and is subject to the terms, provisions and conditions of the Indenture, to which Indenture the Holder of this Note by virtue of the acceptance hereof assents and by which such holder is bound.

Pursuant to the terms of the Indenture, payments on the Notes will be made on the 25th day of each month, or the immediately following Business Day if the 25th day is not a Business Day (each, a “Payment Date”), commencing in September 2025. All payments made under the Indenture on this Note will be made by the Paying Agent to the Depository and the Depository shall be responsible for crediting the amount of such distribution to the accounts of its Depository Participants in accordance with its normal procedures.

The Notes are limited in right of payment to certain distributions on the Mortgage Loans and other amounts, all as more specifically set forth herein and in the Indenture. As provided in the Indenture, withdrawals from the Payment Account may be made from time to time for purposes other than, and, in certain cases, prior to, payments to Noteholders, such purposes including reimbursement of certain expenses incurred by the transaction parties.

Any payment to the Holder of this Note in reduction of the Denomination hereof is binding on such Holder and all future Holders of this Note and any Note issued upon the transfer hereof or in exchange herefor or in lieu hereof whether or not notation of such payment is made upon this Note.

The Notes are issuable in fully registered form only without coupons in minimum denominations specified in the Indenture. As provided in the Indenture and subject to certain limitations therein set forth, this Note is exchangeable for new Notes in authorized denominations evidencing the same aggregate Denomination, as requested by the Holder surrendering the same.

No transfer, sale, pledge or other disposition of this Note or interest herein shall be made unless that transfer, sale, pledge or other disposition is exempt from the registration and/or qualification requirements of the Securities Act and any applicable state securities laws, or is otherwise made in accordance with the Securities Act and such state securities laws. If a transfer of this Note is to be made without registration under the Securities Act, and a Responsible Officer of the Registrar has actual knowledge thereof, then the Registrar shall refuse to register such transfer unless it and the Indenture Trustee receive (and upon receipt, may conclusively rely upon) certain certificate(s) required pursuant to Section 4.02 of the Indenture (as to which, so long as this Note is a Book-Entry Note, the representations and agreements made therein will be deemed to have been made by the prospective transferor and/or the prospective transferee, as applicable). None of the Issuer, the Indenture Trustee, the Paying Agent, REMIC Administrator or the Registrar is obligated to register or qualify any Notes under the Securities Act or any other securities law or to take any action not otherwise required under the Indenture to permit the transfer of any Note or interest therein without registration or qualification. Any Noteholder desiring to effect a transfer of Notes or interests therein shall, and does hereby agree to, indemnify the Issuer, the Indenture Trustee, the Paying Agent and the Registrar against any liability that may result if the transfer is not so exempt or is not made in accordance with such federal and state laws.

As provided in the Indenture and subject to certain limitations therein set forth, the transfer of this Note is registrable in the Register upon surrender of this Note for registration of transfer at the applicable Corporate Trust Office of the Registrar, duly endorsed by, or accompanied by a written instrument of transfer in the form satisfactory to the Registrar and the Indenture Trustee duly executed by, the Holder hereof or his attorney duly authorized in writing, and thereupon one or more new Notes in authorized denominations evidencing the same aggregate Denomination will be issued to the designated transferee or transferees.

No service charge will be imposed for any registration of transfer or exchange of this Note, but the Indenture Trustee or the Registrar may require payment of a sum sufficient to cover any tax or other governmental charge that may be imposed in connection with any transfer or exchange of this Note.

The Issuer, the Indenture Trustee, the Paying Agent, the Registrar and any agent thereof may treat the Person in whose name this Note is registered as the owner hereof for all purposes, and none of the Issuer, the Indenture Trustee, the Paying Agent, the Registrar or any such agent shall be affected by notice to the contrary.

Each Noteholder, by acceptance of a Class B Note or a beneficial interest therein, as the case may be, covenants and agrees that no recourse may be taken, directly or indirectly, with respect to the obligations of the Issuer, the Owner Trustee, the Depositor, the Depositor Trustee, the Indenture Trustee, the Registrar, the REMIC Administrator or the Paying Agent on the Notes or under the Indenture or any certificate or other writing delivered in connection herewith or therewith, against (i) the Indenture Trustee, the Registrar, the REMIC Administrator the Paying

Agent, the Administrator, the Servicer, the Sponsor, the Depositor, the Owner Trustee or the Depositor Trustee in its individual capacity except as provided in the Transaction Documents (it being understood that the Owner Trustee has no such obligation in its individual capacity), (ii) any direct or indirect holder of a beneficial ownership interest in the Issuer or the Depositor or (iii) any partner, owner, beneficiary, agent, officer, director, employee or agent of the Indenture Trustee, the Registrar, the REMIC Administrator the Paying Agent, the Administrator, the Servicer, the Sponsor, the Depositor, the Owner Trustee or the Depositor Trustee in its individual capacity, any direct or indirect holder of a beneficial ownership interest in the Issuer, the Owner Trustee, the Depositor Trustee, the Indenture Trustee, the Registrar, the REMIC Administrator or the Paying Agent. For all purposes of the Indenture, (x) in the performance of any duties or obligations of the Issuer thereunder, each of the Administrator and the Owner Trustee shall be subject to, and entitled to the benefits of, the Trust Agreement, (y) in the performance of any duties or obligations of the Depositor thereunder, each of the Depositor Trustee and the Administrator shall be subject to, and entitled to the benefits of, the Depositor Trust Agreement and (z) in the performance of any duties or obligations of the Indenture Trustee, REMIC Administrator, Registrar, or Paying Agent thereunder, each of the Indenture Trustee, REMIC Administrator, Registrar, and Paying Agent shall be subject to, and entitled to the benefits of, the Indenture.

The Indenture will be discharged (except with respect to certain continuing rights specified in the Indenture) in accordance with the provisions therein.

Modifications of and amendments to the Indenture may be made by the Issuer, the Paying Agent, the Registrar, the REMIC Administrator and the Indenture Trustee in accordance with the provisions of the Indenture.

Unless the certificate of authentication hereon has been executed by the Registrar, by manual signature, this Note shall not be entitled to any benefit under the Indenture or be valid for any purpose.

This Note is a “regular interest” in a “real estate mortgage investment conduit,” as those terms are defined, respectively, in Sections 860G(a)(1) and 860D of the Code. Each Holder of this Note, by acceptance hereof, agrees to treat, and take no action inconsistent with the treatment of, this Note in accordance with the preceding sentence for purposes of U.S. federal income taxes, state and local income and franchise taxes and other taxes imposed on or measured by income.

The registered Holder hereof, by its acceptance hereof agrees that it will look solely to the Trust Estate (to the extent of its rights therein) for payments hereunder.

This Note shall be construed in accordance with the internal laws of the State of New York applicable to agreements made and to be performed in said State other than its conflicts of law principles except for Section 5-1401 and 1402 of the General Obligations Law, and the obligations, rights and remedies of the Holder hereof shall be determined in accordance with such laws.

IN WITNESS WHEREOF, the Issuer has caused this instrument to be duly executed by its Authorized Officer, as of the date set forth below.

FIGRE TRUST 2025-HE5,
as Issuer

By: Wilmington Savings Fund Society, FSB,
not in its individual capacity but solely
as Owner Trustee

By: _____
Name:
Title:
Dated:

CERTIFICATE OF AUTHENTICATION

This is one of the Class B Notes referred to in the within mentioned Indenture.

The Bank of New York Mellon,
as Registrar

By: _____
Authorized Officer
Dated: _____

ASSIGNMENT

FOR VALUE RECEIVED, the undersigned hereby sell(s), assign(s) and transfer(s) unto

(please print or typewrite name and address including postal zip code of assignee)

the within Note and all rights thereunder and hereby authorize(s) the registration of transfer of such interest to assignee on the Register.

I (we) further direct the Registrar to issue a new Note of a like aggregate Denomination to the above named assignee and deliver such Note to the following address:

Dated:

Signature by or on behalf of Assignor

Signature Guaranteed

*4

PAYMENT INSTRUCTIONS

The Assignee should include the following for purposes of payment:

Payments shall, if permitted, be made by wire transfer or otherwise, in immediately available _____ funds, _____ to

_____ for the account of _____.

Payments made by check (such check to be made payable to _____) and all applicable statements and notices should be mailed to _____.

This information is provided by _____, the Assignee named above, or _____, as its agent. .

* NOTICE: The signature to this assignment must correspond with the name of the registered owner as it appears on the face of the within Note in every particular, without alteration, enlargement or any change whatsoever. Such signature must, at the election of the Registrar, be guaranteed by an "eligible guarantor institution" meeting the requirements of the Registrar.

Exhibit A-2B

**FORM OF TEMPORARY REGULATION S GLOBAL CLASS B NOTE
FIGRE TRUST 2025-HE5 MORTGAGE-BACKED NOTES, SERIES 2025-HE5**

Interest Rate: As set forth in the Indenture

Date of Indenture: August 28, 2025

Initial Note Amount: \$[•]

Closing Date: August 28, 2025

Minimum Denomination of this Note:
\$150,000

Initial Payment Date: September 2025

Legal Final Maturity: Payment Date occurring
in August 2055

Note No.: [•]

CUSIP: U3202RAB3

ISIN: USU3202RAB34

Issuer: FIGRE TRUST 2025-HE5, a
Delaware statutory trust

Indenture Trustee: THE BANK OF NEW
YORK MELLON

THIS NOTE IS A TEMPORARY REGULATION S GLOBAL NOTE FOR PURPOSES OF REGULATION S UNDER THE UNITED STATES SECURITIES ACT OF 1933, AS AMENDED (THE “SECURITIES ACT”). NEITHER THIS TEMPORARY REGULATION S GLOBAL NOTE NOR ANY INTEREST HEREIN MAY BE OFFERED, SOLD OR DELIVERED, EXCEPT AS PERMITTED UNDER THE INDENTURE REFERRED TO HEREIN.

UNLESS THIS NOTE IS PRESENTED BY AN AUTHORIZED REPRESENTATIVE OF THE DEPOSITORY TRUST COMPANY, A NEW YORK CORPORATION (“DTC”), TO THE REGISTRAR, THE INDENTURE TRUSTEE OR THEIR AGENT FOR REGISTRATION OF TRANSFER, EXCHANGE, OR PAYMENT, AND ANY NOTE ISSUED IS REGISTERED IN THE NAME OF CEDE & CO. OR IN SUCH OTHER NAME AS IS REQUESTED BY AN AUTHORIZED REPRESENTATIVE OF DTC (AND ANY PAYMENT IS MADE TO CEDE & CO. OR TO SUCH OTHER ENTITY AS IS REQUESTED BY AN AUTHORIZED REPRESENTATIVE OF DTC), ANY TRANSFER, PLEDGE, OR OTHER USE HEREOF FOR VALUE OR OTHERWISE BY OR TO ANY PERSON IS WRONGFUL INASMUCH AS THE REGISTERED OWNER HEREOF, CEDE & CO., HAS AN INTEREST HEREIN.

THIS NOTE HAS NOT BEEN REGISTERED OR QUALIFIED UNDER THE SECURITIES ACT, OR THE SECURITIES LAWS OF ANY STATE AND THE ISSUER IS NOT AND WILL NOT BE REGISTERED UNDER THE UNITED STATES INVESTMENT COMPANY ACT OF 1940, AS AMENDED (THE “INVESTMENT COMPANY ACT”). ANY RESALE, PLEDGE, TRANSFER OR OTHER DISPOSITION OF THIS NOTE OR ANY INTEREST HEREIN WITHOUT SUCH REGISTRATION OR QUALIFICATION MAY BE MADE ONLY IN A TRANSACTION WHICH DOES NOT REQUIRE SUCH REGISTRATION OR QUALIFICATION AND WHICH IS IN ACCORDANCE WITH THE PROVISIONS OF SECTION 4.02 OF THE INDENTURE REFERRED TO HEREIN.

THE HOLDER OF THIS NOTE BY ITS ACCEPTANCE HEREOF AGREES NOT TO OFFER, SELL OR OTHERWISE TRANSFER SUCH NOTE WITHIN THE UNITED STATES OR TO U.S. PERSONS (AS DEFINED IN REGULATION S UNDER THE SECURITIES ACT) PRIOR TO THE EXCHANGE DATE EXCEPT PURSUANT TO AN EXEMPTION FROM THE REGISTRATION REQUIREMENTS OF THE SECURITIES ACT.

BY ACQUIRING THIS CLASS B NOTE (OR ANY INTEREST HEREIN), EACH PURCHASER AND TRANSFEREE (AND, ITS FIDUCIARY, IF APPLICABLE) WILL BE DEEMED TO REPRESENT AND WARRANT THAT EITHER (A) IT IS NOT ACQUIRING AND WILL NOT HOLD SUCH NOTE (OR INTEREST HEREIN) WITH THE ASSETS OF A PLAN (AS DEFINED BELOW) THAT IS SUBJECT TO TITLE I OF THE EMPLOYEE RETIREMENT INCOME SECURITY ACT OF 1974, AS AMENDED (“ERISA”) OR SECTION 4975 OF THE INTERNAL REVENUE CODE OF 1986, AS AMENDED (THE “CODE”) (EACH OF THE FOREGOING, A “BENEFIT PLAN INVESTOR”) OR THAT IS SUBJECT TO A LAW THAT IS SUBSTANTIALLY SIMILAR TO TITLE I OF ERISA OR SECTION 4975 OF THE CODE (“SIMILAR LAW”)

OR (B)(1) THE NOTE IS RATED AT LEAST “BBB-” OR ITS EQUIVALENT BY A NATIONALLY RECOGNIZED STATISTICAL RATING AGENCY AT THE TIME OF ACQUISITION OR TRANSFER AND THE NOTE HAS NOT BEEN CHARACTERIZED AS OTHER THAN INDEBTEDNESS UNDER APPLICABLE LOCAL LAW AND (2) THE ACQUISITION, HOLDING AND DISPOSITION OF THE NOTE (OR INTEREST HEREIN) WILL NOT, IN THE CASE OF A BENEFIT PLAN INVESTOR, GIVE RISE TO A NON-EXEMPT PROHIBITED TRANSACTION UNDER SECTION 406 OF ERISA OR SECTION 4975 OF THE CODE OR, IN THE CASE OF A PLAN THAT IS SUBJECT TO SIMILAR LAW, RESULT IN A VIOLATION OF ANY SIMILAR LAW. FOR THESE PURPOSES, A “PLAN” MEANS AN “EMPLOYEE BENEFIT PLAN” AS DEFINED IN SECTION 3(3) OF ERISA WHETHER OR NOT SUBJECT TO TITLE I OF ERISA, A “PLAN” AS DEFINED IN SECTION 4975 OF THE CODE, OR AN ENTITY OR ACCOUNT DEEMED TO HOLD PLAN ASSETS OF THE FOREGOING BY VIRTUE OF SUCH EMPLOYEE BENEFIT PLAN’S OR PLAN’S INVESTMENT IN THE ENTITY OR ACCOUNT.

THIS NOTE REPRESENTS A NON-RECOURSE OBLIGATION OF THE ISSUER AND WILL BE PAID SOLELY FROM THE COLLATERAL SECURING THIS NOTE. NEITHER THIS NOTE NOR THE COLLATERAL IS INSURED OR GUARANTEED BY ANY GOVERNMENTAL AGENCY OR INSTRUMENTALITY OR BY ANY OTHER PERSON.

PAYMENTS IN REDUCTION OF THE INITIAL NOTE AMOUNT OF THIS NOTE MAY BE MADE MONTHLY AS SET FORTH IN THE INDENTURE REFERRED TO HEREIN. ACCORDINGLY, THE OUTSTANDING NOTE AMOUNT HEREOF AT ANY TIME MAY BE LESS THAN THE AMOUNT SHOWN ABOVE.

This certifies that Cede & Co. is the registered owner (the “Holder”) of this Note which is one of the Notes (collectively, the “Notes”) issued by the Issuer referred to above pursuant to the indenture, dated August 28, 2025 (the “Indenture”), among, *inter alios*, the Issuer referred to above, THE BANK OF NEW YORK MELLON, as paying agent (the “Paying Agent”), registrar (the “Registrar”), REMIC administrator (the “REMIC Administrator”) and the Indenture Trustee referred to above, on behalf of the holders of the Notes (the “Noteholders”), and FIGURE LENDING LLC, as sponsor (the “Sponsor”), a summary of certain of the pertinent provisions of which is set forth hereafter. To the extent not defined herein, capitalized terms used herein have the respective meanings assigned in the Indenture. This Note is issued under and is subject to the terms, provisions and conditions of the Indenture, to which Indenture the Holder of this Note by virtue of the acceptance hereof assents and by which such holder is bound.

Pursuant to the terms of the Indenture, payments on the Notes will be made on the 25th day of each month, or the immediately following Business Day if the 25th day is not a Business Day (each, a “Payment Date”), commencing in September 2025. All payments made under the Indenture on this Note will be made by the Paying Agent to the Depository and the Depository shall be responsible for crediting the amount of such distribution to the accounts of its Depository Participants in accordance with its normal procedures.

The Notes are limited in right of payment to certain distributions on the Mortgage Loans and other amounts, all as more specifically set forth herein and in the Indenture. As provided in the Indenture, withdrawals from the Payment Account may be made from time to time for purposes other than, and, in certain cases, prior to, payments to Noteholders, such purposes including reimbursement of certain expenses incurred by the transaction parties.

Any payment to the Holder of this Note in reduction of the Denomination hereof is binding on such Holder and all future Holders of this Note and any Note issued upon the transfer hereof or in exchange herefor or in lieu hereof whether or not notation of such payment is made upon this Note.

The Notes are issuable in fully registered form only without coupons in minimum denominations specified in the Indenture. As provided in the Indenture and subject to certain limitations therein set forth, this Note is exchangeable for new Notes in authorized denominations evidencing the same aggregate Denomination, as requested by the Holder surrendering the same.

No transfer, sale, pledge or other disposition of this Note or interest herein shall be made unless that transfer, sale, pledge or other disposition is exempt from the registration and/or qualification requirements of the Securities Act and any applicable state securities laws, or is otherwise made in accordance with the Securities Act and such state securities laws. If a transfer of this Note is to be made without registration under the Securities Act, and a Responsible Officer of the Registrar has actual knowledge thereof, then the Registrar shall refuse to register such transfer unless it and the Indenture Trustee receive (and upon receipt, may conclusively rely upon) certain certificate(s) required pursuant to Section 4.02 of the Indenture (as to which, so long as this Note is a Book-Entry Note, the representations and agreements made therein will be deemed to have been made by the prospective transferor and/or the prospective transferee, as applicable). None of the Issuer, the Indenture Trustee, the Paying Agent, REMIC Administrator or the Registrar is obligated to register or qualify any Notes under the Securities Act or any other securities law or to take any action not otherwise required under the Indenture to permit the transfer of any Note or interest therein without registration or qualification. Any Noteholder desiring to effect a transfer of Notes or interests therein shall, and does hereby agree to, indemnify the Issuer, the Indenture Trustee, the Paying Agent and the Registrar against any liability that may result if the transfer is not so exempt or is not made in accordance with such federal and state laws.

As provided in the Indenture and subject to certain limitations therein set forth, the transfer of this Note is registrable in the Register upon surrender of this Note for registration of transfer at the applicable Corporate Trust Office of the Registrar, duly endorsed by, or accompanied by a written instrument of transfer in the form satisfactory to the Registrar and the Indenture Trustee duly executed by, the Holder hereof or his attorney duly authorized in writing, and thereupon one or more new Notes in authorized denominations evidencing the same aggregate Denomination will be issued to the designated transferee or transferees.

No service charge will be imposed for any registration of transfer or exchange of this Note, but the Indenture Trustee or the Registrar may require payment of a sum sufficient to cover any tax or other governmental charge that may be imposed in connection with any transfer or exchange of this Note.

The Issuer, the Indenture Trustee, the Paying Agent, the Registrar and any agent thereof may treat the Person in whose name this Note is registered as the owner hereof for all purposes, and none of the Issuer, the Indenture Trustee, the Paying Agent, the Registrar or any such agent shall be affected by notice to the contrary.

Each Noteholder, by acceptance of a Class B Note or a beneficial interest therein, as the case may be, covenants and agrees that no recourse may be taken, directly or indirectly, with respect to the obligations of the Issuer, the Owner Trustee, the Depositor, the Depositor Trustee, the Indenture Trustee, the Registrar, the REMIC Administrator or the Paying Agent on the Notes or under the Indenture or any certificate or other writing delivered in connection herewith or therewith, against (i) the Indenture Trustee, the Registrar, the REMIC Administrator the Paying Agent, the Administrator, the Servicer, the Sponsor, the Depositor, the Owner Trustee or the Depositor Trustee in its individual capacity except as provided in the Transaction Documents (it being understood that the Owner Trustee has no such obligation in its individual capacity), (ii) any direct or indirect holder of a beneficial ownership interest in the Issuer or the Depositor or (iii) any partner, owner, beneficiary, agent, officer, director, employee or agent of the Indenture Trustee, the Registrar, the REMIC Administrator the Paying Agent, the Administrator, the Servicer, the Sponsor, the Depositor, the Owner Trustee or the Depositor Trustee in its individual capacity, any direct or indirect holder of a beneficial ownership interest in the Issuer, the Owner Trustee, the Depositor Trustee, the Indenture Trustee, the Registrar, the REMIC Administrator or the Paying Agent. For all purposes of the Indenture, (x) in the performance of any duties or obligations of the Issuer thereunder, each of the Administrator and the Owner Trustee shall be subject to, and entitled to the benefits of, the Trust Agreement, (y) in the performance of any duties or obligations of the Depositor thereunder, each of the Depositor Trustee and the Administrator shall be subject to, and entitled to the benefits of, the Depositor Trust Agreement and (z) in the performance of any duties or obligations of the Indenture Trustee, REMIC Administrator, Registrar, or Paying Agent thereunder, each of the Indenture Trustee, REMIC Administrator, Registrar, and Paying Agent shall be subject to, and entitled to the benefits of, the Indenture.

The Indenture will be discharged (except with respect to certain continuing rights specified in the Indenture) in accordance with the provisions therein.

Modifications of and amendments to the Indenture may be made by the Issuer, the Paying Agent, the Registrar, the REMIC Administrator and the Indenture Trustee in accordance with the provisions of the Indenture.

Unless the certificate of authentication hereon has been executed by the Registrar, by manual signature, this Note shall not be entitled to any benefit under the Indenture or be valid for any purpose.

This Note is a “regular interest” in a “real estate mortgage investment conduit,” as those terms are defined, respectively, in Sections 860G(a)(1) and 860D of the Code. Each Holder of this Note, by acceptance hereof, agrees to treat, and take no action inconsistent with the treatment of, this Note in accordance with the preceding sentence for purposes of U.S. federal income taxes, state and local income and franchise taxes and other taxes imposed on or measured by income.

The registered Holder hereof, by its acceptance hereof agrees that it will look solely to the Trust Estate (to the extent of its rights therein) for payments hereunder.

This Note shall be construed in accordance with the internal laws of the State of New York applicable to agreements made and to be performed in said State other than its conflicts of law principles except for Section 5-1401 and 1402 of the General Obligations Law, and the obligations, rights and remedies of the Holder hereof shall be determined in accordance with such laws.

IN WITNESS WHEREOF, the Issuer has caused this instrument to be duly executed by its Authorized Officer, as of the date set forth below.

FIGRE TRUST 2025-HE5,
as Issuer

By: Wilmington Savings Fund Society, FSB,
not in its individual capacity but solely
as Owner Trustee

By: _____
Name:
Title:
Dated:

CERTIFICATE OF AUTHENTICATION

This is one of the Class B Notes referred to in the within mentioned Indenture.

The Bank of New York Mellon,
as Registrar

By: _____
Authorized Officer
Dated: _____

ASSIGNMENT

FOR VALUE RECEIVED, the undersigned hereby sell(s), assign(s) and transfer(s) unto

(please print or typewrite name and address including postal zip code of assignee)

the within Note and all rights thereunder and hereby authorize(s) the registration of transfer of such interest to assignee on the Register.

I (we) further direct the Registrar to issue a new Note of a like aggregate Denomination to the above named assignee and deliver such Note to the following address:

Dated:

Signature by or on behalf of Assignor

Signature Guaranteed

*5

PAYMENT INSTRUCTIONS

The Assignee should include the following for purposes of payment:

Payments shall, if permitted, be made by wire transfer or otherwise, in immediately available _____ funds, _____ to

_____ for the account of _____.

Payments made by check (such check to be made payable to _____) and all applicable statements and notices should be mailed to _____.

This information is provided by _____, the Assignee named above, or _____, as its agent. .

* NOTICE: The signature to this assignment must correspond with the name of the registered owner as it appears on the face of the within Note in every particular, without alteration, enlargement or any change whatsoever. Such signature must, at the election of the Registrar, be guaranteed by an "eligible guarantor institution" meeting the requirements of the Registrar.

Exhibit A-2C

**FORM OF PERMANENT REGULATION S GLOBAL CLASS B NOTE
FIGRE TRUST 2025-HE5 MORTGAGE-BACKED NOTES, SERIES 2025-HE5**

Interest Rate: As set forth in the Indenture	Date of Indenture: August 28, 2025
Initial Note Amount: \$[●]	Closing Date: August 28, 2025
Minimum Denomination of this Note: \$150,000	Initial Payment Date: September 2025
Legal Final Maturity: Payment Date occurring in August 2055	Note No.: [●]
CUSIP: U3202RAB3	ISIN: USU3202RAB34
Issuer: FIGRE TRUST 2025-HE5, a Delaware statutory trust	Indenture Trustee: THE BANK OF NEW YORK MELLON

THIS NOTE IS A PERMANENT REGULATION S GLOBAL NOTE FOR PURPOSES OF REGULATION S UNDER THE UNITED STATES SECURITIES ACT OF 1933, AS AMENDED (THE “SECURITIES ACT”). NEITHER THIS PERMANENT REGULATION S GLOBAL NOTE NOR ANY INTEREST HEREIN MAY BE OFFERED, SOLD OR DELIVERED, EXCEPT AS PERMITTED UNDER THE INDENTURE REFERRED TO HEREIN.

UNLESS THIS NOTE IS PRESENTED BY AN AUTHORIZED REPRESENTATIVE OF THE DEPOSITORY TRUST COMPANY, A NEW YORK CORPORATION (“DTC”), TO THE REGISTRAR, THE INDENTURE TRUSTEE OR THEIR AGENT FOR REGISTRATION OF TRANSFER, EXCHANGE, OR PAYMENT, AND ANY NOTE ISSUED IS REGISTERED IN THE NAME OF CEDE & CO. OR IN SUCH OTHER NAME AS IS REQUESTED BY AN AUTHORIZED REPRESENTATIVE OF DTC (AND ANY PAYMENT IS MADE TO CEDE & CO. OR TO SUCH OTHER ENTITY AS IS REQUESTED BY AN AUTHORIZED REPRESENTATIVE OF DTC), ANY TRANSFER, PLEDGE, OR OTHER USE HEREOF FOR VALUE OR OTHERWISE BY OR TO ANY PERSON IS WRONGFUL INASMUCH AS THE REGISTERED OWNER HEREOF, CEDE & CO., HAS AN INTEREST HEREIN.

THIS NOTE HAS NOT BEEN REGISTERED OR QUALIFIED UNDER THE SECURITIES ACT, OR THE SECURITIES LAWS OF ANY STATE AND THE ISSUER IS NOT AND WILL NOT BE REGISTERED UNDER THE UNITED STATES INVESTMENT COMPANY ACT OF 1940, AS AMENDED (THE “INVESTMENT COMPANY ACT”). ANY RESALE, PLEDGE, TRANSFER OR OTHER DISPOSITION OF THIS NOTE OR ANY INTEREST HEREIN WITHOUT SUCH REGISTRATION OR QUALIFICATION MAY BE MADE ONLY IN A TRANSACTION WHICH DOES NOT REQUIRE SUCH REGISTRATION OR QUALIFICATION AND WHICH IS IN ACCORDANCE WITH THE PROVISIONS OF SECTION 4.02 OF THE INDENTURE REFERRED TO HEREIN.

THE HOLDER OF THIS NOTE BY ITS ACCEPTANCE HEREOF AGREES NOT TO OFFER, SELL OR OTHERWISE TRANSFER SUCH NOTE WITHIN THE UNITED STATES OR TO U.S. PERSONS (AS DEFINED IN REGULATION S UNDER THE SECURITIES ACT) PRIOR TO THE EXCHANGE DATE EXCEPT PURSUANT TO AN EXEMPTION FROM THE REGISTRATION REQUIREMENTS OF THE SECURITIES ACT.

BY ACQUIRING THIS CLASS B NOTE (OR ANY INTEREST HEREIN), EACH PURCHASER AND TRANSFEREE (AND, ITS FIDUCIARY, IF APPLICABLE) WILL BE DEEMED TO REPRESENT AND WARRANT THAT EITHER (A) IT IS NOT ACQUIRING AND WILL NOT HOLD SUCH NOTE (OR INTEREST HEREIN) WITH THE ASSETS OF A PLAN (AS DEFINED BELOW) THAT IS SUBJECT TO TITLE I OF THE EMPLOYEE RETIREMENT INCOME SECURITY ACT OF 1974, AS AMENDED (“ERISA”) OR SECTION 4975 OF THE INTERNAL REVENUE CODE OF 1986, AS AMENDED (THE “CODE”) (EACH OF THE FOREGOING, A “BENEFIT PLAN INVESTOR”) OR THAT IS SUBJECT TO A LAW THAT IS SUBSTANTIALLY SIMILAR TO TITLE I OF ERISA OR SECTION 4975 OF THE CODE (“SIMILAR LAW”)

OR (B)(1) THE NOTE IS RATED AT LEAST “BBB-” OR ITS EQUIVALENT BY A NATIONALLY RECOGNIZED STATISTICAL RATING AGENCY AT THE TIME OF ACQUISITION OR TRANSFER AND THE NOTE HAS NOT BEEN CHARACTERIZED AS OTHER THAN INDEBTEDNESS UNDER APPLICABLE LOCAL LAW AND (2) THE ACQUISITION, HOLDING AND DISPOSITION OF THE NOTE (OR INTEREST HEREIN) WILL NOT, IN THE CASE OF A BENEFIT PLAN INVESTOR, GIVE RISE TO A NON-EXEMPT PROHIBITED TRANSACTION UNDER SECTION 406 OF ERISA OR SECTION 4975 OF THE CODE OR, IN THE CASE OF A PLAN THAT IS SUBJECT TO SIMILAR LAW, RESULT IN A VIOLATION OF ANY SIMILAR LAW. FOR THESE PURPOSES, A “PLAN” MEANS AN “EMPLOYEE BENEFIT PLAN” AS DEFINED IN SECTION 3(3) OF ERISA WHETHER OR NOT SUBJECT TO TITLE I OF ERISA, A “PLAN” AS DEFINED IN SECTION 4975 OF THE CODE, OR AN ENTITY OR ACCOUNT DEEMED TO HOLD PLAN ASSETS OF THE FOREGOING BY VIRTUE OF SUCH EMPLOYEE BENEFIT PLAN’S OR PLAN’S INVESTMENT IN THE ENTITY OR ACCOUNT.

THIS NOTE REPRESENTS A NON-RECOURSE OBLIGATION OF THE ISSUER AND WILL BE PAID SOLELY FROM THE COLLATERAL SECURING THIS NOTE. NEITHER THIS NOTE NOR THE COLLATERAL IS INSURED OR GUARANTEED BY ANY GOVERNMENTAL AGENCY OR INSTRUMENTALITY OR BY ANY OTHER PERSON.

PAYMENTS IN REDUCTION OF THE INITIAL NOTE AMOUNT OF THIS NOTE MAY BE MADE MONTHLY AS SET FORTH IN THE INDENTURE REFERRED TO HEREIN. ACCORDINGLY, THE OUTSTANDING NOTE AMOUNT HEREOF AT ANY TIME MAY BE LESS THAN THE AMOUNT SHOWN ABOVE.

This certifies that Cede & Co. is the registered owner (the “Holder”) of this Note which is one of the Notes (collectively, the “Notes”) issued by the Issuer referred to above pursuant to the indenture, dated August 28, 2025 (the “Indenture”), among, *inter alios*, the Issuer referred to above, THE BANK OF NEW YORK MELLON, as paying agent (the “Paying Agent”), registrar (the “Registrar”), REMIC administrator (the “REMIC Administrator”) and the Indenture Trustee referred to above, on behalf of the holders of the Notes (the “Noteholders”), and FIGURE LENDING LLC, as sponsor (the “Sponsor”), a summary of certain of the pertinent provisions of which is set forth hereafter. To the extent not defined herein, capitalized terms used herein have the respective meanings assigned in the Indenture. This Note is issued under and is subject to the terms, provisions and conditions of the Indenture, to which Indenture the Holder of this Note by virtue of the acceptance hereof assents and by which such holder is bound.

Pursuant to the terms of the Indenture, payments on the Notes will be made on the 25th day of each month, or the immediately following Business Day if the 25th day is not a Business Day (each, a “Payment Date”), commencing in September 2025. All payments made under the Indenture on this Note will be made by the Paying Agent to the Depository and the Depository shall be responsible for crediting the amount of such distribution to the accounts of its Depository Participants in accordance with its normal procedures.

The Notes are limited in right of payment to certain distributions on the Mortgage Loans and other amounts, all as more specifically set forth herein and in the Indenture. As provided in the Indenture, withdrawals from the Payment Account may be made from time to time for purposes other than, and, in certain cases, prior to, payments to Noteholders, such purposes including reimbursement of certain expenses incurred by the transaction parties.

Any payment to the Holder of this Note in reduction of the Denomination hereof is binding on such Holder and all future Holders of this Note and any Note issued upon the transfer hereof or in exchange herefor or in lieu hereof whether or not notation of such payment is made upon this Note.

The Notes are issuable in fully registered form only without coupons in minimum denominations specified in the Indenture. As provided in the Indenture and subject to certain limitations therein set forth, this Note is exchangeable for new Notes in authorized denominations evidencing the same aggregate Denomination, as requested by the Holder surrendering the same.

No transfer, sale, pledge or other disposition of this Note or interest herein shall be made unless that transfer, sale, pledge or other disposition is exempt from the registration and/or qualification requirements of the Securities Act and any applicable state securities laws, or is otherwise made in accordance with the Securities Act and such state securities laws. If a transfer of this Note is to be made without registration under the Securities Act, and a Responsible Officer of the Registrar has actual knowledge thereof, then the Registrar shall refuse to register such transfer unless it and the Indenture Trustee receive (and upon receipt, may conclusively rely upon) certain certificate(s) required pursuant to Section 4.02 of the Indenture (as to which, so long as this Note is a Book-Entry Note, the representations and agreements made therein will be deemed to have been made by the prospective transferor and/or the prospective transferee, as applicable). None of the Issuer, the Indenture Trustee, the Paying Agent, REMIC Administrator or the Registrar is obligated to register or qualify any Notes under the Securities Act or any other securities law or to take any action not otherwise required under the Indenture to permit the transfer of any Note or interest therein without registration or qualification. Any Noteholder desiring to effect a transfer of Notes or interests therein shall, and does hereby agree to, indemnify the Issuer, the Indenture Trustee, the Paying Agent and the Registrar against any liability that may result if the transfer is not so exempt or is not made in accordance with such federal and state laws.

As provided in the Indenture and subject to certain limitations therein set forth, the transfer of this Note is registrable in the Register upon surrender of this Note for registration of transfer at the applicable Corporate Trust Office of the Registrar, duly endorsed by, or accompanied by a written instrument of transfer in the form satisfactory to the Registrar and the Indenture Trustee duly executed by, the Holder hereof or his attorney duly authorized in writing, and thereupon one or more new Notes in authorized denominations evidencing the same aggregate Denomination will be issued to the designated transferee or transferees.

No service charge will be imposed for any registration of transfer or exchange of this Note, but the Indenture Trustee or the Registrar may require payment of a sum sufficient to cover any tax or other governmental charge that may be imposed in connection with any transfer or exchange of this Note.

The Issuer, the Indenture Trustee, the Paying Agent, the Registrar and any agent thereof may treat the Person in whose name this Note is registered as the owner hereof for all purposes, and none of the Issuer, the Indenture Trustee, the Paying Agent, the Registrar or any such agent shall be affected by notice to the contrary.

Each Noteholder, by acceptance of a Class B Note or a beneficial interest therein, as the case may be, covenants and agrees that no recourse may be taken, directly or indirectly, with respect to the obligations of the Issuer, the Owner Trustee, the Depositor, the Depositor Trustee, the Indenture Trustee, the Registrar, the REMIC Administrator or the Paying Agent on the Notes or under the Indenture or any certificate or other writing delivered in connection herewith or therewith, against (i) the Indenture Trustee, the Registrar, the REMIC Administrator the Paying Agent, the Administrator, the Servicer, the Sponsor, the Depositor, the Owner Trustee or the Depositor Trustee in its individual capacity except as provided in the Transaction Documents (it being understood that the Owner Trustee has no such obligation in its individual capacity), (ii) any direct or indirect holder of a beneficial ownership interest in the Issuer or the Depositor or (iii) any partner, owner, beneficiary, agent, officer, director, employee or agent of the Indenture Trustee, the Registrar, the REMIC Administrator the Paying Agent, the Administrator, the Servicer, the Sponsor, the Depositor, the Owner Trustee or the Depositor Trustee in its individual capacity, any direct or indirect holder of a beneficial ownership interest in the Issuer, the Owner Trustee, the Depositor Trustee, the Indenture Trustee, the Registrar, the REMIC Administrator or the Paying Agent. For all purposes of the Indenture, (x) in the performance of any duties or obligations of the Issuer thereunder, each of the Administrator and the Owner Trustee shall be subject to, and entitled to the benefits of, the Trust Agreement, (y) in the performance of any duties or obligations of the Depositor thereunder, each of the Depositor Trustee and the Administrator shall be subject to, and entitled to the benefits of, the Depositor Trust Agreement and (z) in the performance of any duties or obligations of the Indenture Trustee, REMIC Administrator, Registrar, or Paying Agent thereunder, each of the Indenture Trustee, REMIC Administrator, Registrar, and Paying Agent shall be subject to, and entitled to the benefits of, the Indenture.

The Indenture will be discharged (except with respect to certain continuing rights specified in the Indenture) in accordance with the provisions therein.

Modifications of and amendments to the Indenture may be made by the Issuer, the Paying Agent, the Registrar, the REMIC Administrator and the Indenture Trustee in accordance with the provisions of the Indenture.

Unless the certificate of authentication hereon has been executed by the Registrar, by manual signature, this Note shall not be entitled to any benefit under the Indenture or be valid for any purpose.

This Note is a “regular interest” in a “real estate mortgage investment conduit,” as those terms are defined, respectively, in Sections 860G(a)(1) and 860D of the Code. Each Holder of this Note, by acceptance hereof, agrees to treat, and take no action inconsistent with the treatment of, this Note in accordance with the preceding sentence for purposes of U.S. federal income taxes, state and local income and franchise taxes and other taxes imposed on or measured by income.

The registered Holder hereof, by its acceptance hereof agrees that it will look solely to the Trust Estate (to the extent of its rights therein) for payments hereunder.

This Note shall be construed in accordance with the internal laws of the State of New York applicable to agreements made and to be performed in said State other than its conflicts of law principles except for Section 5-1401 and 1402 of the General Obligations Law, and the obligations, rights and remedies of the Holder hereof shall be determined in accordance with such laws.

IN WITNESS WHEREOF, the Issuer has caused this instrument to be duly executed by its Authorized Officer, as of the date set forth below.

FIGRE TRUST 2025-HE5,
as Issuer

By: Wilmington Savings Fund Society, FSB,
not in its individual capacity but solely
as Owner Trustee

By: _____
Name:
Title:
Dated:

CERTIFICATE OF AUTHENTICATION

This is one of the Class B Notes referred to in the within mentioned Indenture.

The Bank of New York Mellon,
as Registrar

By: _____
Authorized Officer
Dated: _____

ASSIGNMENT

FOR VALUE RECEIVED, the undersigned hereby sell(s), assign(s) and transfer(s) unto

(please print or typewrite name and address including postal zip code of assignee)

the within Note and all rights thereunder and hereby authorize(s) the registration of transfer of such interest to assignee on the Register.

I (we) further direct the Registrar to issue a new Note of a like aggregate Denomination to the above named assignee and deliver such Note to the following address:

Dated:

Signature by or on behalf of Assignor

Signature Guaranteed

*6

PAYMENT INSTRUCTIONS

The Assignee should include the following for purposes of payment:

Payments shall, if permitted, be made by wire transfer or otherwise, in immediately available _____ funds, _____ to

_____ for the account of _____.

Payments made by check (such check to be made payable to _____) and all applicable statements and notices should be mailed to _____.

This information is provided by _____, the Assignee named above, or _____, as its agent. .

* NOTICE: The signature to this assignment must correspond with the name of the registered owner as it appears on the face of the within Note in every particular, without alteration, enlargement or any change whatsoever. Such signature must, at the election of the Registrar, be guaranteed by an "eligible guarantor institution" meeting the requirements of the Registrar.

Exhibit A-3A

FORM OF RULE 144A GLOBAL CLASS C NOTE

FIGRE TRUST 2025-HE5 MORTGAGE-BACKED NOTES, SERIES 2025-HE5

Interest Rate: As set forth in the Indenture	Date of Indenture: August 28, 2025
Initial Note Amount: \$[•]	Closing Date: August 28, 2025
Minimum Denomination of this Note: \$150,000	Initial Payment Date: September 2025
Legal Final Maturity: Payment Date occurring in August 2055	Note No.: [•]
CUSIP: 31684MAC3	ISIN: US31684MAC38
Issuer: FIGRE TRUST 2025-HE5, a Delaware statutory trust	Indenture Trustee: THE BANK OF NEW YORK MELLON

UNLESS THIS NOTE IS PRESENTED BY AN AUTHORIZED REPRESENTATIVE OF THE DEPOSITORY TRUST COMPANY, A NEW YORK CORPORATION (“DTC”), TO THE REGISTRAR, THE INDENTURE TRUSTEE OR THEIR AGENT FOR REGISTRATION OF TRANSFER, EXCHANGE, OR PAYMENT, AND ANY NOTE ISSUED IS REGISTERED IN THE NAME OF CEDE & CO. OR IN SUCH OTHER NAME AS IS REQUESTED BY AN AUTHORIZED REPRESENTATIVE OF DTC (AND ANY PAYMENT IS MADE TO CEDE & CO. OR TO SUCH OTHER ENTITY AS IS REQUESTED BY AN AUTHORIZED REPRESENTATIVE OF DTC), ANY TRANSFER, PLEDGE, OR OTHER USE HEREOF FOR VALUE OR OTHERWISE BY OR TO ANY PERSON IS WRONGFUL INASMUCH AS THE REGISTERED OWNER HEREOF, CEDE & CO., HAS AN INTEREST HEREIN.

THIS NOTE HAS NOT BEEN REGISTERED OR QUALIFIED UNDER THE SECURITIES ACT OF 1933, AS AMENDED (THE “SECURITIES ACT”), OR THE SECURITIES LAWS OF ANY STATE AND THE ISSUER IS NOT AND WILL NOT BE REGISTERED UNDER THE UNITED STATES INVESTMENT COMPANY ACT OF 1940, AS AMENDED (THE “INVESTMENT COMPANY ACT”). ANY RESALE, PLEDGE, TRANSFER OR OTHER DISPOSITION OF THIS NOTE OR ANY INTEREST HEREIN WITHOUT SUCH REGISTRATION OR QUALIFICATION MAY BE MADE ONLY IN A TRANSACTION WHICH DOES NOT REQUIRE SUCH REGISTRATION OR QUALIFICATION AND WHICH IS IN ACCORDANCE WITH THE PROVISIONS OF SECTION 4.02 OF THE INDENTURE REFERRED TO HEREIN.

THE INITIAL INVESTOR IN THIS NOTE, AND EACH SUBSEQUENT PURCHASER OF THIS NOTE, BY PURCHASING THIS NOTE OR AN INTEREST HEREIN, IS DEEMED TO HAVE AGREED TO COMPLY WITH CERTAIN TRANSFER REQUIREMENTS SET FORTH IN THE INDENTURE REFERRED TO HEREIN.

BY ACQUIRING THIS CLASS C NOTE (OR ANY INTEREST HEREIN), EACH PURCHASER AND TRANSFEREE (AND, ITS FIDUCIARY, IF APPLICABLE) WILL BE DEEMED TO REPRESENT AND WARRANT THAT EITHER (A) IT IS NOT ACQUIRING AND WILL NOT HOLD SUCH NOTE (OR INTEREST HEREIN) WITH THE ASSETS OF A PLAN (AS DEFINED BELOW) THAT IS SUBJECT TO TITLE I OF THE EMPLOYEE RETIREMENT INCOME SECURITY ACT OF 1974, AS AMENDED (“ERISA”) OR SECTION 4975 OF THE INTERNAL REVENUE CODE OF 1986, AS AMENDED (THE “CODE”) (EACH OF THE FOREGOING, A “BENEFIT PLAN INVESTOR”) OR THAT IS SUBJECT TO A LAW THAT IS SUBSTANTIALLY SIMILAR TO TITLE I OF ERISA OR SECTION 4975 OF THE CODE (“SIMILAR LAW”) OR (B)(1) THE NOTE IS RATED AT LEAST “BBB-” OR ITS EQUIVALENT BY A NATIONALLY RECOGNIZED STATISTICAL RATING AGENCY AT THE TIME OF ACQUISITION OR TRANSFER AND THE NOTE HAS NOT BEEN CHARACTERIZED AS OTHER THAN INDEBTEDNESS UNDER APPLICABLE LOCAL LAW AND (2) THE ACQUISITION, HOLDING AND DISPOSITION OF THE NOTE (OR INTEREST HEREIN) WILL NOT, IN THE CASE OF A BENEFIT PLAN INVESTOR, GIVE RISE TO A NON-EXEMPT PROHIBITED TRANSACTION UNDER SECTION 406 OF ERISA OR SECTION 4975 OF THE CODE OR, IN THE CASE OF A PLAN THAT IS SUBJECT TO SIMILAR LAW, RESULT IN A VIOLATION OF ANY SIMILAR LAW. FOR THESE

PURPOSES, A “PLAN” MEANS AN “EMPLOYEE BENEFIT PLAN” AS DEFINED IN SECTION 3(3) OF ERISA WHETHER OR NOT SUBJECT TO TITLE I OF ERISA, A “PLAN” AS DEFINED IN SECTION 4975 OF THE CODE, OR AN ENTITY OR ACCOUNT DEEMED TO HOLD PLAN ASSETS OF THE FOREGOING BY VIRTUE OF SUCH EMPLOYEE BENEFIT PLAN’S OR PLAN’S INVESTMENT IN THE ENTITY OR ACCOUNT.

THIS NOTE REPRESENTS A NON-RECOURSE OBLIGATION OF THE ISSUER AND WILL BE PAID SOLELY FROM THE COLLATERAL SECURING THIS NOTE. NEITHER THIS NOTE NOR THE COLLATERAL IS INSURED OR GUARANTEED BY ANY GOVERNMENTAL AGENCY OR INSTRUMENTALITY OR BY ANY OTHER PERSON.

PAYMENTS IN REDUCTION OF THE INITIAL NOTE AMOUNT OF THIS NOTE MAY BE MADE MONTHLY AS SET FORTH IN THE INDENTURE REFERRED TO HEREIN. ACCORDINGLY, THE OUTSTANDING NOTE AMOUNT HEREOF AT ANY TIME MAY BE LESS THAN THE AMOUNT SHOWN ABOVE.

This certifies that Cede & Co. is the registered owner (the “Holder”) of this Note which is one of the Notes (collectively, the “Notes”) issued by the Issuer referred to above pursuant to the indenture, dated August 28, 2025 (the “Indenture”), among, *inter alios*, the Issuer referred to above, THE BANK OF NEW YORK MELLON, as paying agent (the “Paying Agent”), registrar (the “Registrar”), REMIC administrator (the “REMIC Administrator”) and the Indenture Trustee referred to above, on behalf of the holders of the Notes (the “Noteholders”), and FIGURE LENDING LLC, as sponsor (the “Sponsor”), a summary of certain of the pertinent provisions of which is set forth hereafter. To the extent not defined herein, capitalized terms used herein have the respective meanings assigned in the Indenture. This Note is issued under and is subject to the terms, provisions and conditions of the Indenture, to which Indenture the Holder of this Note by virtue of the acceptance hereof assents and by which such holder is bound.

Pursuant to the terms of the Indenture, payments on the Notes will be made on the 25th day of each month, or the immediately following Business Day if the 25th day is not a Business Day (each, a “Payment Date”), commencing in September 2025. All payments made under the Indenture on this Note will be made by the Paying Agent to the Depository and the Depository shall be responsible for crediting the amount of such distribution to the accounts of its Depository Participants in accordance with its normal procedures.

The Notes are limited in right of payment to certain distributions on the Mortgage Loans and other amounts, all as more specifically set forth herein and in the Indenture. As provided in the Indenture, withdrawals from the Payment Account may be made from time to time for purposes other than, and, in certain cases, prior to, payments to Noteholders, such purposes including reimbursement of certain expenses incurred by the transaction parties.

Any payment to the Holder of this Note in reduction of the Denomination hereof is binding on such Holder and all future Holders of this Note and any Note issued upon the transfer hereof or in exchange herefor or in lieu hereof whether or not notation of such payment is made upon this Note.

The Notes are issuable in fully registered form only without coupons in minimum denominations specified in the Indenture. As provided in the Indenture and subject to certain limitations therein set forth, this Note is exchangeable for new Notes in authorized denominations evidencing the same aggregate Denomination, as requested by the Holder surrendering the same.

No transfer, sale, pledge or other disposition of this Note or interest herein shall be made unless that transfer, sale, pledge or other disposition is exempt from the registration and/or qualification requirements of the Securities Act and any applicable state securities laws, or is otherwise made in accordance with the Securities Act and such state securities laws. If a transfer of this Note is to be made without registration under the Securities Act, and a Responsible Officer of the Registrar has actual knowledge thereof, then the Registrar shall refuse to register such transfer unless it and the Indenture Trustee receive (and upon receipt, may conclusively rely upon) certain certificate(s) required pursuant to Section 4.02 of the Indenture (as to which, so long as this Note is a Book-Entry Note, the representations and agreements made therein will be deemed to have been made by the prospective transferor and/or the prospective transferee, as applicable). None of the Issuer, the Indenture Trustee, the Paying Agent, REMIC Administrator or the Registrar is obligated to register or qualify any Notes under the Securities Act or any other securities law or to take any action not otherwise required under the Indenture to permit the transfer of any Note or interest therein without registration or qualification. Any Noteholder desiring to effect a transfer of Notes or interests therein shall, and does hereby agree to, indemnify the Issuer, the Indenture Trustee, the Paying Agent and the Registrar against any liability that may result if the transfer is not so exempt or is not made in accordance with such federal and state laws.

As provided in the Indenture and subject to certain limitations therein set forth, the transfer of this Note is registrable in the Register upon surrender of this Note for registration of transfer at the applicable Corporate Trust Office of the Registrar, duly endorsed by, or accompanied by a written instrument of transfer in the form satisfactory to the Registrar and the Indenture Trustee duly executed by, the Holder hereof or his attorney duly authorized in writing, and thereupon one or more new Notes in authorized denominations evidencing the same aggregate Denomination will be issued to the designated transferee or transferees.

No service charge will be imposed for any registration of transfer or exchange of this Note, but the Indenture Trustee or the Registrar may require payment of a sum sufficient to cover any tax or other governmental charge that may be imposed in connection with any transfer or exchange of this Note.

The Issuer, the Indenture Trustee, the Paying Agent, the Registrar and any agent thereof may treat the Person in whose name this Note is registered as the owner hereof for all purposes, and none of the Issuer, the Indenture Trustee, the Paying Agent, the Registrar or any such agent shall be affected by notice to the contrary.

Each Noteholder, by acceptance of a Class C Note or a beneficial interest therein, as the case may be, covenants and agrees that no recourse may be taken, directly or indirectly, with respect to the obligations of the Issuer, the Owner Trustee, the Depositor, the Depositor Trustee, the Indenture Trustee, the Registrar, the REMIC Administrator or the Paying Agent on the Notes or under the Indenture or any certificate or other writing delivered in connection herewith or therewith, against (i) the Indenture Trustee, the Registrar, the REMIC Administrator the Paying

Agent, the Administrator, the Servicer, the Sponsor, the Depositor, the Owner Trustee or the Depositor Trustee in its individual capacity except as provided in the Transaction Documents (it being understood that the Owner Trustee has no such obligation in its individual capacity), (ii) any direct or indirect holder of a beneficial ownership interest in the Issuer or the Depositor or (iii) any partner, owner, beneficiary, agent, officer, director, employee or agent of the Indenture Trustee, the Registrar, the REMIC Administrator the Paying Agent, the Administrator, the Servicer, the Sponsor, the Depositor, the Owner Trustee or the Depositor Trustee in its individual capacity, any direct or indirect holder of a beneficial ownership interest in the Issuer, the Owner Trustee, the Depositor Trustee, the Indenture Trustee, the Registrar, the REMIC Administrator or the Paying Agent. For all purposes of the Indenture, (x) in the performance of any duties or obligations of the Issuer thereunder, each of the Administrator and the Owner Trustee shall be subject to, and entitled to the benefits of, the Trust Agreement, (y) in the performance of any duties or obligations of the Depositor thereunder, each of the Depositor Trustee and the Administrator shall be subject to, and entitled to the benefits of, the Depositor Trust Agreement and (z) in the performance of any duties or obligations of the Indenture Trustee, REMIC Administrator, Registrar, or Paying Agent thereunder, each of the Indenture Trustee, REMIC Administrator, Registrar, and Paying Agent shall be subject to, and entitled to the benefits of, the Indenture.

The Indenture will be discharged (except with respect to certain continuing rights specified in the Indenture) in accordance with the provisions therein.

Modifications of and amendments to the Indenture may be made by the Issuer, the Paying Agent, the Registrar, the REMIC Administrator and the Indenture Trustee in accordance with the provisions of the Indenture.

Unless the certificate of authentication hereon has been executed by the Registrar, by manual signature, this Note shall not be entitled to any benefit under the Indenture or be valid for any purpose.

This Note is a “regular interest” in a “real estate mortgage investment conduit,” as those terms are defined, respectively, in Sections 860G(a)(1) and 860D of the Code. Each Holder of this Note, by acceptance hereof, agrees to treat, and take no action inconsistent with the treatment of, this Note in accordance with the preceding sentence for purposes of U.S. federal income taxes, state and local income and franchise taxes and other taxes imposed on or measured by income.

The registered Holder hereof, by its acceptance hereof agrees that it will look solely to the Trust Estate (to the extent of its rights therein) for payments hereunder.

This Note shall be construed in accordance with the internal laws of the State of New York applicable to agreements made and to be performed in said State other than its conflicts of law principles except for Section 5-1401 and 1402 of the General Obligations Law, and the obligations, rights and remedies of the Holder hereof shall be determined in accordance with such laws.

IN WITNESS WHEREOF, the Issuer has caused this instrument to be duly executed by its Authorized Officer, as of the date set forth below.

FIGRE TRUST 2025-HE5,
as Issuer

By: Wilmington Savings Fund Society, FSB,
not in its individual capacity but solely
as Owner Trustee

By: _____
Name:
Title:
Dated:

CERTIFICATE OF AUTHENTICATION

This is one of the Class C Notes referred to in the within mentioned Indenture.

The Bank of New York Mellon,
as Registrar

By: _____
Authorized Officer
Dated: _____

ASSIGNMENT

FOR VALUE RECEIVED, the undersigned hereby sell(s), assign(s) and transfer(s) unto

(please print or typewrite name and address including postal zip code of assignee)

the within Note and all rights thereunder and hereby authorize(s) the registration of transfer of such interest to assignee on the Register.

I (we) further direct the Registrar to issue a new Note of a like aggregate Denomination to the above named assignee and deliver such Note to the following address:

Dated:

Signature by or on behalf of Assignor

Signature Guaranteed

*7

PAYMENT INSTRUCTIONS

The Assignee should include the following for purposes of payment:

Payments shall, if permitted, be made by wire transfer or otherwise, in immediately available _____ funds, _____ to

_____ for the account of _____.

Payments made by check (such check to be made payable to _____) and all applicable statements and notices should be mailed to _____.

This information is provided by _____, the Assignee named above, or _____, as its agent.

* NOTICE: The signature to this assignment must correspond with the name of the registered owner as it appears on the face of the within Note in every particular, without alteration, enlargement or any change whatsoever. Such signature must, at the election of the Registrar, be guaranteed by an "eligible guarantor institution" meeting the requirements of the Registrar.

Exhibit A-3B

**FORM OF TEMPORARY REGULATION S GLOBAL CLASS C NOTE
FIGRE TRUST 2025-HE5 MORTGAGE-BACKED NOTES, SERIES 2025-HE5**

Interest Rate: As set forth in the Indenture	Date of Indenture: August 28, 2025
Initial Note Amount: \$[●]	Closing Date: August 28, 2025
Minimum Denomination of this Note: \$150,000	Initial Payment Date: September 2025
Legal Final Maturity: Payment Date occurring in August 2055	Note No.: [●]
CUSIP: U3202RAC1	ISIN: USU3202RAC17
Issuer: FIGRE TRUST 2025-HE5, a Delaware statutory trust	Indenture Trustee: THE BANK OF NEW YORK MELLON

THIS NOTE IS A TEMPORARY REGULATION S GLOBAL NOTE FOR PURPOSES OF REGULATION S UNDER THE UNITED STATES SECURITIES ACT OF 1933, AS AMENDED (THE “SECURITIES ACT”). NEITHER THIS TEMPORARY REGULATION S GLOBAL NOTE NOR ANY INTEREST HEREIN MAY BE OFFERED, SOLD OR DELIVERED, EXCEPT AS PERMITTED UNDER THE INDENTURE REFERRED TO HEREIN.

UNLESS THIS NOTE IS PRESENTED BY AN AUTHORIZED REPRESENTATIVE OF THE DEPOSITORY TRUST COMPANY, A NEW YORK CORPORATION (“DTC”), TO THE REGISTRAR, THE INDENTURE TRUSTEE OR THEIR AGENT FOR REGISTRATION OF TRANSFER, EXCHANGE, OR PAYMENT, AND ANY NOTE ISSUED IS REGISTERED IN THE NAME OF CEDE & CO. OR IN SUCH OTHER NAME AS IS REQUESTED BY AN AUTHORIZED REPRESENTATIVE OF DTC (AND ANY PAYMENT IS MADE TO CEDE & CO. OR TO SUCH OTHER ENTITY AS IS REQUESTED BY AN AUTHORIZED REPRESENTATIVE OF DTC), ANY TRANSFER, PLEDGE, OR OTHER USE HEREOF FOR VALUE OR OTHERWISE BY OR TO ANY PERSON IS WRONGFUL INASMUCH AS THE REGISTERED OWNER HEREOF, CEDE & CO., HAS AN INTEREST HEREIN.

THIS NOTE HAS NOT BEEN REGISTERED OR QUALIFIED UNDER THE SECURITIES ACT, OR THE SECURITIES LAWS OF ANY STATE AND THE ISSUER IS NOT AND WILL NOT BE REGISTERED UNDER THE UNITED STATES INVESTMENT COMPANY ACT OF 1940, AS AMENDED (THE “INVESTMENT COMPANY ACT”). ANY RESALE, PLEDGE, TRANSFER OR OTHER DISPOSITION OF THIS NOTE OR ANY INTEREST HEREIN WITHOUT SUCH REGISTRATION OR QUALIFICATION MAY BE MADE ONLY IN A TRANSACTION WHICH DOES NOT REQUIRE SUCH REGISTRATION OR QUALIFICATION AND WHICH IS IN ACCORDANCE WITH THE PROVISIONS OF SECTION 4.02 OF THE INDENTURE REFERRED TO HEREIN.

THE HOLDER OF THIS NOTE BY ITS ACCEPTANCE HEREOF AGREES NOT TO OFFER, SELL OR OTHERWISE TRANSFER SUCH NOTE WITHIN THE UNITED STATES OR TO U.S. PERSONS (AS DEFINED IN REGULATION S UNDER THE SECURITIES ACT) PRIOR TO THE EXCHANGE DATE EXCEPT PURSUANT TO AN EXEMPTION FROM THE REGISTRATION REQUIREMENTS OF THE SECURITIES ACT.

BY ACQUIRING THIS CLASS C NOTE (OR ANY INTEREST HEREIN), EACH PURCHASER AND TRANSFEREE (AND, ITS FIDUCIARY, IF APPLICABLE) WILL BE DEEMED TO REPRESENT AND WARRANT THAT EITHER (A) IT IS NOT ACQUIRING AND WILL NOT HOLD SUCH NOTE (OR INTEREST HEREIN) WITH THE ASSETS OF A PLAN (AS DEFINED BELOW) THAT IS SUBJECT TO TITLE I OF THE EMPLOYEE RETIREMENT INCOME SECURITY ACT OF 1974, AS AMENDED (“ERISA”) OR SECTION 4975 OF THE INTERNAL REVENUE CODE OF 1986, AS AMENDED (THE “CODE”) (EACH OF THE FOREGOING, A “BENEFIT PLAN INVESTOR”) OR THAT IS SUBJECT TO A LAW THAT IS SUBSTANTIALLY SIMILAR TO TITLE I OF ERISA OR SECTION 4975 OF THE CODE (“SIMILAR LAW”)

OR (B)(1) THE NOTE IS RATED AT LEAST “BBB-” OR ITS EQUIVALENT BY A NATIONALLY RECOGNIZED STATISTICAL RATING AGENCY AT THE TIME OF ACQUISITION OR TRANSFER AND THE NOTE HAS NOT BEEN CHARACTERIZED AS OTHER THAN INDEBTEDNESS UNDER APPLICABLE LOCAL LAW AND (2) THE ACQUISITION, HOLDING AND DISPOSITION OF THE NOTE (OR INTEREST HEREIN) WILL NOT, IN THE CASE OF A BENEFIT PLAN INVESTOR, GIVE RISE TO A NON-EXEMPT PROHIBITED TRANSACTION UNDER SECTION 406 OF ERISA OR SECTION 4975 OF THE CODE OR, IN THE CASE OF A PLAN THAT IS SUBJECT TO SIMILAR LAW, RESULT IN A VIOLATION OF ANY SIMILAR LAW. FOR THESE PURPOSES, A “PLAN” MEANS AN “EMPLOYEE BENEFIT PLAN” AS DEFINED IN SECTION 3(3) OF ERISA WHETHER OR NOT SUBJECT TO TITLE I OF ERISA, A “PLAN” AS DEFINED IN SECTION 4975 OF THE CODE, OR AN ENTITY OR ACCOUNT DEEMED TO HOLD PLAN ASSETS OF THE FOREGOING BY VIRTUE OF SUCH EMPLOYEE BENEFIT PLAN’S OR PLAN’S INVESTMENT IN THE ENTITY OR ACCOUNT.

THIS NOTE REPRESENTS A NON-RECOURSE OBLIGATION OF THE ISSUER AND WILL BE PAID SOLELY FROM THE COLLATERAL SECURING THIS NOTE. NEITHER THIS NOTE NOR THE COLLATERAL IS INSURED OR GUARANTEED BY ANY GOVERNMENTAL AGENCY OR INSTRUMENTALITY OR BY ANY OTHER PERSON.

PAYMENTS IN REDUCTION OF THE INITIAL NOTE AMOUNT OF THIS NOTE MAY BE MADE MONTHLY AS SET FORTH IN THE INDENTURE REFERRED TO HEREIN. ACCORDINGLY, THE OUTSTANDING NOTE AMOUNT HEREOF AT ANY TIME MAY BE LESS THAN THE AMOUNT SHOWN ABOVE.

This certifies that Cede & Co. is the registered owner (the “Holder”) of this Note which is one of the Notes (collectively, the “Notes”) issued by the Issuer referred to above pursuant to the indenture, dated August 28, 2025 (the “Indenture”), among, *inter alios*, the Issuer referred to above, THE BANK OF NEW YORK MELLON, as paying agent (the “Paying Agent”), registrar (the “Registrar”), REMIC administrator (the “REMIC Administrator”) and the Indenture Trustee referred to above, on behalf of the holders of the Notes (the “Noteholders”), and FIGURE LENDING LLC, as sponsor (the “Sponsor”), a summary of certain of the pertinent provisions of which is set forth hereafter. To the extent not defined herein, capitalized terms used herein have the respective meanings assigned in the Indenture. This Note is issued under and is subject to the terms, provisions and conditions of the Indenture, to which Indenture the Holder of this Note by virtue of the acceptance hereof assents and by which such holder is bound.

Pursuant to the terms of the Indenture, payments on the Notes will be made on the 25th day of each month, or the immediately following Business Day if the 25th day is not a Business Day (each, a “Payment Date”), commencing in September 2025. All payments made under the Indenture on this Note will be made by the Paying Agent to the Depository and the Depository shall be responsible for crediting the amount of such distribution to the accounts of its Depository Participants in accordance with its normal procedures.

The Notes are limited in right of payment to certain distributions on the Mortgage Loans and other amounts, all as more specifically set forth herein and in the Indenture. As provided in the Indenture, withdrawals from the Payment Account may be made from time to time for purposes other than, and, in certain cases, prior to, payments to Noteholders, such purposes including reimbursement of certain expenses incurred by the transaction parties.

Any payment to the Holder of this Note in reduction of the Denomination hereof is binding on such Holder and all future Holders of this Note and any Note issued upon the transfer hereof or in exchange herefor or in lieu hereof whether or not notation of such payment is made upon this Note.

The Notes are issuable in fully registered form only without coupons in minimum denominations specified in the Indenture. As provided in the Indenture and subject to certain limitations therein set forth, this Note is exchangeable for new Notes in authorized denominations evidencing the same aggregate Denomination, as requested by the Holder surrendering the same.

No transfer, sale, pledge or other disposition of this Note or interest herein shall be made unless that transfer, sale, pledge or other disposition is exempt from the registration and/or qualification requirements of the Securities Act and any applicable state securities laws, or is otherwise made in accordance with the Securities Act and such state securities laws. If a transfer of this Note is to be made without registration under the Securities Act, and a Responsible Officer of the Registrar has actual knowledge thereof, then the Registrar shall refuse to register such transfer unless it and the Indenture Trustee receive (and upon receipt, may conclusively rely upon) certain certificate(s) required pursuant to Section 4.02 of the Indenture (as to which, so long as this Note is a Book-Entry Note, the representations and agreements made therein will be deemed to have been made by the prospective transferor and/or the prospective transferee, as applicable). None of the Issuer, the Indenture Trustee, the Paying Agent, REMIC Administrator or the Registrar is obligated to register or qualify any Notes under the Securities Act or any other securities law or to take any action not otherwise required under the Indenture to permit the transfer of any Note or interest therein without registration or qualification. Any Noteholder desiring to effect a transfer of Notes or interests therein shall, and does hereby agree to, indemnify the Issuer, the Indenture Trustee, the Paying Agent and the Registrar against any liability that may result if the transfer is not so exempt or is not made in accordance with such federal and state laws.

As provided in the Indenture and subject to certain limitations therein set forth, the transfer of this Note is registrable in the Register upon surrender of this Note for registration of transfer at the applicable Corporate Trust Office of the Registrar, duly endorsed by, or accompanied by a written instrument of transfer in the form satisfactory to the Registrar and the Indenture Trustee duly executed by, the Holder hereof or his attorney duly authorized in writing, and thereupon one or more new Notes in authorized denominations evidencing the same aggregate Denomination will be issued to the designated transferee or transferees.

No service charge will be imposed for any registration of transfer or exchange of this Note, but the Indenture Trustee or the Registrar may require payment of a sum sufficient to cover any tax or other governmental charge that may be imposed in connection with any transfer or exchange of this Note.

The Issuer, the Indenture Trustee, the Paying Agent, the Registrar and any agent thereof may treat the Person in whose name this Note is registered as the owner hereof for all purposes, and none of the Issuer, the Indenture Trustee, the Paying Agent, the Registrar or any such agent shall be affected by notice to the contrary.

Each Noteholder, by acceptance of a Class C Note or a beneficial interest therein, as the case may be, covenants and agrees that no recourse may be taken, directly or indirectly, with respect to the obligations of the Issuer, the Owner Trustee, the Depositor, the Depositor Trustee, the Indenture Trustee, the Registrar, the REMIC Administrator or the Paying Agent on the Notes or under the Indenture or any certificate or other writing delivered in connection herewith or therewith, against (i) the Indenture Trustee, the Registrar, the REMIC Administrator the Paying Agent, the Administrator, the Servicer, the Sponsor, the Depositor, the Owner Trustee or the Depositor Trustee in its individual capacity except as provided in the Transaction Documents (it being understood that the Owner Trustee has no such obligation in its individual capacity), (ii) any direct or indirect holder of a beneficial ownership interest in the Issuer or the Depositor or (iii) any partner, owner, beneficiary, agent, officer, director, employee or agent of the Indenture Trustee, the Registrar, the REMIC Administrator the Paying Agent, the Administrator, the Servicer, the Sponsor, the Depositor, the Owner Trustee or the Depositor Trustee in its individual capacity, any direct or indirect holder of a beneficial ownership interest in the Issuer, the Owner Trustee, the Depositor Trustee, the Indenture Trustee, the Registrar, the REMIC Administrator or the Paying Agent. For all purposes of the Indenture, (x) in the performance of any duties or obligations of the Issuer thereunder, each of the Administrator and the Owner Trustee shall be subject to, and entitled to the benefits of, the Trust Agreement, (y) in the performance of any duties or obligations of the Depositor thereunder, each of the Depositor Trustee and the Administrator shall be subject to, and entitled to the benefits of, the Depositor Trust Agreement and (z) in the performance of any duties or obligations of the Indenture Trustee, REMIC Administrator, Registrar, or Paying Agent thereunder, each of the Indenture Trustee, REMIC Administrator, Registrar, and Paying Agent shall be subject to, and entitled to the benefits of, the Indenture.

The Indenture will be discharged (except with respect to certain continuing rights specified in the Indenture) in accordance with the provisions therein.

Modifications of and amendments to the Indenture may be made by the Issuer, the Paying Agent, the Registrar, the REMIC Administrator and the Indenture Trustee in accordance with the provisions of the Indenture.

Unless the certificate of authentication hereon has been executed by the Registrar, by manual signature, this Note shall not be entitled to any benefit under the Indenture or be valid for any purpose.

This Note is a “regular interest” in a “real estate mortgage investment conduit,” as those terms are defined, respectively, in Sections 860G(a)(1) and 860D of the Code. Each Holder of this Note, by acceptance hereof, agrees to treat, and take no action inconsistent with the treatment of, this Note in accordance with the preceding sentence for purposes of U.S. federal income taxes, state and local income and franchise taxes and other taxes imposed on or measured by income.

The registered Holder hereof, by its acceptance hereof agrees that it will look solely to the Trust Estate (to the extent of its rights therein) for payments hereunder.

This Note shall be construed in accordance with the internal laws of the State of New York applicable to agreements made and to be performed in said State other than its conflicts of law principles except for Section 5-1401 and 1402 of the General Obligations Law, and the obligations, rights and remedies of the Holder hereof shall be determined in accordance with such laws.

IN WITNESS WHEREOF, the Issuer has caused this instrument to be duly executed by its Authorized Officer, as of the date set forth below.

FIGRE TRUST 2025-HE5,
as Issuer

By: Wilmington Savings Fund Society, FSB,
not in its individual capacity but solely
as Owner Trustee

By: _____
Name:
Title:
Dated:

CERTIFICATE OF AUTHENTICATION

This is one of the Class C Notes referred to in the within mentioned Indenture.

The Bank of New York Mellon,
as Registrar

By: _____
Authorized Officer
Dated: _____

ASSIGNMENT

FOR VALUE RECEIVED, the undersigned hereby sell(s), assign(s) and transfer(s) unto

(please print or typewrite name and address including postal zip code of assignee)

the within Note and all rights thereunder and hereby authorize(s) the registration of transfer of such interest to assignee on the Register.

I (we) further direct the Registrar to issue a new Note of a like aggregate Denomination to the above named assignee and deliver such Note to the following address:

Dated:

Signature by or on behalf of Assignor

Signature Guaranteed

*8

PAYMENT INSTRUCTIONS

The Assignee should include the following for purposes of payment:

Payments shall, if permitted, be made by wire transfer or otherwise, in immediately available _____ funds, _____ to

_____ for the account of _____.

Payments made by check (such check to be made payable to _____) and all applicable statements and notices should be mailed to _____.

This information is provided by _____, the Assignee named above, or _____, as its agent.

* NOTICE: The signature to this assignment must correspond with the name of the registered owner as it appears on the face of the within Note in every particular, without alteration, enlargement or any change whatsoever. Such signature must, at the election of the Registrar, be guaranteed by an "eligible guarantor institution" meeting the requirements of the Registrar.

Exhibit A-3C

**FORM OF PERMANENT REGULATION S GLOBAL CLASS C NOTE
FIGRE TRUST 2025-HE5 MORTGAGE-BACKED NOTES, SERIES 2025-HE5**

Interest Rate: As set forth in the Indenture	Date of Indenture: August 28, 2025
Initial Note Amount: \$[●]	Closing Date: August 28, 2025
Minimum Denomination of this Note: \$150,000	Initial Payment Date: September 2025
Legal Final Maturity: Payment Date occurring in August 2055	Note No.: [●]
CUSIP: U3202RAC1	ISIN: USU3202RAC17
Issuer: FIGRE TRUST 2025-HE5, a Delaware statutory trust	Indenture Trustee: THE BANK OF NEW YORK MELLON

THIS NOTE IS A PERMANENT REGULATION S GLOBAL NOTE FOR PURPOSES OF REGULATION S UNDER THE UNITED STATES SECURITIES ACT OF 1933, AS AMENDED (THE “SECURITIES ACT”). NEITHER THIS PERMANENT REGULATION S GLOBAL NOTE NOR ANY INTEREST HEREIN MAY BE OFFERED, SOLD OR DELIVERED, EXCEPT AS PERMITTED UNDER THE INDENTURE REFERRED TO HEREIN.

UNLESS THIS NOTE IS PRESENTED BY AN AUTHORIZED REPRESENTATIVE OF THE DEPOSITORY TRUST COMPANY, A NEW YORK CORPORATION (“DTC”), TO THE REGISTRAR, THE INDENTURE TRUSTEE OR THEIR AGENT FOR REGISTRATION OF TRANSFER, EXCHANGE, OR PAYMENT, AND ANY NOTE ISSUED IS REGISTERED IN THE NAME OF CEDE & CO. OR IN SUCH OTHER NAME AS IS REQUESTED BY AN AUTHORIZED REPRESENTATIVE OF DTC (AND ANY PAYMENT IS MADE TO CEDE & CO. OR TO SUCH OTHER ENTITY AS IS REQUESTED BY AN AUTHORIZED REPRESENTATIVE OF DTC), ANY TRANSFER, PLEDGE, OR OTHER USE HEREOF FOR VALUE OR OTHERWISE BY OR TO ANY PERSON IS WRONGFUL INASMUCH AS THE REGISTERED OWNER HEREOF, CEDE & CO., HAS AN INTEREST HEREIN.

THIS NOTE HAS NOT BEEN REGISTERED OR QUALIFIED UNDER THE SECURITIES ACT, OR THE SECURITIES LAWS OF ANY STATE AND THE ISSUER IS NOT AND WILL NOT BE REGISTERED UNDER THE UNITED STATES INVESTMENT COMPANY ACT OF 1940, AS AMENDED (THE “INVESTMENT COMPANY ACT”). ANY RESALE, PLEDGE, TRANSFER OR OTHER DISPOSITION OF THIS NOTE OR ANY INTEREST HEREIN WITHOUT SUCH REGISTRATION OR QUALIFICATION MAY BE MADE ONLY IN A TRANSACTION WHICH DOES NOT REQUIRE SUCH REGISTRATION OR QUALIFICATION AND WHICH IS IN ACCORDANCE WITH THE PROVISIONS OF SECTION 4.02 OF THE INDENTURE REFERRED TO HEREIN.

THE HOLDER OF THIS NOTE BY ITS ACCEPTANCE HEREOF AGREES NOT TO OFFER, SELL OR OTHERWISE TRANSFER SUCH NOTE WITHIN THE UNITED STATES OR TO U.S. PERSONS (AS DEFINED IN REGULATION S UNDER THE SECURITIES ACT) PRIOR TO THE EXCHANGE DATE EXCEPT PURSUANT TO AN EXEMPTION FROM THE REGISTRATION REQUIREMENTS OF THE SECURITIES ACT.

BY ACQUIRING THIS CLASS C NOTE (OR ANY INTEREST HEREIN), EACH PURCHASER AND TRANSFEREE (AND, ITS FIDUCIARY, IF APPLICABLE) WILL BE DEEMED TO REPRESENT AND WARRANT THAT EITHER (A) IT IS NOT ACQUIRING AND WILL NOT HOLD SUCH NOTE (OR INTEREST HEREIN) WITH THE ASSETS OF A PLAN (AS DEFINED BELOW) THAT IS SUBJECT TO TITLE I OF THE EMPLOYEE RETIREMENT INCOME SECURITY ACT OF 1974, AS AMENDED (“ERISA”) OR SECTION 4975 OF THE INTERNAL REVENUE CODE OF 1986, AS AMENDED (THE “CODE”) (EACH OF THE FOREGOING, A “BENEFIT PLAN INVESTOR”) OR THAT IS SUBJECT TO A LAW THAT IS SUBSTANTIALLY SIMILAR TO TITLE I OF ERISA OR SECTION 4975 OF THE CODE (“SIMILAR LAW”)

OR (B)(1) THE NOTE IS RATED AT LEAST “BBB-” OR ITS EQUIVALENT BY A NATIONALLY RECOGNIZED STATISTICAL RATING AGENCY AT THE TIME OF ACQUISITION OR TRANSFER AND THE NOTE HAS NOT BEEN CHARACTERIZED AS OTHER THAN INDEBTEDNESS UNDER APPLICABLE LOCAL LAW AND (2) THE ACQUISITION, HOLDING AND DISPOSITION OF THE NOTE (OR INTEREST HEREIN) WILL NOT, IN THE CASE OF A BENEFIT PLAN INVESTOR, GIVE RISE TO A NON-EXEMPT PROHIBITED TRANSACTION UNDER SECTION 406 OF ERISA OR SECTION 4975 OF THE CODE OR, IN THE CASE OF A PLAN THAT IS SUBJECT TO SIMILAR LAW, RESULT IN A VIOLATION OF ANY SIMILAR LAW. FOR THESE PURPOSES, A “PLAN” MEANS AN “EMPLOYEE BENEFIT PLAN” AS DEFINED IN SECTION 3(3) OF ERISA WHETHER OR NOT SUBJECT TO TITLE I OF ERISA, A “PLAN” AS DEFINED IN SECTION 4975 OF THE CODE, OR AN ENTITY OR ACCOUNT DEEMED TO HOLD PLAN ASSETS OF THE FOREGOING BY VIRTUE OF SUCH EMPLOYEE BENEFIT PLAN’S OR PLAN’S INVESTMENT IN THE ENTITY OR ACCOUNT.

THIS NOTE REPRESENTS A NON-RECOURSE OBLIGATION OF THE ISSUER AND WILL BE PAID SOLELY FROM THE COLLATERAL SECURING THIS NOTE. NEITHER THIS NOTE NOR THE COLLATERAL IS INSURED OR GUARANTEED BY ANY GOVERNMENTAL AGENCY OR INSTRUMENTALITY OR BY ANY OTHER PERSON.

PAYMENTS IN REDUCTION OF THE INITIAL NOTE AMOUNT OF THIS NOTE MAY BE MADE MONTHLY AS SET FORTH IN THE INDENTURE REFERRED TO HEREIN. ACCORDINGLY, THE OUTSTANDING NOTE AMOUNT HEREOF AT ANY TIME MAY BE LESS THAN THE AMOUNT SHOWN ABOVE.

This certifies that Cede & Co. is the registered owner (the “Holder”) of this Note which is one of the Notes (collectively, the “Notes”) issued by the Issuer referred to above pursuant to the indenture, dated August 28, 2025 (the “Indenture”), among, *inter alios*, the Issuer referred to above, THE BANK OF NEW YORK MELLON, as paying agent (the “Paying Agent”), registrar (the “Registrar”), REMIC administrator (the “REMIC Administrator”) and the Indenture Trustee referred to above, on behalf of the holders of the Notes (the “Noteholders”), and FIGURE LENDING LLC, as sponsor (the “Sponsor”), a summary of certain of the pertinent provisions of which is set forth hereafter. To the extent not defined herein, capitalized terms used herein have the respective meanings assigned in the Indenture. This Note is issued under and is subject to the terms, provisions and conditions of the Indenture, to which Indenture the Holder of this Note by virtue of the acceptance hereof assents and by which such holder is bound.

Pursuant to the terms of the Indenture, payments on the Notes will be made on the 25th day of each month, or the immediately following Business Day if the 25th day is not a Business Day (each, a “Payment Date”), commencing in September 2025. All payments made under the Indenture on this Note will be made by the Paying Agent to the Depository and the Depository shall be responsible for crediting the amount of such distribution to the accounts of its Depository Participants in accordance with its normal procedures.

The Notes are limited in right of payment to certain distributions on the Mortgage Loans and other amounts, all as more specifically set forth herein and in the Indenture. As provided in the Indenture, withdrawals from the Payment Account may be made from time to time for purposes other than, and, in certain cases, prior to, payments to Noteholders, such purposes including reimbursement of certain expenses incurred by the transaction parties.

Any payment to the Holder of this Note in reduction of the Denomination hereof is binding on such Holder and all future Holders of this Note and any Note issued upon the transfer hereof or in exchange herefor or in lieu hereof whether or not notation of such payment is made upon this Note.

The Notes are issuable in fully registered form only without coupons in minimum denominations specified in the Indenture. As provided in the Indenture and subject to certain limitations therein set forth, this Note is exchangeable for new Notes in authorized denominations evidencing the same aggregate Denomination, as requested by the Holder surrendering the same.

No transfer, sale, pledge or other disposition of this Note or interest herein shall be made unless that transfer, sale, pledge or other disposition is exempt from the registration and/or qualification requirements of the Securities Act and any applicable state securities laws, or is otherwise made in accordance with the Securities Act and such state securities laws. If a transfer of this Note is to be made without registration under the Securities Act, and a Responsible Officer of the Registrar has actual knowledge thereof, then the Registrar shall refuse to register such transfer unless it and the Indenture Trustee receive (and upon receipt, may conclusively rely upon) certain certificate(s) required pursuant to Section 4.02 of the Indenture (as to which, so long as this Note is a Book-Entry Note, the representations and agreements made therein will be deemed to have been made by the prospective transferor and/or the prospective transferee, as applicable). None of the Issuer, the Indenture Trustee, the Paying Agent, REMIC Administrator or the Registrar is obligated to register or qualify any Notes under the Securities Act or any other securities law or to take any action not otherwise required under the Indenture to permit the transfer of any Note or interest therein without registration or qualification. Any Noteholder desiring to effect a transfer of Notes or interests therein shall, and does hereby agree to, indemnify the Issuer, the Indenture Trustee, the Paying Agent and the Registrar against any liability that may result if the transfer is not so exempt or is not made in accordance with such federal and state laws.

As provided in the Indenture and subject to certain limitations therein set forth, the transfer of this Note is registrable in the Register upon surrender of this Note for registration of transfer at the applicable Corporate Trust Office of the Registrar, duly endorsed by, or accompanied by a written instrument of transfer in the form satisfactory to the Registrar and the Indenture Trustee duly executed by, the Holder hereof or his attorney duly authorized in writing, and thereupon one or more new Notes in authorized denominations evidencing the same aggregate Denomination will be issued to the designated transferee or transferees.

No service charge will be imposed for any registration of transfer or exchange of this Note, but the Indenture Trustee or the Registrar may require payment of a sum sufficient to cover any tax or other governmental charge that may be imposed in connection with any transfer or exchange of this Note.

The Issuer, the Indenture Trustee, the Paying Agent, the Registrar and any agent thereof may treat the Person in whose name this Note is registered as the owner hereof for all purposes, and none of the Issuer, the Indenture Trustee, the Paying Agent, the Registrar or any such agent shall be affected by notice to the contrary.

Each Noteholder, by acceptance of a Class C Note or a beneficial interest therein, as the case may be, covenants and agrees that no recourse may be taken, directly or indirectly, with respect to the obligations of the Issuer, the Owner Trustee, the Depositor, the Depositor Trustee, the Indenture Trustee, the Registrar, the REMIC Administrator or the Paying Agent on the Notes or under the Indenture or any certificate or other writing delivered in connection herewith or therewith, against (i) the Indenture Trustee, the Registrar, the REMIC Administrator the Paying Agent, the Administrator, the Servicer, the Sponsor, the Depositor, the Owner Trustee or the Depositor Trustee in its individual capacity except as provided in the Transaction Documents (it being understood that the Owner Trustee has no such obligation in its individual capacity), (ii) any direct or indirect holder of a beneficial ownership interest in the Issuer or the Depositor or (iii) any partner, owner, beneficiary, agent, officer, director, employee or agent of the Indenture Trustee, the Registrar, the REMIC Administrator the Paying Agent, the Administrator, the Servicer, the Sponsor, the Depositor, the Owner Trustee or the Depositor Trustee in its individual capacity, any direct or indirect holder of a beneficial ownership interest in the Issuer, the Owner Trustee, the Depositor Trustee, the Indenture Trustee, the Registrar, the REMIC Administrator or the Paying Agent. For all purposes of the Indenture, (x) in the performance of any duties or obligations of the Issuer thereunder, each of the Administrator and the Owner Trustee shall be subject to, and entitled to the benefits of, the Trust Agreement, (y) in the performance of any duties or obligations of the Depositor thereunder, each of the Depositor Trustee and the Administrator shall be subject to, and entitled to the benefits of, the Depositor Trust Agreement and (z) in the performance of any duties or obligations of the Indenture Trustee, REMIC Administrator, Registrar, or Paying Agent thereunder, each of the Indenture Trustee, REMIC Administrator, Registrar, and Paying Agent shall be subject to, and entitled to the benefits of, the Indenture.

The Indenture will be discharged (except with respect to certain continuing rights specified in the Indenture) in accordance with the provisions therein.

Modifications of and amendments to the Indenture may be made by the Issuer, the Paying Agent, the Registrar, the REMIC Administrator and the Indenture Trustee in accordance with the provisions of the Indenture.

Unless the certificate of authentication hereon has been executed by the Registrar, by manual signature, this Note shall not be entitled to any benefit under the Indenture or be valid for any purpose.

This Note is a “regular interest” in a “real estate mortgage investment conduit,” as those terms are defined, respectively, in Sections 860G(a)(1) and 860D of the Code. Each Holder of this Note, by acceptance hereof, agrees to treat, and take no action inconsistent with the treatment of, this Note in accordance with the preceding sentence for purposes of U.S. federal income taxes, state and local income and franchise taxes and other taxes imposed on or measured by income.

The registered Holder hereof, by its acceptance hereof agrees that it will look solely to the Trust Estate (to the extent of its rights therein) for payments hereunder.

This Note shall be construed in accordance with the internal laws of the State of New York applicable to agreements made and to be performed in said State other than its conflicts of law principles except for Section 5-1401 and 1402 of the General Obligations Law, and the obligations, rights and remedies of the Holder hereof shall be determined in accordance with such laws.

IN WITNESS WHEREOF, the Issuer has caused this instrument to be duly executed by its Authorized Officer, as of the date set forth below.

FIGRE TRUST 2025-HE5,
as Issuer

By: Wilmington Savings Fund Society, FSB,
not in its individual capacity but solely
as Owner Trustee

By: _____
Name:
Title:
Dated:

CERTIFICATE OF AUTHENTICATION

This is one of the Class C Notes referred to in the within mentioned Indenture.

The Bank of New York Mellon,
as Registrar

By: _____
Authorized Officer
Dated: _____

ASSIGNMENT

FOR VALUE RECEIVED, the undersigned hereby sell(s), assign(s) and transfer(s) unto

(please print or typewrite name and address including postal zip code of assignee)

the within Note and all rights thereunder and hereby authorize(s) the registration of transfer of such interest to assignee on the Register.

I (we) further direct the Registrar to issue a new Note of a like aggregate Denomination to the above named assignee and deliver such Note to the following address:

Dated:

Signature by or on behalf of Assignor

Signature Guaranteed

*9

PAYMENT INSTRUCTIONS

The Assignee should include the following for purposes of payment:

Payments shall, if permitted, be made by wire transfer or otherwise, in immediately available _____ funds, _____ to

_____ for the account of _____.

Payments made by check (such check to be made payable to _____) and all applicable statements and notices should be mailed to _____.

This information is provided by _____, the Assignee named above, or _____, as its agent.

* NOTICE: The signature to this assignment must correspond with the name of the registered owner as it appears on the face of the within Note in every particular, without alteration, enlargement or any change whatsoever. Such signature must, at the election of the Registrar, be guaranteed by an "eligible guarantor institution" meeting the requirements of the Registrar.

Exhibit A-4A

FORM OF RULE 144A GLOBAL CLASS D NOTE

FIGRE TRUST 2025-HE5 MORTGAGE-BACKED NOTES, SERIES 2025-HE5

Interest Rate: As set forth in the Indenture	Date of Indenture: August 28, 2025
Initial Note Amount: \$[•]	Closing Date: August 28, 2025
Minimum Denomination of this Note: \$150,000	Initial Payment Date: September 2025
Legal Final Maturity: Payment Date occurring in August 2055	Note No.: [•]
CUSIP: 31684MAD1	ISIN: US31684MAD11
Issuer: FIGRE TRUST 2025-HE5, a Delaware statutory trust	Indenture Trustee: THE BANK OF NEW YORK MELLON

UNLESS THIS NOTE IS PRESENTED BY AN AUTHORIZED REPRESENTATIVE OF THE DEPOSITORY TRUST COMPANY, A NEW YORK CORPORATION (“DTC”), TO THE REGISTRAR, THE INDENTURE TRUSTEE OR THEIR AGENT FOR REGISTRATION OF TRANSFER, EXCHANGE, OR PAYMENT, AND ANY NOTE ISSUED IS REGISTERED IN THE NAME OF CEDE & CO. OR IN SUCH OTHER NAME AS IS REQUESTED BY AN AUTHORIZED REPRESENTATIVE OF DTC (AND ANY PAYMENT IS MADE TO CEDE & CO. OR TO SUCH OTHER ENTITY AS IS REQUESTED BY AN AUTHORIZED REPRESENTATIVE OF DTC), ANY TRANSFER, PLEDGE, OR OTHER USE HEREOF FOR VALUE OR OTHERWISE BY OR TO ANY PERSON IS WRONGFUL INASMUCH AS THE REGISTERED OWNER HEREOF, CEDE & CO., HAS AN INTEREST HEREIN.

THIS NOTE HAS NOT BEEN REGISTERED OR QUALIFIED UNDER THE SECURITIES ACT OF 1933, AS AMENDED (THE “SECURITIES ACT”), OR THE SECURITIES LAWS OF ANY STATE AND THE ISSUER IS NOT AND WILL NOT BE REGISTERED UNDER THE UNITED STATES INVESTMENT COMPANY ACT OF 1940, AS AMENDED (THE “INVESTMENT COMPANY ACT”). ANY RESALE, PLEDGE, TRANSFER OR OTHER DISPOSITION OF THIS NOTE OR ANY INTEREST HEREIN WITHOUT SUCH REGISTRATION OR QUALIFICATION MAY BE MADE ONLY IN A TRANSACTION WHICH DOES NOT REQUIRE SUCH REGISTRATION OR QUALIFICATION AND WHICH IS IN ACCORDANCE WITH THE PROVISIONS OF SECTION 4.02 OF THE INDENTURE REFERRED TO HEREIN.

THE INITIAL INVESTOR IN THIS NOTE, AND EACH SUBSEQUENT PURCHASER OF THIS NOTE, BY PURCHASING THIS NOTE OR AN INTEREST HEREIN, IS DEEMED TO HAVE AGREED TO COMPLY WITH CERTAIN TRANSFER REQUIREMENTS SET FORTH IN THE INDENTURE REFERRED TO HEREIN.

BY ACQUIRING THIS CLASS D NOTE (OR ANY INTEREST HEREIN), EACH PURCHASER AND TRANSFEREE (AND, ITS FIDUCIARY, IF APPLICABLE) WILL BE DEEMED TO REPRESENT AND WARRANT THAT EITHER (A) IT IS NOT ACQUIRING AND WILL NOT HOLD SUCH NOTE (OR INTEREST HEREIN) WITH THE ASSETS OF A PLAN (AS DEFINED BELOW) THAT IS SUBJECT TO TITLE I OF THE EMPLOYEE RETIREMENT INCOME SECURITY ACT OF 1974, AS AMENDED (“ERISA”) OR SECTION 4975 OF THE INTERNAL REVENUE CODE OF 1986, AS AMENDED (THE “CODE”) (EACH OF THE FOREGOING, A “BENEFIT PLAN INVESTOR”) OR THAT IS SUBJECT TO A LAW THAT IS SUBSTANTIALLY SIMILAR TO TITLE I OF ERISA OR SECTION 4975 OF THE CODE (“SIMILAR LAW”) OR (B)(1) THE NOTE IS RATED AT LEAST “BBB-” OR ITS EQUIVALENT BY A NATIONALLY RECOGNIZED STATISTICAL RATING AGENCY AT THE TIME OF ACQUISITION OR TRANSFER AND THE NOTE HAS NOT BEEN CHARACTERIZED AS OTHER THAN INDEBTEDNESS UNDER APPLICABLE LOCAL LAW AND (2) THE ACQUISITION, HOLDING AND DISPOSITION OF THE NOTE (OR INTEREST HEREIN) WILL NOT, IN THE CASE OF A BENEFIT PLAN INVESTOR, GIVE RISE TO A NON-EXEMPT PROHIBITED TRANSACTION UNDER SECTION 406 OF ERISA OR SECTION 4975 OF THE CODE OR, IN THE CASE OF A PLAN THAT IS SUBJECT TO SIMILAR LAW, RESULT IN A VIOLATION OF ANY SIMILAR LAW. FOR THESE

PURPOSES, A “PLAN” MEANS AN “EMPLOYEE BENEFIT PLAN” AS DEFINED IN SECTION 3(3) OF ERISA WHETHER OR NOT SUBJECT TO TITLE I OF ERISA, A “PLAN” AS DEFINED IN SECTION 4975 OF THE CODE, OR AN ENTITY OR ACCOUNT DEEMED TO HOLD PLAN ASSETS OF THE FOREGOING BY VIRTUE OF SUCH EMPLOYEE BENEFIT PLAN’S OR PLAN’S INVESTMENT IN THE ENTITY OR ACCOUNT.

THIS NOTE REPRESENTS A NON-RECOURSE OBLIGATION OF THE ISSUER AND WILL BE PAID SOLELY FROM THE COLLATERAL SECURING THIS NOTE. NEITHER THIS NOTE NOR THE COLLATERAL IS INSURED OR GUARANTEED BY ANY GOVERNMENTAL AGENCY OR INSTRUMENTALITY OR BY ANY OTHER PERSON.

PAYMENTS IN REDUCTION OF THE INITIAL NOTE AMOUNT OF THIS NOTE MAY BE MADE MONTHLY AS SET FORTH IN THE INDENTURE REFERRED TO HEREIN. ACCORDINGLY, THE OUTSTANDING NOTE AMOUNT HEREOF AT ANY TIME MAY BE LESS THAN THE AMOUNT SHOWN ABOVE.

This certifies that Cede & Co. is the registered owner (the “Holder”) of this Note which is one of the Notes (collectively, the “Notes”) issued by the Issuer referred to above pursuant to the indenture, dated August 28, 2025 (the “Indenture”), among, *inter alios*, the Issuer referred to above, THE BANK OF NEW YORK MELLON, as paying agent (the “Paying Agent”), registrar (the “Registrar”), REMIC administrator (the “REMIC Administrator”) and the Indenture Trustee referred to above, on behalf of the holders of the Notes (the “Noteholders”), and FIGURE LENDING LLC, as sponsor (the “Sponsor”), a summary of certain of the pertinent provisions of which is set forth hereafter. To the extent not defined herein, capitalized terms used herein have the respective meanings assigned in the Indenture. This Note is issued under and is subject to the terms, provisions and conditions of the Indenture, to which Indenture the Holder of this Note by virtue of the acceptance hereof assents and by which such holder is bound.

Pursuant to the terms of the Indenture, payments on the Notes will be made on the 25th day of each month, or the immediately following Business Day if the 25th day is not a Business Day (each, a “Payment Date”), commencing in September 2025. All payments made under the Indenture on this Note will be made by the Paying Agent to the Depository and the Depository shall be responsible for crediting the amount of such distribution to the accounts of its Depository Participants in accordance with its normal procedures.

The Notes are limited in right of payment to certain distributions on the Mortgage Loans and other amounts, all as more specifically set forth herein and in the Indenture. As provided in the Indenture, withdrawals from the Payment Account may be made from time to time for purposes other than, and, in certain cases, prior to, payments to Noteholders, such purposes including reimbursement of certain expenses incurred by the transaction parties.

Any payment to the Holder of this Note in reduction of the Denomination hereof is binding on such Holder and all future Holders of this Note and any Note issued upon the transfer hereof or in exchange herefor or in lieu hereof whether or not notation of such payment is made upon this Note.

The Notes are issuable in fully registered form only without coupons in minimum denominations specified in the Indenture. As provided in the Indenture and subject to certain limitations therein set forth, this Note is exchangeable for new Notes in authorized denominations evidencing the same aggregate Denomination, as requested by the Holder surrendering the same.

No transfer, sale, pledge or other disposition of this Note or interest herein shall be made unless that transfer, sale, pledge or other disposition is exempt from the registration and/or qualification requirements of the Securities Act and any applicable state securities laws, or is otherwise made in accordance with the Securities Act and such state securities laws. If a transfer of this Note is to be made without registration under the Securities Act, and a Responsible Officer of the Registrar has actual knowledge thereof, then the Registrar shall refuse to register such transfer unless it and the Indenture Trustee receive (and upon receipt, may conclusively rely upon) certain certificate(s) required pursuant to Section 4.02 of the Indenture (as to which, so long as this Note is a Book-Entry Note, the representations and agreements made therein will be deemed to have been made by the prospective transferor and/or the prospective transferee, as applicable). None of the Issuer, the Indenture Trustee, the Paying Agent, REMIC Administrator or the Registrar is obligated to register or qualify any Notes under the Securities Act or any other securities law or to take any action not otherwise required under the Indenture to permit the transfer of any Note or interest therein without registration or qualification. Any Noteholder desiring to effect a transfer of Notes or interests therein shall, and does hereby agree to, indemnify the Issuer, the Indenture Trustee, the Paying Agent and the Registrar against any liability that may result if the transfer is not so exempt or is not made in accordance with such federal and state laws.

As provided in the Indenture and subject to certain limitations therein set forth, the transfer of this Note is registrable in the Register upon surrender of this Note for registration of transfer at the applicable Corporate Trust Office of the Registrar, duly endorsed by, or accompanied by a written instrument of transfer in the form satisfactory to the Registrar and the Indenture Trustee duly executed by, the Holder hereof or his attorney duly authorized in writing, and thereupon one or more new Notes in authorized denominations evidencing the same aggregate Denomination will be issued to the designated transferee or transferees.

No service charge will be imposed for any registration of transfer or exchange of this Note, but the Indenture Trustee or the Registrar may require payment of a sum sufficient to cover any tax or other governmental charge that may be imposed in connection with any transfer or exchange of this Note.

The Issuer, the Indenture Trustee, the Paying Agent, the Registrar and any agent thereof may treat the Person in whose name this Note is registered as the owner hereof for all purposes, and none of the Issuer, the Indenture Trustee, the Paying Agent, the Registrar or any such agent shall be affected by notice to the contrary.

Each Noteholder, by acceptance of a Class D Note or a beneficial interest therein, as the case may be, covenants and agrees that no recourse may be taken, directly or indirectly, with respect to the obligations of the Issuer, the Owner Trustee, the Depositor, the Depositor Trustee, the Indenture Trustee, the Registrar, the REMIC Administrator or the Paying Agent on the Notes or under the Indenture or any certificate or other writing delivered in connection herewith or therewith, against (i) the Indenture Trustee, the Registrar, the REMIC Administrator the Paying

Agent, the Administrator, the Servicer, the Sponsor, the Depositor, the Owner Trustee or the Depositor Trustee in its individual capacity except as provided in the Transaction Documents (it being understood that the Owner Trustee has no such obligation in its individual capacity), (ii) any direct or indirect holder of a beneficial ownership interest in the Issuer or the Depositor or (iii) any partner, owner, beneficiary, agent, officer, director, employee or agent of the Indenture Trustee, the Registrar, the REMIC Administrator the Paying Agent, the Administrator, the Servicer, the Sponsor, the Depositor, the Owner Trustee or the Depositor Trustee in its individual capacity, any direct or indirect holder of a beneficial ownership interest in the Issuer, the Owner Trustee, the Depositor Trustee, the Indenture Trustee, the Registrar, the REMIC Administrator or the Paying Agent. For all purposes of the Indenture, (x) in the performance of any duties or obligations of the Issuer thereunder, each of the Administrator and the Owner Trustee shall be subject to, and entitled to the benefits of, the Trust Agreement, (y) in the performance of any duties or obligations of the Depositor thereunder, each of the Depositor Trustee and the Administrator shall be subject to, and entitled to the benefits of, the Depositor Trust Agreement and (z) in the performance of any duties or obligations of the Indenture Trustee, REMIC Administrator, Registrar, or Paying Agent thereunder, each of the Indenture Trustee, REMIC Administrator, Registrar, and Paying Agent shall be subject to, and entitled to the benefits of, the Indenture.

The Indenture will be discharged (except with respect to certain continuing rights specified in the Indenture) in accordance with the provisions therein.

Modifications of and amendments to the Indenture may be made by the Issuer, the Paying Agent, the Registrar, the REMIC Administrator and the Indenture Trustee in accordance with the provisions of the Indenture.

Unless the certificate of authentication hereon has been executed by the Registrar, by manual signature, this Note shall not be entitled to any benefit under the Indenture or be valid for any purpose.

This Note is a “regular interest” in a “real estate mortgage investment conduit,” as those terms are defined, respectively, in Sections 860G(a)(1) and 860D of the Code. Each Holder of this Note, by acceptance hereof, agrees to treat, and take no action inconsistent with the treatment of, this Note in accordance with the preceding sentence for purposes of U.S. federal income taxes, state and local income and franchise taxes and other taxes imposed on or measured by income.

The registered Holder hereof, by its acceptance hereof agrees that it will look solely to the Trust Estate (to the extent of its rights therein) for payments hereunder.

This Note shall be construed in accordance with the internal laws of the State of New York applicable to agreements made and to be performed in said State other than its conflicts of law principles except for Section 5-1401 and 1402 of the General Obligations Law, and the obligations, rights and remedies of the Holder hereof shall be determined in accordance with such laws.

IN WITNESS WHEREOF, the Issuer has caused this instrument to be duly executed by its Authorized Officer, as of the date set forth below.

FIGRE TRUST 2025-HE5,
as Issuer

By: Wilmington Savings Fund Society, FSB,
not in its individual capacity but solely
as Owner Trustee

By: _____
Name:
Title:
Dated:

CERTIFICATE OF AUTHENTICATION

This is one of the Class D Notes referred to in the within mentioned Indenture.

The Bank of New York Mellon,
as Registrar

By: _____
Authorized Officer
Dated: _____

ASSIGNMENT

FOR VALUE RECEIVED, the undersigned hereby sell(s), assign(s) and transfer(s) unto

(please print or typewrite name and address including postal zip code of assignee)

the within Note and all rights thereunder and hereby authorize(s) the registration of transfer of such interest to assignee on the Register.

I (we) further direct the Registrar to issue a new Note of a like aggregate Denomination to the above named assignee and deliver such Note to the following address:

Dated:

Signature by or on behalf of Assignor

Signature Guaranteed

*10

PAYMENT INSTRUCTIONS

The Assignee should include the following for purposes of payment:

Payments shall, if permitted, be made by wire transfer or otherwise, in immediately available _____ funds, _____ to

_____ for the account of _____.

Payments made by check (such check to be made payable to _____) and all applicable statements and notices should be mailed to _____.

This information is provided by _____, the Assignee named above, or _____, as its agent.

* NOTICE: The signature to this assignment must correspond with the name of the registered owner as it appears on the face of the within Note in every particular, without alteration, enlargement or any change whatsoever. Such signature must, at the election of the Registrar, be guaranteed by an "eligible guarantor institution" meeting the requirements of the Registrar.

Exhibit A-4B

**FORM OF TEMPORARY REGULATION S GLOBAL CLASS D NOTE
FIGRE TRUST 2025-HE5 MORTGAGE-BACKED NOTES, SERIES 2025-HE5**

Interest Rate: As set forth in the Indenture	Date of Indenture: August 28, 2025
Initial Note Amount: \$[●]	Closing Date: August 28, 2025
Minimum Denomination of this Note: \$150,000	Initial Payment Date: September 2025
Legal Final Maturity: Payment Date occurring in August 2055	Note No.: [●]
CUSIP: U3202RAD9	ISIN: USU3202RAD99
Issuer: FIGRE TRUST 2025-HE5, a Delaware statutory trust	Indenture Trustee: THE BANK OF NEW YORK MELLON

THIS NOTE IS A TEMPORARY REGULATION S GLOBAL NOTE FOR PURPOSES OF REGULATION S UNDER THE UNITED STATES SECURITIES ACT OF 1933, AS AMENDED (THE “SECURITIES ACT”). NEITHER THIS TEMPORARY REGULATION S GLOBAL NOTE NOR ANY INTEREST HEREIN MAY BE OFFERED, SOLD OR DELIVERED, EXCEPT AS PERMITTED UNDER THE INDENTURE REFERRED TO HEREIN.

UNLESS THIS NOTE IS PRESENTED BY AN AUTHORIZED REPRESENTATIVE OF THE DEPOSITORY TRUST COMPANY, A NEW YORK CORPORATION (“DTC”), TO THE REGISTRAR, THE INDENTURE TRUSTEE OR THEIR AGENT FOR REGISTRATION OF TRANSFER, EXCHANGE, OR PAYMENT, AND ANY NOTE ISSUED IS REGISTERED IN THE NAME OF CEDE & CO. OR IN SUCH OTHER NAME AS IS REQUESTED BY AN AUTHORIZED REPRESENTATIVE OF DTC (AND ANY PAYMENT IS MADE TO CEDE & CO. OR TO SUCH OTHER ENTITY AS IS REQUESTED BY AN AUTHORIZED REPRESENTATIVE OF DTC), ANY TRANSFER, PLEDGE, OR OTHER USE HEREOF FOR VALUE OR OTHERWISE BY OR TO ANY PERSON IS WRONGFUL INASMUCH AS THE REGISTERED OWNER HEREOF, CEDE & CO., HAS AN INTEREST HEREIN.

THIS NOTE HAS NOT BEEN REGISTERED OR QUALIFIED UNDER THE SECURITIES ACT, OR THE SECURITIES LAWS OF ANY STATE AND THE ISSUER IS NOT AND WILL NOT BE REGISTERED UNDER THE UNITED STATES INVESTMENT COMPANY ACT OF 1940, AS AMENDED (THE “INVESTMENT COMPANY ACT”). ANY RESALE, PLEDGE, TRANSFER OR OTHER DISPOSITION OF THIS NOTE OR ANY INTEREST HEREIN WITHOUT SUCH REGISTRATION OR QUALIFICATION MAY BE MADE ONLY IN A TRANSACTION WHICH DOES NOT REQUIRE SUCH REGISTRATION OR QUALIFICATION AND WHICH IS IN ACCORDANCE WITH THE PROVISIONS OF SECTION 4.02 OF THE INDENTURE REFERRED TO HEREIN.

THE HOLDER OF THIS NOTE BY ITS ACCEPTANCE HEREOF AGREES NOT TO OFFER, SELL OR OTHERWISE TRANSFER SUCH NOTE WITHIN THE UNITED STATES OR TO U.S. PERSONS (AS DEFINED IN REGULATION S UNDER THE SECURITIES ACT) PRIOR TO THE EXCHANGE DATE EXCEPT PURSUANT TO AN EXEMPTION FROM THE REGISTRATION REQUIREMENTS OF THE SECURITIES ACT.

BY ACQUIRING THIS CLASS D NOTE (OR ANY INTEREST HEREIN), EACH PURCHASER AND TRANSFEREE (AND, ITS FIDUCIARY, IF APPLICABLE) WILL BE DEEMED TO REPRESENT AND WARRANT THAT EITHER (A) IT IS NOT ACQUIRING AND WILL NOT HOLD SUCH NOTE (OR INTEREST HEREIN) WITH THE ASSETS OF A PLAN (AS DEFINED BELOW) THAT IS SUBJECT TO TITLE I OF THE EMPLOYEE RETIREMENT INCOME SECURITY ACT OF 1974, AS AMENDED (“ERISA”) OR SECTION 4975 OF THE INTERNAL REVENUE CODE OF 1986, AS AMENDED (THE “CODE”) (EACH OF THE FOREGOING, A “BENEFIT PLAN INVESTOR”) OR THAT IS SUBJECT TO A LAW THAT IS SUBSTANTIALLY SIMILAR TO TITLE I OF ERISA OR SECTION 4975 OF THE CODE (“SIMILAR LAW”)

OR (B)(1) THE NOTE IS RATED AT LEAST “BBB-” OR ITS EQUIVALENT BY A NATIONALLY RECOGNIZED STATISTICAL RATING AGENCY AT THE TIME OF ACQUISITION OR TRANSFER AND THE NOTE HAS NOT BEEN CHARACTERIZED AS OTHER THAN INDEBTEDNESS UNDER APPLICABLE LOCAL LAW AND (2) THE ACQUISITION, HOLDING AND DISPOSITION OF THE NOTE (OR INTEREST HEREIN) WILL NOT, IN THE CASE OF A BENEFIT PLAN INVESTOR, GIVE RISE TO A NON-EXEMPT PROHIBITED TRANSACTION UNDER SECTION 406 OF ERISA OR SECTION 4975 OF THE CODE OR, IN THE CASE OF A PLAN THAT IS SUBJECT TO SIMILAR LAW, RESULT IN A VIOLATION OF ANY SIMILAR LAW. FOR THESE PURPOSES, A “PLAN” MEANS AN “EMPLOYEE BENEFIT PLAN” AS DEFINED IN SECTION 3(3) OF ERISA WHETHER OR NOT SUBJECT TO TITLE I OF ERISA, A “PLAN” AS DEFINED IN SECTION 4975 OF THE CODE, OR AN ENTITY OR ACCOUNT DEEMED TO HOLD PLAN ASSETS OF THE FOREGOING BY VIRTUE OF SUCH EMPLOYEE BENEFIT PLAN’S OR PLAN’S INVESTMENT IN THE ENTITY OR ACCOUNT.

THIS NOTE REPRESENTS A NON-RECOURSE OBLIGATION OF THE ISSUER AND WILL BE PAID SOLELY FROM THE COLLATERAL SECURING THIS NOTE. NEITHER THIS NOTE NOR THE COLLATERAL IS INSURED OR GUARANTEED BY ANY GOVERNMENTAL AGENCY OR INSTRUMENTALITY OR BY ANY OTHER PERSON.

PAYMENTS IN REDUCTION OF THE INITIAL NOTE AMOUNT OF THIS NOTE MAY BE MADE MONTHLY AS SET FORTH IN THE INDENTURE REFERRED TO HEREIN. ACCORDINGLY, THE OUTSTANDING NOTE AMOUNT HEREOF AT ANY TIME MAY BE LESS THAN THE AMOUNT SHOWN ABOVE.

This certifies that Cede & Co. is the registered owner (the “Holder”) of this Note which is one of the Notes (collectively, the “Notes”) issued by the Issuer referred to above pursuant to the indenture, dated August 28, 2025 (the “Indenture”), among, *inter alios*, the Issuer referred to above, THE BANK OF NEW YORK MELLON, as paying agent (the “Paying Agent”), registrar (the “Registrar”), REMIC administrator (the “REMIC Administrator”) and the Indenture Trustee referred to above, on behalf of the holders of the Notes (the “Noteholders”), and FIGURE LENDING LLC, as sponsor (the “Sponsor”), a summary of certain of the pertinent provisions of which is set forth hereafter. To the extent not defined herein, capitalized terms used herein have the respective meanings assigned in the Indenture. This Note is issued under and is subject to the terms, provisions and conditions of the Indenture, to which Indenture the Holder of this Note by virtue of the acceptance hereof assents and by which such holder is bound.

Pursuant to the terms of the Indenture, payments on the Notes will be made on the 25th day of each month, or the immediately following Business Day if the 25th day is not a Business Day (each, a “Payment Date”), commencing in September 2025. All payments made under the Indenture on this Note will be made by the Paying Agent to the Depository and the Depository shall be responsible for crediting the amount of such distribution to the accounts of its Depository Participants in accordance with its normal procedures.

The Notes are limited in right of payment to certain distributions on the Mortgage Loans and other amounts, all as more specifically set forth herein and in the Indenture. As provided in the Indenture, withdrawals from the Payment Account may be made from time to time for purposes other than, and, in certain cases, prior to, payments to Noteholders, such purposes including reimbursement of certain expenses incurred by the transaction parties.

Any payment to the Holder of this Note in reduction of the Denomination hereof is binding on such Holder and all future Holders of this Note and any Note issued upon the transfer hereof or in exchange herefor or in lieu hereof whether or not notation of such payment is made upon this Note.

The Notes are issuable in fully registered form only without coupons in minimum denominations specified in the Indenture. As provided in the Indenture and subject to certain limitations therein set forth, this Note is exchangeable for new Notes in authorized denominations evidencing the same aggregate Denomination, as requested by the Holder surrendering the same.

No transfer, sale, pledge or other disposition of this Note or interest herein shall be made unless that transfer, sale, pledge or other disposition is exempt from the registration and/or qualification requirements of the Securities Act and any applicable state securities laws, or is otherwise made in accordance with the Securities Act and such state securities laws. If a transfer of this Note is to be made without registration under the Securities Act, and a Responsible Officer of the Registrar has actual knowledge thereof, then the Registrar shall refuse to register such transfer unless it and the Indenture Trustee receive (and upon receipt, may conclusively rely upon) certain certificate(s) required pursuant to Section 4.02 of the Indenture (as to which, so long as this Note is a Book-Entry Note, the representations and agreements made therein will be deemed to have been made by the prospective transferor and/or the prospective transferee, as applicable). None of the Issuer, the Indenture Trustee, the Paying Agent, REMIC Administrator or the Registrar is obligated to register or qualify any Notes under the Securities Act or any other securities law or to take any action not otherwise required under the Indenture to permit the transfer of any Note or interest therein without registration or qualification. Any Noteholder desiring to effect a transfer of Notes or interests therein shall, and does hereby agree to, indemnify the Issuer, the Indenture Trustee, the Paying Agent and the Registrar against any liability that may result if the transfer is not so exempt or is not made in accordance with such federal and state laws.

As provided in the Indenture and subject to certain limitations therein set forth, the transfer of this Note is registrable in the Register upon surrender of this Note for registration of transfer at the applicable Corporate Trust Office of the Registrar, duly endorsed by, or accompanied by a written instrument of transfer in the form satisfactory to the Registrar and the Indenture Trustee duly executed by, the Holder hereof or his attorney duly authorized in writing, and thereupon one or more new Notes in authorized denominations evidencing the same aggregate Denomination will be issued to the designated transferee or transferees.

No service charge will be imposed for any registration of transfer or exchange of this Note, but the Indenture Trustee or the Registrar may require payment of a sum sufficient to cover any tax or other governmental charge that may be imposed in connection with any transfer or exchange of this Note.

The Issuer, the Indenture Trustee, the Paying Agent, the Registrar and any agent thereof may treat the Person in whose name this Note is registered as the owner hereof for all purposes, and none of the Issuer, the Indenture Trustee, the Paying Agent, the Registrar or any such agent shall be affected by notice to the contrary.

Each Noteholder, by acceptance of a Class D Note or a beneficial interest therein, as the case may be, covenants and agrees that no recourse may be taken, directly or indirectly, with respect to the obligations of the Issuer, the Owner Trustee, the Depositor, the Depositor Trustee, the Indenture Trustee, the Registrar, the REMIC Administrator or the Paying Agent on the Notes or under the Indenture or any certificate or other writing delivered in connection herewith or therewith, against (i) the Indenture Trustee, the Registrar, the REMIC Administrator the Paying Agent, the Administrator, the Servicer, the Sponsor, the Depositor, the Owner Trustee or the Depositor Trustee in its individual capacity except as provided in the Transaction Documents (it being understood that the Owner Trustee has no such obligation in its individual capacity), (ii) any direct or indirect holder of a beneficial ownership interest in the Issuer or the Depositor or (iii) any partner, owner, beneficiary, agent, officer, director, employee or agent of the Indenture Trustee, the Registrar, the REMIC Administrator the Paying Agent, the Administrator, the Servicer, the Sponsor, the Depositor, the Owner Trustee or the Depositor Trustee in its individual capacity, any direct or indirect holder of a beneficial ownership interest in the Issuer, the Owner Trustee, the Depositor Trustee, the Indenture Trustee, the Registrar, the REMIC Administrator or the Paying Agent. For all purposes of the Indenture, (x) in the performance of any duties or obligations of the Issuer thereunder, each of the Administrator and the Owner Trustee shall be subject to, and entitled to the benefits of, the Trust Agreement, (y) in the performance of any duties or obligations of the Depositor thereunder, each of the Depositor Trustee and the Administrator shall be subject to, and entitled to the benefits of, the Depositor Trust Agreement and (z) in the performance of any duties or obligations of the Indenture Trustee, REMIC Administrator, Registrar, or Paying Agent thereunder, each of the Indenture Trustee, REMIC Administrator, Registrar, and Paying Agent shall be subject to, and entitled to the benefits of, the Indenture.

The Indenture will be discharged (except with respect to certain continuing rights specified in the Indenture) in accordance with the provisions therein.

Modifications of and amendments to the Indenture may be made by the Issuer, the Paying Agent, the Registrar, the REMIC Administrator and the Indenture Trustee in accordance with the provisions of the Indenture.

Unless the certificate of authentication hereon has been executed by the Registrar, by manual signature, this Note shall not be entitled to any benefit under the Indenture or be valid for any purpose.

This Note is a “regular interest” in a “real estate mortgage investment conduit,” as those terms are defined, respectively, in Sections 860G(a)(1) and 860D of the Code. Each Holder of this Note, by acceptance hereof, agrees to treat, and take no action inconsistent with the treatment of, this Note in accordance with the preceding sentence for purposes of U.S. federal income taxes, state and local income and franchise taxes and other taxes imposed on or measured by income.

The registered Holder hereof, by its acceptance hereof agrees that it will look solely to the Trust Estate (to the extent of its rights therein) for payments hereunder.

This Note shall be construed in accordance with the internal laws of the State of New York applicable to agreements made and to be performed in said State other than its conflicts of law principles except for Section 5-1401 and 1402 of the General Obligations Law, and the obligations, rights and remedies of the Holder hereof shall be determined in accordance with such laws.

IN WITNESS WHEREOF, the Issuer has caused this instrument to be duly executed by its Authorized Officer, as of the date set forth below.

FIGRE TRUST 2025-HE5,
as Issuer

By: Wilmington Savings Fund Society, FSB,
not in its individual capacity but solely
as Owner Trustee

By: _____
Name:
Title:
Dated:

CERTIFICATE OF AUTHENTICATION

This is one of the Class D Notes referred to in the within mentioned Indenture.

The Bank of New York Mellon,
as Registrar

By: _____
Authorized Officer
Dated: _____

ASSIGNMENT

FOR VALUE RECEIVED, the undersigned hereby sell(s), assign(s) and transfer(s) unto

(please print or typewrite name and address including postal zip code of assignee)

the within Note and all rights thereunder and hereby authorize(s) the registration of transfer of such interest to assignee on the Register.

I (we) further direct the Registrar to issue a new Note of a like aggregate Denomination to the above named assignee and deliver such Note to the following address:

Dated:

Signature by or on behalf of Assignor

Signature Guaranteed

*11

PAYMENT INSTRUCTIONS

The Assignee should include the following for purposes of payment:

Payments shall, if permitted, be made by wire transfer or otherwise, in immediately available _____ funds, _____ to

_____ for the account of _____.

Payments made by check (such check to be made payable to _____) and all applicable statements and notices should be mailed to _____.

This information is provided by _____, the Assignee named above, or _____, as its agent.

* NOTICE: The signature to this assignment must correspond with the name of the registered owner as it appears on the face of the within Note in every particular, without alteration, enlargement or any change whatsoever. Such signature must, at the election of the Registrar, be guaranteed by an "eligible guarantor institution" meeting the requirements of the Registrar.

Exhibit A-4C

**FORM OF PERMANENT REGULATION S GLOBAL CLASS D NOTE
FIGRE TRUST 2025-HE5 MORTGAGE-BACKED NOTES, SERIES 2025-HE5**

Interest Rate: As set forth in the Indenture	Date of Indenture: August 28, 2025
Initial Note Amount: \$[•]	Closing Date: August 28, 2025
Minimum Denomination of this Note: \$150,000	Initial Payment Date: September 2025
Legal Final Maturity: Payment Date occurring in August 2055	Note No.: [•]
CUSIP: U3202RAD9	ISIN: USU3202RAD99
Issuer: FIGRE TRUST 2025-HE5, a Delaware statutory trust	Indenture Trustee: THE BANK OF NEW YORK MELLON

THIS NOTE IS A PERMANENT REGULATION S GLOBAL NOTE FOR PURPOSES OF REGULATION S UNDER THE UNITED STATES SECURITIES ACT OF 1933, AS AMENDED (THE “SECURITIES ACT”). NEITHER THIS PERMANENT REGULATION S GLOBAL NOTE NOR ANY INTEREST HEREIN MAY BE OFFERED, SOLD OR DELIVERED, EXCEPT AS PERMITTED UNDER THE INDENTURE REFERRED TO HEREIN.

UNLESS THIS NOTE IS PRESENTED BY AN AUTHORIZED REPRESENTATIVE OF THE DEPOSITORY TRUST COMPANY, A NEW YORK CORPORATION (“DTC”), TO THE REGISTRAR, THE INDENTURE TRUSTEE OR THEIR AGENT FOR REGISTRATION OF TRANSFER, EXCHANGE, OR PAYMENT, AND ANY NOTE ISSUED IS REGISTERED IN THE NAME OF CEDE & CO. OR IN SUCH OTHER NAME AS IS REQUESTED BY AN AUTHORIZED REPRESENTATIVE OF DTC (AND ANY PAYMENT IS MADE TO CEDE & CO. OR TO SUCH OTHER ENTITY AS IS REQUESTED BY AN AUTHORIZED REPRESENTATIVE OF DTC), ANY TRANSFER, PLEDGE, OR OTHER USE HEREOF FOR VALUE OR OTHERWISE BY OR TO ANY PERSON IS WRONGFUL INASMUCH AS THE REGISTERED OWNER HEREOF, CEDE & CO., HAS AN INTEREST HEREIN.

THIS NOTE HAS NOT BEEN REGISTERED OR QUALIFIED UNDER THE SECURITIES ACT, OR THE SECURITIES LAWS OF ANY STATE AND THE ISSUER IS NOT AND WILL NOT BE REGISTERED UNDER THE UNITED STATES INVESTMENT COMPANY ACT OF 1940, AS AMENDED (THE “INVESTMENT COMPANY ACT”). ANY RESALE, PLEDGE, TRANSFER OR OTHER DISPOSITION OF THIS NOTE OR ANY INTEREST HEREIN WITHOUT SUCH REGISTRATION OR QUALIFICATION MAY BE MADE ONLY IN A TRANSACTION WHICH DOES NOT REQUIRE SUCH REGISTRATION OR QUALIFICATION AND WHICH IS IN ACCORDANCE WITH THE PROVISIONS OF SECTION 4.02 OF THE INDENTURE REFERRED TO HEREIN.

THE HOLDER OF THIS NOTE BY ITS ACCEPTANCE HEREOF AGREES NOT TO OFFER, SELL OR OTHERWISE TRANSFER SUCH NOTE WITHIN THE UNITED STATES OR TO U.S. PERSONS (AS DEFINED IN REGULATION S UNDER THE SECURITIES ACT) PRIOR TO THE EXCHANGE DATE EXCEPT PURSUANT TO AN EXEMPTION FROM THE REGISTRATION REQUIREMENTS OF THE SECURITIES ACT.

BY ACQUIRING THIS CLASS D NOTE (OR ANY INTEREST HEREIN), EACH PURCHASER AND TRANSFEREE (AND, ITS FIDUCIARY, IF APPLICABLE) WILL BE DEEMED TO REPRESENT AND WARRANT THAT EITHER (A) IT IS NOT ACQUIRING AND WILL NOT HOLD SUCH NOTE (OR INTEREST HEREIN) WITH THE ASSETS OF A PLAN (AS DEFINED BELOW) THAT IS SUBJECT TO TITLE I OF THE EMPLOYEE RETIREMENT INCOME SECURITY ACT OF 1974, AS AMENDED (“ERISA”) OR SECTION 4975 OF THE INTERNAL REVENUE CODE OF 1986, AS AMENDED (THE “CODE”) (EACH OF THE FOREGOING, A “BENEFIT PLAN INVESTOR”) OR THAT IS SUBJECT TO A LAW THAT IS SUBSTANTIALLY SIMILAR TO TITLE I OF ERISA OR SECTION 4975 OF THE CODE (“SIMILAR LAW”)

OR (B)(1) THE NOTE IS RATED AT LEAST “BBB-” OR ITS EQUIVALENT BY A NATIONALLY RECOGNIZED STATISTICAL RATING AGENCY AT THE TIME OF ACQUISITION OR TRANSFER AND THE NOTE HAS NOT BEEN CHARACTERIZED AS OTHER THAN INDEBTEDNESS UNDER APPLICABLE LOCAL LAW AND (2) THE ACQUISITION, HOLDING AND DISPOSITION OF THE NOTE (OR INTEREST HEREIN) WILL NOT, IN THE CASE OF A BENEFIT PLAN INVESTOR, GIVE RISE TO A NON-EXEMPT PROHIBITED TRANSACTION UNDER SECTION 406 OF ERISA OR SECTION 4975 OF THE CODE OR, IN THE CASE OF A PLAN THAT IS SUBJECT TO SIMILAR LAW, RESULT IN A VIOLATION OF ANY SIMILAR LAW. FOR THESE PURPOSES, A “PLAN” MEANS AN “EMPLOYEE BENEFIT PLAN” AS DEFINED IN SECTION 3(3) OF ERISA WHETHER OR NOT SUBJECT TO TITLE I OF ERISA, A “PLAN” AS DEFINED IN SECTION 4975 OF THE CODE, OR AN ENTITY OR ACCOUNT DEEMED TO HOLD PLAN ASSETS OF THE FOREGOING BY VIRTUE OF SUCH EMPLOYEE BENEFIT PLAN’S OR PLAN’S INVESTMENT IN THE ENTITY OR ACCOUNT.

THIS NOTE REPRESENTS A NON-RECOURSE OBLIGATION OF THE ISSUER AND WILL BE PAID SOLELY FROM THE COLLATERAL SECURING THIS NOTE. NEITHER THIS NOTE NOR THE COLLATERAL IS INSURED OR GUARANTEED BY ANY GOVERNMENTAL AGENCY OR INSTRUMENTALITY OR BY ANY OTHER PERSON.

PAYMENTS IN REDUCTION OF THE INITIAL NOTE AMOUNT OF THIS NOTE MAY BE MADE MONTHLY AS SET FORTH IN THE INDENTURE REFERRED TO HEREIN. ACCORDINGLY, THE OUTSTANDING NOTE AMOUNT HEREOF AT ANY TIME MAY BE LESS THAN THE AMOUNT SHOWN ABOVE.

This certifies that Cede & Co. is the registered owner (the “Holder”) of this Note which is one of the Notes (collectively, the “Notes”) issued by the Issuer referred to above pursuant to the indenture, dated August 28, 2025 (the “Indenture”), among, *inter alios*, the Issuer referred to above, THE BANK OF NEW YORK MELLON, as paying agent (the “Paying Agent”), registrar (the “Registrar”), REMIC administrator (the “REMIC Administrator”) and the Indenture Trustee referred to above, on behalf of the holders of the Notes (the “Noteholders”), and FIGURE LENDING LLC, as sponsor (the “Sponsor”), a summary of certain of the pertinent provisions of which is set forth hereafter. To the extent not defined herein, capitalized terms used herein have the respective meanings assigned in the Indenture. This Note is issued under and is subject to the terms, provisions and conditions of the Indenture, to which Indenture the Holder of this Note by virtue of the acceptance hereof assents and by which such holder is bound.

Pursuant to the terms of the Indenture, payments on the Notes will be made on the 25th day of each month, or the immediately following Business Day if the 25th day is not a Business Day (each, a “Payment Date”), commencing in September 2025. All payments made under the Indenture on this Note will be made by the Paying Agent to the Depository and the Depository shall be responsible for crediting the amount of such distribution to the accounts of its Depository Participants in accordance with its normal procedures.

The Notes are limited in right of payment to certain distributions on the Mortgage Loans and other amounts, all as more specifically set forth herein and in the Indenture. As provided in the Indenture, withdrawals from the Payment Account may be made from time to time for purposes other than, and, in certain cases, prior to, payments to Noteholders, such purposes including reimbursement of certain expenses incurred by the transaction parties.

Any payment to the Holder of this Note in reduction of the Denomination hereof is binding on such Holder and all future Holders of this Note and any Note issued upon the transfer hereof or in exchange herefor or in lieu hereof whether or not notation of such payment is made upon this Note.

The Notes are issuable in fully registered form only without coupons in minimum denominations specified in the Indenture. As provided in the Indenture and subject to certain limitations therein set forth, this Note is exchangeable for new Notes in authorized denominations evidencing the same aggregate Denomination, as requested by the Holder surrendering the same.

No transfer, sale, pledge or other disposition of this Note or interest herein shall be made unless that transfer, sale, pledge or other disposition is exempt from the registration and/or qualification requirements of the Securities Act and any applicable state securities laws, or is otherwise made in accordance with the Securities Act and such state securities laws. If a transfer of this Note is to be made without registration under the Securities Act, and a Responsible Officer of the Registrar has actual knowledge thereof, then the Registrar shall refuse to register such transfer unless it and the Indenture Trustee receive (and upon receipt, may conclusively rely upon) certain certificate(s) required pursuant to Section 4.02 of the Indenture (as to which, so long as this Note is a Book-Entry Note, the representations and agreements made therein will be deemed to have been made by the prospective transferor and/or the prospective transferee, as applicable). None of the Issuer, the Indenture Trustee, the Paying Agent, REMIC Administrator or the Registrar is obligated to register or qualify any Notes under the Securities Act or any other securities law or to take any action not otherwise required under the Indenture to permit the transfer of any Note or interest therein without registration or qualification. Any Noteholder desiring to effect a transfer of Notes or interests therein shall, and does hereby agree to, indemnify the Issuer, the Indenture Trustee, the Paying Agent and the Registrar against any liability that may result if the transfer is not so exempt or is not made in accordance with such federal and state laws.

As provided in the Indenture and subject to certain limitations therein set forth, the transfer of this Note is registrable in the Register upon surrender of this Note for registration of transfer at the applicable Corporate Trust Office of the Registrar, duly endorsed by, or accompanied by a written instrument of transfer in the form satisfactory to the Registrar and the Indenture Trustee duly executed by, the Holder hereof or his attorney duly authorized in writing, and thereupon one or more new Notes in authorized denominations evidencing the same aggregate Denomination will be issued to the designated transferee or transferees.

No service charge will be imposed for any registration of transfer or exchange of this Note, but the Indenture Trustee or the Registrar may require payment of a sum sufficient to cover any tax or other governmental charge that may be imposed in connection with any transfer or exchange of this Note.

The Issuer, the Indenture Trustee, the Paying Agent, the Registrar and any agent thereof may treat the Person in whose name this Note is registered as the owner hereof for all purposes, and none of the Issuer, the Indenture Trustee, the Paying Agent, the Registrar or any such agent shall be affected by notice to the contrary.

Each Noteholder, by acceptance of a Class D Note or a beneficial interest therein, as the case may be, covenants and agrees that no recourse may be taken, directly or indirectly, with respect to the obligations of the Issuer, the Owner Trustee, the Depositor, the Depositor Trustee, the Indenture Trustee, the Registrar, the REMIC Administrator or the Paying Agent on the Notes or under the Indenture or any certificate or other writing delivered in connection herewith or therewith, against (i) the Indenture Trustee, the Registrar, the REMIC Administrator the Paying Agent, the Administrator, the Servicer, the Sponsor, the Depositor, the Owner Trustee or the Depositor Trustee in its individual capacity except as provided in the Transaction Documents (it being understood that the Owner Trustee has no such obligation in its individual capacity), (ii) any direct or indirect holder of a beneficial ownership interest in the Issuer or the Depositor or (iii) any partner, owner, beneficiary, agent, officer, director, employee or agent of the Indenture Trustee, the Registrar, the REMIC Administrator the Paying Agent, the Administrator, the Servicer, the Sponsor, the Depositor, the Owner Trustee or the Depositor Trustee in its individual capacity, any direct or indirect holder of a beneficial ownership interest in the Issuer, the Owner Trustee, the Depositor Trustee, the Indenture Trustee, the Registrar, the REMIC Administrator or the Paying Agent. For all purposes of the Indenture, (x) in the performance of any duties or obligations of the Issuer thereunder, each of the Administrator and the Owner Trustee shall be subject to, and entitled to the benefits of, the Trust Agreement, (y) in the performance of any duties or obligations of the Depositor thereunder, each of the Depositor Trustee and the Administrator shall be subject to, and entitled to the benefits of, the Depositor Trust Agreement and (z) in the performance of any duties or obligations of the Indenture Trustee, REMIC Administrator, Registrar, or Paying Agent thereunder, each of the Indenture Trustee, REMIC Administrator, Registrar, and Paying Agent shall be subject to, and entitled to the benefits of, the Indenture.

The Indenture will be discharged (except with respect to certain continuing rights specified in the Indenture) in accordance with the provisions therein.

Modifications of and amendments to the Indenture may be made by the Issuer, the Paying Agent, the Registrar, the REMIC Administrator and the Indenture Trustee in accordance with the provisions of the Indenture.

Unless the certificate of authentication hereon has been executed by the Registrar, by manual signature, this Note shall not be entitled to any benefit under the Indenture or be valid for any purpose.

This Note is a “regular interest” in a “real estate mortgage investment conduit,” as those terms are defined, respectively, in Sections 860G(a)(1) and 860D of the Code. Each Holder of this Note, by acceptance hereof, agrees to treat, and take no action inconsistent with the treatment of, this Note in accordance with the preceding sentence for purposes of U.S. federal income taxes, state and local income and franchise taxes and other taxes imposed on or measured by income.

The registered Holder hereof, by its acceptance hereof agrees that it will look solely to the Trust Estate (to the extent of its rights therein) for payments hereunder.

This Note shall be construed in accordance with the internal laws of the State of New York applicable to agreements made and to be performed in said State other than its conflicts of law principles except for Section 5-1401 and 1402 of the General Obligations Law, and the obligations, rights and remedies of the Holder hereof shall be determined in accordance with such laws.

IN WITNESS WHEREOF, the Issuer has caused this instrument to be duly executed by its Authorized Officer, as of the date set forth below.

FIGRE TRUST 2025-HE5,
as Issuer

By: Wilmington Savings Fund Society, FSB,
not in its individual capacity but solely
as Owner Trustee

By: _____
Name:
Title:
Dated:

CERTIFICATE OF AUTHENTICATION

This is one of the Class D Notes referred to in the within mentioned Indenture.

The Bank of New York Mellon,
as Registrar

By: _____
Authorized Officer
Dated: _____

ASSIGNMENT

FOR VALUE RECEIVED, the undersigned hereby sell(s), assign(s) and transfer(s) unto

(please print or typewrite name and address including postal zip code of assignee)

the within Note and all rights thereunder and hereby authorize(s) the registration of transfer of such interest to assignee on the Register.

I (we) further direct the Registrar to issue a new Note of a like aggregate Denomination to the above named assignee and deliver such Note to the following address:

Dated:

Signature by or on behalf of Assignor

Signature Guaranteed

*12

PAYMENT INSTRUCTIONS

The Assignee should include the following for purposes of payment:

Payments shall, if permitted, be made by wire transfer or otherwise, in immediately available _____ funds, _____ to

_____ for the account of _____.

Payments made by check (such check to be made payable to _____) and all applicable statements and notices should be mailed to _____.

This information is provided by _____, the Assignee named above, or _____, as its agent.

* NOTICE: The signature to this assignment must correspond with the name of the registered owner as it appears on the face of the within Note in every particular, without alteration, enlargement or any change whatsoever. Such signature must, at the election of the Registrar, be guaranteed by an "eligible guarantor institution" meeting the requirements of the Registrar.

Exhibit A-5A

FORM OF RULE 144A GLOBAL CLASS E NOTE

FIGRE TRUST 2025-HE5 MORTGAGE-BACKED NOTES, SERIES 2025-HE5

Interest Rate: As set forth in the Indenture	Date of Indenture: August 28, 2025
Initial Note Amount: \$[•]	Closing Date: August 28, 2025
Minimum Denomination of this Note: \$150,000	Initial Payment Date: September 2025
Legal Final Maturity: Payment Date occurring in August 2055	Note No.: [•]
CUSIP: 31684MAE9	ISIN: US31684MAE93
Issuer: FIGRE TRUST 2025-HE5, a Delaware statutory trust	Indenture Trustee: THE BANK OF NEW YORK MELLON

UNLESS THIS NOTE IS PRESENTED BY AN AUTHORIZED REPRESENTATIVE OF THE DEPOSITORY TRUST COMPANY, A NEW YORK CORPORATION (“DTC”), TO THE REGISTRAR, THE INDENTURE TRUSTEE OR THEIR AGENT FOR REGISTRATION OF TRANSFER, EXCHANGE, OR PAYMENT, AND ANY NOTE ISSUED IS REGISTERED IN THE NAME OF CEDE & CO. OR IN SUCH OTHER NAME AS IS REQUESTED BY AN AUTHORIZED REPRESENTATIVE OF DTC (AND ANY PAYMENT IS MADE TO CEDE & CO. OR TO SUCH OTHER ENTITY AS IS REQUESTED BY AN AUTHORIZED REPRESENTATIVE OF DTC), ANY TRANSFER, PLEDGE, OR OTHER USE HEREOF FOR VALUE OR OTHERWISE BY OR TO ANY PERSON IS WRONGFUL INASMUCH AS THE REGISTERED OWNER HEREOF, CEDE & CO., HAS AN INTEREST HEREIN.

THIS NOTE HAS NOT BEEN REGISTERED OR QUALIFIED UNDER THE SECURITIES ACT OF 1933, AS AMENDED (THE “SECURITIES ACT”), OR THE SECURITIES LAWS OF ANY STATE AND THE ISSUER IS NOT AND WILL NOT BE REGISTERED UNDER THE UNITED STATES INVESTMENT COMPANY ACT OF 1940, AS AMENDED (THE “INVESTMENT COMPANY ACT”). ANY RESALE, PLEDGE, TRANSFER OR OTHER DISPOSITION OF THIS NOTE OR ANY INTEREST HEREIN WITHOUT SUCH REGISTRATION OR QUALIFICATION MAY BE MADE ONLY IN A TRANSACTION WHICH DOES NOT REQUIRE SUCH REGISTRATION OR QUALIFICATION AND WHICH IS IN ACCORDANCE WITH THE PROVISIONS OF SECTION 4.02 OF THE INDENTURE REFERRED TO HEREIN.

THE INITIAL INVESTOR IN THIS NOTE, AND EACH SUBSEQUENT PURCHASER OF THIS NOTE, BY PURCHASING THIS NOTE OR AN INTEREST HEREIN, IS DEEMED TO HAVE AGREED TO COMPLY WITH CERTAIN TRANSFER REQUIREMENTS SET FORTH IN THE INDENTURE REFERRED TO HEREIN.

BY ACQUIRING THIS CLASS E NOTE (OR ANY INTEREST HEREIN), EACH PURCHASER AND TRANSFEREE (AND, ITS FIDUCIARY, IF APPLICABLE) WILL BE DEEMED TO REPRESENT AND WARRANT THAT IT IS NOT ACQUIRING AND WILL NOT HOLD THIS NOTE (OR INTEREST HEREIN) WITH THE ASSETS OF A PLAN (AS DEFINED BELOW) THAT IS SUBJECT TO TITLE I OF THE EMPLOYEE RETIREMENT INCOME SECURITY ACT OF 1974, AS AMENDED (“ERISA”) OR SECTION 4975 OF THE INTERNAL REVENUE CODE OF 1986, AS AMENDED (THE “CODE”) OR THAT IS SUBJECT TO A LAW THAT IS SUBSTANTIALLY SIMILAR TO TITLE I OF ERISA OR SECTION 4975 OF THE CODE (“SIMILAR LAW”). FOR THESE PURPOSES, A “PLAN” MEANS AN “EMPLOYEE BENEFIT PLAN” AS DEFINED IN SECTION 3(3) OF ERISA WHETHER OR NOT SUBJECT TO TITLE I OF ERISA, A “PLAN” AS DEFINED IN SECTION 4975 OF THE CODE, OR AN ENTITY OR ACCOUNT DEEMED TO HOLD PLAN ASSETS OF THE FOREGOING BY VIRTUE OF SUCH EMPLOYEE BENEFIT PLAN’S OR PLAN’S INVESTMENT IN THE ENTITY OR ACCOUNT.

THIS NOTE REPRESENTS A NON-RECOURSE OBLIGATION OF THE ISSUER AND WILL BE PAID SOLELY FROM THE COLLATERAL SECURING THIS NOTE. NEITHER THIS NOTE NOR THE COLLATERAL IS INSURED OR GUARANTEED BY

ANY GOVERNMENTAL AGENCY OR INSTRUMENTALITY OR BY ANY OTHER PERSON.

PAYMENTS IN REDUCTION OF THE INITIAL NOTE AMOUNT OF THIS NOTE MAY BE MADE MONTHLY AS SET FORTH IN THE INDENTURE REFERRED TO HEREIN. ACCORDINGLY, THE OUTSTANDING NOTE AMOUNT HEREOF AT ANY TIME MAY BE LESS THAN THE AMOUNT SHOWN ABOVE.

This certifies that Cede & Co. is the registered owner (the “Holder”) of this Note which is one of the Notes (collectively, the “Notes”) issued by the Issuer referred to above pursuant to the indenture, dated August 28, 2025 (the “Indenture”), among, *inter alios*, the Issuer referred to above, THE BANK OF NEW YORK MELLON, as paying agent (the “Paying Agent”), registrar (the “Registrar”), REMIC administrator (the “REMIC Administrator”) and the Indenture Trustee referred to above, on behalf of the holders of the Notes (the “Noteholders”), and FIGURE LENDING LLC, as sponsor (the “Sponsor”), a summary of certain of the pertinent provisions of which is set forth hereafter. To the extent not defined herein, capitalized terms used herein have the respective meanings assigned in the Indenture. This Note is issued under and is subject to the terms, provisions and conditions of the Indenture, to which Indenture the Holder of this Note by virtue of the acceptance hereof assents and by which such holder is bound.

Pursuant to the terms of the Indenture, payments on the Notes will be made on the 25th day of each month, or the immediately following Business Day if the 25th day is not a Business Day (each, a “Payment Date”), commencing in September 2025. All payments made under the Indenture on this Note will be made by the Paying Agent to the Depository and the Depository shall be responsible for crediting the amount of such distribution to the accounts of its Depository Participants in accordance with its normal procedures.

The Notes are limited in right of payment to certain distributions on the Mortgage Loans and other amounts, all as more specifically set forth herein and in the Indenture. As provided in the Indenture, withdrawals from the Payment Account may be made from time to time for purposes other than, and, in certain cases, prior to, payments to Noteholders, such purposes including reimbursement of certain expenses incurred by the transaction parties.

Any payment to the Holder of this Note in reduction of the Denomination hereof is binding on such Holder and all future Holders of this Note and any Note issued upon the transfer hereof or in exchange herefor or in lieu hereof whether or not notation of such payment is made upon this Note.

The Notes are issuable in fully registered form only without coupons in minimum denominations specified in the Indenture. As provided in the Indenture and subject to certain limitations therein set forth, this Note is exchangeable for new Notes in authorized denominations evidencing the same aggregate Denomination, as requested by the Holder surrendering the same.

No transfer, sale, pledge or other disposition of this Note or interest herein shall be made unless that transfer, sale, pledge or other disposition is exempt from the registration and/or qualification requirements of the Securities Act and any applicable state securities laws, or is otherwise made in accordance with the Securities Act and such state securities laws. If a transfer

of this Note is to be made without registration under the Securities Act, and a Responsible Officer of the Registrar has actual knowledge thereof, then the Registrar shall refuse to register such transfer unless it and the Indenture Trustee receive (and upon receipt, may conclusively rely upon) certain certificate(s) required pursuant to Section 4.02 of the Indenture (as to which, so long as this Note is a Book-Entry Note, the representations and agreements made therein will be deemed to have been made by the prospective transferor and/or the prospective transferee, as applicable). None of the Issuer, the Indenture Trustee, the Paying Agent, REMIC Administrator or the Registrar is obligated to register or qualify any Notes under the Securities Act or any other securities law or to take any action not otherwise required under the Indenture to permit the transfer of any Note or interest therein without registration or qualification. Any Noteholder desiring to effect a transfer of Notes or interests therein shall, and does hereby agree to, indemnify the Issuer, the Indenture Trustee, the Paying Agent and the Registrar against any liability that may result if the transfer is not so exempt or is not made in accordance with such federal and state laws.

As provided in the Indenture and subject to certain limitations therein set forth, the transfer of this Note is registrable in the Register upon surrender of this Note for registration of transfer at the applicable Corporate Trust Office of the Registrar, duly endorsed by, or accompanied by a written instrument of transfer in the form satisfactory to the Registrar and the Indenture Trustee duly executed by, the Holder hereof or his attorney duly authorized in writing, and thereupon one or more new Notes in authorized denominations evidencing the same aggregate Denomination will be issued to the designated transferee or transferees.

No service charge will be imposed for any registration of transfer or exchange of this Note, but the Indenture Trustee or the Registrar may require payment of a sum sufficient to cover any tax or other governmental charge that may be imposed in connection with any transfer or exchange of this Note.

The Issuer, the Indenture Trustee, the Paying Agent, the Registrar and any agent thereof may treat the Person in whose name this Note is registered as the owner hereof for all purposes, and none of the Issuer, the Indenture Trustee, the Paying Agent, the Registrar or any such agent shall be affected by notice to the contrary.

Each Noteholder, by acceptance of a Class E Note or a beneficial interest therein, as the case may be, covenants and agrees that no recourse may be taken, directly or indirectly, with respect to the obligations of the Issuer, the Owner Trustee, the Depositor, the Depositor Trustee, the Indenture Trustee, the Registrar, the REMIC Administrator or the Paying Agent on the Notes or under the Indenture or any certificate or other writing delivered in connection herewith or therewith, against (i) the Indenture Trustee, the Registrar, the REMIC Administrator the Paying Agent, the Administrator, the Servicer, the Sponsor, the Depositor, the Owner Trustee or the Depositor Trustee in its individual capacity except as provided in the Transaction Documents (it being understood that the Owner Trustee has no such obligation in its individual capacity), (ii) any direct or indirect holder of a beneficial ownership interest in the Issuer or the Depositor or (iii) any partner, owner, beneficiary, agent, officer, director, employee or agent of the Indenture Trustee, the Registrar, the REMIC Administrator the Paying Agent, the Administrator, the Servicer, the Sponsor, the Depositor, the Owner Trustee or the Depositor Trustee in its individual capacity, any direct or indirect holder of a beneficial ownership interest in the Issuer, the Owner Trustee, the Depositor Trustee, the Indenture Trustee, the Registrar, the REMIC Administrator or the Paying

Agent. For all purposes of the Indenture, (x) in the performance of any duties or obligations of the Issuer thereunder, each of the Administrator and the Owner Trustee shall be subject to, and entitled to the benefits of, the Trust Agreement, (y) in the performance of any duties or obligations of the Depositor thereunder, each of the Depositor Trustee and the Administrator shall be subject to, and entitled to the benefits of, the Depositor Trust Agreement and (z) in the performance of any duties or obligations of the Indenture Trustee, REMIC Administrator, Registrar, or Paying Agent thereunder, each of the Indenture Trustee, REMIC Administrator, Registrar, and Paying Agent shall be subject to, and entitled to the benefits of, the Indenture.

The Indenture will be discharged (except with respect to certain continuing rights specified in the Indenture) in accordance with the provisions therein.

Modifications of and amendments to the Indenture may be made by the Issuer, the Paying Agent, the Registrar, the REMIC Administrator and the Indenture Trustee in accordance with the provisions of the Indenture.

Unless the certificate of authentication hereon has been executed by the Registrar, by manual signature, this Note shall not be entitled to any benefit under the Indenture or be valid for any purpose.

This Note is a “regular interest” in a “real estate mortgage investment conduit,” as those terms are defined, respectively, in Sections 860G(a)(1) and 860D of the Code. Each Holder of this Note, by acceptance hereof, agrees to treat, and take no action inconsistent with the treatment of, this Note in accordance with the preceding sentence for purposes of U.S. federal income taxes, state and local income and franchise taxes and other taxes imposed on or measured by income.

The registered Holder hereof, by its acceptance hereof agrees that it will look solely to the Trust Estate (to the extent of its rights therein) for payments hereunder.

This Note shall be construed in accordance with the internal laws of the State of New York applicable to agreements made and to be performed in said State other than its conflicts of law principles except for Section 5-1401 and 1402 of the General Obligations Law, and the obligations, rights and remedies of the Holder hereof shall be determined in accordance with such laws.

IN WITNESS WHEREOF, the Issuer has caused this instrument to be duly executed by its Authorized Officer, as of the date set forth below.

FIGRE TRUST 2025-HE5,
as Issuer

By: Wilmington Savings Fund Society, FSB,
not in its individual capacity but solely
as Owner Trustee

By: _____
Name:
Title:
Dated:

CERTIFICATE OF AUTHENTICATION

This is one of the Class E Notes referred to in the within mentioned Indenture.

The Bank of New York Mellon,
as Registrar

By: _____
Authorized Officer
Dated: _____

ASSIGNMENT

FOR VALUE RECEIVED, the undersigned hereby sell(s), assign(s) and transfer(s) unto

(please print or typewrite name and address including postal zip code of assignee)

the within Note and all rights thereunder and hereby authorize(s) the registration of transfer of such interest to assignee on the Register.

I (we) further direct the Registrar to issue a new Note of a like aggregate Denomination to the above named assignee and deliver such Note to the following address:

Dated:

Signature by or on behalf of Assignor

Signature Guaranteed

*13

PAYMENT INSTRUCTIONS

The Assignee should include the following for purposes of payment:

Payments shall, if permitted, be made by wire transfer or otherwise, in immediately available _____ funds, _____ to

_____ for the account of _____.

Payments made by check (such check to be made payable to _____) and all applicable statements and notices should be mailed to _____.

This information is provided by _____, the Assignee named above, or _____, as its agent.

* NOTICE: The signature to this assignment must correspond with the name of the registered owner as it appears on the face of the within Note in every particular, without alteration, enlargement or any change whatsoever. Such signature must, at the election of the Registrar, be guaranteed by an "eligible guarantor institution" meeting the requirements of the Registrar.

Exhibit A-5B

**FORM OF TEMPORARY REGULATION S GLOBAL CLASS E NOTE
FIGRE TRUST 2025-HE5 MORTGAGE-BACKED NOTES, SERIES 2025-HE5**

Interest Rate: As set forth in the Indenture	Date of Indenture: August 28, 2025
Initial Note Amount: \$[•]	Closing Date: August 28, 2025
Minimum Denomination of this Note: \$150,000	Initial Payment Date: September 2025
Legal Final Maturity: Payment Date occurring in August 2055	Note No.: [•]
CUSIP: U3202RAE7	ISIN: USU3202RAE72
Issuer: FIGRE TRUST 2025-HE5, a Delaware statutory trust	Indenture Trustee: THE BANK OF NEW YORK MELLON

THIS NOTE IS A TEMPORARY REGULATION S GLOBAL NOTE FOR PURPOSES OF REGULATION S UNDER THE UNITED STATES SECURITIES ACT OF 1933, AS AMENDED (THE “SECURITIES ACT”). NEITHER THIS TEMPORARY REGULATION S GLOBAL NOTE NOR ANY INTEREST HEREIN MAY BE OFFERED, SOLD OR DELIVERED, EXCEPT AS PERMITTED UNDER THE INDENTURE REFERRED TO HEREIN.

UNLESS THIS NOTE IS PRESENTED BY AN AUTHORIZED REPRESENTATIVE OF THE DEPOSITORY TRUST COMPANY, A NEW YORK CORPORATION (“DTC”), TO THE REGISTRAR, THE INDENTURE TRUSTEE OR THEIR AGENT FOR REGISTRATION OF TRANSFER, EXCHANGE, OR PAYMENT, AND ANY NOTE ISSUED IS REGISTERED IN THE NAME OF CEDE & CO. OR IN SUCH OTHER NAME AS IS REQUESTED BY AN AUTHORIZED REPRESENTATIVE OF DTC (AND ANY PAYMENT IS MADE TO CEDE & CO. OR TO SUCH OTHER ENTITY AS IS REQUESTED BY AN AUTHORIZED REPRESENTATIVE OF DTC), ANY TRANSFER, PLEDGE, OR OTHER USE HEREOF FOR VALUE OR OTHERWISE BY OR TO ANY PERSON IS WRONGFUL INASMUCH AS THE REGISTERED OWNER HEREOF, CEDE & CO., HAS AN INTEREST HEREIN.

THIS NOTE HAS NOT BEEN REGISTERED OR QUALIFIED UNDER THE SECURITIES ACT, OR THE SECURITIES LAWS OF ANY STATE AND THE ISSUER IS NOT AND WILL NOT BE REGISTERED UNDER THE UNITED STATES INVESTMENT COMPANY ACT OF 1940, AS AMENDED (THE “INVESTMENT COMPANY ACT”). ANY RESALE, PLEDGE, TRANSFER OR OTHER DISPOSITION OF THIS NOTE OR ANY INTEREST HEREIN WITHOUT SUCH REGISTRATION OR QUALIFICATION MAY BE MADE ONLY IN A TRANSACTION WHICH DOES NOT REQUIRE SUCH REGISTRATION OR QUALIFICATION AND WHICH IS IN ACCORDANCE WITH THE PROVISIONS OF SECTION 4.02 OF THE INDENTURE REFERRED TO HEREIN.

THE HOLDER OF THIS NOTE BY ITS ACCEPTANCE HEREOF AGREES NOT TO OFFER, SELL OR OTHERWISE TRANSFER SUCH NOTE WITHIN THE UNITED STATES OR TO U.S. PERSONS (AS DEFINED IN REGULATION S UNDER THE SECURITIES ACT) PRIOR TO THE EXCHANGE DATE EXCEPT PURSUANT TO AN EXEMPTION FROM THE REGISTRATION REQUIREMENTS OF THE SECURITIES ACT.

BY ACQUIRING THIS CLASS E NOTE (OR ANY INTEREST HEREIN), EACH PURCHASER AND TRANSFEREE (AND, ITS FIDUCIARY, IF APPLICABLE) WILL BE DEEMED TO REPRESENT AND WARRANT THAT IT IS NOT ACQUIRING AND WILL NOT HOLD THIS NOTE (OR INTEREST HEREIN) WITH THE ASSETS OF A PLAN (AS DEFINED BELOW) THAT IS SUBJECT TO TITLE I OF THE EMPLOYEE RETIREMENT INCOME SECURITY ACT OF 1974, AS AMENDED (“ERISA”) OR SECTION 4975 OF THE INTERNAL REVENUE CODE OF 1986, AS AMENDED (THE “CODE”) OR THAT IS SUBJECT TO A LAW THAT IS SUBSTANTIALLY SIMILAR TO TITLE I OF ERISA OR SECTION 4975 OF THE CODE (“SIMILAR LAW”). FOR THESE PURPOSES, A “PLAN” MEANS AN “EMPLOYEE BENEFIT PLAN” AS

DEFINED IN SECTION 3(3) OF ERISA WHETHER OR NOT SUBJECT TO TITLE I OF ERISA, A “PLAN” AS DEFINED IN SECTION 4975 OF THE CODE, OR AN ENTITY OR ACCOUNT DEEMED TO HOLD PLAN ASSETS OF THE FOREGOING BY VIRTUE OF SUCH EMPLOYEE BENEFIT PLAN’S OR PLAN’S INVESTMENT IN THE ENTITY OR ACCOUNT.

THIS NOTE REPRESENTS A NON-RECOURSE OBLIGATION OF THE ISSUER AND WILL BE PAID SOLELY FROM THE COLLATERAL SECURING THIS NOTE. NEITHER THIS NOTE NOR THE COLLATERAL IS INSURED OR GUARANTEED BY ANY GOVERNMENTAL AGENCY OR INSTRUMENTALITY OR BY ANY OTHER PERSON.

PAYMENTS IN REDUCTION OF THE INITIAL NOTE AMOUNT OF THIS NOTE MAY BE MADE MONTHLY AS SET FORTH IN THE INDENTURE REFERRED TO HEREIN. ACCORDINGLY, THE OUTSTANDING NOTE AMOUNT HEREOF AT ANY TIME MAY BE LESS THAN THE AMOUNT SHOWN ABOVE.

This certifies that Cede & Co. is the registered owner (the “Holder”) of this Note which is one of the Notes (collectively, the “Notes”) issued by the Issuer referred to above pursuant to the indenture, dated August 28, 2025 (the “Indenture”), among, *inter alios*, the Issuer referred to above, THE BANK OF NEW YORK MELLON, as paying agent (the “Paying Agent”), registrar (the “Registrar”), REMIC administrator (the “REMIC Administrator”) and the Indenture Trustee referred to above, on behalf of the holders of the Notes (the “Noteholders”), and FIGURE LENDING LLC, as sponsor (the “Sponsor”), a summary of certain of the pertinent provisions of which is set forth hereafter. To the extent not defined herein, capitalized terms used herein have the respective meanings assigned in the Indenture. This Note is issued under and is subject to the terms, provisions and conditions of the Indenture, to which Indenture the Holder of this Note by virtue of the acceptance hereof assents and by which such holder is bound.

Pursuant to the terms of the Indenture, payments on the Notes will be made on the 25th day of each month, or the immediately following Business Day if the 25th day is not a Business Day (each, a “Payment Date”), commencing in September 2025. All payments made under the Indenture on this Note will be made by the Paying Agent to the Depository and the Depository shall be responsible for crediting the amount of such distribution to the accounts of its Depository Participants in accordance with its normal procedures.

The Notes are limited in right of payment to certain distributions on the Mortgage Loans and other amounts, all as more specifically set forth herein and in the Indenture. As provided in the Indenture, withdrawals from the Payment Account may be made from time to time for purposes other than, and, in certain cases, prior to, payments to Noteholders, such purposes including reimbursement of certain expenses incurred by the transaction parties.

Any payment to the Holder of this Note in reduction of the Denomination hereof is binding on such Holder and all future Holders of this Note and any Note issued upon the transfer hereof or in exchange herefor or in lieu hereof whether or not notation of such payment is made upon this Note.

The Notes are issuable in fully registered form only without coupons in minimum denominations specified in the Indenture. As provided in the Indenture and subject to certain limitations therein set forth, this Note is exchangeable for new Notes in authorized denominations evidencing the same aggregate Denomination, as requested by the Holder surrendering the same.

No transfer, sale, pledge or other disposition of this Note or interest herein shall be made unless that transfer, sale, pledge or other disposition is exempt from the registration and/or qualification requirements of the Securities Act and any applicable state securities laws, or is otherwise made in accordance with the Securities Act and such state securities laws. If a transfer of this Note is to be made without registration under the Securities Act, and a Responsible Officer of the Registrar has actual knowledge thereof, then the Registrar shall refuse to register such transfer unless it and the Indenture Trustee receive (and upon receipt, may conclusively rely upon) certain certificate(s) required pursuant to Section 4.02 of the Indenture (as to which, so long as this Note is a Book-Entry Note, the representations and agreements made therein will be deemed to have been made by the prospective transferor and/or the prospective transferee, as applicable). None of the Issuer, the Indenture Trustee, the Paying Agent, REMIC Administrator or the Registrar is obligated to register or qualify any Notes under the Securities Act or any other securities law or to take any action not otherwise required under the Indenture to permit the transfer of any Note or interest therein without registration or qualification. Any Noteholder desiring to effect a transfer of Notes or interests therein shall, and does hereby agree to, indemnify the Issuer, the Indenture Trustee, the Paying Agent and the Registrar against any liability that may result if the transfer is not so exempt or is not made in accordance with such federal and state laws.

As provided in the Indenture and subject to certain limitations therein set forth, the transfer of this Note is registrable in the Register upon surrender of this Note for registration of transfer at the applicable Corporate Trust Office of the Registrar, duly endorsed by, or accompanied by a written instrument of transfer in the form satisfactory to the Registrar and the Indenture Trustee duly executed by, the Holder hereof or his attorney duly authorized in writing, and thereupon one or more new Notes in authorized denominations evidencing the same aggregate Denomination will be issued to the designated transferee or transferees.

No service charge will be imposed for any registration of transfer or exchange of this Note, but the Indenture Trustee or the Registrar may require payment of a sum sufficient to cover any tax or other governmental charge that may be imposed in connection with any transfer or exchange of this Note.

The Issuer, the Indenture Trustee, the Paying Agent, the Registrar and any agent thereof may treat the Person in whose name this Note is registered as the owner hereof for all purposes, and none of the Issuer, the Indenture Trustee, the Paying Agent, the Registrar or any such agent shall be affected by notice to the contrary.

Each Noteholder, by acceptance of a Class E Note or a beneficial interest therein, as the case may be, covenants and agrees that no recourse may be taken, directly or indirectly, with respect to the obligations of the Issuer, the Owner Trustee, the Depositor, the Depositor Trustee, the Indenture Trustee, the Registrar, the REMIC Administrator or the Paying Agent on the Notes or under the Indenture or any certificate or other writing delivered in connection herewith or therewith, against (i) the Indenture Trustee, the Registrar, the REMIC Administrator the Paying

Agent, the Administrator, the Servicer, the Sponsor, the Depositor, the Owner Trustee or the Depositor Trustee in its individual capacity except as provided in the Transaction Documents (it being understood that the Owner Trustee has no such obligation in its individual capacity), (ii) any direct or indirect holder of a beneficial ownership interest in the Issuer or the Depositor or (iii) any partner, owner, beneficiary, agent, officer, director, employee or agent of the Indenture Trustee, the Registrar, the REMIC Administrator the Paying Agent, the Administrator, the Servicer, the Sponsor, the Depositor, the Owner Trustee or the Depositor Trustee in its individual capacity, any direct or indirect holder of a beneficial ownership interest in the Issuer, the Owner Trustee, the Depositor Trustee, the Indenture Trustee, the Registrar, the REMIC Administrator or the Paying Agent. For all purposes of the Indenture, (x) in the performance of any duties or obligations of the Issuer thereunder, each of the Administrator and the Owner Trustee shall be subject to, and entitled to the benefits of, the Trust Agreement, (y) in the performance of any duties or obligations of the Depositor thereunder, each of the Depositor Trustee and the Administrator shall be subject to, and entitled to the benefits of, the Depositor Trust Agreement and (z) in the performance of any duties or obligations of the Indenture Trustee, REMIC Administrator, Registrar, or Paying Agent thereunder, each of the Indenture Trustee, REMIC Administrator, Registrar, and Paying Agent shall be subject to, and entitled to the benefits of, the Indenture.

The Indenture will be discharged (except with respect to certain continuing rights specified in the Indenture) in accordance with the provisions therein.

Modifications of and amendments to the Indenture may be made by the Issuer, the Paying Agent, the Registrar, the REMIC Administrator and the Indenture Trustee in accordance with the provisions of the Indenture.

Unless the certificate of authentication hereon has been executed by the Registrar, by manual signature, this Note shall not be entitled to any benefit under the Indenture or be valid for any purpose.

This Note is a “regular interest” in a “real estate mortgage investment conduit,” as those terms are defined, respectively, in Sections 860G(a)(1) and 860D of the Code. Each Holder of this Note, by acceptance hereof, agrees to treat, and take no action inconsistent with the treatment of, this Note in accordance with the preceding sentence for purposes of U.S. federal income taxes, state and local income and franchise taxes and other taxes imposed on or measured by income.

The registered Holder hereof, by its acceptance hereof agrees that it will look solely to the Trust Estate (to the extent of its rights therein) for payments hereunder.

This Note shall be construed in accordance with the internal laws of the State of New York applicable to agreements made and to be performed in said State other than its conflicts of law principles except for Section 5-1401 and 1402 of the General Obligations Law, and the obligations, rights and remedies of the Holder hereof shall be determined in accordance with such laws.

IN WITNESS WHEREOF, the Issuer has caused this instrument to be duly executed by its Authorized Officer, as of the date set forth below.

FIGRE TRUST 2025-HE5,
as Issuer

By: Wilmington Savings Fund Society, FSB,
not in its individual capacity but solely
as Owner Trustee

By: _____
Name:
Title:
Dated:

CERTIFICATE OF AUTHENTICATION

This is one of the Class E Notes referred to in the within mentioned Indenture.

The Bank of New York Mellon,
as Registrar

By: _____
Authorized Officer
Dated: _____

ASSIGNMENT

FOR VALUE RECEIVED, the undersigned hereby sell(s), assign(s) and transfer(s) unto

(please print or typewrite name and address including postal zip code of assignee)

the within Note and all rights thereunder and hereby authorize(s) the registration of transfer of such interest to assignee on the Register.

I (we) further direct the Registrar to issue a new Note of a like aggregate Denomination to the above named assignee and deliver such Note to the following address:

Dated:

Signature by or on behalf of Assignor

Signature Guaranteed

*14

PAYMENT INSTRUCTIONS

The Assignee should include the following for purposes of payment:

Payments shall, if permitted, be made by wire transfer or otherwise, in immediately available _____ funds, _____ to

_____ for the account of _____.

Payments made by check (such check to be made payable to _____) and all applicable statements and notices should be mailed to _____.

This information is provided by _____, the Assignee named above, or _____, as its agent.

* NOTICE: The signature to this assignment must correspond with the name of the registered owner as it appears on the face of the within Note in every particular, without alteration, enlargement or any change whatsoever. Such signature must, at the election of the Registrar, be guaranteed by an "eligible guarantor institution" meeting the requirements of the Registrar.

Exhibit A-5C

**FORM OF PERMANENT REGULATION S GLOBAL CLASS E NOTE
FIGRE TRUST 2025-HE5 MORTGAGE-BACKED NOTES, SERIES 2025-HE5**

Interest Rate: As set forth in the Indenture	Date of Indenture: August 28, 2025
Initial Note Amount: \$[●]	Closing Date: August 28, 2025
Minimum Denomination of this Note: \$150,000	Initial Payment Date: September 2025
Legal Final Maturity: Payment Date occurring in August 2055	Note No.: [●]
CUSIP: U3202RAE7	ISIN: USU3202RAE72
Issuer: FIGRE TRUST 2025-HE5, a Delaware statutory trust	Indenture Trustee: THE BANK OF NEW YORK MELLON

THIS NOTE IS A PERMANENT REGULATION S GLOBAL NOTE FOR PURPOSES OF REGULATION S UNDER THE UNITED STATES SECURITIES ACT OF 1933, AS AMENDED (THE “SECURITIES ACT”). NEITHER THIS PERMANENT REGULATION S GLOBAL NOTE NOR ANY INTEREST HEREIN MAY BE OFFERED, SOLD OR DELIVERED, EXCEPT AS PERMITTED UNDER THE INDENTURE REFERRED TO HEREIN.

UNLESS THIS NOTE IS PRESENTED BY AN AUTHORIZED REPRESENTATIVE OF THE DEPOSITORY TRUST COMPANY, A NEW YORK CORPORATION (“DTC”), TO THE REGISTRAR, THE INDENTURE TRUSTEE OR THEIR AGENT FOR REGISTRATION OF TRANSFER, EXCHANGE, OR PAYMENT, AND ANY NOTE ISSUED IS REGISTERED IN THE NAME OF CEDE & CO. OR IN SUCH OTHER NAME AS IS REQUESTED BY AN AUTHORIZED REPRESENTATIVE OF DTC (AND ANY PAYMENT IS MADE TO CEDE & CO. OR TO SUCH OTHER ENTITY AS IS REQUESTED BY AN AUTHORIZED REPRESENTATIVE OF DTC), ANY TRANSFER, PLEDGE, OR OTHER USE HEREOF FOR VALUE OR OTHERWISE BY OR TO ANY PERSON IS WRONGFUL INASMUCH AS THE REGISTERED OWNER HEREOF, CEDE & CO., HAS AN INTEREST HEREIN.

THIS NOTE HAS NOT BEEN REGISTERED OR QUALIFIED UNDER THE SECURITIES ACT, OR THE SECURITIES LAWS OF ANY STATE AND THE ISSUER IS NOT AND WILL NOT BE REGISTERED UNDER THE UNITED STATES INVESTMENT COMPANY ACT OF 1940, AS AMENDED (THE “INVESTMENT COMPANY ACT”). ANY RESALE, PLEDGE, TRANSFER OR OTHER DISPOSITION OF THIS NOTE OR ANY INTEREST HEREIN WITHOUT SUCH REGISTRATION OR QUALIFICATION MAY BE MADE ONLY IN A TRANSACTION WHICH DOES NOT REQUIRE SUCH REGISTRATION OR QUALIFICATION AND WHICH IS IN ACCORDANCE WITH THE PROVISIONS OF SECTION 4.02 OF THE INDENTURE REFERRED TO HEREIN.

THE HOLDER OF THIS NOTE BY ITS ACCEPTANCE HEREOF AGREES NOT TO OFFER, SELL OR OTHERWISE TRANSFER SUCH NOTE WITHIN THE UNITED STATES OR TO U.S. PERSONS (AS DEFINED IN REGULATION S UNDER THE SECURITIES ACT) PRIOR TO THE EXCHANGE DATE EXCEPT PURSUANT TO AN EXEMPTION FROM THE REGISTRATION REQUIREMENTS OF THE SECURITIES ACT.

BY ACQUIRING THIS CLASS E NOTE (OR ANY INTEREST HEREIN), EACH PURCHASER AND TRANSFEREE (AND, ITS FIDUCIARY, IF APPLICABLE) WILL BE DEEMED TO REPRESENT AND WARRANT THAT IT IS NOT ACQUIRING AND WILL NOT HOLD THIS NOTE (OR INTEREST HEREIN) WITH THE ASSETS OF A PLAN (AS DEFINED BELOW) THAT IS SUBJECT TO TITLE I OF THE EMPLOYEE RETIREMENT INCOME SECURITY ACT OF 1974, AS AMENDED (“ERISA”) OR SECTION 4975 OF THE INTERNAL REVENUE CODE OF 1986, AS AMENDED (THE “CODE”) OR THAT IS SUBJECT TO A LAW THAT IS SUBSTANTIALLY SIMILAR TO TITLE I OF ERISA OR SECTION 4975 OF THE CODE (“SIMILAR LAW”). FOR THESE PURPOSES, A “PLAN” MEANS AN “EMPLOYEE BENEFIT PLAN” AS

DEFINED IN SECTION 3(3) OF ERISA WHETHER OR NOT SUBJECT TO TITLE I OF ERISA, A “PLAN” AS DEFINED IN SECTION 4975 OF THE CODE, OR AN ENTITY OR ACCOUNT DEEMED TO HOLD PLAN ASSETS OF THE FOREGOING BY VIRTUE OF SUCH EMPLOYEE BENEFIT PLAN’S OR PLAN’S INVESTMENT IN THE ENTITY OR ACCOUNT.

THIS NOTE REPRESENTS A NON-RECOURSE OBLIGATION OF THE ISSUER AND WILL BE PAID SOLELY FROM THE COLLATERAL SECURING THIS NOTE. NEITHER THIS NOTE NOR THE COLLATERAL IS INSURED OR GUARANTEED BY ANY GOVERNMENTAL AGENCY OR INSTRUMENTALITY OR BY ANY OTHER PERSON.

PAYMENTS IN REDUCTION OF THE INITIAL NOTE AMOUNT OF THIS NOTE MAY BE MADE MONTHLY AS SET FORTH IN THE INDENTURE REFERRED TO HEREIN. ACCORDINGLY, THE OUTSTANDING NOTE AMOUNT HEREOF AT ANY TIME MAY BE LESS THAN THE AMOUNT SHOWN ABOVE.

This certifies that Cede & Co. is the registered owner (the “Holder”) of this Note which is one of the Notes (collectively, the “Notes”) issued by the Issuer referred to above pursuant to the indenture, dated August 28, 2025 (the “Indenture”), among, *inter alios*, the Issuer referred to above, THE BANK OF NEW YORK MELLON, as paying agent (the “Paying Agent”), registrar (the “Registrar”), REMIC administrator (the “REMIC Administrator”) and the Indenture Trustee referred to above, on behalf of the holders of the Notes (the “Noteholders”), and FIGURE LENDING LLC, as sponsor (the “Sponsor”), a summary of certain of the pertinent provisions of which is set forth hereafter. To the extent not defined herein, capitalized terms used herein have the respective meanings assigned in the Indenture. This Note is issued under and is subject to the terms, provisions and conditions of the Indenture, to which Indenture the Holder of this Note by virtue of the acceptance hereof assents and by which such holder is bound.

Pursuant to the terms of the Indenture, payments on the Notes will be made on the 25th day of each month, or the immediately following Business Day if the 25th day is not a Business Day (each, a “Payment Date”), commencing in September 2025. All payments made under the Indenture on this Note will be made by the Paying Agent to the Depository and the Depository shall be responsible for crediting the amount of such distribution to the accounts of its Depository Participants in accordance with its normal procedures.

The Notes are limited in right of payment to certain distributions on the Mortgage Loans and other amounts, all as more specifically set forth herein and in the Indenture. As provided in the Indenture, withdrawals from the Payment Account may be made from time to time for purposes other than, and, in certain cases, prior to, payments to Noteholders, such purposes including reimbursement of certain expenses incurred by the transaction parties.

Any payment to the Holder of this Note in reduction of the Denomination hereof is binding on such Holder and all future Holders of this Note and any Note issued upon the transfer hereof or in exchange herefor or in lieu hereof whether or not notation of such payment is made upon this Note.

The Notes are issuable in fully registered form only without coupons in minimum denominations specified in the Indenture. As provided in the Indenture and subject to certain limitations therein set forth, this Note is exchangeable for new Notes in authorized denominations evidencing the same aggregate Denomination, as requested by the Holder surrendering the same.

No transfer, sale, pledge or other disposition of this Note or interest herein shall be made unless that transfer, sale, pledge or other disposition is exempt from the registration and/or qualification requirements of the Securities Act and any applicable state securities laws, or is otherwise made in accordance with the Securities Act and such state securities laws. If a transfer of this Note is to be made without registration under the Securities Act, and a Responsible Officer of the Registrar has actual knowledge thereof, then the Registrar shall refuse to register such transfer unless it and the Indenture Trustee receive (and upon receipt, may conclusively rely upon) certain certificate(s) required pursuant to Section 4.02 of the Indenture (as to which, so long as this Note is a Book-Entry Note, the representations and agreements made therein will be deemed to have been made by the prospective transferor and/or the prospective transferee, as applicable). None of the Issuer, the Indenture Trustee, the Paying Agent, REMIC Administrator or the Registrar is obligated to register or qualify any Notes under the Securities Act or any other securities law or to take any action not otherwise required under the Indenture to permit the transfer of any Note or interest therein without registration or qualification. Any Noteholder desiring to effect a transfer of Notes or interests therein shall, and does hereby agree to, indemnify the Issuer, the Indenture Trustee, the Paying Agent and the Registrar against any liability that may result if the transfer is not so exempt or is not made in accordance with such federal and state laws.

As provided in the Indenture and subject to certain limitations therein set forth, the transfer of this Note is registrable in the Register upon surrender of this Note for registration of transfer at the applicable Corporate Trust Office of the Registrar, duly endorsed by, or accompanied by a written instrument of transfer in the form satisfactory to the Registrar and the Indenture Trustee duly executed by, the Holder hereof or his attorney duly authorized in writing, and thereupon one or more new Notes in authorized denominations evidencing the same aggregate Denomination will be issued to the designated transferee or transferees.

No service charge will be imposed for any registration of transfer or exchange of this Note, but the Indenture Trustee or the Registrar may require payment of a sum sufficient to cover any tax or other governmental charge that may be imposed in connection with any transfer or exchange of this Note.

The Issuer, the Indenture Trustee, the Paying Agent, the Registrar and any agent thereof may treat the Person in whose name this Note is registered as the owner hereof for all purposes, and none of the Issuer, the Indenture Trustee, the Paying Agent, the Registrar or any such agent shall be affected by notice to the contrary.

Each Noteholder, by acceptance of a Class E Note or a beneficial interest therein, as the case may be, covenants and agrees that no recourse may be taken, directly or indirectly, with respect to the obligations of the Issuer, the Owner Trustee, the Depositor, the Depositor Trustee, the Indenture Trustee, the Registrar, the REMIC Administrator or the Paying Agent on the Notes or under the Indenture or any certificate or other writing delivered in connection herewith or therewith, against (i) the Indenture Trustee, the Registrar, the REMIC Administrator the Paying

Agent, the Administrator, the Servicer, the Sponsor, the Depositor, the Owner Trustee or the Depositor Trustee in its individual capacity except as provided in the Transaction Documents (it being understood that the Owner Trustee has no such obligation in its individual capacity), (ii) any direct or indirect holder of a beneficial ownership interest in the Issuer or the Depositor or (iii) any partner, owner, beneficiary, agent, officer, director, employee or agent of the Indenture Trustee, the Registrar, the REMIC Administrator the Paying Agent, the Administrator, the Servicer, the Sponsor, the Depositor, the Owner Trustee or the Depositor Trustee in its individual capacity, any direct or indirect holder of a beneficial ownership interest in the Issuer, the Owner Trustee, the Depositor Trustee, the Indenture Trustee, the Registrar, the REMIC Administrator or the Paying Agent. For all purposes of the Indenture, (x) in the performance of any duties or obligations of the Issuer thereunder, each of the Administrator and the Owner Trustee shall be subject to, and entitled to the benefits of, the Trust Agreement, (y) in the performance of any duties or obligations of the Depositor thereunder, each of the Depositor Trustee and the Administrator shall be subject to, and entitled to the benefits of, the Depositor Trust Agreement and (z) in the performance of any duties or obligations of the Indenture Trustee, REMIC Administrator, Registrar, or Paying Agent thereunder, each of the Indenture Trustee, REMIC Administrator, Registrar, and Paying Agent shall be subject to, and entitled to the benefits of, the Indenture.

The Indenture will be discharged (except with respect to certain continuing rights specified in the Indenture) in accordance with the provisions therein.

Modifications of and amendments to the Indenture may be made by the Issuer, the Paying Agent, the Registrar, the REMIC Administrator and the Indenture Trustee in accordance with the provisions of the Indenture.

Unless the certificate of authentication hereon has been executed by the Registrar, by manual signature, this Note shall not be entitled to any benefit under the Indenture or be valid for any purpose.

This Note is a “regular interest” in a “real estate mortgage investment conduit,” as those terms are defined, respectively, in Sections 860G(a)(1) and 860D of the Code. Each Holder of this Note, by acceptance hereof, agrees to treat, and take no action inconsistent with the treatment of, this Note in accordance with the preceding sentence for purposes of U.S. federal income taxes, state and local income and franchise taxes and other taxes imposed on or measured by income.

The registered Holder hereof, by its acceptance hereof agrees that it will look solely to the Trust Estate (to the extent of its rights therein) for payments hereunder.

This Note shall be construed in accordance with the internal laws of the State of New York applicable to agreements made and to be performed in said State other than its conflicts of law principles except for Section 5-1401 and 1402 of the General Obligations Law, and the obligations, rights and remedies of the Holder hereof shall be determined in accordance with such laws.

IN WITNESS WHEREOF, the Issuer has caused this instrument to be duly executed by its Authorized Officer, as of the date set forth below.

FIGRE TRUST 2025-HE5,
as Issuer

By: Wilmington Savings Fund Society, FSB,
not in its individual capacity but solely
as Owner Trustee

By: _____
Name:
Title:
Dated:

CERTIFICATE OF AUTHENTICATION

This is one of the Class E Notes referred to in the within mentioned Indenture.

The Bank of New York Mellon,
as Registrar

By: _____
Authorized Officer
Dated: _____

ASSIGNMENT

FOR VALUE RECEIVED, the undersigned hereby sell(s), assign(s) and transfer(s) unto

(please print or typewrite name and address including postal zip code of assignee)

the within Note and all rights thereunder and hereby authorize(s) the registration of transfer of such interest to assignee on the Register.

I (we) further direct the Registrar to issue a new Note of a like aggregate Denomination to the above named assignee and deliver such Note to the following address:

Dated:

Signature by or on behalf of Assignor

Signature Guaranteed

*15

PAYMENT INSTRUCTIONS

The Assignee should include the following for purposes of payment:

Payments shall, if permitted, be made by wire transfer or otherwise, in immediately available _____ funds, _____ to

_____ for the account of _____.

Payments made by check (such check to be made payable to _____) and all applicable statements and notices should be mailed to _____.

This information is provided by _____, the Assignee named above, or _____, as its agent.

* NOTICE: The signature to this assignment must correspond with the name of the registered owner as it appears on the face of the within Note in every particular, without alteration, enlargement or any change whatsoever. Such signature must, at the election of the Registrar, be guaranteed by an "eligible guarantor institution" meeting the requirements of the Registrar.

Exhibit A-6A

FORM OF RULE 144A GLOBAL CLASS F NOTE

FIGRE TRUST 2025-HE5 MORTGAGE-BACKED NOTES, SERIES 2025-HE5

Interest Rate: As set forth in the Indenture	Date of Indenture: August 28, 2025
Initial Note Amount: \$[●]	Closing Date: August 28, 2025
Minimum Denomination of this Note: \$150,000	Initial Payment Date: September 2025
Legal Final Maturity: Payment Date occurring in August 2055	Note No.: [●]
CUSIP: 31684MAF6	ISIN: US31684MAF68
Issuer: FIGRE TRUST 2025-HE5, a Delaware statutory trust	Indenture Trustee: THE BANK OF NEW YORK MELLON

UNLESS THIS NOTE IS PRESENTED BY AN AUTHORIZED REPRESENTATIVE OF THE DEPOSITORY TRUST COMPANY, A NEW YORK CORPORATION (“DTC”), TO THE REGISTRAR, THE INDENTURE TRUSTEE OR THEIR AGENT FOR REGISTRATION OF TRANSFER, EXCHANGE, OR PAYMENT, AND ANY NOTE ISSUED IS REGISTERED IN THE NAME OF CEDE & CO. OR IN SUCH OTHER NAME AS IS REQUESTED BY AN AUTHORIZED REPRESENTATIVE OF DTC (AND ANY PAYMENT IS MADE TO CEDE & CO. OR TO SUCH OTHER ENTITY AS IS REQUESTED BY AN AUTHORIZED REPRESENTATIVE OF DTC), ANY TRANSFER, PLEDGE, OR OTHER USE HEREOF FOR VALUE OR OTHERWISE BY OR TO ANY PERSON IS WRONGFUL INASMUCH AS THE REGISTERED OWNER HEREOF, CEDE & CO., HAS AN INTEREST HEREIN.

THIS NOTE HAS NOT BEEN REGISTERED OR QUALIFIED UNDER THE SECURITIES ACT OF 1933, AS AMENDED (THE “SECURITIES ACT”), OR THE SECURITIES LAWS OF ANY STATE AND THE ISSUER IS NOT AND WILL NOT BE REGISTERED UNDER THE UNITED STATES INVESTMENT COMPANY ACT OF 1940, AS AMENDED (THE “INVESTMENT COMPANY ACT”). ANY RESALE, PLEDGE, TRANSFER OR OTHER DISPOSITION OF THIS NOTE OR ANY INTEREST HEREIN WITHOUT SUCH REGISTRATION OR QUALIFICATION MAY BE MADE ONLY IN A TRANSACTION WHICH DOES NOT REQUIRE SUCH REGISTRATION OR QUALIFICATION AND WHICH IS IN ACCORDANCE WITH THE PROVISIONS OF SECTION 4.02 OF THE INDENTURE REFERRED TO HEREIN.

THE INITIAL INVESTOR IN THIS NOTE, AND EACH SUBSEQUENT PURCHASER OF THIS NOTE, BY PURCHASING THIS NOTE OR AN INTEREST HEREIN, IS DEEMED TO HAVE AGREED TO COMPLY WITH CERTAIN TRANSFER REQUIREMENTS SET FORTH IN THE INDENTURE REFERRED TO HEREIN.

BY ACQUIRING THIS CLASS F NOTE (OR ANY INTEREST HEREIN), EACH PURCHASER AND TRANSFEREE (AND, ITS FIDUCIARY, IF APPLICABLE) WILL BE DEEMED TO REPRESENT AND WARRANT THAT IT IS NOT ACQUIRING AND WILL NOT HOLD THIS NOTE (OR INTEREST HEREIN) WITH THE ASSETS OF A PLAN (AS DEFINED BELOW) THAT IS SUBJECT TO TITLE I OF THE EMPLOYEE RETIREMENT INCOME SECURITY ACT OF 1974, AS AMENDED (“ERISA”) OR SECTION 4975 OF THE INTERNAL REVENUE CODE OF 1986, AS AMENDED (THE “CODE”) OR THAT IS SUBJECT TO A LAW THAT IS SUBSTANTIALLY SIMILAR TO TITLE I OF ERISA OR SECTION 4975 OF THE CODE (“SIMILAR LAW”). FOR THESE PURPOSES, A “PLAN” MEANS AN “EMPLOYEE BENEFIT PLAN” AS DEFINED IN SECTION 3(3) OF ERISA WHETHER OR NOT SUBJECT TO TITLE I OF ERISA, A “PLAN” AS DEFINED IN SECTION 4975 OF THE CODE, OR AN ENTITY OR ACCOUNT DEEMED TO HOLD PLAN ASSETS OF THE FOREGOING BY VIRTUE OF SUCH EMPLOYEE BENEFIT PLAN’S OR PLAN’S INVESTMENT IN THE ENTITY OR ACCOUNT.

THIS NOTE REPRESENTS A NON-RECOURSE OBLIGATION OF THE ISSUER AND WILL BE PAID SOLELY FROM THE COLLATERAL SECURING THIS NOTE. NEITHER THIS NOTE NOR THE COLLATERAL IS INSURED OR GUARANTEED BY

ANY GOVERNMENTAL AGENCY OR INSTRUMENTALITY OR BY ANY OTHER PERSON.

PAYMENTS IN REDUCTION OF THE INITIAL NOTE AMOUNT OF THIS NOTE MAY BE MADE MONTHLY AS SET FORTH IN THE INDENTURE REFERRED TO HEREIN. ACCORDINGLY, THE OUTSTANDING NOTE AMOUNT HEREOF AT ANY TIME MAY BE LESS THAN THE AMOUNT SHOWN ABOVE.

This certifies that Cede & Co. is the registered owner (the “Holder”) of this Note which is one of the Notes (collectively, the “Notes”) issued by the Issuer referred to above pursuant to the indenture, dated August 28, 2025 (the “Indenture”), among, *inter alios*, the Issuer referred to above, THE BANK OF NEW YORK MELLON, as paying agent (the “Paying Agent”), registrar (the “Registrar”), REMIC administrator (the “REMIC Administrator”) and the Indenture Trustee referred to above, on behalf of the holders of the Notes (the “Noteholders”), and FIGURE LENDING LLC, as sponsor (the “Sponsor”), a summary of certain of the pertinent provisions of which is set forth hereafter. To the extent not defined herein, capitalized terms used herein have the respective meanings assigned in the Indenture. This Note is issued under and is subject to the terms, provisions and conditions of the Indenture, to which Indenture the Holder of this Note by virtue of the acceptance hereof assents and by which such holder is bound.

Pursuant to the terms of the Indenture, payments on the Notes will be made on the 25th day of each month, or the immediately following Business Day if the 25th day is not a Business Day (each, a “Payment Date”), commencing in September 2025. All payments made under the Indenture on this Note will be made by the Paying Agent to the Depository and the Depository shall be responsible for crediting the amount of such distribution to the accounts of its Depository Participants in accordance with its normal procedures.

The Notes are limited in right of payment to certain distributions on the Mortgage Loans and other amounts, all as more specifically set forth herein and in the Indenture. As provided in the Indenture, withdrawals from the Payment Account may be made from time to time for purposes other than, and, in certain cases, prior to, payments to Noteholders, such purposes including reimbursement of certain expenses incurred by the transaction parties.

Any payment to the Holder of this Note in reduction of the Denomination hereof is binding on such Holder and all future Holders of this Note and any Note issued upon the transfer hereof or in exchange herefor or in lieu hereof whether or not notation of such payment is made upon this Note.

The Notes are issuable in fully registered form only without coupons in minimum denominations specified in the Indenture. As provided in the Indenture and subject to certain limitations therein set forth, this Note is exchangeable for new Notes in authorized denominations evidencing the same aggregate Denomination, as requested by the Holder surrendering the same.

No transfer, sale, pledge or other disposition of this Note or interest herein shall be made unless that transfer, sale, pledge or other disposition is exempt from the registration and/or qualification requirements of the Securities Act and any applicable state securities laws, or is otherwise made in accordance with the Securities Act and such state securities laws. If a transfer

of this Note is to be made without registration under the Securities Act, and a Responsible Officer of the Registrar has actual knowledge thereof, then the Registrar shall refuse to register such transfer unless it and the Indenture Trustee receive (and upon receipt, may conclusively rely upon) certain certificate(s) required pursuant to Section 4.02 of the Indenture (as to which, so long as this Note is a Book-Entry Note, the representations and agreements made therein will be deemed to have been made by the prospective transferor and/or the prospective transferee, as applicable). None of the Issuer, the Indenture Trustee, the Paying Agent, REMIC Administrator or the Registrar is obligated to register or qualify any Notes under the Securities Act or any other securities law or to take any action not otherwise required under the Indenture to permit the transfer of any Note or interest therein without registration or qualification. Any Noteholder desiring to effect a transfer of Notes or interests therein shall, and does hereby agree to, indemnify the Issuer, the Indenture Trustee, the Paying Agent and the Registrar against any liability that may result if the transfer is not so exempt or is not made in accordance with such federal and state laws.

As provided in the Indenture and subject to certain limitations therein set forth, the transfer of this Note is registrable in the Register upon surrender of this Note for registration of transfer at the applicable Corporate Trust Office of the Registrar, duly endorsed by, or accompanied by a written instrument of transfer in the form satisfactory to the Registrar and the Indenture Trustee duly executed by, the Holder hereof or his attorney duly authorized in writing, and thereupon one or more new Notes in authorized denominations evidencing the same aggregate Denomination will be issued to the designated transferee or transferees.

No service charge will be imposed for any registration of transfer or exchange of this Note, but the Indenture Trustee or the Registrar may require payment of a sum sufficient to cover any tax or other governmental charge that may be imposed in connection with any transfer or exchange of this Note.

The Issuer, the Indenture Trustee, the Paying Agent, the Registrar and any agent thereof may treat the Person in whose name this Note is registered as the owner hereof for all purposes, and none of the Issuer, the Indenture Trustee, the Paying Agent, the Registrar or any such agent shall be affected by notice to the contrary.

Each Noteholder, by acceptance of a Class F Note or a beneficial interest therein, as the case may be, covenants and agrees that no recourse may be taken, directly or indirectly, with respect to the obligations of the Issuer, the Owner Trustee, the Depositor, the Depositor Trustee, the Indenture Trustee, the Registrar, the REMIC Administrator or the Paying Agent on the Notes or under the Indenture or any certificate or other writing delivered in connection herewith or therewith, against (i) the Indenture Trustee, the Registrar, the REMIC Administrator the Paying Agent, the Administrator, the Servicer, the Sponsor, the Depositor, the Owner Trustee or the Depositor Trustee in its individual capacity except as provided in the Transaction Documents (it being understood that the Owner Trustee has no such obligation in its individual capacity), (ii) any direct or indirect holder of a beneficial ownership interest in the Issuer or the Depositor or (iii) any partner, owner, beneficiary, agent, officer, director, employee or agent of the Indenture Trustee, the Registrar, the REMIC Administrator the Paying Agent, the Administrator, the Servicer, the Sponsor, the Depositor, the Owner Trustee or the Depositor Trustee in its individual capacity, any direct or indirect holder of a beneficial ownership interest in the Issuer, the Owner Trustee, the Depositor Trustee, the Indenture Trustee, the Registrar, the REMIC Administrator or the Paying

Agent. For all purposes of the Indenture, (x) in the performance of any duties or obligations of the Issuer thereunder, each of the Administrator and the Owner Trustee shall be subject to, and entitled to the benefits of, the Trust Agreement, (y) in the performance of any duties or obligations of the Depositor thereunder, each of the Depositor Trustee and the Administrator shall be subject to, and entitled to the benefits of, the Depositor Trust Agreement and (z) in the performance of any duties or obligations of the Indenture Trustee, REMIC Administrator, Registrar, or Paying Agent thereunder, each of the Indenture Trustee, REMIC Administrator, Registrar, and Paying Agent shall be subject to, and entitled to the benefits of, the Indenture.

The Indenture will be discharged (except with respect to certain continuing rights specified in the Indenture) in accordance with the provisions therein.

Modifications of and amendments to the Indenture may be made by the Issuer, the Paying Agent, the Registrar, the REMIC Administrator and the Indenture Trustee in accordance with the provisions of the Indenture.

Unless the certificate of authentication hereon has been executed by the Registrar, by manual signature, this Note shall not be entitled to any benefit under the Indenture or be valid for any purpose.

This Note is a “regular interest” in a “real estate mortgage investment conduit,” as those terms are defined, respectively, in Sections 860G(a)(1) and 860D of the Code. Each Holder of this Note, by acceptance hereof, agrees to treat, and take no action inconsistent with the treatment of, this Note in accordance with the preceding sentence for purposes of U.S. federal income taxes, state and local income and franchise taxes and other taxes imposed on or measured by income.

The registered Holder hereof, by its acceptance hereof agrees that it will look solely to the Trust Estate (to the extent of its rights therein) for payments hereunder.

This Note shall be construed in accordance with the internal laws of the State of New York applicable to agreements made and to be performed in said State other than its conflicts of law principles except for Section 5-1401 and 1402 of the General Obligations Law, and the obligations, rights and remedies of the Holder hereof shall be determined in accordance with such laws.

IN WITNESS WHEREOF, the Issuer has caused this instrument to be duly executed by its Authorized Officer, as of the date set forth below.

FIGRE TRUST 2025-HE5,
as Issuer

By: Wilmington Savings Fund Society, FSB,
not in its individual capacity but solely
as Owner Trustee

By: _____
Name:
Title:
Dated:

CERTIFICATE OF AUTHENTICATION

This is one of the Class F Notes referred to in the within mentioned Indenture.

The Bank of New York Mellon,
as Registrar

By: _____
Authorized Officer
Dated: _____

ASSIGNMENT

FOR VALUE RECEIVED, the undersigned hereby sell(s), assign(s) and transfer(s) unto

(please print or typewrite name and address including postal zip code of assignee)

the within Note and all rights thereunder and hereby authorize(s) the registration of transfer of such interest to assignee on the Register.

I (we) further direct the Registrar to issue a new Note of a like aggregate Denomination to the above named assignee and deliver such Note to the following address:

Dated:

Signature by or on behalf of Assignor

Signature Guaranteed

*16

PAYMENT INSTRUCTIONS

The Assignee should include the following for purposes of payment:

Payments shall, if permitted, be made by wire transfer or otherwise, in immediately available _____ funds, _____ to

_____ for the account of _____.

Payments made by check (such check to be made payable to _____) and all applicable statements and notices should be mailed to _____.

This information is provided by _____, the Assignee named above, or _____, as its agent.

* NOTICE: The signature to this assignment must correspond with the name of the registered owner as it appears on the face of the within Note in every particular, without alteration, enlargement or any change whatsoever. Such signature must, at the election of the Registrar, be guaranteed by an "eligible guarantor institution" meeting the requirements of the Registrar.

Exhibit A-6B

**FORM OF TEMPORARY REGULATION S GLOBAL CLASS F NOTE
FIGRE TRUST 2025-HE5 MORTGAGE-BACKED NOTES, SERIES 2025-HE5**

Interest Rate: As set forth in the Indenture	Date of Indenture: August 28, 2025
Initial Note Amount: \$[•]	Closing Date: August 28, 2025
Minimum Denomination of this Note: \$150,000	Initial Payment Date: September 2025
Legal Final Maturity: Payment Date occurring in August 2055	Note No.: [•]
CUSIP: U3202RAF4	ISIN: USU3202RAF48
Issuer: FIGRE TRUST 2025-HE5, a Delaware statutory trust	Indenture Trustee: THE BANK OF NEW YORK MELLON

THIS NOTE IS A TEMPORARY REGULATION S GLOBAL NOTE FOR PURPOSES OF REGULATION S UNDER THE UNITED STATES SECURITIES ACT OF 1933, AS AMENDED (THE “SECURITIES ACT”). NEITHER THIS TEMPORARY REGULATION S GLOBAL NOTE NOR ANY INTEREST HEREIN MAY BE OFFERED, SOLD OR DELIVERED, EXCEPT AS PERMITTED UNDER THE INDENTURE REFERRED TO HEREIN.

UNLESS THIS NOTE IS PRESENTED BY AN AUTHORIZED REPRESENTATIVE OF THE DEPOSITORY TRUST COMPANY, A NEW YORK CORPORATION (“DTC”), TO THE REGISTRAR, THE INDENTURE TRUSTEE OR THEIR AGENT FOR REGISTRATION OF TRANSFER, EXCHANGE, OR PAYMENT, AND ANY NOTE ISSUED IS REGISTERED IN THE NAME OF CEDE & CO. OR IN SUCH OTHER NAME AS IS REQUESTED BY AN AUTHORIZED REPRESENTATIVE OF DTC (AND ANY PAYMENT IS MADE TO CEDE & CO. OR TO SUCH OTHER ENTITY AS IS REQUESTED BY AN AUTHORIZED REPRESENTATIVE OF DTC), ANY TRANSFER, PLEDGE, OR OTHER USE HEREOF FOR VALUE OR OTHERWISE BY OR TO ANY PERSON IS WRONGFUL INASMUCH AS THE REGISTERED OWNER HEREOF, CEDE & CO., HAS AN INTEREST HEREIN.

THIS NOTE HAS NOT BEEN REGISTERED OR QUALIFIED UNDER THE SECURITIES ACT, OR THE SECURITIES LAWS OF ANY STATE AND THE ISSUER IS NOT AND WILL NOT BE REGISTERED UNDER THE UNITED STATES INVESTMENT COMPANY ACT OF 1940, AS AMENDED (THE “INVESTMENT COMPANY ACT”). ANY RESALE, PLEDGE, TRANSFER OR OTHER DISPOSITION OF THIS NOTE OR ANY INTEREST HEREIN WITHOUT SUCH REGISTRATION OR QUALIFICATION MAY BE MADE ONLY IN A TRANSACTION WHICH DOES NOT REQUIRE SUCH REGISTRATION OR QUALIFICATION AND WHICH IS IN ACCORDANCE WITH THE PROVISIONS OF SECTION 4.02 OF THE INDENTURE REFERRED TO HEREIN.

THE HOLDER OF THIS NOTE BY ITS ACCEPTANCE HEREOF AGREES NOT TO OFFER, SELL OR OTHERWISE TRANSFER SUCH NOTE WITHIN THE UNITED STATES OR TO U.S. PERSONS (AS DEFINED IN REGULATION S UNDER THE SECURITIES ACT) PRIOR TO THE EXCHANGE DATE EXCEPT PURSUANT TO AN EXEMPTION FROM THE REGISTRATION REQUIREMENTS OF THE SECURITIES ACT.

BY ACQUIRING THIS CLASS F NOTE (OR ANY INTEREST HEREIN), EACH PURCHASER AND TRANSFEREE (AND, ITS FIDUCIARY, IF APPLICABLE) WILL BE DEEMED TO REPRESENT AND WARRANT THAT IT IS NOT ACQUIRING AND WILL NOT HOLD THIS NOTE (OR INTEREST HEREIN) WITH THE ASSETS OF A PLAN (AS DEFINED BELOW) THAT IS SUBJECT TO TITLE I OF THE EMPLOYEE RETIREMENT INCOME SECURITY ACT OF 1974, AS AMENDED (“ERISA”) OR SECTION 4975 OF THE INTERNAL REVENUE CODE OF 1986, AS AMENDED (THE “CODE”) OR THAT IS SUBJECT TO A LAW THAT IS SUBSTANTIALLY SIMILAR TO TITLE I OF ERISA OR SECTION 4975 OF THE CODE (“SIMILAR LAW”). FOR THESE PURPOSES, A “PLAN” MEANS AN “EMPLOYEE BENEFIT PLAN” AS

DEFINED IN SECTION 3(3) OF ERISA WHETHER OR NOT SUBJECT TO TITLE I OF ERISA, A “PLAN” AS DEFINED IN SECTION 4975 OF THE CODE, OR AN ENTITY OR ACCOUNT DEEMED TO HOLD PLAN ASSETS OF THE FOREGOING BY VIRTUE OF SUCH EMPLOYEE BENEFIT PLAN’S OR PLAN’S INVESTMENT IN THE ENTITY OR ACCOUNT.

THIS NOTE REPRESENTS A NON-RECOURSE OBLIGATION OF THE ISSUER AND WILL BE PAID SOLELY FROM THE COLLATERAL SECURING THIS NOTE. NEITHER THIS NOTE NOR THE COLLATERAL IS INSURED OR GUARANTEED BY ANY GOVERNMENTAL AGENCY OR INSTRUMENTALITY OR BY ANY OTHER PERSON.

PAYMENTS IN REDUCTION OF THE INITIAL NOTE AMOUNT OF THIS NOTE MAY BE MADE MONTHLY AS SET FORTH IN THE INDENTURE REFERRED TO HEREIN. ACCORDINGLY, THE OUTSTANDING NOTE AMOUNT HEREOF AT ANY TIME MAY BE LESS THAN THE AMOUNT SHOWN ABOVE.

This certifies that Cede & Co. is the registered owner (the “Holder”) of this Note which is one of the Notes (collectively, the “Notes”) issued by the Issuer referred to above pursuant to the indenture, dated August 28, 2025 (the “Indenture”), among, *inter alios*, the Issuer referred to above, THE BANK OF NEW YORK MELLON, as paying agent (the “Paying Agent”), registrar (the “Registrar”), REMIC administrator (the “REMIC Administrator”) and the Indenture Trustee referred to above, on behalf of the holders of the Notes (the “Noteholders”), and FIGURE LENDING LLC, as sponsor (the “Sponsor”), a summary of certain of the pertinent provisions of which is set forth hereafter. To the extent not defined herein, capitalized terms used herein have the respective meanings assigned in the Indenture. This Note is issued under and is subject to the terms, provisions and conditions of the Indenture, to which Indenture the Holder of this Note by virtue of the acceptance hereof assents and by which such holder is bound.

Pursuant to the terms of the Indenture, payments on the Notes will be made on the 25th day of each month, or the immediately following Business Day if the 25th day is not a Business Day (each, a “Payment Date”), commencing in September 2025. All payments made under the Indenture on this Note will be made by the Paying Agent to the Depository and the Depository shall be responsible for crediting the amount of such distribution to the accounts of its Depository Participants in accordance with its normal procedures.

The Notes are limited in right of payment to certain distributions on the Mortgage Loans and other amounts, all as more specifically set forth herein and in the Indenture. As provided in the Indenture, withdrawals from the Payment Account may be made from time to time for purposes other than, and, in certain cases, prior to, payments to Noteholders, such purposes including reimbursement of certain expenses incurred by the transaction parties.

Any payment to the Holder of this Note in reduction of the Denomination hereof is binding on such Holder and all future Holders of this Note and any Note issued upon the transfer hereof or in exchange herefor or in lieu hereof whether or not notation of such payment is made upon this Note.

The Notes are issuable in fully registered form only without coupons in minimum denominations specified in the Indenture. As provided in the Indenture and subject to certain limitations therein set forth, this Note is exchangeable for new Notes in authorized denominations evidencing the same aggregate Denomination, as requested by the Holder surrendering the same.

No transfer, sale, pledge or other disposition of this Note or interest herein shall be made unless that transfer, sale, pledge or other disposition is exempt from the registration and/or qualification requirements of the Securities Act and any applicable state securities laws, or is otherwise made in accordance with the Securities Act and such state securities laws. If a transfer of this Note is to be made without registration under the Securities Act, and a Responsible Officer of the Registrar has actual knowledge thereof, then the Registrar shall refuse to register such transfer unless it and the Indenture Trustee receive (and upon receipt, may conclusively rely upon) certain certificate(s) required pursuant to Section 4.02 of the Indenture (as to which, so long as this Note is a Book-Entry Note, the representations and agreements made therein will be deemed to have been made by the prospective transferor and/or the prospective transferee, as applicable). None of the Issuer, the Indenture Trustee, the Paying Agent, REMIC Administrator or the Registrar is obligated to register or qualify any Notes under the Securities Act or any other securities law or to take any action not otherwise required under the Indenture to permit the transfer of any Note or interest therein without registration or qualification. Any Noteholder desiring to effect a transfer of Notes or interests therein shall, and does hereby agree to, indemnify the Issuer, the Indenture Trustee, the Paying Agent and the Registrar against any liability that may result if the transfer is not so exempt or is not made in accordance with such federal and state laws.

As provided in the Indenture and subject to certain limitations therein set forth, the transfer of this Note is registrable in the Register upon surrender of this Note for registration of transfer at the applicable Corporate Trust Office of the Registrar, duly endorsed by, or accompanied by a written instrument of transfer in the form satisfactory to the Registrar and the Indenture Trustee duly executed by, the Holder hereof or his attorney duly authorized in writing, and thereupon one or more new Notes in authorized denominations evidencing the same aggregate Denomination will be issued to the designated transferee or transferees.

No service charge will be imposed for any registration of transfer or exchange of this Note, but the Indenture Trustee or the Registrar may require payment of a sum sufficient to cover any tax or other governmental charge that may be imposed in connection with any transfer or exchange of this Note.

The Issuer, the Indenture Trustee, the Paying Agent, the Registrar and any agent thereof may treat the Person in whose name this Note is registered as the owner hereof for all purposes, and none of the Issuer, the Indenture Trustee, the Paying Agent, the Registrar or any such agent shall be affected by notice to the contrary.

Each Noteholder, by acceptance of a Class F Note or a beneficial interest therein, as the case may be, covenants and agrees that no recourse may be taken, directly or indirectly, with respect to the obligations of the Issuer, the Owner Trustee, the Depositor, the Depositor Trustee, the Indenture Trustee, the Registrar, the REMIC Administrator or the Paying Agent on the Notes or under the Indenture or any certificate or other writing delivered in connection herewith or therewith, against (i) the Indenture Trustee, the Registrar, the REMIC Administrator the Paying

Agent, the Administrator, the Servicer, the Sponsor, the Depositor, the Owner Trustee or the Depositor Trustee in its individual capacity except as provided in the Transaction Documents (it being understood that the Owner Trustee has no such obligation in its individual capacity), (ii) any direct or indirect holder of a beneficial ownership interest in the Issuer or the Depositor or (iii) any partner, owner, beneficiary, agent, officer, director, employee or agent of the Indenture Trustee, the Registrar, the REMIC Administrator the Paying Agent, the Administrator, the Servicer, the Sponsor, the Depositor, the Owner Trustee or the Depositor Trustee in its individual capacity, any direct or indirect holder of a beneficial ownership interest in the Issuer, the Owner Trustee, the Depositor Trustee, the Indenture Trustee, the Registrar, the REMIC Administrator or the Paying Agent. For all purposes of the Indenture, (x) in the performance of any duties or obligations of the Issuer thereunder, each of the Administrator and the Owner Trustee shall be subject to, and entitled to the benefits of, the Trust Agreement, (y) in the performance of any duties or obligations of the Depositor thereunder, each of the Depositor Trustee and the Administrator shall be subject to, and entitled to the benefits of, the Depositor Trust Agreement and (z) in the performance of any duties or obligations of the Indenture Trustee, REMIC Administrator, Registrar, or Paying Agent thereunder, each of the Indenture Trustee, REMIC Administrator, Registrar, and Paying Agent shall be subject to, and entitled to the benefits of, the Indenture.

The Indenture will be discharged (except with respect to certain continuing rights specified in the Indenture) in accordance with the provisions therein.

Modifications of and amendments to the Indenture may be made by the Issuer, the Paying Agent, the Registrar, the REMIC Administrator and the Indenture Trustee in accordance with the provisions of the Indenture.

Unless the certificate of authentication hereon has been executed by the Registrar, by manual signature, this Note shall not be entitled to any benefit under the Indenture or be valid for any purpose.

This Note is a “regular interest” in a “real estate mortgage investment conduit,” as those terms are defined, respectively, in Sections 860G(a)(1) and 860D of the Code. Each Holder of this Note, by acceptance hereof, agrees to treat, and take no action inconsistent with the treatment of, this Note in accordance with the preceding sentence for purposes of U.S. federal income taxes, state and local income and franchise taxes and other taxes imposed on or measured by income.

The registered Holder hereof, by its acceptance hereof agrees that it will look solely to the Trust Estate (to the extent of its rights therein) for payments hereunder.

This Note shall be construed in accordance with the internal laws of the State of New York applicable to agreements made and to be performed in said State other than its conflicts of law principles except for Section 5-1401 and 1402 of the General Obligations Law, and the obligations, rights and remedies of the Holder hereof shall be determined in accordance with such laws.

IN WITNESS WHEREOF, the Issuer has caused this instrument to be duly executed by its Authorized Officer, as of the date set forth below.

FIGRE TRUST 2025-HE5,
as Issuer

By: Wilmington Savings Fund Society, FSB,
not in its individual capacity but solely
as Owner Trustee

By: _____
Name:
Title:
Dated:

CERTIFICATE OF AUTHENTICATION

This is one of the Class F Notes referred to in the within mentioned Indenture.

The Bank of New York Mellon,
as Registrar

By: _____
Authorized Officer
Dated: _____

ASSIGNMENT

FOR VALUE RECEIVED, the undersigned hereby sell(s), assign(s) and transfer(s) unto

(please print or typewrite name and address including postal zip code of assignee)

the within Note and all rights thereunder and hereby authorize(s) the registration of transfer of such interest to assignee on the Register.

I (we) further direct the Registrar to issue a new Note of a like aggregate Denomination to the above named assignee and deliver such Note to the following address:

Dated:

Signature by or on behalf of Assignor

Signature Guaranteed

*17

PAYMENT INSTRUCTIONS

The Assignee should include the following for purposes of payment:

Payments shall, if permitted, be made by wire transfer or otherwise, in immediately available _____ funds, _____ to

_____ for the account of _____.

Payments made by check (such check to be made payable to _____) and all applicable statements and notices should be mailed to _____.

This information is provided by _____, the Assignee named above, or _____, as its agent.

* NOTICE: The signature to this assignment must correspond with the name of the registered owner as it appears on the face of the within Note in every particular, without alteration, enlargement or any change whatsoever. Such signature must, at the election of the Registrar, be guaranteed by an "eligible guarantor institution" meeting the requirements of the Registrar.

Exhibit A-6C

**FORM OF PERMANENT REGULATION S GLOBAL CLASS F NOTE
FIGRE TRUST 2025-HE5 MORTGAGE-BACKED NOTES, SERIES 2025-HE5**

Interest Rate: As set forth in the Indenture	Date of Indenture: August 28, 2025
Initial Note Amount: \$[•]	Closing Date: August 28, 2025
Minimum Denomination of this Note: \$150,000	Initial Payment Date: September 2025
Legal Final Maturity: Payment Date occurring in August 2055	Note No.: [•]
CUSIP: U3202RAF4	ISIN: USU3202RAF48
Issuer: FIGRE TRUST 2025-HE5, a Delaware statutory trust	Indenture Trustee: THE BANK OF NEW YORK MELLON

THIS NOTE IS A PERMANENT REGULATION S GLOBAL NOTE FOR PURPOSES OF REGULATION S UNDER THE UNITED STATES SECURITIES ACT OF 1933, AS AMENDED (THE “SECURITIES ACT”). NEITHER THIS PERMANENT REGULATION S GLOBAL NOTE NOR ANY INTEREST HEREIN MAY BE OFFERED, SOLD OR DELIVERED, EXCEPT AS PERMITTED UNDER THE INDENTURE REFERRED TO HEREIN.

UNLESS THIS NOTE IS PRESENTED BY AN AUTHORIZED REPRESENTATIVE OF THE DEPOSITORY TRUST COMPANY, A NEW YORK CORPORATION (“DTC”), TO THE REGISTRAR, THE INDENTURE TRUSTEE OR THEIR AGENT FOR REGISTRATION OF TRANSFER, EXCHANGE, OR PAYMENT, AND ANY NOTE ISSUED IS REGISTERED IN THE NAME OF CEDE & CO. OR IN SUCH OTHER NAME AS IS REQUESTED BY AN AUTHORIZED REPRESENTATIVE OF DTC (AND ANY PAYMENT IS MADE TO CEDE & CO. OR TO SUCH OTHER ENTITY AS IS REQUESTED BY AN AUTHORIZED REPRESENTATIVE OF DTC), ANY TRANSFER, PLEDGE, OR OTHER USE HEREOF FOR VALUE OR OTHERWISE BY OR TO ANY PERSON IS WRONGFUL INASMUCH AS THE REGISTERED OWNER HEREOF, CEDE & CO., HAS AN INTEREST HEREIN.

THIS NOTE HAS NOT BEEN REGISTERED OR QUALIFIED UNDER THE SECURITIES ACT, OR THE SECURITIES LAWS OF ANY STATE AND THE ISSUER IS NOT AND WILL NOT BE REGISTERED UNDER THE UNITED STATES INVESTMENT COMPANY ACT OF 1940, AS AMENDED (THE “INVESTMENT COMPANY ACT”). ANY RESALE, PLEDGE, TRANSFER OR OTHER DISPOSITION OF THIS NOTE OR ANY INTEREST HEREIN WITHOUT SUCH REGISTRATION OR QUALIFICATION MAY BE MADE ONLY IN A TRANSACTION WHICH DOES NOT REQUIRE SUCH REGISTRATION OR QUALIFICATION AND WHICH IS IN ACCORDANCE WITH THE PROVISIONS OF SECTION 4.02 OF THE INDENTURE REFERRED TO HEREIN.

THE HOLDER OF THIS NOTE BY ITS ACCEPTANCE HEREOF AGREES NOT TO OFFER, SELL OR OTHERWISE TRANSFER SUCH NOTE WITHIN THE UNITED STATES OR TO U.S. PERSONS (AS DEFINED IN REGULATION S UNDER THE SECURITIES ACT) PRIOR TO THE EXCHANGE DATE EXCEPT PURSUANT TO AN EXEMPTION FROM THE REGISTRATION REQUIREMENTS OF THE SECURITIES ACT.

BY ACQUIRING THIS CLASS F NOTE (OR ANY INTEREST HEREIN), EACH PURCHASER AND TRANSFEREE (AND, ITS FIDUCIARY, IF APPLICABLE) WILL BE DEEMED TO REPRESENT AND WARRANT THAT IT IS NOT ACQUIRING AND WILL NOT HOLD THIS NOTE (OR INTEREST HEREIN) WITH THE ASSETS OF A PLAN (AS DEFINED BELOW) THAT IS SUBJECT TO TITLE I OF THE EMPLOYEE RETIREMENT INCOME SECURITY ACT OF 1974, AS AMENDED (“ERISA”) OR SECTION 4975 OF THE INTERNAL REVENUE CODE OF 1986, AS AMENDED (THE “CODE”) OR THAT IS SUBJECT TO A LAW THAT IS SUBSTANTIALLY SIMILAR TO TITLE I OF ERISA OR SECTION 4975 OF THE CODE (“SIMILAR LAW”). FOR THESE PURPOSES, A “PLAN” MEANS AN “EMPLOYEE BENEFIT PLAN” AS

DEFINED IN SECTION 3(3) OF ERISA WHETHER OR NOT SUBJECT TO TITLE I OF ERISA, A “PLAN” AS DEFINED IN SECTION 4975 OF THE CODE, OR AN ENTITY OR ACCOUNT DEEMED TO HOLD PLAN ASSETS OF THE FOREGOING BY VIRTUE OF SUCH EMPLOYEE BENEFIT PLAN’S OR PLAN’S INVESTMENT IN THE ENTITY OR ACCOUNT.

THIS NOTE REPRESENTS A NON-RECOURSE OBLIGATION OF THE ISSUER AND WILL BE PAID SOLELY FROM THE COLLATERAL SECURING THIS NOTE. NEITHER THIS NOTE NOR THE COLLATERAL IS INSURED OR GUARANTEED BY ANY GOVERNMENTAL AGENCY OR INSTRUMENTALITY OR BY ANY OTHER PERSON.

PAYMENTS IN REDUCTION OF THE INITIAL NOTE AMOUNT OF THIS NOTE MAY BE MADE MONTHLY AS SET FORTH IN THE INDENTURE REFERRED TO HEREIN. ACCORDINGLY, THE OUTSTANDING NOTE AMOUNT HEREOF AT ANY TIME MAY BE LESS THAN THE AMOUNT SHOWN ABOVE.

This certifies that Cede & Co. is the registered owner (the “Holder”) of this Note which is one of the Notes (collectively, the “Notes”) issued by the Issuer referred to above pursuant to the indenture, dated August 28, 2025 (the “Indenture”), among, *inter alios*, the Issuer referred to above, THE BANK OF NEW YORK MELLON, as paying agent (the “Paying Agent”), registrar (the “Registrar”), REMIC administrator (the “REMIC Administrator”) and the Indenture Trustee referred to above, on behalf of the holders of the Notes (the “Noteholders”), and FIGURE LENDING LLC, as sponsor (the “Sponsor”), a summary of certain of the pertinent provisions of which is set forth hereafter. To the extent not defined herein, capitalized terms used herein have the respective meanings assigned in the Indenture. This Note is issued under and is subject to the terms, provisions and conditions of the Indenture, to which Indenture the Holder of this Note by virtue of the acceptance hereof assents and by which such holder is bound.

Pursuant to the terms of the Indenture, payments on the Notes will be made on the 25th day of each month, or the immediately following Business Day if the 25th day is not a Business Day (each, a “Payment Date”), commencing in September 2025. All payments made under the Indenture on this Note will be made by the Paying Agent to the Depository and the Depository shall be responsible for crediting the amount of such distribution to the accounts of its Depository Participants in accordance with its normal procedures.

The Notes are limited in right of payment to certain distributions on the Mortgage Loans and other amounts, all as more specifically set forth herein and in the Indenture. As provided in the Indenture, withdrawals from the Payment Account may be made from time to time for purposes other than, and, in certain cases, prior to, payments to Noteholders, such purposes including reimbursement of certain expenses incurred by the transaction parties.

Any payment to the Holder of this Note in reduction of the Denomination hereof is binding on such Holder and all future Holders of this Note and any Note issued upon the transfer hereof or in exchange herefor or in lieu hereof whether or not notation of such payment is made upon this Note.

The Notes are issuable in fully registered form only without coupons in minimum denominations specified in the Indenture. As provided in the Indenture and subject to certain limitations therein set forth, this Note is exchangeable for new Notes in authorized denominations evidencing the same aggregate Denomination, as requested by the Holder surrendering the same.

No transfer, sale, pledge or other disposition of this Note or interest herein shall be made unless that transfer, sale, pledge or other disposition is exempt from the registration and/or qualification requirements of the Securities Act and any applicable state securities laws, or is otherwise made in accordance with the Securities Act and such state securities laws. If a transfer of this Note is to be made without registration under the Securities Act, and a Responsible Officer of the Registrar has actual knowledge thereof, then the Registrar shall refuse to register such transfer unless it and the Indenture Trustee receive (and upon receipt, may conclusively rely upon) certain certificate(s) required pursuant to Section 4.02 of the Indenture (as to which, so long as this Note is a Book-Entry Note, the representations and agreements made therein will be deemed to have been made by the prospective transferor and/or the prospective transferee, as applicable). None of the Issuer, the Indenture Trustee, the Paying Agent, REMIC Administrator or the Registrar is obligated to register or qualify any Notes under the Securities Act or any other securities law or to take any action not otherwise required under the Indenture to permit the transfer of any Note or interest therein without registration or qualification. Any Noteholder desiring to effect a transfer of Notes or interests therein shall, and does hereby agree to, indemnify the Issuer, the Indenture Trustee, the Paying Agent and the Registrar against any liability that may result if the transfer is not so exempt or is not made in accordance with such federal and state laws.

As provided in the Indenture and subject to certain limitations therein set forth, the transfer of this Note is registrable in the Register upon surrender of this Note for registration of transfer at the applicable Corporate Trust Office of the Registrar, duly endorsed by, or accompanied by a written instrument of transfer in the form satisfactory to the Registrar and the Indenture Trustee duly executed by, the Holder hereof or his attorney duly authorized in writing, and thereupon one or more new Notes in authorized denominations evidencing the same aggregate Denomination will be issued to the designated transferee or transferees.

No service charge will be imposed for any registration of transfer or exchange of this Note, but the Indenture Trustee or the Registrar may require payment of a sum sufficient to cover any tax or other governmental charge that may be imposed in connection with any transfer or exchange of this Note.

The Issuer, the Indenture Trustee, the Paying Agent, the Registrar and any agent thereof may treat the Person in whose name this Note is registered as the owner hereof for all purposes, and none of the Issuer, the Indenture Trustee, the Paying Agent, the Registrar or any such agent shall be affected by notice to the contrary.

Each Noteholder, by acceptance of a Class F Note or a beneficial interest therein, as the case may be, covenants and agrees that no recourse may be taken, directly or indirectly, with respect to the obligations of the Issuer, the Owner Trustee, the Depositor, the Depositor Trustee, the Indenture Trustee, the Registrar, the REMIC Administrator or the Paying Agent on the Notes or under the Indenture or any certificate or other writing delivered in connection herewith or therewith, against (i) the Indenture Trustee, the Registrar, the REMIC Administrator the Paying

Agent, the Administrator, the Servicer, the Sponsor, the Depositor, the Owner Trustee or the Depositor Trustee in its individual capacity except as provided in the Transaction Documents (it being understood that the Owner Trustee has no such obligation in its individual capacity), (ii) any direct or indirect holder of a beneficial ownership interest in the Issuer or the Depositor or (iii) any partner, owner, beneficiary, agent, officer, director, employee or agent of the Indenture Trustee, the Registrar, the REMIC Administrator the Paying Agent, the Administrator, the Servicer, the Sponsor, the Depositor, the Owner Trustee or the Depositor Trustee in its individual capacity, any direct or indirect holder of a beneficial ownership interest in the Issuer, the Owner Trustee, the Depositor Trustee, the Indenture Trustee, the Registrar, the REMIC Administrator or the Paying Agent. For all purposes of the Indenture, (x) in the performance of any duties or obligations of the Issuer thereunder, each of the Administrator and the Owner Trustee shall be subject to, and entitled to the benefits of, the Trust Agreement, (y) in the performance of any duties or obligations of the Depositor thereunder, each of the Depositor Trustee and the Administrator shall be subject to, and entitled to the benefits of, the Depositor Trust Agreement and (z) in the performance of any duties or obligations of the Indenture Trustee, REMIC Administrator, Registrar, or Paying Agent thereunder, each of the Indenture Trustee, REMIC Administrator, Registrar, and Paying Agent shall be subject to, and entitled to the benefits of, the Indenture.

The Indenture will be discharged (except with respect to certain continuing rights specified in the Indenture) in accordance with the provisions therein.

Modifications of and amendments to the Indenture may be made by the Issuer, the Paying Agent, the Registrar, the REMIC Administrator and the Indenture Trustee in accordance with the provisions of the Indenture.

Unless the certificate of authentication hereon has been executed by the Registrar, by manual signature, this Note shall not be entitled to any benefit under the Indenture or be valid for any purpose.

This Note is a “regular interest” in a “real estate mortgage investment conduit,” as those terms are defined, respectively, in Sections 860G(a)(1) and 860D of the Code. Each Holder of this Note, by acceptance hereof, agrees to treat, and take no action inconsistent with the treatment of, this Note in accordance with the preceding sentence for purposes of U.S. federal income taxes, state and local income and franchise taxes and other taxes imposed on or measured by income.

The registered Holder hereof, by its acceptance hereof agrees that it will look solely to the Trust Estate (to the extent of its rights therein) for payments hereunder.

This Note shall be construed in accordance with the internal laws of the State of New York applicable to agreements made and to be performed in said State other than its conflicts of law principles except for Section 5-1401 and 1402 of the General Obligations Law, and the obligations, rights and remedies of the Holder hereof shall be determined in accordance with such laws.

IN WITNESS WHEREOF, the Issuer has caused this instrument to be duly executed by its Authorized Officer, as of the date set forth below.

FIGRE TRUST 2025-HE5,
as Issuer

By: Wilmington Savings Fund Society, FSB,
not in its individual capacity but solely
as Owner Trustee

By: _____
Name:
Title:
Dated:

CERTIFICATE OF AUTHENTICATION

This is one of the Class F Notes referred to in the within mentioned Indenture.

The Bank of New York Mellon,
as Registrar

By: _____
Authorized Officer
Dated: _____

ASSIGNMENT

FOR VALUE RECEIVED, the undersigned hereby sell(s), assign(s) and transfer(s) unto

(please print or typewrite name and address including postal zip code of assignee)

the within Note and all rights thereunder and hereby authorize(s) the registration of transfer of such interest to assignee on the Register.

I (we) further direct the Registrar to issue a new Note of a like aggregate Denomination to the above named assignee and deliver such Note to the following address:

Dated:

Signature by or on behalf of Assignor

Signature Guaranteed

*18

PAYMENT INSTRUCTIONS

The Assignee should include the following for purposes of payment:

Payments shall, if permitted, be made by wire transfer or otherwise, in immediately available _____ funds, _____ to

_____ for the account of _____.

Payments made by check (such check to be made payable to _____) and all applicable statements and notices should be mailed to _____.

This information is provided by _____, the Assignee named above, or _____, as its agent.

* NOTICE: The signature to this assignment must correspond with the name of the registered owner as it appears on the face of the within Note in every particular, without alteration, enlargement or any change whatsoever. Such signature must, at the election of the Registrar, be guaranteed by an "eligible guarantor institution" meeting the requirements of the Registrar.

Exhibit A-7A

FORM OF RULE 144A GLOBAL CLASS G NOTE

FIGRE TRUST 2025-HE5 MORTGAGE-BACKED NOTES, SERIES 2025-HE5

Interest Rate: As set forth in the Indenture	Date of Indenture: August 28, 2025
Initial Note Amount: \$[●]	Closing Date: August 28, 2025
Minimum Denomination of this Note: \$150,000	Initial Payment Date: September 2025
Legal Final Maturity: Payment Date occurring in August 2055	Note No.: [●]
CUSIP: 31684MAG4	ISIN: US31684MAG42
Issuer: FIGRE TRUST 2025-HE5, a Delaware statutory trust	Indenture Trustee: THE BANK OF NEW YORK MELLON

UNLESS THIS NOTE IS PRESENTED BY AN AUTHORIZED REPRESENTATIVE OF THE DEPOSITORY TRUST COMPANY, A NEW YORK CORPORATION (“DTC”), TO THE REGISTRAR, THE INDENTURE TRUSTEE OR THEIR AGENT FOR REGISTRATION OF TRANSFER, EXCHANGE, OR PAYMENT, AND ANY NOTE ISSUED IS REGISTERED IN THE NAME OF CEDE & CO. OR IN SUCH OTHER NAME AS IS REQUESTED BY AN AUTHORIZED REPRESENTATIVE OF DTC (AND ANY PAYMENT IS MADE TO CEDE & CO. OR TO SUCH OTHER ENTITY AS IS REQUESTED BY AN AUTHORIZED REPRESENTATIVE OF DTC), ANY TRANSFER, PLEDGE, OR OTHER USE HEREOF FOR VALUE OR OTHERWISE BY OR TO ANY PERSON IS WRONGFUL INASMUCH AS THE REGISTERED OWNER HEREOF, CEDE & CO., HAS AN INTEREST HEREIN.

THIS NOTE HAS NOT BEEN REGISTERED OR QUALIFIED UNDER THE SECURITIES ACT OF 1933, AS AMENDED (THE “SECURITIES ACT”), OR THE SECURITIES LAWS OF ANY STATE AND THE ISSUER IS NOT AND WILL NOT BE REGISTERED UNDER THE UNITED STATES INVESTMENT COMPANY ACT OF 1940, AS AMENDED (THE “INVESTMENT COMPANY ACT”). ANY RESALE, PLEDGE, TRANSFER OR OTHER DISPOSITION OF THIS NOTE OR ANY INTEREST HEREIN WITHOUT SUCH REGISTRATION OR QUALIFICATION MAY BE MADE ONLY IN A TRANSACTION WHICH DOES NOT REQUIRE SUCH REGISTRATION OR QUALIFICATION AND WHICH IS IN ACCORDANCE WITH THE PROVISIONS OF SECTION 4.02 OF THE INDENTURE REFERRED TO HEREIN.

THE INITIAL INVESTOR IN THIS NOTE, AND EACH SUBSEQUENT PURCHASER OF THIS NOTE, BY PURCHASING THIS NOTE OR AN INTEREST HEREIN, IS DEEMED TO HAVE AGREED TO COMPLY WITH CERTAIN TRANSFER REQUIREMENTS SET FORTH IN THE INDENTURE REFERRED TO HEREIN.

BY ACQUIRING THIS CLASS G NOTE (OR ANY INTEREST HEREIN), EACH PURCHASER AND TRANSFEREE (AND, ITS FIDUCIARY, IF APPLICABLE) WILL BE DEEMED TO REPRESENT AND WARRANT THAT IT IS NOT ACQUIRING AND WILL NOT HOLD THIS NOTE (OR INTEREST HEREIN) WITH THE ASSETS OF A PLAN (AS DEFINED BELOW) THAT IS SUBJECT TO TITLE I OF THE EMPLOYEE RETIREMENT INCOME SECURITY ACT OF 1974, AS AMENDED (“ERISA”) OR SECTION 4975 OF THE INTERNAL REVENUE CODE OF 1986, AS AMENDED (THE “CODE”) OR THAT IS SUBJECT TO A LAW THAT IS SUBSTANTIALLY SIMILAR TO TITLE I OF ERISA OR SECTION 4975 OF THE CODE (“SIMILAR LAW”). FOR THESE PURPOSES, A “PLAN” MEANS AN “EMPLOYEE BENEFIT PLAN” AS DEFINED IN SECTION 3(3) OF ERISA WHETHER OR NOT SUBJECT TO TITLE I OF ERISA, A “PLAN” AS DEFINED IN SECTION 4975 OF THE CODE, OR AN ENTITY OR ACCOUNT DEEMED TO HOLD PLAN ASSETS OF THE FOREGOING BY VIRTUE OF SUCH EMPLOYEE BENEFIT PLAN’S OR PLAN’S INVESTMENT IN THE ENTITY OR ACCOUNT.

THIS NOTE REPRESENTS A NON-RECOURSE OBLIGATION OF THE ISSUER AND WILL BE PAID SOLELY FROM THE COLLATERAL SECURING THIS NOTE. NEITHER THIS NOTE NOR THE COLLATERAL IS INSURED OR GUARANTEED BY

ANY GOVERNMENTAL AGENCY OR INSTRUMENTALITY OR BY ANY OTHER PERSON.

PAYMENTS IN REDUCTION OF THE INITIAL NOTE AMOUNT OF THIS NOTE MAY BE MADE MONTHLY AS SET FORTH IN THE INDENTURE REFERRED TO HEREIN. ACCORDINGLY, THE OUTSTANDING NOTE AMOUNT HEREOF AT ANY TIME MAY BE LESS THAN THE AMOUNT SHOWN ABOVE.

This certifies that Cede & Co. is the registered owner (the “Holder”) of this Note which is one of the Notes (collectively, the “Notes”) issued by the Issuer referred to above pursuant to the indenture, dated August 28, 2025 (the “Indenture”), among, *inter alios*, the Issuer referred to above, THE BANK OF NEW YORK MELLON, as paying agent (the “Paying Agent”), registrar (the “Registrar”), REMIC administrator (the “REMIC Administrator”) and the Indenture Trustee referred to above, on behalf of the holders of the Notes (the “Noteholders”), and FIGURE LENDING LLC, as sponsor (the “Sponsor”), a summary of certain of the pertinent provisions of which is set forth hereafter. To the extent not defined herein, capitalized terms used herein have the respective meanings assigned in the Indenture. This Note is issued under and is subject to the terms, provisions and conditions of the Indenture, to which Indenture the Holder of this Note by virtue of the acceptance hereof assents and by which such holder is bound.

Pursuant to the terms of the Indenture, payments on the Notes will be made on the 25th day of each month, or the immediately following Business Day if the 25th day is not a Business Day (each, a “Payment Date”), commencing in September 2025. All payments made under the Indenture on this Note will be made by the Paying Agent to the Depository and the Depository shall be responsible for crediting the amount of such distribution to the accounts of its Depository Participants in accordance with its normal procedures.

The Notes are limited in right of payment to certain distributions on the Mortgage Loans and other amounts, all as more specifically set forth herein and in the Indenture. As provided in the Indenture, withdrawals from the Payment Account may be made from time to time for purposes other than, and, in certain cases, prior to, payments to Noteholders, such purposes including reimbursement of certain expenses incurred by the transaction parties.

Any payment to the Holder of this Note in reduction of the Denomination hereof is binding on such Holder and all future Holders of this Note and any Note issued upon the transfer hereof or in exchange herefor or in lieu hereof whether or not notation of such payment is made upon this Note.

The Notes are issuable in fully registered form only without coupons in minimum denominations specified in the Indenture. As provided in the Indenture and subject to certain limitations therein set forth, this Note is exchangeable for new Notes in authorized denominations evidencing the same aggregate Denomination, as requested by the Holder surrendering the same.

No transfer, sale, pledge or other disposition of this Note or interest herein shall be made unless that transfer, sale, pledge or other disposition is exempt from the registration and/or qualification requirements of the Securities Act and any applicable state securities laws, or is otherwise made in accordance with the Securities Act and such state securities laws. If a transfer

of this Note is to be made without registration under the Securities Act, and a Responsible Officer of the Registrar has actual knowledge thereof, then the Registrar shall refuse to register such transfer unless it and the Indenture Trustee receive (and upon receipt, may conclusively rely upon) certain certificate(s) required pursuant to Section 4.02 of the Indenture (as to which, so long as this Note is a Book-Entry Note, the representations and agreements made therein will be deemed to have been made by the prospective transferor and/or the prospective transferee, as applicable). None of the Issuer, the Indenture Trustee, the Paying Agent, REMIC Administrator or the Registrar is obligated to register or qualify any Notes under the Securities Act or any other securities law or to take any action not otherwise required under the Indenture to permit the transfer of any Note or interest therein without registration or qualification. Any Noteholder desiring to effect a transfer of Notes or interests therein shall, and does hereby agree to, indemnify the Issuer, the Indenture Trustee, the Paying Agent and the Registrar against any liability that may result if the transfer is not so exempt or is not made in accordance with such federal and state laws.

As provided in the Indenture and subject to certain limitations therein set forth, the transfer of this Note is registrable in the Register upon surrender of this Note for registration of transfer at the applicable Corporate Trust Office of the Registrar, duly endorsed by, or accompanied by a written instrument of transfer in the form satisfactory to the Registrar and the Indenture Trustee duly executed by, the Holder hereof or his attorney duly authorized in writing, and thereupon one or more new Notes in authorized denominations evidencing the same aggregate Denomination will be issued to the designated transferee or transferees.

No service charge will be imposed for any registration of transfer or exchange of this Note, but the Indenture Trustee or the Registrar may require payment of a sum sufficient to cover any tax or other governmental charge that may be imposed in connection with any transfer or exchange of this Note.

The Issuer, the Indenture Trustee, the Paying Agent, the Registrar and any agent thereof may treat the Person in whose name this Note is registered as the owner hereof for all purposes, and none of the Issuer, the Indenture Trustee, the Paying Agent, the Registrar or any such agent shall be affected by notice to the contrary.

Each Noteholder, by acceptance of a Class G Note or a beneficial interest therein, as the case may be, covenants and agrees that no recourse may be taken, directly or indirectly, with respect to the obligations of the Issuer, the Owner Trustee, the Depositor, the Depositor Trustee, the Indenture Trustee, the Registrar, the REMIC Administrator or the Paying Agent on the Notes or under the Indenture or any certificate or other writing delivered in connection herewith or therewith, against (i) the Indenture Trustee, the Registrar, the REMIC Administrator the Paying Agent, the Administrator, the Servicer, the Sponsor, the Depositor, the Owner Trustee or the Depositor Trustee in its individual capacity except as provided in the Transaction Documents (it being understood that the Owner Trustee has no such obligation in its individual capacity), (ii) any direct or indirect holder of a beneficial ownership interest in the Issuer or the Depositor or (iii) any partner, owner, beneficiary, agent, officer, director, employee or agent of the Indenture Trustee, the Registrar, the REMIC Administrator the Paying Agent, the Administrator, the Servicer, the Sponsor, the Depositor, the Owner Trustee or the Depositor Trustee in its individual capacity, any direct or indirect holder of a beneficial ownership interest in the Issuer, the Owner Trustee, the Depositor Trustee, the Indenture Trustee, the Registrar, the REMIC Administrator or the Paying

Agent. For all purposes of the Indenture, (x) in the performance of any duties or obligations of the Issuer thereunder, each of the Administrator and the Owner Trustee shall be subject to, and entitled to the benefits of, the Trust Agreement, (y) in the performance of any duties or obligations of the Depositor thereunder, each of the Depositor Trustee and the Administrator shall be subject to, and entitled to the benefits of, the Depositor Trust Agreement and (z) in the performance of any duties or obligations of the Indenture Trustee, REMIC Administrator, Registrar, or Paying Agent thereunder, each of the Indenture Trustee, REMIC Administrator, Registrar, and Paying Agent shall be subject to, and entitled to the benefits of, the Indenture.

The Indenture will be discharged (except with respect to certain continuing rights specified in the Indenture) in accordance with the provisions therein.

Modifications of and amendments to the Indenture may be made by the Issuer, the Paying Agent, the Registrar, the REMIC Administrator and the Indenture Trustee in accordance with the provisions of the Indenture.

Unless the certificate of authentication hereon has been executed by the Registrar, by manual signature, this Note shall not be entitled to any benefit under the Indenture or be valid for any purpose.

This Note is a “regular interest” in a “real estate mortgage investment conduit,” as those terms are defined, respectively, in Sections 860G(a)(1) and 860D of the Code. Each Holder of this Note, by acceptance hereof, agrees to treat, and take no action inconsistent with the treatment of, this Note in accordance with the preceding sentence for purposes of U.S. federal income taxes, state and local income and franchise taxes and other taxes imposed on or measured by income.

The registered Holder hereof, by its acceptance hereof agrees that it will look solely to the Trust Estate (to the extent of its rights therein) for payments hereunder.

This Note shall be construed in accordance with the internal laws of the State of New York applicable to agreements made and to be performed in said State other than its conflicts of law principles except for Section 5-1401 and 1402 of the General Obligations Law, and the obligations, rights and remedies of the Holder hereof shall be determined in accordance with such laws.

IN WITNESS WHEREOF, the Issuer has caused this instrument to be duly executed by its Authorized Officer, as of the date set forth below.

FIGRE TRUST 2025-HE5,
as Issuer

By: Wilmington Savings Fund Society, FSB,
not in its individual capacity but solely
as Owner Trustee

By: _____
Name:
Title:
Dated:

CERTIFICATE OF AUTHENTICATION

This is one of the Class G Notes referred to in the within mentioned Indenture.

The Bank of New York Mellon,
as Registrar

By: _____
Authorized Officer
Dated: _____

ASSIGNMENT

FOR VALUE RECEIVED, the undersigned hereby sell(s), assign(s) and transfer(s) unto

(please print or typewrite name and address including postal zip code of assignee)

the within Note and all rights thereunder and hereby authorize(s) the registration of transfer of such interest to assignee on the Register.

I (we) further direct the Registrar to issue a new Note of a like aggregate Denomination to the above named assignee and deliver such Note to the following address:

Dated:

Signature by or on behalf of Assignor

Signature Guaranteed

*19

PAYMENT INSTRUCTIONS

The Assignee should include the following for purposes of payment:

Payments shall, if permitted, be made by wire transfer or otherwise, in immediately available _____ funds, _____ to

_____ for the account of _____.

Payments made by check (such check to be made payable to _____) and all applicable statements and notices should be mailed to _____.

This information is provided by _____, the Assignee named above, or _____, as its agent.

* NOTICE: The signature to this assignment must correspond with the name of the registered owner as it appears on the face of the within Note in every particular, without alteration, enlargement or any change whatsoever. Such signature must, at the election of the Registrar, be guaranteed by an "eligible guarantor institution" meeting the requirements of the Registrar.

Exhibit A-7B

**FORM OF TEMPORARY REGULATION S GLOBAL CLASS G NOTE
FIGRE TRUST 2025-HE5 MORTGAGE-BACKED NOTES, SERIES 2025-HE5**

Interest Rate: As set forth in the Indenture	Date of Indenture: August 28, 2025
Initial Note Amount: \$[●]	Closing Date: August 28, 2025
Minimum Denomination of this Note: \$150,000	Initial Payment Date: September 2025
Legal Final Maturity: Payment Date occurring in August 2055	Note No.: [●]
CUSIP: U3202RAG2	ISIN: USU3202RAG21
Issuer: FIGRE TRUST 2025-HE5, a Delaware statutory trust	Indenture Trustee: THE BANK OF NEW YORK MELLON

THIS NOTE IS A TEMPORARY REGULATION S GLOBAL NOTE FOR PURPOSES OF REGULATION S UNDER THE UNITED STATES SECURITIES ACT OF 1933, AS AMENDED (THE “SECURITIES ACT”). NEITHER THIS TEMPORARY REGULATION S GLOBAL NOTE NOR ANY INTEREST HEREIN MAY BE OFFERED, SOLD OR DELIVERED, EXCEPT AS PERMITTED UNDER THE INDENTURE REFERRED TO HEREIN.

UNLESS THIS NOTE IS PRESENTED BY AN AUTHORIZED REPRESENTATIVE OF THE DEPOSITORY TRUST COMPANY, A NEW YORK CORPORATION (“DTC”), TO THE REGISTRAR, THE INDENTURE TRUSTEE OR THEIR AGENT FOR REGISTRATION OF TRANSFER, EXCHANGE, OR PAYMENT, AND ANY NOTE ISSUED IS REGISTERED IN THE NAME OF CEDE & CO. OR IN SUCH OTHER NAME AS IS REQUESTED BY AN AUTHORIZED REPRESENTATIVE OF DTC (AND ANY PAYMENT IS MADE TO CEDE & CO. OR TO SUCH OTHER ENTITY AS IS REQUESTED BY AN AUTHORIZED REPRESENTATIVE OF DTC), ANY TRANSFER, PLEDGE, OR OTHER USE HEREOF FOR VALUE OR OTHERWISE BY OR TO ANY PERSON IS WRONGFUL INASMUCH AS THE REGISTERED OWNER HEREOF, CEDE & CO., HAS AN INTEREST HEREIN.

THIS NOTE HAS NOT BEEN REGISTERED OR QUALIFIED UNDER THE SECURITIES ACT, OR THE SECURITIES LAWS OF ANY STATE AND THE ISSUER IS NOT AND WILL NOT BE REGISTERED UNDER THE UNITED STATES INVESTMENT COMPANY ACT OF 1940, AS AMENDED (THE “INVESTMENT COMPANY ACT”). ANY RESALE, PLEDGE, TRANSFER OR OTHER DISPOSITION OF THIS NOTE OR ANY INTEREST HEREIN WITHOUT SUCH REGISTRATION OR QUALIFICATION MAY BE MADE ONLY IN A TRANSACTION WHICH DOES NOT REQUIRE SUCH REGISTRATION OR QUALIFICATION AND WHICH IS IN ACCORDANCE WITH THE PROVISIONS OF SECTION 4.02 OF THE INDENTURE REFERRED TO HEREIN.

THE HOLDER OF THIS NOTE BY ITS ACCEPTANCE HEREOF AGREES NOT TO OFFER, SELL OR OTHERWISE TRANSFER SUCH NOTE WITHIN THE UNITED STATES OR TO U.S. PERSONS (AS DEFINED IN REGULATION S UNDER THE SECURITIES ACT) PRIOR TO THE EXCHANGE DATE EXCEPT PURSUANT TO AN EXEMPTION FROM THE REGISTRATION REQUIREMENTS OF THE SECURITIES ACT.

BY ACQUIRING THIS CLASS G NOTE (OR ANY INTEREST HEREIN), EACH PURCHASER AND TRANSFEREE (AND, ITS FIDUCIARY, IF APPLICABLE) WILL BE DEEMED TO REPRESENT AND WARRANT THAT IT IS NOT ACQUIRING AND WILL NOT HOLD THIS NOTE (OR INTEREST HEREIN) WITH THE ASSETS OF A PLAN (AS DEFINED BELOW) THAT IS SUBJECT TO TITLE I OF THE EMPLOYEE RETIREMENT INCOME SECURITY ACT OF 1974, AS AMENDED (“ERISA”) OR SECTION 4975 OF THE INTERNAL REVENUE CODE OF 1986, AS AMENDED (THE “CODE”) OR THAT IS SUBJECT TO A LAW THAT IS SUBSTANTIALLY SIMILAR TO TITLE I OF ERISA OR SECTION 4975 OF THE CODE (“SIMILAR LAW”). FOR THESE PURPOSES, A “PLAN” MEANS AN “EMPLOYEE BENEFIT PLAN” AS

DEFINED IN SECTION 3(3) OF ERISA WHETHER OR NOT SUBJECT TO TITLE I OF ERISA, A “PLAN” AS DEFINED IN SECTION 4975 OF THE CODE, OR AN ENTITY OR ACCOUNT DEEMED TO HOLD PLAN ASSETS OF THE FOREGOING BY VIRTUE OF SUCH EMPLOYEE BENEFIT PLAN’S OR PLAN’S INVESTMENT IN THE ENTITY OR ACCOUNT.

THIS NOTE REPRESENTS A NON-RECOURSE OBLIGATION OF THE ISSUER AND WILL BE PAID SOLELY FROM THE COLLATERAL SECURING THIS NOTE. NEITHER THIS NOTE NOR THE COLLATERAL IS INSURED OR GUARANTEED BY ANY GOVERNMENTAL AGENCY OR INSTRUMENTALITY OR BY ANY OTHER PERSON.

PAYMENTS IN REDUCTION OF THE INITIAL NOTE AMOUNT OF THIS NOTE MAY BE MADE MONTHLY AS SET FORTH IN THE INDENTURE REFERRED TO HEREIN. ACCORDINGLY, THE OUTSTANDING NOTE AMOUNT HEREOF AT ANY TIME MAY BE LESS THAN THE AMOUNT SHOWN ABOVE.

This certifies that Cede & Co. is the registered owner (the “Holder”) of this Note which is one of the Notes (collectively, the “Notes”) issued by the Issuer referred to above pursuant to the indenture, dated August 28, 2025 (the “Indenture”), among, *inter alios*, the Issuer referred to above, THE BANK OF NEW YORK MELLON, as paying agent (the “Paying Agent”), registrar (the “Registrar”), REMIC administrator (the “REMIC Administrator”) and the Indenture Trustee referred to above, on behalf of the holders of the Notes (the “Noteholders”), and FIGURE LENDING LLC, as sponsor (the “Sponsor”), a summary of certain of the pertinent provisions of which is set forth hereafter. To the extent not defined herein, capitalized terms used herein have the respective meanings assigned in the Indenture. This Note is issued under and is subject to the terms, provisions and conditions of the Indenture, to which Indenture the Holder of this Note by virtue of the acceptance hereof assents and by which such holder is bound.

Pursuant to the terms of the Indenture, payments on the Notes will be made on the 25th day of each month, or the immediately following Business Day if the 25th day is not a Business Day (each, a “Payment Date”), commencing in September 2025. All payments made under the Indenture on this Note will be made by the Paying Agent to the Depository and the Depository shall be responsible for crediting the amount of such distribution to the accounts of its Depository Participants in accordance with its normal procedures.

The Notes are limited in right of payment to certain distributions on the Mortgage Loans and other amounts, all as more specifically set forth herein and in the Indenture. As provided in the Indenture, withdrawals from the Payment Account may be made from time to time for purposes other than, and, in certain cases, prior to, payments to Noteholders, such purposes including reimbursement of certain expenses incurred by the transaction parties.

Any payment to the Holder of this Note in reduction of the Denomination hereof is binding on such Holder and all future Holders of this Note and any Note issued upon the transfer hereof or in exchange herefor or in lieu hereof whether or not notation of such payment is made upon this Note.

The Notes are issuable in fully registered form only without coupons in minimum denominations specified in the Indenture. As provided in the Indenture and subject to certain limitations therein set forth, this Note is exchangeable for new Notes in authorized denominations evidencing the same aggregate Denomination, as requested by the Holder surrendering the same.

No transfer, sale, pledge or other disposition of this Note or interest herein shall be made unless that transfer, sale, pledge or other disposition is exempt from the registration and/or qualification requirements of the Securities Act and any applicable state securities laws, or is otherwise made in accordance with the Securities Act and such state securities laws. If a transfer of this Note is to be made without registration under the Securities Act, and a Responsible Officer of the Registrar has actual knowledge thereof, then the Registrar shall refuse to register such transfer unless it and the Indenture Trustee receive (and upon receipt, may conclusively rely upon) certain certificate(s) required pursuant to Section 4.02 of the Indenture (as to which, so long as this Note is a Book-Entry Note, the representations and agreements made therein will be deemed to have been made by the prospective transferor and/or the prospective transferee, as applicable). None of the Issuer, the Indenture Trustee, the Paying Agent, REMIC Administrator or the Registrar is obligated to register or qualify any Notes under the Securities Act or any other securities law or to take any action not otherwise required under the Indenture to permit the transfer of any Note or interest therein without registration or qualification. Any Noteholder desiring to effect a transfer of Notes or interests therein shall, and does hereby agree to, indemnify the Issuer, the Indenture Trustee, the Paying Agent and the Registrar against any liability that may result if the transfer is not so exempt or is not made in accordance with such federal and state laws.

As provided in the Indenture and subject to certain limitations therein set forth, the transfer of this Note is registrable in the Register upon surrender of this Note for registration of transfer at the applicable Corporate Trust Office of the Registrar, duly endorsed by, or accompanied by a written instrument of transfer in the form satisfactory to the Registrar and the Indenture Trustee duly executed by, the Holder hereof or his attorney duly authorized in writing, and thereupon one or more new Notes in authorized denominations evidencing the same aggregate Denomination will be issued to the designated transferee or transferees.

No service charge will be imposed for any registration of transfer or exchange of this Note, but the Indenture Trustee or the Registrar may require payment of a sum sufficient to cover any tax or other governmental charge that may be imposed in connection with any transfer or exchange of this Note.

The Issuer, the Indenture Trustee, the Paying Agent, the Registrar and any agent thereof may treat the Person in whose name this Note is registered as the owner hereof for all purposes, and none of the Issuer, the Indenture Trustee, the Paying Agent, the Registrar or any such agent shall be affected by notice to the contrary.

Each Noteholder, by acceptance of a Class G Note or a beneficial interest therein, as the case may be, covenants and agrees that no recourse may be taken, directly or indirectly, with respect to the obligations of the Issuer, the Owner Trustee, the Depositor, the Depositor Trustee, the Indenture Trustee, the Registrar, the REMIC Administrator or the Paying Agent on the Notes or under the Indenture or any certificate or other writing delivered in connection herewith or therewith, against (i) the Indenture Trustee, the Registrar, the REMIC Administrator the Paying

Agent, the Administrator, the Servicer, the Sponsor, the Depositor, the Owner Trustee or the Depositor Trustee in its individual capacity except as provided in the Transaction Documents (it being understood that the Owner Trustee has no such obligation in its individual capacity), (ii) any direct or indirect holder of a beneficial ownership interest in the Issuer or the Depositor or (iii) any partner, owner, beneficiary, agent, officer, director, employee or agent of the Indenture Trustee, the Registrar, the REMIC Administrator the Paying Agent, the Administrator, the Servicer, the Sponsor, the Depositor, the Owner Trustee or the Depositor Trustee in its individual capacity, any direct or indirect holder of a beneficial ownership interest in the Issuer, the Owner Trustee, the Depositor Trustee, the Indenture Trustee, the Registrar, the REMIC Administrator or the Paying Agent. For all purposes of the Indenture, (x) in the performance of any duties or obligations of the Issuer thereunder, each of the Administrator and the Owner Trustee shall be subject to, and entitled to the benefits of, the Trust Agreement, (y) in the performance of any duties or obligations of the Depositor thereunder, each of the Depositor Trustee and the Administrator shall be subject to, and entitled to the benefits of, the Depositor Trust Agreement and (z) in the performance of any duties or obligations of the Indenture Trustee, REMIC Administrator, Registrar, or Paying Agent thereunder, each of the Indenture Trustee, REMIC Administrator, Registrar, and Paying Agent shall be subject to, and entitled to the benefits of, the Indenture.

The Indenture will be discharged (except with respect to certain continuing rights specified in the Indenture) in accordance with the provisions therein.

Modifications of and amendments to the Indenture may be made by the Issuer, the Paying Agent, the Registrar, the REMIC Administrator and the Indenture Trustee in accordance with the provisions of the Indenture.

Unless the certificate of authentication hereon has been executed by the Registrar, by manual signature, this Note shall not be entitled to any benefit under the Indenture or be valid for any purpose.

This Note is a “regular interest” in a “real estate mortgage investment conduit,” as those terms are defined, respectively, in Sections 860G(a)(1) and 860D of the Code. Each Holder of this Note, by acceptance hereof, agrees to treat, and take no action inconsistent with the treatment of, this Note in accordance with the preceding sentence for purposes of U.S. federal income taxes, state and local income and franchise taxes and other taxes imposed on or measured by income.

The registered Holder hereof, by its acceptance hereof agrees that it will look solely to the Trust Estate (to the extent of its rights therein) for payments hereunder.

This Note shall be construed in accordance with the internal laws of the State of New York applicable to agreements made and to be performed in said State other than its conflicts of law principles except for Section 5-1401 and 1402 of the General Obligations Law, and the obligations, rights and remedies of the Holder hereof shall be determined in accordance with such laws.

IN WITNESS WHEREOF, the Issuer has caused this instrument to be duly executed by its Authorized Officer, as of the date set forth below.

FIGRE TRUST 2025-HE5,
as Issuer

By: Wilmington Savings Fund Society, FSB,
not in its individual capacity but solely
as Owner Trustee

By: _____
Name:
Title:
Dated:

CERTIFICATE OF AUTHENTICATION

This is one of the Class G Notes referred to in the within mentioned Indenture.

The Bank of New York Mellon,
as Registrar

By: _____
Authorized Officer
Dated: _____

ASSIGNMENT

FOR VALUE RECEIVED, the undersigned hereby sell(s), assign(s) and transfer(s) unto

(please print or typewrite name and address including postal zip code of assignee)

the within Note and all rights thereunder and hereby authorize(s) the registration of transfer of such interest to assignee on the Register.

I (we) further direct the Registrar to issue a new Note of a like aggregate Denomination to the above named assignee and deliver such Note to the following address:

Dated:

Signature by or on behalf of Assignor

Signature Guaranteed

*20

PAYMENT INSTRUCTIONS

The Assignee should include the following for purposes of payment:

Payments shall, if permitted, be made by wire transfer or otherwise, in immediately available _____ funds, _____ to

_____ for the account of _____.

Payments made by check (such check to be made payable to _____) and all applicable statements and notices should be mailed to _____.

This information is provided by _____, the Assignee named above, or _____, as its agent.

* NOTICE: The signature to this assignment must correspond with the name of the registered owner as it appears on the face of the within Note in every particular, without alteration, enlargement or any change whatsoever. Such signature must, at the election of the Registrar, be guaranteed by an "eligible guarantor institution" meeting the requirements of the Registrar.

Exhibit A-7C

**FORM OF PERMANENT REGULATION S GLOBAL CLASS G NOTE
FIGRE TRUST 2025-HE5 MORTGAGE-BACKED NOTES, SERIES 2025-HE5**

Interest Rate: As set forth in the Indenture	Date of Indenture: August 28, 2025
Initial Note Amount: \$[●]	Closing Date: August 28, 2025
Minimum Denomination of this Note: \$150,000	Initial Payment Date: September 2025
Legal Final Maturity: Payment Date occurring in August 2055	Note No.: [●]
CUSIP: U3202RAG2	ISIN: USU3202RAG21
Issuer: FIGRE TRUST 2025-HE5, a Delaware statutory trust	Indenture Trustee: THE BANK OF NEW YORK MELLON

THIS NOTE IS A PERMANENT REGULATION S GLOBAL NOTE FOR PURPOSES OF REGULATION S UNDER THE UNITED STATES SECURITIES ACT OF 1933, AS AMENDED (THE “SECURITIES ACT”). NEITHER THIS PERMANENT REGULATION S GLOBAL NOTE NOR ANY INTEREST HEREIN MAY BE OFFERED, SOLD OR DELIVERED, EXCEPT AS PERMITTED UNDER THE INDENTURE REFERRED TO HEREIN.

UNLESS THIS NOTE IS PRESENTED BY AN AUTHORIZED REPRESENTATIVE OF THE DEPOSITORY TRUST COMPANY, A NEW YORK CORPORATION (“DTC”), TO THE REGISTRAR, THE INDENTURE TRUSTEE OR THEIR AGENT FOR REGISTRATION OF TRANSFER, EXCHANGE, OR PAYMENT, AND ANY NOTE ISSUED IS REGISTERED IN THE NAME OF CEDE & CO. OR IN SUCH OTHER NAME AS IS REQUESTED BY AN AUTHORIZED REPRESENTATIVE OF DTC (AND ANY PAYMENT IS MADE TO CEDE & CO. OR TO SUCH OTHER ENTITY AS IS REQUESTED BY AN AUTHORIZED REPRESENTATIVE OF DTC), ANY TRANSFER, PLEDGE, OR OTHER USE HEREOF FOR VALUE OR OTHERWISE BY OR TO ANY PERSON IS WRONGFUL INASMUCH AS THE REGISTERED OWNER HEREOF, CEDE & CO., HAS AN INTEREST HEREIN.

THIS NOTE HAS NOT BEEN REGISTERED OR QUALIFIED UNDER THE SECURITIES ACT, OR THE SECURITIES LAWS OF ANY STATE AND THE ISSUER IS NOT AND WILL NOT BE REGISTERED UNDER THE UNITED STATES INVESTMENT COMPANY ACT OF 1940, AS AMENDED (THE “INVESTMENT COMPANY ACT”). ANY RESALE, PLEDGE, TRANSFER OR OTHER DISPOSITION OF THIS NOTE OR ANY INTEREST HEREIN WITHOUT SUCH REGISTRATION OR QUALIFICATION MAY BE MADE ONLY IN A TRANSACTION WHICH DOES NOT REQUIRE SUCH REGISTRATION OR QUALIFICATION AND WHICH IS IN ACCORDANCE WITH THE PROVISIONS OF SECTION 4.02 OF THE INDENTURE REFERRED TO HEREIN.

THE HOLDER OF THIS NOTE BY ITS ACCEPTANCE HEREOF AGREES NOT TO OFFER, SELL OR OTHERWISE TRANSFER SUCH NOTE WITHIN THE UNITED STATES OR TO U.S. PERSONS (AS DEFINED IN REGULATION S UNDER THE SECURITIES ACT) PRIOR TO THE EXCHANGE DATE EXCEPT PURSUANT TO AN EXEMPTION FROM THE REGISTRATION REQUIREMENTS OF THE SECURITIES ACT.

BY ACQUIRING THIS CLASS G NOTE (OR ANY INTEREST HEREIN), EACH PURCHASER AND TRANSFEREE (AND, ITS FIDUCIARY, IF APPLICABLE) WILL BE DEEMED TO REPRESENT AND WARRANT THAT IT IS NOT ACQUIRING AND WILL NOT HOLD THIS NOTE (OR INTEREST HEREIN) WITH THE ASSETS OF A PLAN (AS DEFINED BELOW) THAT IS SUBJECT TO TITLE I OF THE EMPLOYEE RETIREMENT INCOME SECURITY ACT OF 1974, AS AMENDED (“ERISA”) OR SECTION 4975 OF THE INTERNAL REVENUE CODE OF 1986, AS AMENDED (THE “CODE”) OR THAT IS SUBJECT TO A LAW THAT IS SUBSTANTIALLY SIMILAR TO TITLE I OF ERISA OR SECTION 4975 OF THE CODE (“SIMILAR LAW”). FOR THESE PURPOSES, A “PLAN” MEANS AN “EMPLOYEE BENEFIT PLAN” AS

DEFINED IN SECTION 3(3) OF ERISA WHETHER OR NOT SUBJECT TO TITLE I OF ERISA, A “PLAN” AS DEFINED IN SECTION 4975 OF THE CODE, OR AN ENTITY OR ACCOUNT DEEMED TO HOLD PLAN ASSETS OF THE FOREGOING BY VIRTUE OF SUCH EMPLOYEE BENEFIT PLAN’S OR PLAN’S INVESTMENT IN THE ENTITY OR ACCOUNT.

THIS NOTE REPRESENTS A NON-RECOURSE OBLIGATION OF THE ISSUER AND WILL BE PAID SOLELY FROM THE COLLATERAL SECURING THIS NOTE. NEITHER THIS NOTE NOR THE COLLATERAL IS INSURED OR GUARANTEED BY ANY GOVERNMENTAL AGENCY OR INSTRUMENTALITY OR BY ANY OTHER PERSON.

PAYMENTS IN REDUCTION OF THE INITIAL NOTE AMOUNT OF THIS NOTE MAY BE MADE MONTHLY AS SET FORTH IN THE INDENTURE REFERRED TO HEREIN. ACCORDINGLY, THE OUTSTANDING NOTE AMOUNT HEREOF AT ANY TIME MAY BE LESS THAN THE AMOUNT SHOWN ABOVE.

This certifies that Cede & Co. is the registered owner (the “Holder”) of this Note which is one of the Notes (collectively, the “Notes”) issued by the Issuer referred to above pursuant to the indenture, dated August 28, 2025 (the “Indenture”), among, *inter alios*, the Issuer referred to above, THE BANK OF NEW YORK MELLON, as paying agent (the “Paying Agent”), registrar (the “Registrar”), REMIC administrator (the “REMIC Administrator”) and the Indenture Trustee referred to above, on behalf of the holders of the Notes (the “Noteholders”), and FIGURE LENDING LLC, as sponsor (the “Sponsor”), a summary of certain of the pertinent provisions of which is set forth hereafter. To the extent not defined herein, capitalized terms used herein have the respective meanings assigned in the Indenture. This Note is issued under and is subject to the terms, provisions and conditions of the Indenture, to which Indenture the Holder of this Note by virtue of the acceptance hereof assents and by which such holder is bound.

Pursuant to the terms of the Indenture, payments on the Notes will be made on the 25th day of each month, or the immediately following Business Day if the 25th day is not a Business Day (each, a “Payment Date”), commencing in September 2025. All payments made under the Indenture on this Note will be made by the Paying Agent to the Depository and the Depository shall be responsible for crediting the amount of such distribution to the accounts of its Depository Participants in accordance with its normal procedures.

The Notes are limited in right of payment to certain distributions on the Mortgage Loans and other amounts, all as more specifically set forth herein and in the Indenture. As provided in the Indenture, withdrawals from the Payment Account may be made from time to time for purposes other than, and, in certain cases, prior to, payments to Noteholders, such purposes including reimbursement of certain expenses incurred by the transaction parties.

Any payment to the Holder of this Note in reduction of the Denomination hereof is binding on such Holder and all future Holders of this Note and any Note issued upon the transfer hereof or in exchange herefor or in lieu hereof whether or not notation of such payment is made upon this Note.

The Notes are issuable in fully registered form only without coupons in minimum denominations specified in the Indenture. As provided in the Indenture and subject to certain limitations therein set forth, this Note is exchangeable for new Notes in authorized denominations evidencing the same aggregate Denomination, as requested by the Holder surrendering the same.

No transfer, sale, pledge or other disposition of this Note or interest herein shall be made unless that transfer, sale, pledge or other disposition is exempt from the registration and/or qualification requirements of the Securities Act and any applicable state securities laws, or is otherwise made in accordance with the Securities Act and such state securities laws. If a transfer of this Note is to be made without registration under the Securities Act, and a Responsible Officer of the Registrar has actual knowledge thereof, then the Registrar shall refuse to register such transfer unless it and the Indenture Trustee receive (and upon receipt, may conclusively rely upon) certain certificate(s) required pursuant to Section 4.02 of the Indenture (as to which, so long as this Note is a Book-Entry Note, the representations and agreements made therein will be deemed to have been made by the prospective transferor and/or the prospective transferee, as applicable). None of the Issuer, the Indenture Trustee, the Paying Agent, REMIC Administrator or the Registrar is obligated to register or qualify any Notes under the Securities Act or any other securities law or to take any action not otherwise required under the Indenture to permit the transfer of any Note or interest therein without registration or qualification. Any Noteholder desiring to effect a transfer of Notes or interests therein shall, and does hereby agree to, indemnify the Issuer, the Indenture Trustee, the Paying Agent and the Registrar against any liability that may result if the transfer is not so exempt or is not made in accordance with such federal and state laws.

As provided in the Indenture and subject to certain limitations therein set forth, the transfer of this Note is registrable in the Register upon surrender of this Note for registration of transfer at the applicable Corporate Trust Office of the Registrar, duly endorsed by, or accompanied by a written instrument of transfer in the form satisfactory to the Registrar and the Indenture Trustee duly executed by, the Holder hereof or his attorney duly authorized in writing, and thereupon one or more new Notes in authorized denominations evidencing the same aggregate Denomination will be issued to the designated transferee or transferees.

No service charge will be imposed for any registration of transfer or exchange of this Note, but the Indenture Trustee or the Registrar may require payment of a sum sufficient to cover any tax or other governmental charge that may be imposed in connection with any transfer or exchange of this Note.

The Issuer, the Indenture Trustee, the Paying Agent, the Registrar and any agent thereof may treat the Person in whose name this Note is registered as the owner hereof for all purposes, and none of the Issuer, the Indenture Trustee, the Paying Agent, the Registrar or any such agent shall be affected by notice to the contrary.

Each Noteholder, by acceptance of a Class G Note or a beneficial interest therein, as the case may be, covenants and agrees that no recourse may be taken, directly or indirectly, with respect to the obligations of the Issuer, the Owner Trustee, the Depositor, the Depositor Trustee, the Indenture Trustee, the Registrar, the REMIC Administrator or the Paying Agent on the Notes or under the Indenture or any certificate or other writing delivered in connection herewith or therewith, against (i) the Indenture Trustee, the Registrar, the REMIC Administrator the Paying

Agent, the Administrator, the Servicer, the Sponsor, the Depositor, the Owner Trustee or the Depositor Trustee in its individual capacity except as provided in the Transaction Documents (it being understood that the Owner Trustee has no such obligation in its individual capacity), (ii) any direct or indirect holder of a beneficial ownership interest in the Issuer or the Depositor or (iii) any partner, owner, beneficiary, agent, officer, director, employee or agent of the Indenture Trustee, the Registrar, the REMIC Administrator the Paying Agent, the Administrator, the Servicer, the Sponsor, the Depositor, the Owner Trustee or the Depositor Trustee in its individual capacity, any direct or indirect holder of a beneficial ownership interest in the Issuer, the Owner Trustee, the Depositor Trustee, the Indenture Trustee, the Registrar, the REMIC Administrator or the Paying Agent. For all purposes of the Indenture, (x) in the performance of any duties or obligations of the Issuer thereunder, each of the Administrator and the Owner Trustee shall be subject to, and entitled to the benefits of, the Trust Agreement, (y) in the performance of any duties or obligations of the Depositor thereunder, each of the Depositor Trustee and the Administrator shall be subject to, and entitled to the benefits of, the Depositor Trust Agreement and (z) in the performance of any duties or obligations of the Indenture Trustee, REMIC Administrator, Registrar, or Paying Agent thereunder, each of the Indenture Trustee, REMIC Administrator, Registrar, and Paying Agent shall be subject to, and entitled to the benefits of, the Indenture.

The Indenture will be discharged (except with respect to certain continuing rights specified in the Indenture) in accordance with the provisions therein.

Modifications of and amendments to the Indenture may be made by the Issuer, the Paying Agent, the Registrar, the REMIC Administrator and the Indenture Trustee in accordance with the provisions of the Indenture.

Unless the certificate of authentication hereon has been executed by the Registrar, by manual signature, this Note shall not be entitled to any benefit under the Indenture or be valid for any purpose.

This Note is a “regular interest” in a “real estate mortgage investment conduit,” as those terms are defined, respectively, in Sections 860G(a)(1) and 860D of the Code. Each Holder of this Note, by acceptance hereof, agrees to treat, and take no action inconsistent with the treatment of, this Note in accordance with the preceding sentence for purposes of U.S. federal income taxes, state and local income and franchise taxes and other taxes imposed on or measured by income.

The registered Holder hereof, by its acceptance hereof agrees that it will look solely to the Trust Estate (to the extent of its rights therein) for payments hereunder.

This Note shall be construed in accordance with the internal laws of the State of New York applicable to agreements made and to be performed in said State other than its conflicts of law principles except for Section 5-1401 and 1402 of the General Obligations Law, and the obligations, rights and remedies of the Holder hereof shall be determined in accordance with such laws.

IN WITNESS WHEREOF, the Issuer has caused this instrument to be duly executed by its Authorized Officer, as of the date set forth below.

FIGRE TRUST 2025-HE5,
as Issuer

By: Wilmington Savings Fund Society, FSB,
not in its individual capacity but solely
as Owner Trustee

By: _____
Name:
Title:
Dated:

CERTIFICATE OF AUTHENTICATION

This is one of the Class G Notes referred to in the within mentioned Indenture.

The Bank of New York Mellon,
as Registrar

By: _____
Authorized Officer
Dated: _____

ASSIGNMENT

FOR VALUE RECEIVED, the undersigned hereby sell(s), assign(s) and transfer(s) unto

(please print or typewrite name and address including postal zip code of assignee)

the within Note and all rights thereunder and hereby authorize(s) the registration of transfer of such interest to assignee on the Register.

I (we) further direct the Registrar to issue a new Note of a like aggregate Denomination to the above named assignee and deliver such Note to the following address:

Dated:

Signature by or on behalf of Assignor

Signature Guaranteed

*21

PAYMENT INSTRUCTIONS

The Assignee should include the following for purposes of payment:

Payments shall, if permitted, be made by wire transfer or otherwise, in immediately available _____ funds, _____ to

_____ for the account of _____.

Payments made by check (such check to be made payable to _____) and all applicable statements and notices should be mailed to _____.

This information is provided by _____, the Assignee named above, or _____, as its agent.

* NOTICE: The signature to this assignment must correspond with the name of the registered owner as it appears on the face of the within Note in every particular, without alteration, enlargement or any change whatsoever. Such signature must, at the election of the Registrar, be guaranteed by an "eligible guarantor institution" meeting the requirements of the Registrar.

Exhibit A-8A

FORM OF RULE 144A GLOBAL CLASS XS NOTE

FIGRE TRUST 2025-HE5 MORTGAGE-BACKED NOTES, SERIES 2025-HE5

Interest Rate: As set forth in the Indenture	Date of Indenture: August 28, 2025
Initial Note Amount: \$[•]	Closing Date: August 28, 2025
Minimum Denomination of this Note: \$1,000,000	Initial Payment Date: September 2025
Legal Final Maturity: Payment Date occurring in August 2055	Note No.: [•]
CUSIP: 31684MAH2	ISIN: US31684MAH25
Issuer: FIGRE TRUST 2025-HE5, a Delaware statutory trust	Indenture Trustee: THE BANK OF NEW YORK MELLON

UNLESS THIS NOTE IS PRESENTED BY AN AUTHORIZED REPRESENTATIVE OF THE DEPOSITORY TRUST COMPANY, A NEW YORK CORPORATION (“DTC”), TO THE REGISTRAR, THE INDENTURE TRUSTEE OR THEIR AGENT FOR REGISTRATION OF TRANSFER, EXCHANGE, OR PAYMENT, AND ANY NOTE ISSUED IS REGISTERED IN THE NAME OF CEDE & CO. OR IN SUCH OTHER NAME AS IS REQUESTED BY AN AUTHORIZED REPRESENTATIVE OF DTC (AND ANY PAYMENT IS MADE TO CEDE & CO. OR TO SUCH OTHER ENTITY AS IS REQUESTED BY AN AUTHORIZED REPRESENTATIVE OF DTC), ANY TRANSFER, PLEDGE, OR OTHER USE HEREOF FOR VALUE OR OTHERWISE BY OR TO ANY PERSON IS WRONGFUL INASMUCH AS THE REGISTERED OWNER HEREOF, CEDE & CO., HAS AN INTEREST HEREIN.

THIS NOTE HAS NOT BEEN REGISTERED OR QUALIFIED UNDER THE SECURITIES ACT OF 1933, AS AMENDED (THE “SECURITIES ACT”), OR THE SECURITIES LAWS OF ANY STATE AND THE ISSUER IS NOT AND WILL NOT BE REGISTERED UNDER THE UNITED STATES INVESTMENT COMPANY ACT OF 1940, AS AMENDED (THE “INVESTMENT COMPANY ACT”). ANY RESALE, PLEDGE, TRANSFER OR OTHER DISPOSITION OF THIS NOTE OR ANY INTEREST HEREIN WITHOUT SUCH REGISTRATION OR QUALIFICATION MAY BE MADE ONLY IN A TRANSACTION WHICH DOES NOT REQUIRE SUCH REGISTRATION OR QUALIFICATION AND WHICH IS IN ACCORDANCE WITH THE PROVISIONS OF SECTION 4.02 OF THE INDENTURE REFERRED TO HEREIN.

THE INITIAL INVESTOR IN THIS NOTE, AND EACH SUBSEQUENT PURCHASER OF THIS NOTE, BY PURCHASING THIS NOTE OR AN INTEREST HEREIN, IS DEEMED TO HAVE AGREED TO COMPLY WITH CERTAIN TRANSFER REQUIREMENTS SET FORTH IN THE INDENTURE REFERRED TO HEREIN.

BY ACQUIRING THIS CLASS XS NOTE (OR ANY INTEREST HEREIN), EACH PURCHASER AND TRANSFEREE (AND, ITS FIDUCIARY, IF APPLICABLE) WILL BE DEEMED TO REPRESENT AND WARRANT THAT IT IS NOT ACQUIRING AND WILL NOT HOLD THIS NOTE (OR INTEREST HEREIN) WITH THE ASSETS OF A PLAN (AS DEFINED BELOW) THAT IS SUBJECT TO TITLE I OF THE EMPLOYEE RETIREMENT INCOME SECURITY ACT OF 1974, AS AMENDED (“ERISA”) OR SECTION 4975 OF THE INTERNAL REVENUE CODE OF 1986, AS AMENDED (THE “CODE”) OR THAT IS SUBJECT TO A LAW THAT IS SUBSTANTIALLY SIMILAR TO TITLE I OF ERISA OR SECTION 4975 OF THE CODE (“SIMILAR LAW”). FOR THESE PURPOSES, A “PLAN” MEANS AN “EMPLOYEE BENEFIT PLAN” AS DEFINED IN SECTION 3(3) OF ERISA WHETHER OR NOT SUBJECT TO TITLE I OF ERISA, A “PLAN” AS DEFINED IN SECTION 4975 OF THE CODE, OR AN ENTITY OR ACCOUNT DEEMED TO HOLD PLAN ASSETS OF THE FOREGOING BY VIRTUE OF SUCH EMPLOYEE BENEFIT PLAN’S OR PLAN’S INVESTMENT IN THE ENTITY OR ACCOUNT.

THIS NOTE REPRESENTS A NON-RECOURSE OBLIGATION OF THE ISSUER AND WILL BE PAID SOLELY FROM THE COLLATERAL SECURING THIS NOTE. NEITHER THIS NOTE NOR THE COLLATERAL IS INSURED OR GUARANTEED BY

ANY GOVERNMENTAL AGENCY OR INSTRUMENTALITY OR BY ANY OTHER PERSON.

PAYMENTS IN REDUCTION OF THE INITIAL NOTE AMOUNT OF THIS NOTE MAY BE MADE MONTHLY AS SET FORTH IN THE INDENTURE REFERRED TO HEREIN. ACCORDINGLY, THE OUTSTANDING NOTE AMOUNT HEREOF AT ANY TIME MAY BE LESS THAN THE AMOUNT SHOWN ABOVE.

This certifies that Cede & Co. is the registered owner (the “Holder”) of this Note which is one of the Notes (collectively, the “Notes”) issued by the Issuer referred to above pursuant to the indenture, dated August 28, 2025 (the “Indenture”), among, *inter alios*, the Issuer referred to above, THE BANK OF NEW YORK MELLON, as paying agent (the “Paying Agent”), registrar (the “Registrar”), REMIC administrator (the “REMIC Administrator”) and the Indenture Trustee referred to above, on behalf of the holders of the Notes (the “Noteholders”), and FIGURE LENDING LLC, as sponsor (the “Sponsor”), a summary of certain of the pertinent provisions of which is set forth hereafter. To the extent not defined herein, capitalized terms used herein have the respective meanings assigned in the Indenture. This Note is issued under and is subject to the terms, provisions and conditions of the Indenture, to which Indenture the Holder of this Note by virtue of the acceptance hereof assents and by which such holder is bound.

Pursuant to the terms of the Indenture, payments on the Notes will be made on the 25th day of each month, or the immediately following Business Day if the 25th day is not a Business Day (each, a “Payment Date”), commencing in September 2025. All payments made under the Indenture on this Note will be made by the Paying Agent to the Depository and the Depository shall be responsible for crediting the amount of such distribution to the accounts of its Depository Participants in accordance with its normal procedures.

The Notes are limited in right of payment to certain distributions on the Mortgage Loans and other amounts, all as more specifically set forth herein and in the Indenture. As provided in the Indenture, withdrawals from the Payment Account may be made from time to time for purposes other than, and, in certain cases, prior to, payments to Noteholders, such purposes including reimbursement of certain expenses incurred by the transaction parties.

Any payment to the Holder of this Note in reduction of the Denomination hereof is binding on such Holder and all future Holders of this Note and any Note issued upon the transfer hereof or in exchange herefor or in lieu hereof whether or not notation of such payment is made upon this Note.

The Notes are issuable in fully registered form only without coupons in minimum denominations specified in the Indenture. As provided in the Indenture and subject to certain limitations therein set forth, this Note is exchangeable for new Notes in authorized denominations evidencing the same aggregate Denomination, as requested by the Holder surrendering the same.

No transfer, sale, pledge or other disposition of this Note or interest herein shall be made unless that transfer, sale, pledge or other disposition is exempt from the registration and/or qualification requirements of the Securities Act and any applicable state securities laws, or is otherwise made in accordance with the Securities Act and such state securities laws. If a transfer

of this Note is to be made without registration under the Securities Act, and a Responsible Officer of the Registrar has actual knowledge thereof, then the Registrar shall refuse to register such transfer unless it and the Indenture Trustee receive (and upon receipt, may conclusively rely upon) certain certificate(s) required pursuant to Section 4.02 of the Indenture (as to which, so long as this Note is a Book-Entry Note, the representations and agreements made therein will be deemed to have been made by the prospective transferor and/or the prospective transferee, as applicable). None of the Issuer, the Indenture Trustee, the Paying Agent, REMIC Administrator or the Registrar is obligated to register or qualify any Notes under the Securities Act or any other securities law or to take any action not otherwise required under the Indenture to permit the transfer of any Note or interest therein without registration or qualification. Any Noteholder desiring to effect a transfer of Notes or interests therein shall, and does hereby agree to, indemnify the Issuer, the Indenture Trustee, the Paying Agent and the Registrar against any liability that may result if the transfer is not so exempt or is not made in accordance with such federal and state laws.

As provided in the Indenture and subject to certain limitations therein set forth, the transfer of this Note is registrable in the Register upon surrender of this Note for registration of transfer at the applicable Corporate Trust Office of the Registrar, duly endorsed by, or accompanied by a written instrument of transfer in the form satisfactory to the Registrar and the Indenture Trustee duly executed by, the Holder hereof or his attorney duly authorized in writing, and thereupon one or more new Notes in authorized denominations evidencing the same aggregate Denomination will be issued to the designated transferee or transferees.

No service charge will be imposed for any registration of transfer or exchange of this Note, but the Indenture Trustee or the Registrar may require payment of a sum sufficient to cover any tax or other governmental charge that may be imposed in connection with any transfer or exchange of this Note.

The Issuer, the Indenture Trustee, the Paying Agent, the Registrar and any agent thereof may treat the Person in whose name this Note is registered as the owner hereof for all purposes, and none of the Issuer, the Indenture Trustee, the Paying Agent, the Registrar or any such agent shall be affected by notice to the contrary.

Each Noteholder, by acceptance of a Class XS Note or a beneficial interest therein, as the case may be, covenants and agrees that no recourse may be taken, directly or indirectly, with respect to the obligations of the Issuer, the Owner Trustee, the Depositor, the Depositor Trustee, the Indenture Trustee, the Registrar, the REMIC Administrator or the Paying Agent on the Notes or under the Indenture or any certificate or other writing delivered in connection herewith or therewith, against (i) the Indenture Trustee, the Registrar, the REMIC Administrator the Paying Agent, the Administrator, the Servicer, the Sponsor, the Depositor, the Owner Trustee or the Depositor Trustee in its individual capacity except as provided in the Transaction Documents (it being understood that the Owner Trustee has no such obligation in its individual capacity), (ii) any direct or indirect holder of a beneficial ownership interest in the Issuer or the Depositor or (iii) any partner, owner, beneficiary, agent, officer, director, employee or agent of the Indenture Trustee, the Registrar, the REMIC Administrator the Paying Agent, the Administrator, the Servicer, the Sponsor, the Depositor, the Owner Trustee or the Depositor Trustee in its individual capacity, any direct or indirect holder of a beneficial ownership interest in the Issuer, the Owner Trustee, the Depositor Trustee, the Indenture Trustee, the Registrar, the REMIC Administrator or the Paying

Agent. For all purposes of the Indenture, (x) in the performance of any duties or obligations of the Issuer thereunder, each of the Administrator and the Owner Trustee shall be subject to, and entitled to the benefits of, the Trust Agreement, (y) in the performance of any duties or obligations of the Depositor thereunder, each of the Depositor Trustee and the Administrator shall be subject to, and entitled to the benefits of, the Depositor Trust Agreement and (z) in the performance of any duties or obligations of the Indenture Trustee, REMIC Administrator, Registrar, or Paying Agent thereunder, each of the Indenture Trustee, REMIC Administrator, Registrar, and Paying Agent shall be subject to, and entitled to the benefits of, the Indenture.

The Indenture will be discharged (except with respect to certain continuing rights specified in the Indenture) in accordance with the provisions therein.

Modifications of and amendments to the Indenture may be made by the Issuer, the Paying Agent, the Registrar, the REMIC Administrator and the Indenture Trustee in accordance with the provisions of the Indenture.

Unless the certificate of authentication hereon has been executed by the Registrar, by manual signature, this Note shall not be entitled to any benefit under the Indenture or be valid for any purpose.

This Note is a “regular interest” in a “real estate mortgage investment conduit,” as those terms are defined, respectively, in Sections 860G(a)(1) and 860D of the Code. Each Holder of this Note, by acceptance hereof, agrees to treat, and take no action inconsistent with the treatment of, this Note in accordance with the preceding sentence for purposes of U.S. federal income taxes, state and local income and franchise taxes and other taxes imposed on or measured by income.

The registered Holder hereof, by its acceptance hereof agrees that it will look solely to the Trust Estate (to the extent of its rights therein) for payments hereunder.

This Note shall be construed in accordance with the internal laws of the State of New York applicable to agreements made and to be performed in said State other than its conflicts of law principles except for Section 5-1401 and 1402 of the General Obligations Law, and the obligations, rights and remedies of the Holder hereof shall be determined in accordance with such laws.

IN WITNESS WHEREOF, the Issuer has caused this instrument to be duly executed by its Authorized Officer, as of the date set forth below.

FIGRE TRUST 2025-HE5,
as Issuer

By: Wilmington Savings Fund Society, FSB,
not in its individual capacity but solely
as Owner Trustee

By: _____
Name:
Title:
Dated:

CERTIFICATE OF AUTHENTICATION

This is one of the Class XS Notes referred to in the within mentioned Indenture.

The Bank of New York Mellon,
as Registrar

By: _____
Authorized Officer
Dated: _____

ASSIGNMENT

FOR VALUE RECEIVED, the undersigned hereby sell(s), assign(s) and transfer(s) unto

(please print or typewrite name and address including postal zip code of assignee)

the within Note and all rights thereunder and hereby authorize(s) the registration of transfer of such interest to assignee on the Register.

I (we) further direct the Registrar to issue a new Note of a like aggregate Denomination to the above named assignee and deliver such Note to the following address:

Dated:

Signature by or on behalf of Assignor

Signature Guaranteed

*22

PAYMENT INSTRUCTIONS

The Assignee should include the following for purposes of payment:

Payments shall, if permitted, be made by wire transfer or otherwise, in immediately available _____ funds, _____ to

_____ for the account of _____.

Payments made by check (such check to be made payable to _____) and all applicable statements and notices should be mailed to _____.

This information is provided by _____, the Assignee named above, or _____, as its agent.

* NOTICE: The signature to this assignment must correspond with the name of the registered owner as it appears on the face of the within Note in every particular, without alteration, enlargement or any change whatsoever. Such signature must, at the election of the Registrar, be guaranteed by an "eligible guarantor institution" meeting the requirements of the Registrar.

Exhibit A-8B

FORM OF TEMPORARY REGULATION S GLOBAL CLASS XS NOTE

FIGRE TRUST 2025-HE5 MORTGAGE-BACKED NOTES, SERIES 2025-HE5

Interest Rate: As set forth in the Indenture

Date of Indenture: August 28, 2025

Initial Note Amount: \$[•]

Closing Date: August 28, 2025

Minimum Denomination of this Note:
\$1,000,000

Initial Payment Date: September 2025

Legal Final Maturity: Payment Date occurring
in August 2055

Note No.: [•]

CUSIP: U3202RAH0

ISIN: USU3202RAH04

Issuer: FIGRE TRUST 2025-HE5, a
Delaware statutory trust

Indenture Trustee: THE BANK OF NEW
YORK MELLON

THIS NOTE IS A TEMPORARY REGULATION S GLOBAL NOTE FOR PURPOSES OF REGULATION S UNDER THE UNITED STATES SECURITIES ACT OF 1933, AS AMENDED (THE “SECURITIES ACT”). NEITHER THIS TEMPORARY REGULATION S GLOBAL NOTE NOR ANY INTEREST HEREIN MAY BE OFFERED, SOLD OR DELIVERED, EXCEPT AS PERMITTED UNDER THE INDENTURE REFERRED TO HEREIN.

UNLESS THIS NOTE IS PRESENTED BY AN AUTHORIZED REPRESENTATIVE OF THE DEPOSITORY TRUST COMPANY, A NEW YORK CORPORATION (“DTC”), TO THE REGISTRAR, THE INDENTURE TRUSTEE OR THEIR AGENT FOR REGISTRATION OF TRANSFER, EXCHANGE, OR PAYMENT, AND ANY NOTE ISSUED IS REGISTERED IN THE NAME OF CEDE & CO. OR IN SUCH OTHER NAME AS IS REQUESTED BY AN AUTHORIZED REPRESENTATIVE OF DTC (AND ANY PAYMENT IS MADE TO CEDE & CO. OR TO SUCH OTHER ENTITY AS IS REQUESTED BY AN AUTHORIZED REPRESENTATIVE OF DTC), ANY TRANSFER, PLEDGE, OR OTHER USE HEREOF FOR VALUE OR OTHERWISE BY OR TO ANY PERSON IS WRONGFUL INASMUCH AS THE REGISTERED OWNER HEREOF, CEDE & CO., HAS AN INTEREST HEREIN.

THIS NOTE HAS NOT BEEN REGISTERED OR QUALIFIED UNDER THE SECURITIES ACT, OR THE SECURITIES LAWS OF ANY STATE AND THE ISSUER IS NOT AND WILL NOT BE REGISTERED UNDER THE UNITED STATES INVESTMENT COMPANY ACT OF 1940, AS AMENDED (THE “INVESTMENT COMPANY ACT”). ANY RESALE, PLEDGE, TRANSFER OR OTHER DISPOSITION OF THIS NOTE OR ANY INTEREST HEREIN WITHOUT SUCH REGISTRATION OR QUALIFICATION MAY BE MADE ONLY IN A TRANSACTION WHICH DOES NOT REQUIRE SUCH REGISTRATION OR QUALIFICATION AND WHICH IS IN ACCORDANCE WITH THE PROVISIONS OF SECTION 4.02 OF THE INDENTURE REFERRED TO HEREIN.

THE HOLDER OF THIS NOTE BY ITS ACCEPTANCE HEREOF AGREES NOT TO OFFER, SELL OR OTHERWISE TRANSFER SUCH NOTE WITHIN THE UNITED STATES OR TO U.S. PERSONS (AS DEFINED IN REGULATION S UNDER THE SECURITIES ACT) PRIOR TO THE EXCHANGE DATE EXCEPT PURSUANT TO AN EXEMPTION FROM THE REGISTRATION REQUIREMENTS OF THE SECURITIES ACT.

BY ACQUIRING THIS CLASS XS NOTE (OR ANY INTEREST HEREIN), EACH PURCHASER AND TRANSFEREE (AND, ITS FIDUCIARY, IF APPLICABLE) WILL BE DEEMED TO REPRESENT AND WARRANT THAT IT IS NOT ACQUIRING AND WILL NOT HOLD THIS NOTE (OR INTEREST HEREIN) WITH THE ASSETS OF A PLAN (AS DEFINED BELOW) THAT IS SUBJECT TO TITLE I OF THE EMPLOYEE RETIREMENT INCOME SECURITY ACT OF 1974, AS AMENDED (“ERISA”) OR SECTION 4975 OF THE INTERNAL REVENUE CODE OF 1986, AS AMENDED (THE “CODE”) OR THAT IS SUBJECT TO A LAW THAT IS SUBSTANTIALLY SIMILAR TO TITLE I OF ERISA OR SECTION 4975 OF THE CODE (“SIMILAR LAW”). FOR THESE PURPOSES, A “PLAN” MEANS AN “EMPLOYEE BENEFIT PLAN” AS

DEFINED IN SECTION 3(3) OF ERISA WHETHER OR NOT SUBJECT TO TITLE I OF ERISA, A “PLAN” AS DEFINED IN SECTION 4975 OF THE CODE, OR AN ENTITY OR ACCOUNT DEEMED TO HOLD PLAN ASSETS OF THE FOREGOING BY VIRTUE OF SUCH EMPLOYEE BENEFIT PLAN’S OR PLAN’S INVESTMENT IN THE ENTITY OR ACCOUNT.

THIS NOTE REPRESENTS A NON-RECOURSE OBLIGATION OF THE ISSUER AND WILL BE PAID SOLELY FROM THE COLLATERAL SECURING THIS NOTE. NEITHER THIS NOTE NOR THE COLLATERAL IS INSURED OR GUARANTEED BY ANY GOVERNMENTAL AGENCY OR INSTRUMENTALITY OR BY ANY OTHER PERSON.

PAYMENTS IN REDUCTION OF THE INITIAL NOTE AMOUNT OF THIS NOTE MAY BE MADE MONTHLY AS SET FORTH IN THE INDENTURE REFERRED TO HEREIN. ACCORDINGLY, THE OUTSTANDING NOTE AMOUNT HEREOF AT ANY TIME MAY BE LESS THAN THE AMOUNT SHOWN ABOVE.

This certifies that Cede & Co. is the registered owner (the “Holder”) of this Note which is one of the Notes (collectively, the “Notes”) issued by the Issuer referred to above pursuant to the indenture, dated August 28, 2025 (the “Indenture”), among, *inter alios*, the Issuer referred to above, THE BANK OF NEW YORK MELLON, as paying agent (the “Paying Agent”), registrar (the “Registrar”), REMIC administrator (the “REMIC Administrator”) and the Indenture Trustee referred to above, on behalf of the holders of the Notes (the “Noteholders”), and FIGURE LENDING LLC, as sponsor (the “Sponsor”), a summary of certain of the pertinent provisions of which is set forth hereafter. To the extent not defined herein, capitalized terms used herein have the respective meanings assigned in the Indenture. This Note is issued under and is subject to the terms, provisions and conditions of the Indenture, to which Indenture the Holder of this Note by virtue of the acceptance hereof assents and by which such holder is bound.

Pursuant to the terms of the Indenture, payments on the Notes will be made on the 25th day of each month, or the immediately following Business Day if the 25th day is not a Business Day (each, a “Payment Date”), commencing in September 2025. All payments made under the Indenture on this Note will be made by the Paying Agent to the Depository and the Depository shall be responsible for crediting the amount of such distribution to the accounts of its Depository Participants in accordance with its normal procedures.

The Notes are limited in right of payment to certain distributions on the Mortgage Loans and other amounts, all as more specifically set forth herein and in the Indenture. As provided in the Indenture, withdrawals from the Payment Account may be made from time to time for purposes other than, and, in certain cases, prior to, payments to Noteholders, such purposes including reimbursement of certain expenses incurred by the transaction parties.

Any payment to the Holder of this Note in reduction of the Denomination hereof is binding on such Holder and all future Holders of this Note and any Note issued upon the transfer hereof or in exchange herefor or in lieu hereof whether or not notation of such payment is made upon this Note.

The Notes are issuable in fully registered form only without coupons in minimum denominations specified in the Indenture. As provided in the Indenture and subject to certain limitations therein set forth, this Note is exchangeable for new Notes in authorized denominations evidencing the same aggregate Denomination, as requested by the Holder surrendering the same.

No transfer, sale, pledge or other disposition of this Note or interest herein shall be made unless that transfer, sale, pledge or other disposition is exempt from the registration and/or qualification requirements of the Securities Act and any applicable state securities laws, or is otherwise made in accordance with the Securities Act and such state securities laws. If a transfer of this Note is to be made without registration under the Securities Act, and a Responsible Officer of the Registrar has actual knowledge thereof, then the Registrar shall refuse to register such transfer unless it and the Indenture Trustee receive (and upon receipt, may conclusively rely upon) certain certificate(s) required pursuant to Section 4.02 of the Indenture (as to which, so long as this Note is a Book-Entry Note, the representations and agreements made therein will be deemed to have been made by the prospective transferor and/or the prospective transferee, as applicable). None of the Issuer, the Indenture Trustee, the Paying Agent, REMIC Administrator or the Registrar is obligated to register or qualify any Notes under the Securities Act or any other securities law or to take any action not otherwise required under the Indenture to permit the transfer of any Note or interest therein without registration or qualification. Any Noteholder desiring to effect a transfer of Notes or interests therein shall, and does hereby agree to, indemnify the Issuer, the Indenture Trustee, the Paying Agent and the Registrar against any liability that may result if the transfer is not so exempt or is not made in accordance with such federal and state laws.

As provided in the Indenture and subject to certain limitations therein set forth, the transfer of this Note is registrable in the Register upon surrender of this Note for registration of transfer at the applicable Corporate Trust Office of the Registrar, duly endorsed by, or accompanied by a written instrument of transfer in the form satisfactory to the Registrar and the Indenture Trustee duly executed by, the Holder hereof or his attorney duly authorized in writing, and thereupon one or more new Notes in authorized denominations evidencing the same aggregate Denomination will be issued to the designated transferee or transferees.

No service charge will be imposed for any registration of transfer or exchange of this Note, but the Indenture Trustee or the Registrar may require payment of a sum sufficient to cover any tax or other governmental charge that may be imposed in connection with any transfer or exchange of this Note.

The Issuer, the Indenture Trustee, the Paying Agent, the Registrar and any agent thereof may treat the Person in whose name this Note is registered as the owner hereof for all purposes, and none of the Issuer, the Indenture Trustee, the Paying Agent, the Registrar or any such agent shall be affected by notice to the contrary.

Each Noteholder, by acceptance of a Class XS Note or a beneficial interest therein, as the case may be, covenants and agrees that no recourse may be taken, directly or indirectly, with respect to the obligations of the Issuer, the Owner Trustee, the Depositor, the Depositor Trustee, the Indenture Trustee, the Registrar, the REMIC Administrator or the Paying Agent on the Notes or under the Indenture or any certificate or other writing delivered in connection herewith or therewith, against (i) the Indenture Trustee, the Registrar, the REMIC Administrator the Paying

Agent, the Administrator, the Servicer, the Sponsor, the Depositor, the Owner Trustee or the Depositor Trustee in its individual capacity except as provided in the Transaction Documents (it being understood that the Owner Trustee has no such obligation in its individual capacity), (ii) any direct or indirect holder of a beneficial ownership interest in the Issuer or the Depositor or (iii) any partner, owner, beneficiary, agent, officer, director, employee or agent of the Indenture Trustee, the Registrar, the REMIC Administrator the Paying Agent, the Administrator, the Servicer, the Sponsor, the Depositor, the Owner Trustee or the Depositor Trustee in its individual capacity, any direct or indirect holder of a beneficial ownership interest in the Issuer, the Owner Trustee, the Depositor Trustee, the Indenture Trustee, the Registrar, the REMIC Administrator or the Paying Agent. For all purposes of the Indenture, (x) in the performance of any duties or obligations of the Issuer thereunder, each of the Administrator and the Owner Trustee shall be subject to, and entitled to the benefits of, the Trust Agreement, (y) in the performance of any duties or obligations of the Depositor thereunder, each of the Depositor Trustee and the Administrator shall be subject to, and entitled to the benefits of, the Depositor Trust Agreement and (z) in the performance of any duties or obligations of the Indenture Trustee, REMIC Administrator, Registrar, or Paying Agent thereunder, each of the Indenture Trustee, REMIC Administrator, Registrar, and Paying Agent shall be subject to, and entitled to the benefits of, the Indenture.

The Indenture will be discharged (except with respect to certain continuing rights specified in the Indenture) in accordance with the provisions therein.

Modifications of and amendments to the Indenture may be made by the Issuer, the Paying Agent, the Registrar, the REMIC Administrator and the Indenture Trustee in accordance with the provisions of the Indenture.

Unless the certificate of authentication hereon has been executed by the Registrar, by manual signature, this Note shall not be entitled to any benefit under the Indenture or be valid for any purpose.

This Note is a “regular interest” in a “real estate mortgage investment conduit,” as those terms are defined, respectively, in Sections 860G(a)(1) and 860D of the Code. Each Holder of this Note, by acceptance hereof, agrees to treat, and take no action inconsistent with the treatment of, this Note in accordance with the preceding sentence for purposes of U.S. federal income taxes, state and local income and franchise taxes and other taxes imposed on or measured by income.

The registered Holder hereof, by its acceptance hereof agrees that it will look solely to the Trust Estate (to the extent of its rights therein) for payments hereunder.

This Note shall be construed in accordance with the internal laws of the State of New York applicable to agreements made and to be performed in said State other than its conflicts of law principles except for Section 5-1401 and 1402 of the General Obligations Law, and the obligations, rights and remedies of the Holder hereof shall be determined in accordance with such laws.

IN WITNESS WHEREOF, the Issuer has caused this instrument to be duly executed by its Authorized Officer, as of the date set forth below.

FIGRE TRUST 2025-HE5,
as Issuer

By: Wilmington Savings Fund Society, FSB,
not in its individual capacity but solely
as Owner Trustee

By: _____
Name:
Title:
Dated:

CERTIFICATE OF AUTHENTICATION

This is one of the Class XS Notes referred to in the within mentioned Indenture.

The Bank of New York Mellon,
as Registrar

By: _____
Authorized Officer
Dated: _____

ASSIGNMENT

FOR VALUE RECEIVED, the undersigned hereby sell(s), assign(s) and transfer(s) unto

(please print or typewrite name and address including postal zip code of assignee)

the within Note and all rights thereunder and hereby authorize(s) the registration of transfer of such interest to assignee on the Register.

I (we) further direct the Registrar to issue a new Note of a like aggregate Denomination to the above named assignee and deliver such Note to the following address:

Dated:

Signature by or on behalf of Assignor

Signature Guaranteed

*23

PAYMENT INSTRUCTIONS

The Assignee should include the following for purposes of payment:

Payments shall, if permitted, be made by wire transfer or otherwise, in immediately available _____ funds, _____ to

_____ for the account of _____.

Payments made by check (such check to be made payable to _____) and all applicable statements and notices should be mailed to _____.

This information is provided by _____, the Assignee named above, or _____, as its agent.

* NOTICE: The signature to this assignment must correspond with the name of the registered owner as it appears on the face of the within Note in every particular, without alteration, enlargement or any change whatsoever. Such signature must, at the election of the Registrar, be guaranteed by an "eligible guarantor institution" meeting the requirements of the Registrar.

Exhibit A-8C

**FORM OF PERMANENT REGULATION S GLOBAL CLASS XS NOTE
FIGRE TRUST 2025-HE5 MORTGAGE-BACKED NOTES, SERIES 2025-HE5**

Interest Rate: As set forth in the Indenture	Date of Indenture: August 28, 2025
Initial Note Amount: \$[●]	Closing Date: August 28, 2025
Minimum Denomination of this Note: \$1,000,000	Initial Payment Date: September 2025
Legal Final Maturity: Payment Date occurring in August 2055	Note No.: [●]
CUSIP: U3202RAH0	ISIN: USU3202RAH04
Issuer: FIGRE TRUST 2025-HE5, a Delaware statutory trust	Indenture Trustee: THE BANK OF NEW YORK MELLON

THIS NOTE IS A PERMANENT REGULATION S GLOBAL NOTE FOR PURPOSES OF REGULATION S UNDER THE UNITED STATES SECURITIES ACT OF 1933, AS AMENDED (THE “SECURITIES ACT”). NEITHER THIS PERMANENT REGULATION S GLOBAL NOTE NOR ANY INTEREST HEREIN MAY BE OFFERED, SOLD OR DELIVERED, EXCEPT AS PERMITTED UNDER THE INDENTURE REFERRED TO HEREIN.

UNLESS THIS NOTE IS PRESENTED BY AN AUTHORIZED REPRESENTATIVE OF THE DEPOSITORY TRUST COMPANY, A NEW YORK CORPORATION (“DTC”), TO THE REGISTRAR, THE INDENTURE TRUSTEE OR THEIR AGENT FOR REGISTRATION OF TRANSFER, EXCHANGE, OR PAYMENT, AND ANY NOTE ISSUED IS REGISTERED IN THE NAME OF CEDE & CO. OR IN SUCH OTHER NAME AS IS REQUESTED BY AN AUTHORIZED REPRESENTATIVE OF DTC (AND ANY PAYMENT IS MADE TO CEDE & CO. OR TO SUCH OTHER ENTITY AS IS REQUESTED BY AN AUTHORIZED REPRESENTATIVE OF DTC), ANY TRANSFER, PLEDGE, OR OTHER USE HEREOF FOR VALUE OR OTHERWISE BY OR TO ANY PERSON IS WRONGFUL INASMUCH AS THE REGISTERED OWNER HEREOF, CEDE & CO., HAS AN INTEREST HEREIN.

THIS NOTE HAS NOT BEEN REGISTERED OR QUALIFIED UNDER THE SECURITIES ACT, OR THE SECURITIES LAWS OF ANY STATE AND THE ISSUER IS NOT AND WILL NOT BE REGISTERED UNDER THE UNITED STATES INVESTMENT COMPANY ACT OF 1940, AS AMENDED (THE “INVESTMENT COMPANY ACT”). ANY RESALE, PLEDGE, TRANSFER OR OTHER DISPOSITION OF THIS NOTE OR ANY INTEREST HEREIN WITHOUT SUCH REGISTRATION OR QUALIFICATION MAY BE MADE ONLY IN A TRANSACTION WHICH DOES NOT REQUIRE SUCH REGISTRATION OR QUALIFICATION AND WHICH IS IN ACCORDANCE WITH THE PROVISIONS OF SECTION 4.02 OF THE INDENTURE REFERRED TO HEREIN.

THE HOLDER OF THIS NOTE BY ITS ACCEPTANCE HEREOF AGREES NOT TO OFFER, SELL OR OTHERWISE TRANSFER SUCH NOTE WITHIN THE UNITED STATES OR TO U.S. PERSONS (AS DEFINED IN REGULATION S UNDER THE SECURITIES ACT) PRIOR TO THE EXCHANGE DATE EXCEPT PURSUANT TO AN EXEMPTION FROM THE REGISTRATION REQUIREMENTS OF THE SECURITIES ACT.

BY ACQUIRING THIS CLASS XS NOTE (OR ANY INTEREST HEREIN), EACH PURCHASER AND TRANSFEREE (AND, ITS FIDUCIARY, IF APPLICABLE) WILL BE DEEMED TO REPRESENT AND WARRANT THAT IT IS NOT ACQUIRING AND WILL NOT HOLD THIS NOTE (OR INTEREST HEREIN) WITH THE ASSETS OF A PLAN (AS DEFINED BELOW) THAT IS SUBJECT TO TITLE I OF THE EMPLOYEE RETIREMENT INCOME SECURITY ACT OF 1974, AS AMENDED (“ERISA”) OR SECTION 4975 OF THE INTERNAL REVENUE CODE OF 1986, AS AMENDED (THE “CODE”) OR THAT IS SUBJECT TO A LAW THAT IS SUBSTANTIALLY SIMILAR TO TITLE I OF ERISA OR SECTION 4975 OF THE CODE (“SIMILAR LAW”). FOR THESE PURPOSES, A “PLAN” MEANS AN “EMPLOYEE BENEFIT PLAN” AS

DEFINED IN SECTION 3(3) OF ERISA WHETHER OR NOT SUBJECT TO TITLE I OF ERISA, A “PLAN” AS DEFINED IN SECTION 4975 OF THE CODE, OR AN ENTITY OR ACCOUNT DEEMED TO HOLD PLAN ASSETS OF THE FOREGOING BY VIRTUE OF SUCH EMPLOYEE BENEFIT PLAN’S OR PLAN’S INVESTMENT IN THE ENTITY OR ACCOUNT.

THIS NOTE REPRESENTS A NON-RECOURSE OBLIGATION OF THE ISSUER AND WILL BE PAID SOLELY FROM THE COLLATERAL SECURING THIS NOTE. NEITHER THIS NOTE NOR THE COLLATERAL IS INSURED OR GUARANTEED BY ANY GOVERNMENTAL AGENCY OR INSTRUMENTALITY OR BY ANY OTHER PERSON.

PAYMENTS IN REDUCTION OF THE INITIAL NOTE AMOUNT OF THIS NOTE MAY BE MADE MONTHLY AS SET FORTH IN THE INDENTURE REFERRED TO HEREIN. ACCORDINGLY, THE OUTSTANDING NOTE AMOUNT HEREOF AT ANY TIME MAY BE LESS THAN THE AMOUNT SHOWN ABOVE.

This certifies that Cede & Co. is the registered owner (the “Holder”) of this Note which is one of the Notes (collectively, the “Notes”) issued by the Issuer referred to above pursuant to the indenture, dated August 28, 2025 (the “Indenture”), among, *inter alios*, the Issuer referred to above, THE BANK OF NEW YORK MELLON, as paying agent (the “Paying Agent”), registrar (the “Registrar”), REMIC administrator (the “REMIC Administrator”) and the Indenture Trustee referred to above, on behalf of the holders of the Notes (the “Noteholders”), and FIGURE LENDING LLC, as sponsor (the “Sponsor”), a summary of certain of the pertinent provisions of which is set forth hereafter. To the extent not defined herein, capitalized terms used herein have the respective meanings assigned in the Indenture. This Note is issued under and is subject to the terms, provisions and conditions of the Indenture, to which Indenture the Holder of this Note by virtue of the acceptance hereof assents and by which such holder is bound.

Pursuant to the terms of the Indenture, payments on the Notes will be made on the 25th day of each month, or the immediately following Business Day if the 25th day is not a Business Day (each, a “Payment Date”), commencing in September 2025. All payments made under the Indenture on this Note will be made by the Paying Agent to the Depository and the Depository shall be responsible for crediting the amount of such distribution to the accounts of its Depository Participants in accordance with its normal procedures.

The Notes are limited in right of payment to certain distributions on the Mortgage Loans and other amounts, all as more specifically set forth herein and in the Indenture. As provided in the Indenture, withdrawals from the Payment Account may be made from time to time for purposes other than, and, in certain cases, prior to, payments to Noteholders, such purposes including reimbursement of certain expenses incurred by the transaction parties.

Any payment to the Holder of this Note in reduction of the Denomination hereof is binding on such Holder and all future Holders of this Note and any Note issued upon the transfer hereof or in exchange herefor or in lieu hereof whether or not notation of such payment is made upon this Note.

The Notes are issuable in fully registered form only without coupons in minimum denominations specified in the Indenture. As provided in the Indenture and subject to certain limitations therein set forth, this Note is exchangeable for new Notes in authorized denominations evidencing the same aggregate Denomination, as requested by the Holder surrendering the same.

No transfer, sale, pledge or other disposition of this Note or interest herein shall be made unless that transfer, sale, pledge or other disposition is exempt from the registration and/or qualification requirements of the Securities Act and any applicable state securities laws, or is otherwise made in accordance with the Securities Act and such state securities laws. If a transfer of this Note is to be made without registration under the Securities Act, and a Responsible Officer of the Registrar has actual knowledge thereof, then the Registrar shall refuse to register such transfer unless it and the Indenture Trustee receive (and upon receipt, may conclusively rely upon) certain certificate(s) required pursuant to Section 4.02 of the Indenture (as to which, so long as this Note is a Book-Entry Note, the representations and agreements made therein will be deemed to have been made by the prospective transferor and/or the prospective transferee, as applicable). None of the Issuer, the Indenture Trustee, the Paying Agent, REMIC Administrator or the Registrar is obligated to register or qualify any Notes under the Securities Act or any other securities law or to take any action not otherwise required under the Indenture to permit the transfer of any Note or interest therein without registration or qualification. Any Noteholder desiring to effect a transfer of Notes or interests therein shall, and does hereby agree to, indemnify the Issuer, the Indenture Trustee, the Paying Agent and the Registrar against any liability that may result if the transfer is not so exempt or is not made in accordance with such federal and state laws.

As provided in the Indenture and subject to certain limitations therein set forth, the transfer of this Note is registrable in the Register upon surrender of this Note for registration of transfer at the applicable Corporate Trust Office of the Registrar, duly endorsed by, or accompanied by a written instrument of transfer in the form satisfactory to the Registrar and the Indenture Trustee duly executed by, the Holder hereof or his attorney duly authorized in writing, and thereupon one or more new Notes in authorized denominations evidencing the same aggregate Denomination will be issued to the designated transferee or transferees.

No service charge will be imposed for any registration of transfer or exchange of this Note, but the Indenture Trustee or the Registrar may require payment of a sum sufficient to cover any tax or other governmental charge that may be imposed in connection with any transfer or exchange of this Note.

The Issuer, the Indenture Trustee, the Paying Agent, the Registrar and any agent thereof may treat the Person in whose name this Note is registered as the owner hereof for all purposes, and none of the Issuer, the Indenture Trustee, the Paying Agent, the Registrar or any such agent shall be affected by notice to the contrary.

Each Noteholder, by acceptance of a Class XS Note or a beneficial interest therein, as the case may be, covenants and agrees that no recourse may be taken, directly or indirectly, with respect to the obligations of the Issuer, the Owner Trustee, the Depositor, the Depositor Trustee, the Indenture Trustee, the Registrar, the REMIC Administrator or the Paying Agent on the Notes or under the Indenture or any certificate or other writing delivered in connection herewith or therewith, against (i) the Indenture Trustee, the Registrar, the REMIC Administrator the Paying

Agent, the Administrator, the Servicer, the Sponsor, the Depositor, the Owner Trustee or the Depositor Trustee in its individual capacity except as provided in the Transaction Documents (it being understood that the Owner Trustee has no such obligation in its individual capacity), (ii) any direct or indirect holder of a beneficial ownership interest in the Issuer or the Depositor or (iii) any partner, owner, beneficiary, agent, officer, director, employee or agent of the Indenture Trustee, the Registrar, the REMIC Administrator the Paying Agent, the Administrator, the Servicer, the Sponsor, the Depositor, the Owner Trustee or the Depositor Trustee in its individual capacity, any direct or indirect holder of a beneficial ownership interest in the Issuer, the Owner Trustee, the Depositor Trustee, the Indenture Trustee, the Registrar, the REMIC Administrator or the Paying Agent. For all purposes of the Indenture, (x) in the performance of any duties or obligations of the Issuer thereunder, each of the Administrator and the Owner Trustee shall be subject to, and entitled to the benefits of, the Trust Agreement, (y) in the performance of any duties or obligations of the Depositor thereunder, each of the Depositor Trustee and the Administrator shall be subject to, and entitled to the benefits of, the Depositor Trust Agreement and (z) in the performance of any duties or obligations of the Indenture Trustee, REMIC Administrator, Registrar, or Paying Agent thereunder, each of the Indenture Trustee, REMIC Administrator, Registrar, and Paying Agent shall be subject to, and entitled to the benefits of, the Indenture.

The Indenture will be discharged (except with respect to certain continuing rights specified in the Indenture) in accordance with the provisions therein.

Modifications of and amendments to the Indenture may be made by the Issuer, the Paying Agent, the Registrar, the REMIC Administrator and the Indenture Trustee in accordance with the provisions of the Indenture.

Unless the certificate of authentication hereon has been executed by the Registrar, by manual signature, this Note shall not be entitled to any benefit under the Indenture or be valid for any purpose.

This Note is a “regular interest” in a “real estate mortgage investment conduit,” as those terms are defined, respectively, in Sections 860G(a)(1) and 860D of the Code. Each Holder of this Note, by acceptance hereof, agrees to treat, and take no action inconsistent with the treatment of, this Note in accordance with the preceding sentence for purposes of U.S. federal income taxes, state and local income and franchise taxes and other taxes imposed on or measured by income.

The registered Holder hereof, by its acceptance hereof agrees that it will look solely to the Trust Estate (to the extent of its rights therein) for payments hereunder.

This Note shall be construed in accordance with the internal laws of the State of New York applicable to agreements made and to be performed in said State other than its conflicts of law principles except for Section 5-1401 and 1402 of the General Obligations Law, and the obligations, rights and remedies of the Holder hereof shall be determined in accordance with such laws.

IN WITNESS WHEREOF, the Issuer has caused this instrument to be duly executed by its Authorized Officer, as of the date set forth below.

FIGRE TRUST 2025-HE5,
as Issuer

By: Wilmington Savings Fund Society, FSB,
not in its individual capacity but solely
as Owner Trustee

By: _____
Name:
Title:
Dated:

CERTIFICATE OF AUTHENTICATION

This is one of the Class XS Notes referred to in the within mentioned Indenture.

The Bank of New York Mellon,
as Registrar

By: _____
Authorized Officer
Dated: _____

ASSIGNMENT

FOR VALUE RECEIVED, the undersigned hereby sell(s), assign(s) and transfer(s) unto

(please print or typewrite name and address including postal zip code of assignee)

the within Note and all rights thereunder and hereby authorize(s) the registration of transfer of such interest to assignee on the Register.

I (we) further direct the Registrar to issue a new Note of a like aggregate Denomination to the above named assignee and deliver such Note to the following address:

Dated:

Signature by or on behalf of Assignor

Signature Guaranteed

*24

PAYMENT INSTRUCTIONS

The Assignee should include the following for purposes of payment:

Payments shall, if permitted, be made by wire transfer or otherwise, in immediately available _____ funds, _____ to

_____ for the account of _____.

Payments made by check (such check to be made payable to _____) and all applicable statements and notices should be mailed to _____.

This information is provided by _____, the Assignee named above, or _____, as its agent.

* NOTICE: The signature to this assignment must correspond with the name of the registered owner as it appears on the face of the within Note in every particular, without alteration, enlargement or any change whatsoever. Such signature must, at the election of the Registrar, be guaranteed by an "eligible guarantor institution" meeting the requirements of the Registrar.

Exhibit B-1

**FORM OF TRANSFEROR CERTIFICATE FOR TRANSFERS
OF THE RULE 144A NOTES**

Date:

The Bank of New York Mellon, as Indenture Trustee and Registrar
240 Greenwich Street, 7 East
New York, NY 10286
Attention: Corporate Trust Administration— FIGRE Trust 2025-HE5

Re: FIGRE Trust 2025-HE5 Rule 144A Notes

This letter is delivered to you in connection with the sale by _____ (the “Seller”) to _____ (the “Purchaser”) of \$ _____ principal amount of FIGRE Trust 2025-HE5 Mortgage-Backed Notes, Class [A][B][C][D][E][F][G][XS] (the “Transferred Notes”), pursuant to Section 4.02 of the Indenture, dated as of August 28, 2025 , among FIGRE Trust 2025-HE5, a Delaware statutory trust, as Issuer, The Bank of New York Mellon, not in its individual capacity but solely in its capacities as Indenture Trustee, Paying Agent, REMIC Administrator and Registrar, and Figure Lending LLC, a Delaware limited liability company, as Sponsor (the “**Indenture**”), with respect to the FIGRE Trust 2025-HE5 Mortgage-Backed Notes. All terms used herein and not otherwise defined shall have the meanings set forth in the Indenture.

The Seller hereby certifies, represents and warrants to, and covenants with the Issuer, the Indenture Trustee, the Paying Agent, the Registrar, the REMIC Administrator and the Sponsor that such exchange or transfer has been effected in accordance with the transfer restrictions set forth in the Indenture and the Transferred Notes.

We agree to indemnify the Issuer, the Indenture Trustee, the Paying Agent, the Registrar, the REMIC Administrator and the Sponsor against any liability that may result if we sell or transfer the Transferred Notes to a purchaser or transferee who does not comply with any conditions for transfer set forth in the Indenture or the Transferred Notes.

Very truly yours,

Name:

Title:

Exhibit B-2

**FORM OF TRANSFeree CERTIFICATE FOR TRANSFERS
OF THE RULE 144A NOTES**

Date:

The Bank of New York Mellon, as Indenture Trustee and Registrar
240 Greenwich Street, 7 East
New York, NY 10286
Attention: Corporate Trust Administration— FIGRE Trust 2025-HE5

Re: FIGRE Trust 2025-HE5 Rule 144A Notes

This letter is delivered to you in connection with the sale by _____ (the “Seller”) to _____ (the “Purchaser”) of \$ _____ principal amount of FIGRE Trust 2025-HE5 Mortgage-Backed Notes, Class [A][B][C][D][E][F][G][XS] (the “Transferred Notes”), pursuant to Section 4.02 of the Indenture, dated as of August 28, 2025, among FIGRE Trust 2025-HE5, a Delaware statutory trust, as Issuer, The Bank of New York Mellon, not in its individual capacity but solely in its capacities as Indenture Trustee, Paying Agent, REMIC Administrator and Registrar, and Figure Lending LLC, a Delaware limited liability company, as Sponsor (the “Indenture”), with respect to the FIGRE Trust 2025-HE5 Mortgage-Backed Notes. All terms used herein and not otherwise defined shall have the meanings set forth in the Indenture.

(a) The Purchaser hereby certifies, represents and warrants to, and covenants with the Issuer, the Indenture Trustee, the Paying Agent, the Registrar, the REMIC Administrator and the Sponsor that (i) such exchange or transfer has been effected in accordance with the transfer restrictions set forth in the Indenture and the Transferred Notes; and (ii) without limiting the generality of the foregoing, (A) the Purchaser has such knowledge and experience in financial and business matters as to be capable of evaluating the merits and risks of an investment in the Transferred Notes and the Purchaser is able to bear the economic risk of such investment; (B) the Purchaser has reviewed the Indenture (including the schedules and exhibits thereto) and has had the opportunity to perform due diligence with respect thereto and to ask questions of and receive answers from the Issuer and its representatives concerning the Issuer and the Transferred Notes; (C) the Purchaser is not acquiring the Transferred Notes as an agent or otherwise for any other person; (D) the Purchaser is (x) a “qualified institutional buyer” as defined in Rule 144A under the Securities Act and/or (y) the Sponsor of an Affiliate thereof; the (E) Purchaser understands that the offering and sale of the Notes have not been and will not be registered under the Securities Act and have not and will not be registered or qualified under any applicable “blue sky” law, and that the offering and sale of the Notes have not been reviewed by, passed on or submitted to any federal or state agency or commission, securities exchange or other regulatory body; (F) the Purchaser is acquiring the Transferred Notes without a view to any distribution, resale or other transfer thereof, except as contemplated by the following sentence; (G) the Purchaser will not resell or otherwise transfer the Transferred Notes or any portion thereof, except (x) (I) pursuant to an effective registration statement under the Securities Act; (II) in a transaction exempt from the registration requirements of the Securities Act, and applicable state securities or “blue sky” laws; or (III) to the Issuer or any Affiliate of the Issuer and (y) in accordance with the terms of the Indenture; and (H) **[Class A, B, C, D Notes only:** the Purchaser and transferee (and its fiduciary, if applicable)

represents and warrants that either (i) it is not acquiring and will not hold such Transferred Note (or interest therein) with the assets of a Benefit Plan Investor or a Plan that is subject to Similar Law or (ii) (A) the Transferred Note is rated at least “BBB-” or its equivalent by a nationally recognized statistical rating agency at the time of acquisition or transfer and the Transferred Note has not been characterized as other than indebtedness under applicable local law and (B) the acquisition, holding and disposition of the Transferred Note (or interest therein) will not, in the case of a Benefit Plan Investor, give rise to a non-exempt prohibited transaction under Section 406 of ERISA or Section 4975 of the Code or, in the case of a Plan that is subject to Similar Law, result in a violation of any Similar Law.] **[Class E, F, G, XS Notes only:** the Purchaser and transferee (and its fiduciary, if applicable) represents and warrants that it is not acquiring and will not hold such Transferred Note (or interest therein) with the assets of a Benefit Plan Investor or a Plan that is subject to Similar Law.]

We agree to indemnify the Issuer, the Indenture Trustee, the Paying Agent, the Registrar, the REMIC Administrator and the Sponsor against any liability that may result if we sell or transfer the Transferred Notes to a purchaser or transferee who does not comply with any conditions for transfer set forth in the Indenture or the Transferred Notes.

Very truly yours,

Name:

Title:

EXHIBIT B-3

FORM OF REGULATION S TRANSFER CERTIFICATE

[Date]

The Bank of New York Mellon, as Indenture Trustee and Registrar
240 Greenwich Street, 7 East
New York, NY 10286
Attention: Corporate Trust Administration– FIGRE Trust 2025-HE5

Re: FIGRE Trust MORTGAGE-BACKED NOTES, SERIES 2025-HE5 (the “Notes”)

Ladies and Gentlemen:

Reference is hereby made to the Indenture, dated August 28, 2025 (the “Indenture”), by and among FIGRE Trust 2025-HE5, a Delaware statutory trust, as Issuer, The Bank of New York Mellon, not in its individual capacity but solely in its capacities as Indenture Trustee, Paying Agent, REMIC Administrator and Registrar, and Figure Lending LLC, a Delaware limited liability company, as Sponsor. Capitalized terms used herein but not defined herein shall have the meanings assigned thereto in the Indenture.

This letter relates to a Note in the amount of U.S. \$[] which is held in the form of a Rule 144A Global Note (CUSIP No.) with the Depository in the name of [name of transferor] (the “Transferor”) to effect [the transfer of the Note to a person who wishes to take delivery thereof in the form of an equivalent beneficial interest in a [Temporary Regulation S Global Note to be held through Euroclear or Clearstream Banking] [Permanent Regulation S Global Note] (the “Transferee”)] [the exchange of the Note for an equivalent beneficial interest in a [Temporary Regulation S Global Note to be held through Euroclear or Clearstream Banking] [Permanent Regulation S Global Note]].

In connection with such request, the Transferor does hereby certify that such [transfer] [exchange] has been effected in accordance with the transfer restrictions set forth in the Indenture relating to the Notes and that the following additional requirements (if applicable) were satisfied:

- (a) the offer of the Notes was not made to a person in the United States;
- (b) at the time the buy order was originated, the Transferee was outside the United States or the Transferor and any person acting on its behalf reasonably believed that the Transferee was outside the United States;
- (c) no directed selling efforts were made in contravention of the requirements of Rule 903(b) or 904(b) of Regulation S, as applicable;
- (d) the transfer or exchange is not part of a plan or scheme to evade the registration requirements of the Securities Act;

(e) the Transferee is not a U.S. Person, as defined in Regulation S under the Securities Act; and

(f) the transfer or exchange was made in accordance with the applicable provisions of Rule 903(c)(2) or (3) or Rule 904(c)(1), as the case may be.

We agree to indemnify the Issuer, the Indenture Trustee, the Paying Agent, the Registrar, the REMIC Administrator and the Sponsor against any liability that may result if we sell or transfer the Transferred Notes to a purchaser or transferee who does not comply with any conditions for transfer set forth in the Indenture or the Transferred Notes.

You, the Indenture Trustee, the Paying Agent and the Issuer are entitled to rely upon this letter and are irrevocably authorized to produce this letter or a copy hereof to any interested party in any administrative or legal proceedings or official inquiry with respect to the matters covered hereby.

[Name of Transferor]

By: _____
Name:
Title:

cc: [Initial Purchaser]

EXHIBIT B-4

FORM OF RULE 144A TRANSFER CERTIFICATE

[Date]

The Bank of New York Mellon, as Indenture Trustee and Registrar
240 Greenwich Street, 7 East
New York, NY 10286
Attention: Corporate Trust Administration– FIGRE Trust 2025-HE5

Re: FIGRE Trust MORTGAGE-BACKED NOTES, SERIES 2025-HE5 (the “Notes”)

Ladies and Gentlemen:

Reference is hereby made to the Indenture, dated August 28, 2025 (the “Indenture”), by and among FIGRE Trust 2025-HE5, a Delaware statutory trust, as Issuer, The Bank of New York Mellon, not in its individual capacity but solely in its capacities as Indenture Trustee, Paying Agent, REMIC Administrator and Registrar, and Figure Lending LLC, a Delaware limited liability company, as Sponsor. Capitalized terms used herein but not defined herein shall have the meanings assigned thereto in the Indenture.

This letter relates to a Note in the amount of U.S. \$[] which is held in the form of a Temporary Regulation S Global Note with the Depository [CUSIP/ISIN No.] in the name of [name of transferor] (the “Transferor”) to effect [the transfer of the Note to a person who wishes to take delivery thereof in the form of an equivalent beneficial interest in a Rule 144A Global Note (the “Transferee”)] [the exchange of the Note for an equivalent beneficial interest in a Rule 144A Global Note].

In connection with such request, and in respect of such Notes, the Transferor does hereby certify that such Notes are being transferred in accordance with (i) the transfer restrictions set forth in the Indenture relating to the Notes and (ii) Rule 144A under the United States Securities Act of 1933, as amended, to a Transferee that the Transferor reasonably believes is a qualified institutional buyer within the meaning of Rule 144A or the Sponsor or an Affiliate thereof, in each case purchasing the Notes for its own account or for the account of a person that is a qualified institutional buyer, in a transaction meeting the requirements of Rule 144A and in accordance with any applicable securities laws of any state of the United States or any other jurisdiction.

We agree to indemnify the Issuer, the Indenture Trustee, the Paying Agent, the Registrar, the REMIC Administrator and the Sponsor against any liability that may result if we sell or transfer the Transferred Notes to a purchaser or transferee who does not comply with any conditions for transfer set forth in the Indenture or the Transferred Notes.

[Name of Transferor]

By: _____

Name:

Title:

cc: [Initial Purchaser]

EXHIBIT B-5

FORM OF CLEARING SYSTEM CERTIFICATE

[Date]

The Bank of New York Mellon, as Indenture Trustee and Registrar
240 Greenwich Street, 7 East
New York, NY 10286
Attention: Corporate Trust Administration– FIGRE Trust 2025-HE5

Attention: FIGRE Trust 2025-HE5

Re: FIGRE Trust MORTGAGE-BACKED NOTES, SERIES 2025-HE5 (the “Notes”)

Ladies and Gentlemen:

Reference is hereby made to the Indenture, dated August 28, 2025 (the “Indenture”), by and between FIGRE TRUST 2025-HE5 (the “Issuer”) and The Bank of New York Mellon, as indenture trustee (in such capacity, the “Indenture Trustee”), as paying agent (in such capacity, the “Paying Agent”) and as registrar (in such capacity, the “Registrar”). Capitalized terms used herein but not defined herein shall have the meanings assigned thereto in the Indenture.

This is to certify that, based solely on certificates we have received in writing, by tested telex or by electronic transmissions from member organizations appearing in our records as persons being entitled to a portion of the Notes equal to, as of the date hereof, U.S. \$_____ (our “Member Organizations”), certifies with respect to such portion, substantially to the effect set forth in Annex A hereto.

We further certify (i) that we are not making available herewith for exchange any portion of the Temporary Regulation S Global Note excepted in such certificates and (ii) that as of the date hereof we have not received any notification from any of our Member Organizations to the effect that the statements made by such member organizations with respect to any portion of the part submitted herewith for exchange are no longer true and cannot be relied upon as at the date hereof. We understand that this certification is required in connection with certain securities laws of the United States. In connection therewith, if administrative or legal proceedings are commenced or threatened in connection with this certificate is or would be relevant, we irrevocably authorized you to produce this certificate to any interested party in such proceedings.

Yours faithfully,

[CLEARSTREAM BANKING]

or

[_____,
Brussels office, as operator of the
Euroclear System]

By: _____

FORM OF MEMBER ORGANIZATION CERTIFICATE

[Address to Euroclear System or Clearstream Banking, as appropriate]

Re: FIGRE Trust MORTGAGE-BACKED NOTES, SERIES 2025-HE5 (the “Notes”)

Ladies and Gentlemen:

Reference is hereby made to the Indenture, dated August 28, 2025 (the “Indenture”), by and between FIGRE TRUST 2025-HE5 (the “Issuer”) and The Bank of New York Mellon, as indenture trustee (in such capacity, the “Indenture Trustee”), as paying agent (in such capacity, the “Paying Agent”) and as registrar (in such capacity, the “Registrar”). Capitalized terms used herein but not defined herein shall have the meanings assigned thereto in the Indenture.

This is to certify that, as of the date hereof and except as set forth below, the Notes (the “Notes”) held by you for our account (i) are beneficially owned by (a) non-U.S. persons or (b) U.S. persons who purchased the Notes in transactions that did not require registration under the United States Securities Act of 1933, as amended (the “Securities Act”). As used in this paragraph, the term “U.S. person” has the meaning given to it by Regulation S under the Securities Act.

We undertake to advise you promptly by tested telex on or prior to the date on which you intend to submit your certification relating to the Notes held by you for our account in accordance with your documented procedures if any applicable statement herein is not correct on such date, and in the absence of any such notification it may be assumed that this certificate applies as of such date.

Dated: _____, 202__ (1)

Yours faithfully,

[Name of Person giving the certificate]

(1) To be dated no earlier than 15 days prior to the event to which the certification relates.

Exhibit C

DELINQUENCY TRIGGER EVENT THRESHOLDS

Month	Delinquency Trigger Event Threshold (%)
August 2026	5.00%
September 2026	5.00%
October 2026	5.00%
November 2026	5.00%
December 2026	5.00%
January 2027	5.00%
February 2027	5.00%
March 2027	5.00%
April 2027	5.00%
May 2027	5.00%
June 2027	5.00%
July 2027	5.00%
August 2027	5.00%
September 2027	5.00%
October 2027	5.00%
November 2027	5.00%
December 2027	5.00%
January 2028	5.00%
February 2028	5.00%
March 2028	5.00%
April 2028	5.00%
May 2028	5.00%
June 2028	5.00%
July 2028	5.00%
August 2028	5.00%
September 2028	5.00%
October 2028	5.00%
November 2028	5.00%
December 2028	5.00%
January 2029	5.00%
February 2029	5.00%
March 2029	5.00%
April 2029	5.00%
May 2029	5.00%
June 2029	5.00%
July 2029	5.00%
August 2029	5.00%
September 2029	5.00%
October 2029	5.00%

November 2029	5.00%
December 2029	5.00%
January 2030	5.00%
February 2030	5.00%
March 2030	5.00%
April 2030	5.00%
May 2030	5.00%
June 2030	5.00%
July 2030	5.00%
August 2030	5.00%
September 2030 and thereafter	10.00%